

FR No: 1123 / 2024

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
PRESENTATION FORM

Writ Appeal No: 1108 of 2024(KLR)

District: Bengaluru

H.N. Basavaraju, B.A., LL.B.

Between:

Advocate, 'Karthika Nilaya',

Sri S.D. Avalappa

46 & 47, 25th Main Road,

Girinagar 'T' Block,

And:

(Opp: Bank of Baroda Girinagara Br.)

Bengaluru-560 085

The Deputy Commissioner &
another

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9008784886

Sl. No.	Description of paper presented	Court Fee affixed on the paper
1	<u>MEMORANDUM OF WRIT APPEAL</u> <u>UNDER SECTION 4 OF THE</u> <u>KARNATAKA HIGH COURTS ACT,</u> 1954	
2	On the Memo of Appeal	
3	Vakalath	
4	On Certified copies	
5	On Process Fee	
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IN THE HIGH COURT OF KARNATAKA AT BENGALURU
Writ Appeal No. _____ /2024

Between:

Sri S.D. Avalappa

>>>Appellant

And:The Deputy Commissioner
and others

>>>Respondents

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Place: Bengaluru

Date: 18-09-2024

Advocate for Appellant

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU
Writ Appeal No. _____/2024

Between:

Sri S.D. Avalappa

>>>Appellant

And:

The Deputy Commissioner
and others

>>>Respondents

DATE AND EVENTS

- 06-11-1979** The Land Tribunal, in proceedings No.LRF.1/1979-80 appointed the Revenue Inspector of the concerned Hobli as a receiver in respect of the lands bearing Sy.Nos.4 and 6 of Sathanuru Village, Jala Hobli, Bangalore North Taluk retrospectively measuring one acre and 2 acres 08 guntas
- 13-07-1982** The Land Tribunal, Devanahalli Taluk, Devanahalli, in case No.LRF.1/1979-80 granted occupancy right in favour of the father of the appellant viz., Muniyappa @ Dommanna
- 12-10-1982** Form No.10 Registration Certificate was issued by the Land Tribunal
- 17-09-1984** Hemanna, the husband of respondent No.4, filed the writ petition in W.P. No.28672/1982 which came to be allowed and remanded the matter to the Land Tribunal for a fresh consideration
- 16-04-1987** The Writ Appeal filed by the appellant's father Muniyappa @ Dommanna in W.A. No.667/1985, came to be disposed of by transferring the matter to the Land Reforms Appellate Authority constituted under the Karnataka Land Reforms Act. On transfer, the appeal was numbered as LRA.208/1987
- 12-07-1993** W.P. No.28672/1982, which was treated as LRA.280/1987 was again transferred to this Hon'ble Court and restored and the same came to be dismissed for non-prosecution
- 07-12-2001** Seeking recalling and restoration of the said order, an application was moved in C.P. No.1281/2001, which was dismissed
- 15-11-2003** Upon referring to the all earlier proceedings, respondent No.3 has directed to make an entry in favour of the L.Rs. of Muniyappa @ Dommanna (Tenant) - father of the appellant. MR.19/2003-04 was made in favour of the L.Rs. of Muniyappa @ Dommanna i.e., Narayanaswamy in respect of Sy.Nos.4 and 6



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- 26-08-2004** The order passed in C.P. No.1281/2001 declined to restore the Writ Petition was sought to be reviewed and the same came to be dismissed - **In view of the aforesaid proceedings, the order of the Land Tribunal granting occupancy right in favour of the father of the appellant, has attained finality as it become final**
- 22-06-2007** Respondent No.1 Deputy Commissioner in R.P. No.97/2004-05 has confirmed the orders of the Tahsildar and the Assistant Commissioner, wherein the entry in MR.19/2003-04 has attained finality
- 02-11-2012** The order passed by the revenue authority in related to MR.19/2003-04 and the order in Appeal and Revision Petition No.97/2005 were challenged before this Hon'ble Court in W.P. No.10750/2007 which came to be allowed and directed to effect the khatha in favour of the father of the appellant Muniyappa @ Dommanna (Tenant) by restoring the order passed by the Tahsildar in MR.19/2003-04
- 25-03-2014** The order passed in W.P. No.10750/2007 dated 02-11-2012 was challenged in W.A. No.8592/2012 which came to be withdrawn by the respondents alone and the Writ Appeal came to be dismissed
- 17-05-2014** Upon reviewed of the orders passed in various proceedings, a note was put up before the Tahsildar to take necessary action and pass necessary orders in the light of the order passed in various proceedings in respect of the lands in question
- 25-06-2014** Upon considered the note put up to respondent No.3 Tahsildar, who passed an order directed to effect the mutation as on 25-03-2014 in such names which are prevailing at that point of time
- 22-12-2014** The order passed by respondent No.3 Tahsildar dated 25-06-2014 in case No.RRT(J)CR/70/2014-15 was called in question in RA(BNA)171/2014-15 before respondent No.2 Assistant Commissioner who allowed the appeal and set aside the order of the Tahsildar and directed to restore the entry in the name of the tenant viz., Muniyappa @ Dommanna
- 14-07-2016** The order dismissing W.A. No.8592/2012 sought to be reviewed in R.P. No.1263/2014 and the same came to be dismissed



26-06-2018 Respondent Nos.4 to 7 herein have filed the Revision Petition in R.P. No.99/2015-16 challenging the order of respondent No.2 Assistant Commissioner dated 22-12-2014 in RA(BNA)171/2014-15 and the said revision petition came to be allowed and the matter remanded to respondent No.2 for a fresh consideration and now the matter is pending before respondent No.2.

2021 The learned single Judge granted an interim order as prayed for which was in force till disposal of the writ petition

26-06-2024 The learned single Judge passed the impugned order dismissing the writ petition.

SYNOPSIS

The appellant has filed this writ petition praying to set aside the order dated 26-06-2024 passed by the learned single Judge in W.P. No.4339/2024.

The appellant has filed this writ petition calling in question the legality and correctness of the order dated 26-06-2018 passed by respondent No.1 Deputy Commissioner, Bengaluru District, Bengaluru in Revision Petition No.RP.99/2015-16 on the ground that the impugned order passed by respondent No.1 is illegal, arbitrary and it is one without an application of mind, much less respondent No.1 has utterly failed to exercise his jurisdiction vested in him under Section 136(3) of the Karnataka Land Revenue Act, 1964.

On, 13-07-1982, the Land Tribunal, Devanahalli Taluk, Devanahalli, in case No.LRF.1/1979-80 granted occupancy right in favour of the father of the appellant viz., Muniyappa @ Dommanna in respect of the lands in question. In furtherance to the same, on 12-10-1982 Form No.10 Registration Certificate was issued by the Land Tribunal in favour of the father of the appellant. The husband of respondent No.4 had cropped up the litigation as against the order of granting occupancy right in favour of the appellant's father



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Muniyappa @ Dommanna upon put forth his independent right acquired in respect of the lands in question on the basis of a public auction conducted and culminated under the provisions of the Karnataka Co-operative Societies Act. The land owners, knowing fully-well that the lands in question are tenanted lands, they created a mortgage in favour of a Bank and the said Bank got an award in its favour and it was executed in an execution and the same came to be sold in favour of the husband of respondent No.4. This right sought to be agitated by the husband of respondent No.4, was nullified by this Hon'ble Court by rendering a detailed judgment in W.P. No.10750/2007 and the order passed therein has attained finality in W.A. No.8592/2012. The order passed in the Writ Petition, which was confirmed in the Writ Appeal, having an effect that there is a direction to the authorities to effect the entry in the name of the tenant Muniyappa @ Dommanna or in favour of his legal representatives. When the office note was put up to that effect, the Tahsildar mechanically made some orders which appears to be incorrect which again given cause for the appellant to file an appeal before respondent No.2 Assistant Commissioner under Section 136(2) of the Land Revenue Act. The said appeal came to be allowed correctly upon considered so many aspects of the matter including the orders passed in various proceedings by the Assistant Commissioner and who unequivocally directed the Tahsildar to cause an entry in the light of the order passed in the writ petition i.e., W.P. No.10750/2007. The husband of respondent No.4 again preferred a revision which came to be allowed and the matter is remitted to the Assistant Commissioner for a fresh consideration. This order of the Deputy Commissioner is under challenge in the present writ petition

Place: Bengaluru,

Date : 27-07-2024



Advocate for Appellant

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**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(Civil Appellate Jurisdiction)**

**Writ Appeal No. /2024 (LR)
In**

Writ Petition No.4339/2021 (LR)

Between:

Rank of the parties

Writ Petition Writ Appeal

Sri S.D. Avalappa,
S/o Late Muniyappa @ Dommanna,
Aged about 54 years,
R/o Sathanuru Village, Jala Hobli,
Bengaluru North Taluk,
Bengaluru District

>>>Appellant >>>Appellant

And:

1. The Deputy Commissioner,
Bengaluru District, Kandaya Bhavana,
Kempegowda Road,
Bengaluru - 560 009; >>>Respt No: 1 >>>Respt No:1
2. The Assistant Commissioner,
Bengaluru North Sub-Division,
Kandaya Bhavana,
Kempegowda Road,
Bengaluru - 560 009; >>>Respt No:2 >>> Respt No:2
3. The Special Tahsildar,
Bengaluru North Taluk,
Yalahanka New Town,
Bengaluru; >>>Respt No:3 >>> Respt No:3
- Smt. Akkayamma,
W/o Late Hemanna, >>>Respt No: 4 >>> Respt No: 4
**Since deceased Rep By LR's
Respondent 5 to 7**
4. Sri Dasegowda,
S/o Late Hemanna,
Aged about 50 years; >>>Respt No:5 >>> Respt No: 5
5. Sri Munivenkategowda,
S/o Late Hemanna,
Aged about 48 years; >>>Respt No: 6 >>> Respt No: 6



6. Sri Gopalagowda,
S/o Late Hemanna,
Aged about 45 years

>>>Respt No: 7 >>> Respt No: 7

Respondent Nos.4 to 7 are all R/o
Sathanuru Village, Jala Hobli,
Bengaluru North Taluk,
Bengaluru District

MEMORANDUM OF WRIT APPEAL UNDER SECTION 4 OF THE
KARNATAKA HIGH COURT ACT

The appellant most respectfully states as follows:-

1. The address of the Appellant is as stated above in the cause title and that of his Counsel Sri H.N. Basavaraju and Surya B.E. Advocates, Nos.46 and 47, 25th Main Road, Girinagar T' Block, Bangalore-560 085, for the purpose of service of notices, copies etc.
2. The addresses of the Respondents are as stated above in the cause title for the aforesaid purposes.
3. The Appellant being aggrieved by the order passed by the learned Single Judge dated 28/07/2024 in W.P. No: 4339/2021 (KLR) passed wherein the learned Single Judge dismissed the writ petition filed by the appellant confirming the opinion expressed by the 1st respondent Deputy Commissioner in his order dated 26/06/2018 in R.P. No: 99/2015-16, such an order is totally erroneous, illegal. Hence, the appeal among other following grounds upon narrated of ^{brief} ~~brief~~ facts of the case.

4. BRIEF FACTS OF THE CASE

- a) The land bearing Sy.No.6, measuring 2.08 guntas and Sy.No.4, measuring 1 Acre, Sathnur Village, Jala Hobli, Bengaluru is the subject matter of the proceedings. One Muniyappa @ Dommanna was the tenant and whose application for grant of occupancy right was granted vide order dated 17/01/1979 by the Land Tribunal Devanahalli Taluk, Devanahalli in Case LRF No.1/1979-80.



b) One Sri. Hemanna from whom the respondent No.4 to 7 are claiming in the interest in the land in question was claims to be the purchaser of the tenanted land holding by original tenant, on a public auction for satisfaction of the mortgage award passed under the provisions of Cooperatives Societies Act. The purchaser in public auction i.e., Hemanna had approached this Hon'ble court in W.P. No: 28672/1982 challenging the order of the land Tribunal dated 06/11/1979 by contending that the tenancy right should yield to the right of the auction purchaser in view of the default committed by a borrower/land owner, while the said Writ Petition was remanded to the Land Tribunal for a fresh consideration. On 17/09/1984, while assailed the Writ Appeal No.667/1985, it was transferred to the Land Reforms Appellate Authority constituted by virtue of an Amendment-II Karnataka Land Reforms Act, by the order of the Division Bench of this Hon'ble Court dated 16/04/1987. Accordingly, LRA No: 280/1987 was on track before the District Land Reforms Appellate Tribunal, Bengaluru District. However, the said amendment was repealed which ended with the Abolition of the District Appellate Authority. In terms of the machinery provided under the amended law, the civil petitions C.P. No.1281/2001 was filed to get transfer of the case papers from the before from the District Appellate Tribunal but the above said C.P. No.1281/2001 filed by the auction purchaser Sri. Hemanna came to be dismissed for non-prosecution on 07/12/2001. The said Sri. Hemanna, the auction purchaser of a tenanted land rendered attempt to seek restoration of civil petition after a long length of delay, however, such an attempt was declined as it was suffered with an inordinate delay. Even a review was also filed, seeking review of the said order which was also ended by this Hon'ble Court.

c) In view of the aforesaid track of records, what would be the consequences is, the order passed by the Land Tribunal granting occupancy right in favour of Sri. Dommanna had attained finality. Therefore, the appellant herein, had approached the revenue authority to restore the property in the revenue records. In the light of the order passed by the Land Tribunal that of course, the Tahsildar acceded the said request but that was interfered by the Assistant Commissioner as well as the Deputy Commissioner in



exercise of their Appellate and Divisional Jurisdictional under the Karnataka Land Reforms Act.

- d) The order passed by the Revenue Courts in related to the entries in revenue records though it is contrary to the right conferred upon the appellant herein, had approached this Hon'ble Court in W.P. No.10750/2007. The said writ petition, of course a detailed exercise have been undertaken to declare the law, so far as the right and interest of an auction purchaser of a mortgage loan created by the landlord in related to the tenanted land and also effect of occupancy right could it be yield to the such auction process. Upon examination of the legal issue involved in the proceedings, in the light of the materials available on record, the learned Single Judge of this Hon'ble Court in W.P. No: 10750/2007 who declared the law as hereunder. And relevant portion of paragraph 19 is needed to be extracted which reads as follows.

"While it is contended by Sri Kumbar that it was without notice and cannot find the 1st respondent (auction purchaser) irrespective of this contentions, it is found in the present case that, even the proceedings for auction sale etc., on 01/03/1974 are all of no consequences in law, in view of the provisions of section 44 (2) (a) of Karnataka Land Reforms Act. The Land Tribunal having recorded a finding of fact that as on 01/03/1974, the predecessor of the Petitioner/Appellant was a tenant (Sri. Dommanna) and based on that fact having registered him as a tenant in respect of land in question, it was not also open to the Assistant Commissioner or the Deputy Commissioner to characterise such order conferring occupancy rights is bad in law or void for the reasons that their existed relationships between the parties i.e., land lord and tenant. Whether such reasoning is right or wrong are justified or otherwise, it is not in the domain of the revenue authority to assign such reasons to get over the order passed by the said Land Tribunal."



- e) The appellant further submits that it would also necessary to extract portion of the order passed by the learned Single Judge in paragraph No.20 in the above quoted Writ Petition which read as under:-

"The very sale proceedings are voided in the present case by operation of statute and not by any private act by the parties. In fact, results placed Sri. Kumbar on the 95 section (2) of the Societies Act, is also of no avail to the 1st respondent, as it is not any of volition of the parties right or created in favour of tenant under statute and extinguishing of the right of the bank mortgagee is by operation of the section 44 Karnataka Land Reforms Act. In view of the such statutory possession, I am of the view that in the present set of fact in the present case, the judgment of the Supreme Court cited supra is not applicable to the annulled to the benefit of 1st respondent. (Sri. Hemanna).

- f) Upon stated so the learned Single Judge was pleased to issued the following mandate to revenue authorities in terms of paragraph 23 of the order which reads thus:

23. In the result, this writ petition is allowed, order at Annexure-A and J both are quashed by issue of writ of certiorari and the order passed by the Tahsildar at Annexure-H is restored. Annexure-K order being only the nature of consequential order is also not sustainable and being an order an application made by the 1st respondent, is also quashed, and direction is issued to the Deputy Commissioner to refund the amount in deposit in favour of the petitioner.

- g) It is submitted that upon suffered an order by the auction purchaser late: Hemanna, his LR's have filed Writ Appeal in W.A No.8592/2012 and said a Writ Appeal was closed in terms of the memo filed by the Hemanna's counsel dated 25/03/2014. Accordingly, Writ Appeal came to be disposed of upon confirm the order passed by the learned Single Judge and given liberty to the auction purchaser to work out if any in civil suit, the said



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arrangement was made by this Hon'ble Court in W.A.No.8592/2012 dated 25/03/2014. The so arrangement are made in the Writ Appeal cited supra was again sought to be reviewed through the LR's of late: Hemmanna in R.P.No.1263/ 2014 before the Division Bench of this Hon'ble Court with review, that review came to be dismissed as no substance.

- h) After exhausted all these legal battle of appellant herein though a successful tenant by virtue of the order of the Land Tribunal during the year 1979, he was rendered restless throughout his career to get an entry in the revenue records based on the concluded order of the Land Tribunal in confirming the occupancy right in favour of the original tenant Dommanna the father of the appellant herein. Therefore, ultimately the appellant make approach the Revenue Tahsildar to at least causing ended in the revenue records representing all legal battle was exhausted by upholding the order of the Land Tribunal in granting of occupancy right. The Tahsildar made a note in his note sheet and misconstrued the contents of the memo and order passed in the Writ Appeal, who sought for necessary orders in this regard. Accordingly, vide order dated 25/06/2014 illegally and erroneously the Special Tahsildar ordered to return to the names of the appellant in W.A. No: 9592/2012. Despite, their writing and interest was declared as void till a decree obtain from the competent civil court.
- i) This opinion of this order of the Tahsildar while at the hands of appellate authority Asst.Commissioner in a statutory appeal under section 136(2) of the Karnataka Land Revenue Act, who rightly allowed appeal and directed to given effect to the order passed by the Land Tribunal, which attained finality as long as dated 25/04/2014 and directed to make an entry in the name of the successful tenant or his LR's in respect of lands in question.
- j) The respondents herein who are no other than the legal representatives of Sri. Hemanna and claiming right through said Hemanna only have challenged the order of the Asst. Commissioner in a Revision Petition before the Deputy Commissioner 1st respondent in R.P.No.99/2015-16 only on the solidarity ground that



before the Asst. Commissioner, they were not made as parties. The Deputy Commissioner acceded to their grievances and who interfered with the order of the Asst. Commissioner and directed to redo the process after notice to all interested persons.

k) In furtherance of the order of the Deputy Commissioner, the 2nd respondent Asst. Commissioner commenced the proceedings upon issuing the notices to all concerned and it went on till 2020 by one reason or the other. It is a sorry state of affairs to submit that a tenant whose right was finally adjudicated by the Land Tribunal as long as in 13/07/1982 followed by issuance of Form-10, despite there is a direction to give an effect to the entry in the revenue records. By virtue of mandate of this Hon'ble Court dated 02/11/2012, despite that still the tenant was made to litigate to get the entry in the revenue records. Upon noticing this fruitless litigations, the petitioner approached this Hon'ble Court through a Writ Petition before the learned Single Judge in W.P.No.4339/2021. Even on the date of entertaining the Writ Petition itself, this Hon'ble Court critically commented the manner on which the order by the Deputy Commissioner and who was asked to present before this Hon'ble Court to render a say in the matter.

l) However, the private party respondent in the Writ Petition though made as parties because at their instance the impugned order was passed by the Deputy Commissioner, and they have persuaded the learned Single Judge that the order passed by the Deputy Commissioner is only an order of demand. Therefore, interference to the said order was opposed. However, on behalf of the appellant, all possible efforts have been rendered to show that order of remand that technically correct, but substances it would be achieved any object because of the rights of the parties finally adjudicated by virtue of the proceedings before this Hon'ble court as early as in 2012 much less it is already confirmation by the Division Bench in Writ Appeal and in review itself. Though the liberty is reserved in the writ appeal to the respondents herein to work out in a remedy in a suit if advised, would not be annulled to their benefit to oppose an entry sought to be restored in the name of the petitioner by virtue of the order passed by this Hon'ble Court in the Writ Petition in W.P.



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No: 10750/2007 dated 02/11/2012 as the said order become final. Despite, such an exercise rendered on behalf of the appellant, the learned Single Judge was pleased to dismiss the writ petition regulating the parties to the Deputy Commissioner though apparently it is futile exercise. In view of this erroneous approach of the matter by the learned Single Judge, despite a decade is over after culmination of the tenancy right in favour of the petitioner till he invited to litigate to get an entry in the revenue records is a serious consequences but that was casually proceed by the learned Single Judge in passing the impugned order. Being aggrieved by the order appellant preferring this appeal following among other grounds.

5) GROUNDS

- a) It is submitted that the order by the learned Single Judge is highly erroneous, illegal and contrary to the settled principles in law as such impugned order of the learned Single Judge is call of interference in this appeal by this Hon'ble Court.
- b) It is submitted that the father of the appellant was successful tenant whose right was adjudicated by the Land Tribunal as long as on 06.11.1979 and because of various proceedings that order of the Tribunal attained finality by virtue of dismissal of civil petition as on 26.08.2004. Upon attained the order of the Land Tribunal finality, the second innings have commenced to got an entry in the revenue records based on the orders passed by the Land Tribunal as long as it 1982 followed by issuance of Form No.10 that it is a grant certificate vide dated 12/10/1982. The Tahsildar at the first instance though convince that entry should be rightly restored entry is required to be restored in the name of the successful tenant and who directed to restore an entry in the name of the tenant, that was find fault with by the Asst. Commissioner and the Deputy Commissioner in exercise of their statutory appellate and revisional powers under the Karnataka Land Reforms Act. Therefore, a controversy had reached to this Hon'ble Court in W.P.No.10750/2007 wherein in question was kind about the effect tenancy right in respect of wasted land under the Land Reform Act on the right conferred upon auction purchaser is satisfaction of



mortgage loan obtained by the landlord despite it is prohibited under the Land Reforms Act. This question was answered by this Hon'ble Court by holding that by virtue of operation of law that is under section 44 of the Land Reforms Act a tenanted land vested with the land as on 01/03/1974 free from all encumbrances and consequently the tenancy right was confirmed in favour of the applicant in Form No.7 before the Land Tribunal. Therefore, it was held that the mortgage and auction proceedings both are void and the neither the landlord nor the auction purchaser could get remotely an interest in the land in question. Upon answered that question declared that transaction inter say between the auction purchaser and the landlord is void, this Hon'ble Court directed the entry to be made in the name of the tenant based on the occupancy right granted under the Land Reforms Act. The auction purchaser through his LR's sought to get reversal of such orders in the writ appeal but it came to be dismissed as withdrawn in terms of the memo and given a review petition was filed which came to be dismissed by the co-ordinate bench. In the light of these legal battle culminated between the parties, the right of the tenant as declared by the Land Tribunal is not completely reached the logical end by holding his right is lawfully recognized. Therefore, there would not any bargain either at the instance of revenue authorities restoring the entry in the name of the petitioner. The Tahsildar mislead himself however it was corrected by the Asst. Commissioner but in a revision at the instance of the respondent herein. Despite, their rights have been totally adjudicated and decided against them, challenged the Asst. Commissioner order in a revision, but Deputy Commissioner relegated to the parties to the appellate authority under the impugned order. On that ground order on that while it was assigned the learned Single Judge without whispering about all these aspect of the matter, in an usual process and upon approaching the matter in an mechanical manner, dismiss the writ petition construing that it is only a remand order. It would not be fitted the scrutinized by exercising judicial review under Article 226. This order is perse, erroneous and illegal and relegate in the parties to the revenue authorities is a futile exercise. In the light of the right finally culminated with the appellate herein because of the order of



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the Land Tribunal and confirmation by the learned Single Judge in the writ petition in an earlier round of litigation. Therefore, though the impugned order assigned before the Single Judge is a remand order, such a remand order would serve no purpose if it is legally persuaded. Therefore, remand is an only empty formality as such it is such it is sought to be interrupted. But, Single Judge replied and such an order is highly erroneous, illegal and against the settled principle of law.

c) It is submitted that of course there would not be any quarrel on the preposition that the principles of natural justice is one of the paramount consideration either in administration function or quasi-judicial adjudication as opined by the learned Single Judge in the impugned order. But, hearsay case where right of a tenant as against the auction purchaser was finally adjudicated in an earlier litigation and upon such litigation reached by finality, because of the scheme under the Land Revenue in an automatic process the entries should be restored in the name of the successful person whose right finally adjudicated under the particular law through the manner known to the law. The parties who are unsuccessful whose right to be removed or held to be void, allowing them expose their grievance before the revenue authority is neither provided under section 129 of the Land Revenue Act, not advisable under the common law also. Therefore, the order passed by the Single Judge without noticing the fact that compliance of principles of natural justice as claiming by the party respondent would not derive any right to them or such an exercise is only futile, the order of this nature ought not to have been passed by the learned Single Judge. Therefore, the order is erroneous and illegal which against to the settled principle in law.

d) On a close of various judicial proceedings it is separate clear that an interest claimed by the auction purchaser against the statutory tenant provide under the Karnataka Land Revenue Act is always revive over the auction purchaser and auction purchaser holding a contract which is void in nature that was so held by this Hon'ble Court by the learned Single Judge. Now the revision petition was filed by legal representatives of auction purchaser who are in fact parties before this Hon'ble Court in the writ petition also. There is



no independent right forthcoming or would not be smelted in the claim of the party respondent. In view of the adjudication have already see the logical end because of various proceedings very much enlightened in the preceding paragraphs. It precisely pleading in the writ petition much less a catalogue of date and events were also made available to the learned Single Judge with a hold that he was be convince. But, because of casual approach or a exposing a mechanical perception by the learned Single Judge, the impugned order was rendered out which fact is legally not justified. Though it is order of relegate in the parties to the revenue appellate authority under the entry proceedings, but their participation and persuasion in such proceedings would not get any fruits to them because they have already suffered an order which have attained finality as such the right adjudicated in favour of the tenant is now attained finality it pass out to be acceded by the respondent. Applying its principles, the Single Judge ought to have been allowed the writ petition but who decided otherwise which is highly erroneous and illegal and parties are driven to the litigation despite it is found to be futile. The perversity of the party respondents would be satisfied by driven the parties to the appellate court knowing full well it is only a time consuming process but at the end of the day, the party respondent could get nothing because of they have suffered in the earlier proceedings registering their rights holding it is a void in law. Therefore, it is background the order of the learned Single Judge perse erroneous and contrary to law.

- e) There are many number of pronouncement as a matter of precedent by this Hon'ble Court as well as the Apex Court that the opportunity of hearing is one of the important limb of principles of natural justice. In the guise of this principles if any attempt to provide an opportunity or occasion to have a say in the matter if it is found to be futile or it is an empty formality nothing more would be in the hands of such persons to improve their matter either on facts or on law, the providing principles of natural justice is one waste stage and unwarranted occasion it only a futile exercise or an empty formality and non-compliance of that would not rendered either the decision or the decision taking process illegal or erroneous but hold it is an arbitrary process on error. This settled principles was



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addressed before the learned Single Judge, but it was not acceded without consideration of the same. Therefore, order of the learned Single Judge is and liable to be set aside.

6) The appeal is in time.

7) PRAYER

WHEREFORE the appellant most respectfully pray that this Hon'ble Court may be pleased to:-

- a. Set aside the order passed by the learned Single Judge dated 28/06/2024 passed in W.P.No.4339/2021.
- b. Consequently, allow the W.P. No: 4339/2021 and further direct to the revenue authority the 3rd respondent herein at least now to restore the entry in the name of the appellant in the revenue records as directed by this Hon'ble Court vide its order dated 02/11/2012 (Annexure-G) in the Writ Petition in W.P. No.10750/2007.
- c. Pass such other order or direction as this Hon'ble Court deem it fit and proper in the fact and circumstances of the case and allow this Writ Appeal, in the ends of justice and equity.



Place: Bengaluru

Advocate for Appellant

Date: 27/07/2024

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 28TH DAY OF JUNE, 2024

BEFORE

THE HON'BLE MR. JUSTICE E.S. INDIRESH

WRIT PETITION NO.4339 OF 2021 (KLR-RES)

BETWEEN:

SRI. S.D. AVALAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
AGED ABOUT 54 YEARS,
R/O SATHANURU VILLAGE, JALA HOBLI,
BENGALURU NORTH TALUK,
BENGALURU DISTRICT.

...PETITIONER

(BY SRI. M.R. RAJAGOPAL, SENIOR ADVOCATE FOR
SRI. H.N. BASAVARAJU, ADVOCATE)

AND:

1. THE DEPUTY COMMISSIONER
BENGALURU DISTRICT,
KANDAYA BHAVANA,
KEMPEGOWDA ROAD,
BENGALURU - 560 009.
2. THE ASSISTANT COMMISSIONER
BENGALURU NORTH SUB-DIVISION,
KANDAYA BHAVANA,
KEMPEGOWDA ROAD,
BENGALURU - 560 009.
3. THE SPECIAL TAHSILDAR
BENGALURU NORTH TALUK,
YALAHANKA NEW TOWN,
BENGALURU - 560 064.

AKKAYYAMMA
SINCE DECEASED, REP. BY LR'S.
RESPONDENTS 5 TO 7.



This Certified copy contains 8 pages
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Received

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5. SRI. DANEGOWDA
S/O LATE HEMANNA
AGED ABOUT 50 YEARS.
6. SRI. MUNIVENKATEGOWDA
S/O LATE HEMANNA
AGED ABOUT 48 YEARS.
7. SRI. GOPALAGOWDA
S/O LATE HEMANNA
AGED ABOUT 45 YEARS.

RESPONDENTS 4 TO 7 ARE
R/AT SATHANURU VILLAGE, JALA HOBLI,
BENGALURU NORTH TALUK
BENGALURU DISTRICT - 560 064.

...RESPONDENTS

(BY SRI. HARISHA A.S., AGA FOR R1 TO R3;
SRI. G. BALAKRISHNA SHASTRY, ADVOCATE FOR R4 TO R7)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA, PRAYING TO QUASH THE ORDER DATED 26TH JUNE, 2018 PASSED BY THE RESPONDENT NO.1-DEPUTY COMMISSIONER IN R.P.NO.99/2015-16 VIDE ANEXURE-N; DIRECT THE RESPONDENTS TO RESTORE THE ORDER DATED 22ND DECEMBER, 2014 PASSED BY THE RESPONDENT NO.2-ASSISTANT COMMISSIONER VIDE ANEXURE-M AND FURTHER DIRECT THE RESPONDENT NO.3-TAHSILDAR TO EFFECT AN ENTRY IN THE NAME OF THE PETITIONER HEREIN BOTH IN THE MUTATION REGISTER AND RECORD OF RIGHTS IN RESPECT OF LAND IN QUESTION BEARING SURVEY NOS.6 AND 4 OF SHATHANURU VILLAGE, JALA HOBLI, BENGALURU NORTH ADDITIONAL TALUK, BENGALURU; AND ETC.

IN THIS WRIT PETITION, ARGUMENTS BEING HEARD, RESERVED FOR ORDERS, COMING ON FOR PRONOUNCEMENT, THIS DAY, THE COURT PRONOUNCED THE FOLLOWING:



ORDER

This Writ Petition was disposed of on 12th June, 2024 remanding the matter to the respondent No.2 with a direction to consider the grievance of the petitioner as well as the contesting respondents and pass appropriate orders after extending fair opportunity of hearing to both the sides.

2. Before, signing the final order dated 12th June, 2024, learned Senior Counsel Sri. M.R. Rajagopal appearing for the petitioner moved the matter for 'Being Spoken to' to make further submission. Hence, order dated 12th June, 2024 is recalled and writ petition was heard on merits.

3. In this writ petition, the petitioner is assailing order dated 26th June, 2018 (Annexure-N) passed by the respondent No.1-Deputy Commissioner in R.P. No.99/2015-16; *inter alia* sought for a direction to the respondents to pass orders in terms of the order dated 22nd December, 2014 (Annexure-M) passed by the respondent No.2-Assistant Commissioner in R.A.(BNA).No.171/2014-15.

4. Heard Sri. M.R. Rajagopal, learned Senior Counsel on behalf of Sri. H.N. Basavaraj, appearing for the petitioner; Sri. Harisha A.S., learned Additional Government Advocate.



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appearing for respondents 1 to 3; and Sri. G. Balakrishna Shastry, learned counsel appearing for respondents 4 to 7.

5. It is contended by Sri. M.R. Rajagopal, learned Senior Counsel appearing for the petitioner that there is no necessity for remanding the matter to the respondent No.2-Assistant Commissioner for fresh adjudication in the matter as the question relating to conferment of occupancy right in favour of the tenant has attained finality as per the order dated 02nd November, 2012 passed by this Court in Writ Petition No.10750 of 2007 (Annexure-G). Learned Senior Counsel further contended that the said order of the learned Single Judge in Writ Petition No.10750 of 2007 is confirmed in terms of the order dated 25th March, 2014 in Writ Appeal No.8592 of 2012. He also submitted that Review Petition No.1263 of 2014 was filed to review the order dated 25th March, 2014 in Writ Appeal No.8592 of 2012 and the said Review Petition came to be dismissed on 14th July, 2016 (Annexure-J). Therefore, it is contended by learned Senior Counsel that there was no necessity for remanding the matter to the respondent No.2 in this writ petition.

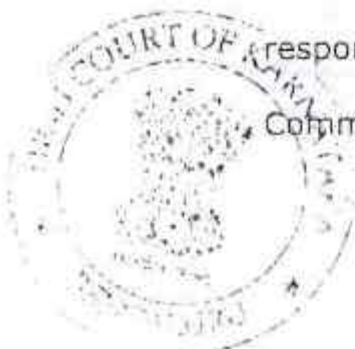


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6. Per contra, Sri. G. Balakrishna Shastry, learned counsel appearing for respondents 4 to 7 contended that the impugned in the present writ petition is only a remand order passed by the respondent No.1 to relegate the parties to appear before the respondent No.2-Assistant Commissioner for fresh consideration on merits since, the private respondents herein were not parties before the respondent No.2. In this regard, he refers to the judgment of Hon'ble Apex Court in the case of **ASIT KUMAR KAR vs. STATE OF WEST BENGAL AND OTHERS** reported in (2009) SCC 703.

7. Sri. Harisha A.S., learned Additional Government Advocate sought to justify the impugned order passed by the respondent No.1.

8. Having taken note of the factual aspects on record and on perusal of the writ petition, the same would indicate that the contesting respondents 4 to 7 were not heard in the proceedings before the respondent No.2-Assistant Commissioner. Hence, the contesting respondents 4 to 7 have preferred Revision Petition in R.P.No.99/2015-16 before the respondent No.1 and the respondent No.1-Deputy Commissioner, by impugned order had allowed the revision



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petition and remanded the matter to the respondent No.2- Assistant Commissioner to consider the issue afresh and pass appropriate orders, after providing an opportunity of hearing to the contesting respondents. Though the learned Senior Counsel appearing for the petitioner submits that, remanding the matter to the respondent No.2 is empty formality, however, the petitioner has challenged the proceedings in case No.RRT (J) CR.70/2014-15 dated 25th June, 2014 in respect of the land bearing Survey No.6 measuring 2 acre 8 guntas and Survey No.4 measuring 1 acre situate at Sathanur Village, Bengaluru North Additional Taluk before the respondent No.2-Assistant Commissioner and in the said proceedings, the contesting respondents 4 to 7 were not arraigned as parties despite the mutation has been made in favour of the contesting respondents and as such, the impugned order passed by the respondent No.1-Deputy Commissioner is just and proper. At this juncture, it is pertinent to mention here that, though the learned Senior Counsel appearing for the petitioner vehemently argued that there is no necessity for remanding the matter to the respondent No.2, however, as the contesting respondents have not been heard in the matter, it is expedient for the respondent No.2-Assistant Commissioner to provide fair



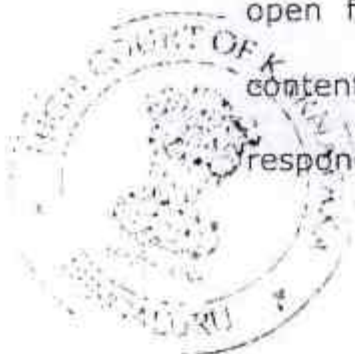
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opportunity to the contesting respondents 4 to 7 and the petitioner herein and thereafter pass appropriate orders in accordance with law. In this regard, Hon'ble Apex Court in the case of **ASIT KUMAR KAR** (supra) at paragraph 4 held as follows:

"4. It is a basic principle of justice that no adverse orders should be passed against a party without hearing him. This is the fundamental principle of natural justice and it is a basic canon of jurisprudence. In the seven-Judge Constitution Bench of this Court in A.R. Antulay v. R.S. Nayak, it has been observed in para 55 thereof:

'55. ... So also the violation of the principle of natural justice renders the act a nullity.'

9. Following the law declared by Hon'ble Apex Court in the aforesaid case, as the fair opportunity of hearing has not been extended to the contesting respondents, I do not find any error in the impugned order passed by the respondent No.1-Deputy Commissioner, remanding the matter to the respondent No.2-Assistant Commissioner to provide fair opportunity to all the parties in this writ petition. It is also to be noted that, it is open for the parties to urge all the grounds including the contentions raised in the present writ petition before the respondent No.2 to enable the respondent No.2-Assistant



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Commissioner to arrive at just conclusion in the light of orders passed by this Court in Writ Petitions, Writ Appeals and Review Petition referred to by both the sides in this writ petition. Accordingly, order dated 26th June, 2018 (Annexure-N) passed by the respondent No.1-Deputy Commissioner deserves to be confirmed and the petitioner and the contesting respondents 5 to 7 be directed to appear before the respondent No.2 for redressal of their grievance. In the result, I pass the following:

ORDER

1. Writ Petition is **dismissed**;
2. Order dated 26th June, 2018 (Annexure-N) passed in R.P. No.99/2015-16 by the respondent No.1-Deputy Commissioner is hereby confirmed and as the parties are represented through their learned counsels, parties are directed to appear before the respondent No.2-Assistant Commissioner on 15th July, 2024 at 03.00 p.m. for further consideration in the matter.



In view of the disposal of the writ petition, pending I.A. stands disposed of.

1. The date on which the application was made 01/07/2024
2. The date on which charges and additional charges if any are called for 01/07/2024
3. The date on which charges and additional charges if any are deposited / Paid 01/07/2024
4. The date on which the copy is ready 02/07/2024
5. The date of notifying that the copy is ready for delivery 02/07/2024
6. The date on which the applicant is required to appear on or before 05/07/2024
7. The date on which the copy is delivered to the Applicant 4/7/24
8. Examined by 4/7/24

SD/-
JUDGE

TRUE COPY

S. K. Vema *marlin*
2/7/24

Section Officer

High Court of Karnataka
Bangalore - 560 001

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**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(Original Jurisdiction)**

Writ Petition No.4339/2021

Between:

Sri S.D. Avalappa,
S/o Late Muniyappa @ Dommanna,
Aged about 54 years,
R/o Sathanuru Village, Jala Hobli,
Bengaluru North Taluk,
Bengaluru District

>>>Petitioner

And:

1. The Deputy Commissioner,
Bengaluru District, Kandaya Bhavana,
Kempegowda Road,
Bengaluru - 560 009;
2. The Assistant Commissioner,
Bengaluru North Sub-Division,
Kandaya Bhavana,
Kempegowda Road,
Bengaluru - 560 009;
3. The Special Tahsildar,
Bengaluru North Taluk,
Yalahanka New Town,
Bengaluru;
4. Smt. Akkayamma,
W/o Late Hemanna,
Aged about 75 years;
5. Sri Dasegowda,
S/o Late Hemanna,
Aged about 50 years;
6. Sri Munivenkategowda,
S/o Late Hemanna,
Aged about 48 years;
7. Sri Gopalagowda,
S/o Late Hemanna,
Aged about 45 years

**Since deceased Respt By LR's
Respondent 5 to 7 are treated LR's
of Deceased Respondent No: 4 vide
order dated 24-08-2022.**

Respondent Nos.4 to 7 are all R/o
Sathanuru Village, Jala Hobli,
Bengaluru North Taluk,
Bengaluru District

>>>Respondents

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**MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226 &
227 OF THE CONSTITUTION OF INDIA**

The petitioner most respectfully states as follows:-

1. The petitioner in this writ petition calling in question the legality and correctness of the order dated 26-06-2018 passed by respondent No.1 Deputy Commissioner, Bengaluru District, Bengaluru in Revision Petition No.RP.99/2015-16 on the ground that the impugned order passed by respondent No.1 is illegal, arbitrary and it is one without an application of mind, much less respondent No.1 has utterly failed to exercise his jurisdiction vested in him under Section 136(3) of the Karnataka Land Revenue Act, 1964.

2. It is submitted that the subject matter of the writ petition is the land comprising in Sy.No.6 measuring 2 acres 8 guntas and Sy.No.4 measuring one acre of Sathanuru Village, Jala Hobli, Bengaluru North Taluk now. It is submitted that one Muniyappa @ Dommanna, son of Muniswamappa, was the tenant in occupation of the aforesaid lands. On 17-01-1979, the said Muniyappa @ Dommanna has filed Form No.7 before the Land Tribunal, Devanahalli Taluk, Devanahalli claiming occupancy right in respect of these lands and the said claim was registered in case No.LRF.1/79-80. At the first instance, Muniswamappa, S/o Dommanna, was made as a party and subsequently one Hemanna, son of Munivenkatappa, the husband of respondent No.4 and father of respondent Nos.5 to 7. The Land Tribunal, at one point of time, appointed the Revenue Inspector, Jala Hobli, as a receiver to the lands in question in exercise of its power under Section 48(c)(1) of the Karnataka Land Reforms Act. As against the said order, Hemanna, the husband of respondent No.4 and father of respondent Nos.5 to 7, had filed a writ petition before this Hon'ble Court in W.P. No.12045/1979 and in the said writ petition, this Hon'ble Court was pleased to modify the order of

the Land Tribunal vide order of this Hon'ble Court dated 06-11-1979 and Hemanna himself was appointed as a receiver in place of the Revenue Inspector till the final order to be made by the Land Tribunal on the application filed by Muniyappa @ Dommanna in Form No.7 and further the receiver was directed to deposit the value of the crops after deducting all expenses by getting necessary instructions etc. In the meanwhile, the Land Tribunal, Devanahalli, proceeded further in the matter and conducted the enquiry as provided in law. In the said proceedings, the husband of respondent No.4 Hemanna has claimed title to the property by contending that the owner of the land Muniswamappa had borrowed two term loans from the Primary Land Development Bank, Devanahalli, on 13-08-1965 and 29-11-1965 upon provided the lands in question as security. Since default has been committed to realize the loan amount, the properties in question were put to public auction on 17-04-1978 by the Land Development Bank, Devanahalli, in which the husband of respondent No.4 claims to be the purchaser as a highest bidder in the public auction conducted on 12-12-1978. The father of the petitioner Muniyappa @ Dommanna was claiming to be the tenant of the lands in question even long prior to the mortgage created by the land owner; as such, the applicant contended that such mortgage has no consequences in affecting the right of the tenant accrued under the Karnataka Land Reforms Act; as such, who requested the Tribunal to grant occupancy right. Upon considered these controversies among the parties, the Tribunal, ultimately, granted occupancy right registering Muniyappa @ Dommanna as an occupant in respect of one acre of land in Sy.No.4 and 2 acres 8 guntas in Sy.No.6 of Sathanuru Village, Jala Hobli, Devanahalli Taluk under Section 45 of the Land Reforms Act. The copy of the said order dated 13-07-1982 is produced herewith and marked as Annexure-A.



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3. In furtherance to the order granting occupancy right, the Tribunal issued Form No.10 Registration Certificate in favour of the applicant on 12-10-1982 and copy of the said Form No.10 is produced herewith and marked as Annexure-B.
4. The order passed by the Land Tribunal dated 13-07-1982, was challenged by the husband of respondent No.4 Hemanna before this Hon'ble Court in W.P. No.28672/1982 and by an order dated 17-09-1984, this Hon'ble Court was pleased to allowed the writ petition and the order of the Land Tribunal dated 13-07-1982 was quashed and the matter was remitted to the Land Tribunal for a fresh disposal. Against the said order passed by this Hon'ble Court in the writ petition by the learned single Judge, the tenant i.e., the father of the petitioner Muniyappa @ Dommanna has filed a Writ Appeal in W.A. No.667/1985 and the said Writ Appeal was disposed of by an order dated 16-04-1987. It appears that by virtue of constitution of the Land Reforms Appellate Authority under the law, the matter was transferred to the Appellate Authority in No.LRA.208/1987 to treat this as an appeal as against the order passed by the Land Tribunal and directed to dispose of the same on merits. Even on passage of time, the very provision provided under the Act to constitute the Appellate Authorities were withdrawn or amended; as such, a provision was made to seek transfer of the pending appeals by filing a Civil Petition before this Hon'ble Court and accordingly the husband of respondent No.4 Hemanna had filed C.P. No.3393/1991 and ultimately the said Civil Petition was numbered as W.P. No.25394/1992 and the said writ petition ultimately came to be dismissed on 12-07-1993 for non-prosecution. An application for restoration was moved again in C.P. No.1281/2001 i.e., after lapse of eight years and the said application came to be dismissed. Even a Review Petition was filed in R.P. No.41/2002 and the said Review Petition also came to be dismissed by this Hon'ble Court vide order dated 26-08-2004. Consequently, the order passed



by the Land Tribunal dated 13-07-1982 has attained finality. The copy of the order in R.P. No.41/2002 in C.P. No.1281/2001 in W.P. No.25394/1992 is produced herewith and marked as Annexure-C.

5. In the meanwhile, it appears the proceedings are initiated under the provisions of the Karnataka Co-operative Societies Act and accordingly a dispute was raised in Dispute No.77/73-74 at the instance of the P.L.D. Bank, Devanahalli, on the basis of the loan borrowed by the land owner Muniswamappa who committed default in repayment of the money. An Award was obtained on 04-11-1973 by the Bank against the borrower and in the process of executing the said Award, the husband of respondent No.4 appears to be the auction purchaser of the said land though, by that time, the lands in question were vested with the Government by virtue of the provisions under Section 44 of the Karnataka Land Reforms Act.
6. It is submitted that since the proceedings initiated under the provisions of the Karnataka Land Reforms Act by one Muniyappa @ Dommanna has attained finality by virtue of the order passed in C.P. No.1281/2001 as well as in R.P. No.41/2002 under a common order passed by this Hon'ble Court, the legal representatives of Muniyappa @ Dommanna have approached respondent No.3 Tahsildar of Yalahanka New Town, in proceedings No.RRT(DISPUTE).32/2001-02, in which they sought for effectuation of an entry in their favour in respect of the land bearing Sy.No.4 measuring 1 acre and Sy.No.6 measuring 2 acres 8 guntas of Sathanuru Village. The said request was made even on the ground that their father Muniyappa @ Dommanna passed away and entries are sought to be effected upon succeeded by inheritance. The said request, when notified for consideration in form No.21, the husband of respondent No.4 Hemanna has raised objections which ultimately the proceedings are initiated for adjudication of the



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controversy and by an order dated 15-11-2003, the Tahsildar directed to make an entry in favour of the legal representatives of Muniyappa @ Dommanna i.e., the father of the petitioner also and copy of the said order is produced herewith and marked as Annexure-D. On the basis of the same, the name of Narayanaswamy S/o Muniyappa @ Dommanna was effected in respect of one acre of land in Sy.No.4 referring to MR.19/2003-04 and copies of the record of rights from 2003-04 to 2005-06 are produced herewith and marked as Annexures-E to E. Similarly, in so far as Sy.No.6 also, similar entries have been made in favour of Narayanaswamy S/o Muniyappa @ Dommanna, the brother of the petitioner for the period between 2003-04 to 2006-07 and copies of the same are produced herewith and marked as Annexures-F to F.

7. It is submitted that the order passed by the Tahsildar was appears to be the subject matter in appeal before the Assistant Commissioner, Bangalore North Sub-Division, wherein the order of the Tahsildar was affirmed and the same came to be further affirmed by the Deputy Commissioner in R.P. No.97/2004-05 dated 22-06-2007.
8. The order passed by the revenue authorities in R.R.T. proceedings which culminated in the final order passed by the Deputy Commissioner in the Revision Petition, are all the subject matter before this Hon'ble Court in W.P. No.10750/2007. One of the questions addressed by this Hon'ble Court in the said writ petition was the effect of vesting under Section 44 of the Karnataka Land Reforms Act in view of the tenancy right agitated by the petitioners' father Muniyappa @ Dommanna on the encumbrances created by the owners of the land i.e., the vendor of Hemanna viz., Muniswamappa in creating the charge in favour of the Co-operative Society or a Bank by mortgaging the said property and any award or order passed in a dispute arising under the provisions of the



Karnataka Co-operative Societies Act was held to be null and void. Consequently, vide order dated 02-11-2012, this Hon'ble Court was pleased to allowed the writ petition and set aside the order passed by the Assistant Commissioner and the Deputy Commissioner in the appeal and revision petition respectively filed under Sections 136(2) and 136(3) of the Karnataka Land Revenue Act and a further direction was issued to restore the entry in terms of the order passed by the Tahsildar dated 15-11-2003 and the amount in deposit is directed to be refunded or returned to the petitioners. The copy of the said order dated 02-11-2012 is produced herewith and marked as Annexure-G. As against the said order, a Writ Appeal was filed before the Division Bench of this Hon'ble Court in W.A. No.8592/2012, which came to be disposed of in terms of the memo filed by the husband of respondent No.4 Hemanna as reflecting from the order in Writ Appeal dated 25-03-2014 and copy of the said order is produced herewith and marked as Annexure-H. A Revision Petition was filed in R.P. No.1263/2014 seeking review of the order dated 25-03-2014 before this Hon'ble Court and the said Review Petition came to be dismissed vide order dated 14-07-2016 and copy of the said order is produced herewith and marked as Annexure-J. Upon disposal of the proceedings cited supra, an Office Note was issued from the office of respondent No.3 Special Tahsildar dated 17-05-2014, wherein it is noted to take necessary action in view of the orders cited supra and copy of the said Office Note is produced herewith and marked as Annexure-K.

9. It is submitted that, upon considered the various proceedings in related to the subject matter including the order passed by this Hon'ble Court in W.P. No.10750/2007 dated 02-11-2012 as well as the order passed in W.A. No.8592/2012 dated 25-03-2014, including the order passed in R.P. No.1263/2014, a Note was put up to respondent No.3 Tahsildar dated 17-05-2014, wherein it is proposed to take necessary action or issuance of



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necessary orders for the purpose of making the entry in the name of the petitioner taken note of the orders passed in various proceedings cited supra, by one of the subordinates of respondent No.3 Tahsildar. On examined the said note and also upon considered the order passed in various proceedings including the Writ Petition and Writ Appeal cited supra, respondent No.3 has passed an order on 25-06-2014 in No.RRT/J/CR/70/2014-15, wherein it is directed to cause an entry in the names of the persons whose names are found in the mutation and R.T.C. as on 25-03-2014 and copy of the said order is produced herewith and marked as Annexure-L. The decision taken by the Tahsildar is contrary to the order passed by this Hon'ble Court as well as the other proceedings. Therefore, the petitioner herein had approached respondent No.2 Assistant Commissioner, Bangalore North Sub-Division, Bangalore, by filing an appeal under Section 136(2) of the Karnataka Land Revenue Act in R.A.(BNA).No.171/2014-15. Upon referring to the various proceedings commencing from the proceedings arising out of an order passed by the Land Tribunal in granting occupancy right in favour of the father of the petitioner and the order of this Hon'ble Court in W.P. No.25394/1992 and subsequent orders wherein challenge to the order of the Land Tribunal was negative by this Hon'ble Court as the occupancy right granted in favour of the petitioner's father has attained finality. Even in the another writ petition in W.P. No.10750/2007, the right put forth by the husband of respondent No.4 Hemanna based on the public auction taken place to dispose of the lands in question for satisfaction of the decretal amount under the provisions of the Karnataka Co-operative Societies Act, was held to be invalid and it is not sustainable as the lands in question when it is vested under the Land Reforms Act in view of the clear language under Section 44 of the said Act, such lands vested with the State with free from all encumbrances. Therefore, the



right put forth by Hemanna, the husband of respondent No.4, was negative; as such, the order of the Land Tribunal was sustained or justified and such orders have attained finality. In spite of that, respondent No.3 Tahsildar has taken a decision to cause an entry as on 25-03-2014 without passing a positive order by taken note of the order passed in various proceedings. Therefore, respondent No.2 Assistant Commissioner, upon considered all these aspects of the matter, was pleased to allowed the appeal, set aside the order passed by the Tahsildar dated 25-06-2014 and directed to restore the entries in the name of Muniyappa @ Dommanna, the father of the petitioner both in the mutation and the record of rights in respect of Sy.No.6 measuring to an extent of 2 acres 8 guntas and Sy.No.4 measuring to an extent of one acre of Sathanuru Village. The copy of the said order dated 22-12-2014 is produced herewith and marked as Annexure-M.

10. It is submitted that, though respondent Nos.4 to 7 herein have no right or interest in respect of the lands in question, much less their claim is negatively decided by this Hon'ble Court till the Writ Appeal by the Division Bench, again preferred a Revision Petition before respondent No.1 Deputy Commissioner in R.P. No.99/2015-16 invoking the provision under Section 136(3) of the Karnataka Land Revenue Act, 1964. Respondent No.1 Deputy Commissioner, without applying mind and without noticing the effect of the orders passed in various proceedings by the authorities as well as this Hon'ble Court, casually and mechanically, allowed the Revision Petition and remanded the matter to respondent No.2 Assistant Commissioner with a direction to conduct fresh enquiry and also verify the order passed in various proceedings by the courts and the said order was made on 26-06-2018, copy of which is produced herewith and marked as Annexure-N.



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11. After such remand, the matter was re-opened as reflecting from the order sheet wherein the matter was called on various dates viz., 07-12-2018, 14-12-2018, 11-01-2019, 22-02-2019, 23-03-2019, 31-05-2019, 28-06-2019, 16-08-2019, 04-10-2019, 25-10-2019, 08-11-2019 and so also up to 20-08-2020. On all these dates, as reflecting from the order-sheet, there is no progress in the proceedings. In the meanwhile, respondent Nos.3 to 7 herein have filed an application under Order 1 Rule 10 of the C.P.C. in the appeal pending before respondent No.2 in RA(BNA)171/2014-15 and copy of the said impleading application and affidavit is produced herewith and marked as Annexure-P. The copy of the order-sheet referred to herein above is produced herewith and marked as Annexure-Q.

12. It is submitted that the following dates and events are enumerated for the convenience of this Hon'ble Court to notice the fact as to how the respondent authorities are dragging on the issue despite it is concluded by virtue of the order passed by this Hon'ble Court in the Writ Petition and the Writ Appeal, which are as follows:-

06-11-1979 The Land Tribunal, in proceedings No.LRF.1/1979-80 appointed the Revenue Inspector of the concerned Hobli as a receiver in respect of the lands bearing Sy.Nos.4 and 6 of Sathanuru Village, Jala Hobli, Bangalore North Taluk retrospectively measuring one acre and 2 acres 08 guntas

13-07-1982 The Land Tribunal, Devanahalli Taluk, Devanahalli, in case No.LRF.1/1979-80 granted occupancy right in favour of the father of the petitioner viz., Muniyappa @ Dommanna



- 12-10-1982 Form No.10 Registration Certificate was issued by the Land Tribunal
- 17-09-1984 Hemanna, the husband of respondent No.4, filed the writ petition in W.P. No.28672/1982 which came to be allowed and remanded the matter to the Land Tribunal for a fresh consideration
- 16-04-1987 The Writ Appeal filed by the petitioner's father Muniyappa @ Dommanna in W.A. No.667/1985, came to be disposed of by transferring the matter to the Land Reforms Appellate Authority constituted under the Karnataka Land Reforms Act. On transfer, the appeal was numbered as LRA.208/1987
- 12-07-1993 W.P. No.28672/1982, which was treated as LRA.280/1987 was again transferred to this Hon'ble Court and restored and the same came to be dismissed for non-prosecution
- 07-12-2001 Seeking recalling and restoration of the said order, an application was moved in C.P. No.1281/2001, which was dismissed
- 15-11-2003 Upon referring to the all earlier proceedings, respondent No.3 has directed to make an entry in favour of the L.Rs. of Muniyappa @ Dommanna (Tenant) - father of the petitioner. MR.19/2003-04 was made in favour of the L.Rs. of Muniyappa @ Dommanna i.e., Narayanaswamy in respect of Sy.Nos.4 and 6
- 26-08-2004 The order passed in C.P. No.1281/2001 declined to restore the Writ Petition was sought to be reviewed and the same came to be dismissed - In view of the aforesaid proceedings, the order of



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the Land Tribunal granting occupancy right in favour of the father of the petitioner, has attained finality as it become final

- 22-06-2007 Respondent No.1 Deputy Commissioner in R.P. No.97/2004-05 has confirmed the orders of the Tahsildar and the Assistant Commissioner, wherein the entry in MR.19/2003-04 has attained finality
- 02-11-2012 The order passed by the revenue authority in related to MR.19/2003-04 and the order in Appeal and Revision Petition No.97/2005 were challenged before this Hon'ble Court in W.P. No.10750/2007 which came to be allowed and directed to effect the khatha in favour of the father of the petitioner Muniyappa @ Dommanna (Tenant) by restoring the order passed by the Tahsildar in MR.19/2003-04
- 25-03-2014 The order passed in W.P. No.10750/2007 dated 02-11-2012 was challenged in W.A. No.8592/2012 which came to be withdrawn by the respondents alone and the Writ Appeal came to be dismissed
- 17-05-2014 Upon reviewed of the orders passed in various proceedings, a note was put up before the Tahsildar to take necessary action and pass necessary orders in the light of the order passed in various proceedings in respect of the lands in question
- 25-06-2014 Upon considered the note put up to respondent No.3 Tahsildar, who passed an order directed to



effect the mutation as on 25-03-2014 in such names which are prevailing at that point of time

22-12-2014 The order passed by respondent No.3 Tahsildar dated 25-06-2014 in case No.RRT(J)CR/70/2014-15 was called in question in RA(BNA)171/2014-15 before respondent No.2 Assistant Commissioner who allowed the appeal and set aside the order of the Tahsildar and directed to restore the entry in the name of the tenant viz., Muniyappa @ Dommanna

14-07-2016 The order dismissing W.A. No.8592/2012 sought to be reviewed in R.P. No.1263/2014 and the same came to be dismissed

26-06-2018 Respondent Nos.4 to 7 herein have filed the Revision Petition in R.P. No.99/2015-16 challenging the order of respondent No.2 Assistant Commissioner dated 22-12-2014 in RA(BNA)171/2014-15 and the said revision petition came to be allowed and the matter remanded to respondent No.2 for a fresh consideration and now the matter is pending before respondent No.2

13. It is submitted that the above dates and events as enumerated by the petitioner, clearly reveals that absolutely nothing is required to be examined by the authorities under the Karnataka Land Revenue Act in so far as causing the entry in the name of the petitioner is concerned. The husband of respondent No.4 had cropped up the litigation as against the order of granting occupancy right in favour of the petitioner's father Muniyappa @ Dommanna upon put forth his independent right acquired in respect of the lands in question on the basis of a public auction conducted and culminated



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under the provisions of the Karnataka Co-operative Societies Act. The land owners, knowing fully-well that the lands in question are tenanted lands, they created a mortgage in favour of a Bank and the said Bank got an award in its favour and it was executed in an execution and the same came to be sold in favour of the husband of respondent No.4. This right sought to be agitated by the husband of respondent No.4, was nullified by this Hon'ble Court by rendering a detailed judgment in W.P. No.10750/2007 and the order passed therein has attained finality in W.A. No.8592/2012. The order in Writ Petition, which was confirmed in the Writ Appeal, having an effect that there is a direction to the authorities to effect the entry in the name of the tenant Muniyappa @ Dommanna or in favour of his legal representatives. When the office note was put up to that effect, the Tahsildar mechanically made some orders which appears to be incorrect which again given cause for the petitioner to file an appeal before respondent No.2 Assistant Commissioner under Section 136(2) of the Land Revenue Act. The said appeal came to be allowed correctly upon considered so many aspects of the matter including the orders passed in various proceedings by the Assistant Commissioner and who unequivocally directed the Tahsildar to cause an entry in the light of the order passed in the writ petition i.e., W.P. No.10750/2007. The husband of respondent No.4 again preferred a revision which came to be allowed and the matter is remitted to the Assistant Commissioner for a fresh consideration. This order of the Deputy Commissioner is under challenge in the present writ petition. Though it was passed in 2018, the petitioner rendered all efforts to prosecute the proceedings after such remand before the Assistant Commissioner. But though three years are spent on that, no progress in the matter. Ultimately, the decision taken by the Tahsildar which leads to another round of litigation interse between the parties under the Land Reforms Act, is uncalled



for or it is unwanted one; as such, the litigations are multiplied unnecessarily in so far as the petitioner is concerned. The Tahsildar ought to have looked into the order passed by this Hon'ble Court in the Writ Petition which is confirmed in W.A. No.8592/2012 where review was also dismissed. Thereupon nothing is required to be re-considered as the only requirement to consider so far as effecting the entry is concerned because the only act to be done by the Tahsildar is to implement the order passed by this Hon'ble Court in W.P. No.10750/2007 as observed by the Assistant Commissioner in the later appeal. So far as the dispute interse between the petitioner and respondent Nos.4 to 7 is concerned, it is concluded and attained finality. Consequently, the order passed by the Land Tribunal and the occupancy certificate issued in Form No.10 is a conclusive proof. Based on these, the right of the petitioner to be recognized and entries to be effected without making any further bargain. Though it is very clear and apparent on the documents placed on record before the Deputy Commissioner, without any reason and there was no occasion to remit the matter, the Deputy Commissioner remanded the matter for a fresh consideration though it is uncalled for. The petitioner has already suffered more than 38 years only in this litigation in respect of the small bit of property measuring 2 acres 8 guntas and one acre comprised in Sy.Nos.6 and 4 of Sathanuru Village, Jala Hobli. At one round of litigation, the order of the Land Tribunal was the subject matter which are decided in favour of the petitioner and thereafter the entries litigations have been started though it is unnecessary and it also went up to 2016 and ultimately concluded in the Writ Appeal. Therefore, nothing remains to be adjudicated in so far as entries are concerned because the petitioner's father is declared as a tenant and rights have been confirmed, it has attained finality and it is an obligation, much less statutory duty to give effect to the said order by effecting entries in favour of the



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petitioner. Instead of taking such drastic and rational decision, for the reasons best known to the revenue authorities, either it is bona fide or deliberate or intentional, one way or the other, the authorities are cooperating in growing the litigation without putting a logical end to such litigation. The issue relating to the entries has now seen the logical end and that has to be understood and implemented. Now, because of the impugned order of remand of the Deputy Commissioner, it would leads to an occasion to make one more order by the Assistant Commissioner which would be either of the way. Anyhow, it will further leads to the consequences of filing the Revision Petition, then it would again given leads to file a Writ Petition, Writ Appeal or up to the Hon'ble Supreme Court also. The petitioner has already spent a period of 38 years in the litigation for small bit of property though he is a poor bona fide agriculturist and he is made to spend much of time in litigation by losing substantial money and this could have been realized by the Deputy Commissioner before passing the impugned order. In that view of the matter, upon examined the entire papers, the petitioner has been advised to file the Writ Petition very recently when he visited the office for opinion and in that view of the matter, there is a delay and laches, if any, that has no consequences. Even if it is having consequences, in view of the nature of the litigation and the legal issue raised herein, this Hon'ble Court may kindly condone the delay and laches if any in the interest of justice and equity.

14. It is not a Public Interest Writ Petition.
15. The petitioner has not filed any other Writ Petition or any other proceedings before this Hon'ble Court or any other Authority on the same cause of action.
16. Having no other alternative and efficacious remedy available, the petitioner is approaching this Hon'ble Court, invoking its extra ordinary jurisdiction under Articles 226 and 227 of the



Constitution of India and state the following, amongst other, grounds.

17. GROUNDS:

- a) It is submitted that the order passed by respondent No.1 Deputy Commissioner in remanding the matter to respondent No.2 Assistant Commissioner for fresh consideration vide order dated 26-06-2018 in allowing the Revision Petition filed by respondent Nos.4 to 7, is highly illegal, erroneous and it is nothing but abuse of the power, much less it is contrary to the settled principles in law.
- b) It is submitted that on a cumulative reading of Sections 128 and 129 read with Sections 136(2) and 136(3) of **the Karnataka Land Revenue Act, 1964** ('the Act' for short), apparently envisages that the entries in the revenue records would call for alteration on any such instances as could be referred to under Section 128 of the Act. The initiation of the proceedings for alteration of entry would arise only in the instances of reporting of an acquisition of the right in respect of a landed property on various modes including succession, survivorship, inheritance, partition, purchase, mortgage, gift, lease or otherwise. If any one of such instances were present, then the enabling provision of Section 128 of the Act could be pressed into service for the purpose of seeking alternation of entries in the revenue records which is known as mutation and record of rights. Section 129 of the Act further envisages that upon reporting of such transactions and on initiation of the proceedings, what further follows is provided under Section 129 of the Act. According to the said section, a provisional entry to be effected on the basis of the report as provided under Section 128 of the Act and objections would be invited from the interested persons by issuing notice in Form No.21. In the event if any objections are received, the provisional entry will



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be treated as a disputed entry and proceedings will be initiated for adjudication of the interest of a person to claim to whom the entries to be effected. On considered this aspect of the matter, any order passed by the Tahsildar or entry is certified by the Tahsildar as per sub-section (4) or order made in terms of sub-section (6) of Section 129 of the Act. Any order or certificate of entry completed in terms of the aforesaid provision, would give right to an aggrieved person to prefer an appeal under Section 136(2) of the Act. The Appellate Authority is the Assistant Commissioner and his order in appeal would become final. However, under sub-section (3) of Section 136 of the Act, respondent No.1 Deputy Commissioner would get jurisdiction to entertain a revision petition at the instance of an application or on his own. Section 135 proviso is another provision where a person who felt aggrieved to any right of which he is in possession by an entry made in any record or register maintained under this chapter, it would be open for such person to file a suit for necessary relief. This is the entire scheme of the Act. In the back-ground of this Statute, if the issue in controversy in the present writ petition is analyzed, whether is there any occasion for the authorities to initiate the proceedings for effecting alternations to the entries in the mutation records or the revenue records. Because as information reflecting from the facts pleaded in the writ petition and which are supported by production of the documents, it is apparently clear that the Land Tribunal has granted occupancy right in the year 1982 in favour of the father of the petitioner and on initiation of various proceedings one after another up to the Division Bench of this Hon'ble Court, the person i.e., the husband of respondent No.4 has miserably failed in asserting his right to establish interest in the lands in question and the decision rendered to that effect have attained finality.

[Signature]

Therefore, there is no occasion or any circumstances remains with the respondents herein including respondent No.3 to take a different decision in effecting entries in the revenue records contrary to the order passed by the Land Tribunal in the year 1982. In other words, except implementing the order of the Land Tribunal for the purpose of effecting entries in the revenue records, no other way available to any of the revenue authorities to cause any change in the entries in the revenue records. In that view of the matter, a third round of litigation have been going on between the parties since 1979 and despite the order passed by this Hon'ble Court in W.P. No.10750/2007 and affirmed by the Division Bench in W.A. No.8592/2012, the efforts of the petitioner to get his name entered in the revenue records is still hanging for no reasons. The order passed by the Deputy Commissioner is an illustration to demonstrate a glaring error in decision taking process at the instance of respondent No.1 Deputy Commissioner while unhesitatingly decided to interfere with the order of respondent No.2 Assistant Commissioner passed on 22-12-2014. Therefore, the decision of respondent No.1 Deputy Commissioner in R.P. No.99/2015-16 in remanding the matter to respondent No.2 Assistant Commissioner to consider all orders passed in the proceedings to take a decision in the matter, is rather uncalled for or it is unwarranted one. Therefore, the order impugned of respondent No.1 Deputy Commissioner is *per se* arbitrary or capricious and it is nothing but abuse of power and ended with miscarriage of justice. Therefore, the said order is liable to be quashed.

- c) A review of the nature of the litigation between the petitioner and respondent Nos.4 to 7 instituted at the first instance through the husband of respondent No.4 and father of respondent Nos.5 to 7, the claim of the husband of respondent No.4 Hemanna was that he claim that a right is



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acquired in respect of the lands in question by virtue of public auction in disposal of the property in lieu of satisfaction of the award passed under the provisions of the Karnataka Co-operative Societies Act. The effect of creating charge in respect of the tenanted land has been considered and answered by this Hon'ble Court against the auction purchaser by virtue of the considered order passed in W.P. No.10750/2007 and that order has attained finality in view of dismissal of the Writ Appeal and Revision Petition filed thereon. Therefore, now there is nothing on record to show that there are clouds are still surrounded in so far as the right or interest of the petitioner in view of the order passed by the Land Tribunal in the year 1982 itself. If there are no source forthcoming or reflecting to hold or smelt the interest of respondent Nos.4 to 7 in respect of the lands in question, then there would be an occasion to adjudicate something in terms of the provisions under the Karnataka Land Reforms Act. The right or interest sought to be agitated by the husband of respondent No.4, when it had attained finality and there are no other acceptable or recognized orders or proceedings deciding the right of the husband of respondent No.4 in any manner in law, the order passed by the Land Tribunal would holds the field and the said order would be made only as a basis to make entries in the revenue records. For that, nothing remains to be examined by the Assistant Commissioner or the Tahsildar as observed by respondent No.1 Deputy Commissioner in the revision petition. In fact, upon assessed and reviewed the orders of various proceedings, an office note was put up by the office of the Tahsildar enable the Tahsildar to take a decision; but who has taken a decision which is apparently erroneous. Therefore, that erroneous order was corrected by the Assistant Commissioner in the appeal. The order passed by the Appellate Authority in appeal, it is more convincing,

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much less free from ambiguity and therefore nothing remains to interfere with by the Deputy Commissioner in exercise of his Revisional jurisdiction under Section 136(3) of the Act. On perusal of the order passed by the Deputy Commissioner, no reasons are explained or forthcoming to say what for respondent No.1 made up his mind to remand the matter by allowing the petition filed by respondent Nos.4 to 7 as, by that time, when their right is totally held to be not sustainable in law in various proceedings. Therefore, the order passed by respondent No.1, is highly illegal and erroneous; as such, it has no legs to stand in any manner.

- d) It is submitted that the order passed by the Land Tribunal in 1982, is now holding the field. The said order was visited with so many proceedings before various authorities including before the Division Bench in Writ Appeal which ultimately seen the logical end; as such, the order of the Land Tribunal was sustained. After the order of the Land Tribunal is sustained after exhausted all the legal battle, respondent No.2 Assistant Commissioner right considered these aspects and directed the Tahsildar to restore the entry in the name of the petitioner and that order is perfectly justified in law. But the Deputy Commissioner, without any reason, remanded the matter in a casual and mechanical manner and directed to take a decision in effecting entries in the revenue records upon referring to various proceedings. The Deputy Commissioner is the highest authority in this chapter who would be the final authority in reviewing the validity and correctness of an order passed in a proceedings of alteration of revenue entries are concerned. The power of revision is never equated with the power of appeal as it is the settled position in law. Respondent No.1 Deputy Commissioner, if he would have applied mind properly on the facts and circumstances of the case and also if the documents and earlier orders of this Hon'ble Court are

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 verified in the proper perception, he would not have arrived this conclusion; but lapses have been committed at this juncture and it is ended with miscarriage of justice. Therefore, the impugned order is liable to be quashed.

- e) It is submitted that the Full Bench of this Hon'ble Court in the case of C.V. Narasimhaiah reported in 2002 (6) Kar.L.J. 391 and the principles rendered therein further reiterated by this Hon'ble Court again by the Full Bench in the judgment of Damodar and others v/s Government of Karnataka Deputy Commissioner, Dharwad and others reported in 2015 (2) Kar. L.R. (Civ) 540, consistently taken the view regarding the scope and intent of the entries in the revenue records and power of various revenue authorities conferred on such authorities under the Act. The decision taken by the Deputy Commissioner is contrary to the principles in law. Therefore, it would call for interference.

18. GROUNDS FOR INTERIM RELIEF:

It is submitted that the facts and grounds asserted in the preceding paragraphs of this writ petition, apparently establish the fact that nothing remains to be decided or adjudicated by any authority except what has already been decided by the Land Tribunal in 1982 by virtue of the order passed therein, in granting occupancy right in favour of the father of the petitioner. The said order of the Land Tribunal, though subject matter of various proceedings including the proceedings in Writ Appeal before this Hon'ble Court, it has seen the logical end by sustaining the order of the Land Tribunal. Even a claim put forth by the husband of respondent No.4 on the basis of an auction purchase under the Co-operative Societies side, was held to be null and void by this Hon'ble Court in W.P. No.10750/2007 and the said order was again confirmed in Writ Appeal. Though, a liberty was reserved to work out if any remedy available in law by a

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competent civil court, no decree or orders are still holding the field in encashing the liberty granted by this Hon'ble Court. In that view of the matter, though there is no occasion to examine any orders or proceedings except the order of the Land Tribunal of 1982 in conferring the occupancy right in favour of the father of the petitioner viz., Muniyappa @ Dommanna. This order is to be implemented without any bargain or any lame excuses. Despite that, respondent No.1 Deputy Commissioner has remanded the matter to the Assistant Commissioner with a direction in such nature as indicated in the order impugned. It is a useless, unwarranted and uncalled for observation or the direction of the Deputy Commissioner; as such, it is unnecessarily interfered with the order of the Assistant Commissioner who directed to cause an entry in favour of the petitioner in the light of the order passed by the Land Tribunal. In that view of the matter, it would be just and appropriate to pass an interim order as prayed for; otherwise the petitioner will be put to great loss and injustice.

19. PRAYER:

WHEREFORE, the petitioner most respectfully prays that this Hon'ble Court be pleased to:-

- a) Issue a writ in the nature of certiorari or any other writ to quash the order dated 26-06-2018 passed by respondent No.1 Deputy Commissioner in R.P. No.99/2015-16 as per **Annexure-N**;
- b) Issue a writ of mandamus or any such order by restoring the order dated 22-12-2014 passed by respondent No.2 Assistant Commissioner in R.A. (BNA) No.171/2014-15 as per **Annexure-M** and further direct by issuing the writ of mandamus to respondent No.3 Tahsildar to effect an entry in the name of the petitioner herein both in the mutation register and record of rights in relating to the lands in



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question in the present writ petition viz., Sy.Nos.6 and 4 of Sathanuru Village, Jala Hobli, Bangalore North Additional Taluk, Bangalore;

- c) Pass any appropriate writ, order or direction as this Hon'ble Court deem it fit and proper in the facts and circumstances of the case and allow this Writ Petition with costs, in the ends of justice and equity.

20. INTERIM PRAYER:

WHEREFORE, the petitioner most respectfully prays that this Hon'ble Court be pleased to stay the operation, execution and implementation including all further proceedings in pursuance to the order dated 26-06-2018 passed by respondent No.1 Deputy Commissioner in R.P. No.99/2015-16 as per **Annexure-N** pending disposal of this Writ Petition, in the ends of justice and equity.

Place: Bengaluru,

Date: 22-02-2021


Advocate for Petitioner

M.R. RAJAGOPAL

Document No : 680/07

Address for Service:

Sri M.R. Rajagopal,
Advocate,
46 & 47, "Karthika Nilaya",
25th Main, Girinagar T' Block,
Bengaluru - 560 085.
Mobile No.94480 47756

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Petition No. 4339 /2021

Between:

Sri S.D. Avalappa

>>>Petitioner

And:

The Deputy Commissioner
and others

>>>Respondents

AFFIDAVIT

I, S.D. Avalappa, S/o Late Muniyappa @ Dommanna, Aged about 54 years, R/o Sathanuru Village, Jala Hobli, Bengaluru North Taluk, Bengaluru District, today at Bengaluru, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the above writ petition and conversant with the facts of the case. Hence, I am swearing to this affidavit.
2. The statements made in paragraphs Nos.1 to 20 of the Writ Petition accompanying this affidavit, are true to the best of my knowledge, information and belief.
3. I state that Annexures 'A' to 'Q' produced are true copies of the originals.

Place: Bengaluru,



Date: 22 FEB 2021

DEPONENT

Solemnly affirmed / Sworn to before me on
this the 22 day of Feb 2021
Place Bangalore Metropolitan Area
Oath Commissioner.....
ADARSHA K.K., B.Com., LL.B.,
Advocate & Oath Commissioner
71, 8th Main Road, 2nd Floor, 3rd Cross
10th Main, Lakshmi Nagar, C.B.I. Road
Bijayanagar, Bengaluru - 560 024
Mob: 98451 31722, adarshakkksrs@gmail.com
Sl. No. 3516, Page No. 38
No. of Corrections.....

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IN THE COURT OF THE LAND TRIBUNAL DEVANAHALLI TALUK

DEVANAHALLI

CASE NO LRF 1/79-80 dated 13-07-1982

Present:-

1. Sri.M.Najundaiah.
Special Assistant,
Commissioner,
Land reforms,
Devanahalli Taluk.

Charmin

2. Sri. K.Namyanappa.
M L A Devanahalli.

Member

3. Sri. B.M.Krishnappa Gowda.

4. Sri. Mohaboob

Member

5. Smt. Shanthamma

Member

1. Sri. Muniyappa alias,
Doomanna S/O,
Munishamappa Major,
R/o Sathnur Village,
Jala hobli,
Devanahalli Taluk.

Petitioner

Versus

1. Sri. Muniswamappa S/o.
Dumanna Major.
Whereabouts not known.
R/o Sathnur Village.
Jala hobli.
Devanahalli Taluk.

Respondent

2. Sri. Hemanna S/o.
Munivenkatappa Major.
Resident at Sathnur.
Jala hobli.
Devanahalli Taluk.

Respondent

On 17.01.1979, the petitioner filed an application in form 7 praying registration of Occupancy rights under sec 48 A of the Karnataka Land Reforms Act 1961 (as amended) in respect of 2.08 guntas in Sy No 6 and 1.00 acre in Sy No 4 of Sathnur Village, Jala hobli, Devanahalli Taluk. He has impleaded first respondent Muniswamappa as land lord. His application was accompanied by an affidavit to condone the delay in filing the application. Subsequently on 4.7.1979 the petitioner filed one more application to implead the second respondent Sri Hemanna as party to the proceedings and to proceed with the case. Again on 12.7.1979, third petition was filed seeking orders of the tribunal under Sec 48 C of the Act requesting the tribunal to issue orders of temporary injunction restraining the second respondent Sri. Hemanna from interfering with his peaceful possession and

enjoyment of these lands. In support of his claim he had produced extracts from R T C pertaining to the survey Numbers claimed.

Individual and public Notices were served and published in the village and on the respective parties. In response to that the petitioner and the respondent Hemanna appeared before the tribunal on 12.7.79. The tribunal recorded the statements and examined the certified copies of R T C produced by the petitioner for the years 68-69 to 78-79 and took decision to appoint the Revenue Inspection Jala hobli to be receiver of these lands under Sec 48 (C) (1) of K L R Act.

Notice to first respondent could not be served as his where abouts were unknown to the tribunal.

Aggrieved by the orders of the land tribunal, the second Respondent Hemanna filed writ petition No 12045/79 before the Hon'ble High Court of Karnataka. The Hon'ble High Court in then W.P.No.12045/79 dated 6.11.79 were pleased to modify the orders of the tribunal and appointed second Respondent Sri Hemanna himself as the interim receiver of these lands till the disposal of application filed in form 7 by the petitioner Sri. Doomanna with the directions to deposit the value of crops after deducting all expenses mained by getting necessary instructions from the tribunal from time to time in the management of these lands. The second Respondent there after is continued to be the interim receiver of these lands under the orders of the Hon'ble High Court of Karnataka. The lands are now in possession of the second respondent.

The tribunal proceeded to conduct enquiries on 11.12.80 the second Respondent Sri.Hemanna filed his written statement. He has stated that he is the owner in possession of the lands claimed by the petitioner. He admitted that these lands originally belonged to the first respondent Muniswamappa who is none other

than the father of the petitioner. He has admitted that according to partition among the petitioner and his brothers and his father the lands in question fell to the share of the petitioner's father Muniswamappa. The said Muniswamappa borrowed two terms of loan from primary land development Bank Devanahalli on 13.8.1965 and on 29.11.1965 on the security of these lands and became the defaulter.

In order to realise these two items of loans, these lands were brought to sale and put to action on 17.4.1978 by the Primary Land Development Bank, Devanahalli, and the Respondent Sri. Hemanna got these lands as the highest bidder in public auction. The sale was also contained by the Assistant Registrar of co-operative societies Doddaballapura on 12.12.78 and the fact was also notified in the Gazette dated 28.12.78. He further states that he has been in possession of these lands ever since the date of sale from 26.12.1978. The respondent that for the reasons quoted in his written statement requested the tribunal to dismiss the prayer of the petitioner in the interest of Justice.

On 23.2.1981 the petitioner filed his written statement stating that these lands bearing S No 4 and 6 of Sathanur originally belonged to the joint family of the petitioner his father Muniswamappa (first Respondent) and his brothers Avalappa and Chinnappa. There was a partition of these lands on 7.9.65 amongst his coparceners including the petitioner and this fact is proved by the partition deed registered in the office of the Sub-registrar Devanahalli on 7.9.65. The first Respondent the father of the petitioner after partition of the lands claimed by the petitioner in this case, were cultivated by the first Respondent for two years and there after expressed his inability to cultivate them personally due to his old age and leased these lands to the petitioner Doomanna for were cultivation. The extent to land that was leased to the petitioner was 2 acres 8 guntas in S. No 6 and 1-00 acre in S. No 4 of Sathanur Village. These lands were being cultivated for the past

23 years (23 Years) by the petitioner uninterruptedly and as tenant under the first respondent.

The alleged purchase of these lands by the second respondent Hemanna in a sale conducted without the petitioner being made party to the proceedings in the sale held by the sale officer by the Primary Land Development Bank, Devanahalli on 17.4.1978 and the execution proceedings taken in this case by the authorities of the Co-Operative Department therefore do not bind the petitioner.

The petitioner has denied having made over possession of this land to the respondent (2) in consequence to the execution proceedings. He has further submitted that under the provisions of Karnataka Co-operative Societies Act that is mandatory that he should obtain possession through the Deputy Commissioner of the District observing the required formalities contemplated in Sec 89 (c) 2 B of the said Act. These he clarifies that the possession of these properties were never made over to the second respondent who claims having taken possession of these lands. He accepts that the Respondent (2) is in possession of the lands by virtue of the orders passed by the Hon'ble High Court of Karnataka in W.P.No12045/79 dated 6.11.1979 appointing him as interim receiver till disposal of application filed under Sec 48 of K.L.R. Act.

The petitioner further averred in his statement, that these lands were in his possession actually cultivating as were tenant under the respondent (1) and at present his whereabouts are not known. He has in addition stated that since the first Respondent is none other than his father, he was not obtaining any receipts for having delivered the grain. He added the award passed by the Arbitrator of the co-operative Society introspect of these Lands in dispute No 73/73-74 has been set aside by the Karnataka Appellate Tribunal in appeal No 544/79 (Co-op) dated 11.7.1980. He has also furnished the certified copy of the said order in appeal for

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the perusal of the tribunal. He has also stated that his right as tenant would sustain under the provisions of Karnataka land reforms Act 1961 and the Respondent (2) who claims his right as purchaser by virtue of sale would be entitled only to the occupancy price for the land climbed under auction sale of the same is sustained.

The petitioner has also filed certified copy of the order passed by the principal civil Judge, Bangalore District in case No M A. 90/79 where in the prayer of the petitioner Sri. Dhoomanna alias Munishamappa for an injunction against the 2nd Respondent is dismissed as the civil court is barred with the jurisdiction of deciding the Tenancy matter. The petitioner has mainly contended that 2nd respondent Sri. Hemanna has no right on the land as the sale conducted by the primary land development bank authorities are set aside by the Karnataka Appellate tribunal in Appeal No 544/79 dated 11.7.1980. He also averred that the provisions of Sec 89 (C) 2 B of the Karnataka Co-operative societies Act 1959 which reads as under have not been complied with by the Co-operative Department.

“(B) where the property sold is in the occupancy of a tenant or other person entitled to occupy the same and a certificate in respect thereof has been granted under the foregoing sub-section, the Deputy commissioner shall, on the application of the purchaser and after Notice to such Tenants or other persons order delivery to be made by affixing copy of the certificate of sale in a conspicuous place on the property and proclaiming to the occupant by a beat of drum or other customary made at some convenient place on the property that the right title and interest of the Purchaser”.

On Perusal of the evidences adduced by the petitioner the tribunal felt that the petitioner was in possession and enjoyment of the lands in question as Tenant under the first Respondent even of the Bank authorities sold the lands in Public

auction to realize the loan amount due on these lands, the tenancy rights do exist on these lands and the purchaser entitled to get only the compensation payable on the said lands if the sale is sustained. In other words the Bank authorities have no right to sell away the Tenancy rights existing on the lands as it is absolute vested with Government as on 1.3.74 on which date the Karnataka land reforms Act (amended) came into effect. These the lands in question are Tenant lands on the said date and the petitioner is even to be registered as an occupant of these lands under Sec 45 of the Karnataka land reforms Act 1961 (amended) as while sale is to set aside the Appellate authority be in their No.544/79 11.7.80 the 2nd Respondent as his right these properties. There fore the tribunal is of the unanimous opinion to register the petitioner Sri.Dhoomanna alias Munishamappa as an occupant of the said lands.

It is there fore ordered to register the petitioner Sri. Dhoomanna alias Munishamappa as an occupant over 1 acre in S.No 4 and 2 acres 08 guntas in S.No 6 of Sathanur village Jala hobli, Devanahalli Taluk under Sec 45 of the Karnataka land reforms Act 1961 (amended) subject to payment of premium. It is further ordered to pay the entire amount deposited by the 2nd respondent to the petitioner being the Value of crop raised by the 2nd respondent as interim receiver of these lands.

Dictated and pronounced in the open court this day 13.7.82.

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ANNEXURE-B

FORM 10

(See rule 21)

LRF 1/79-80

Certificate of registration of a tenant as an occupant under Section 55 (1) of the Karnataka Land Reforms Act, 1961

Whereas the Tribunal Bavanahalli Taluk has under Sub-Section (4) of Section 48-A of the Karnataka Land Reforms Act, 1961 ordered that Sri Mummappa @ DhormannaSri Mummappa @ Dhormanna Sathmar village is entitled to be registered as an occupant of the lands detailed hereunder, namely:—

District	Taluk	Village	S. No.	Extent in acre	Assessment	Boundaries
Bangalore	Bavanahalli	Sathmar	14	A 6 1-00	3-00	
			6	2-08	8-00	

And whereas the Tahsildar/Special Tahsildar _____ Taluk has determined under Section 48-B (1) the amount payable by the tenant Sri _____ as permissory for the grant of occupancy rights of the above mentioned land;

And whereas the tenant Sri _____ has paid into Government _____ on _____ the full premium amount of Rs. _____ lumpsum or the first instalment of Rs. 2,000/- thereof according to the provisions of the Karnataka Land Act, 1961 (as amended) due in respect of the lands aforesaid.

Now, therefore, the Tahsildar/Special Tahsildar Bavanahalli Taluk hereby registers Sri Mummappa @ Dhormanna as an occupant of the said lands. The registration is granted subject to payment of Rs. _____ as an occupant of the said lands. The registration is granted land as fixed under the rules for the time being in force. The registration is also subject to the provisions of Karnataka Land Reforms Act and Rules as they stand now and as they may be amended from time to time.

(1) Provided that this assessment shall be paid for each revenue year as per rules prescribed in this behalf time to time under the provisions of the Karnataka Land Revenue Act, 1964 falling which shall be recoverable by coercive process in the manner prescribed by the Karnataka Land Revenue Act and Rules framed thereunder.

(2) Provided also that this certificate of registration in no way affects the liability of the above said such rates, taxes and cesses other than land revenue as may be imposed by law, whether for general municipal or other local purpose.

(3) Provided also that the said occupant or other lawful owner of the said land shall at all times hereafter at his own expense maintain, in good order, the restored major and minor works of the village with respect to which a customary obligation to maintain is imposed on the said occupant or other lawful owner of the said survey number and shall put up, repairs and maintain in good order the boundary marks around the said land, failing which it shall be lawful for the State Government after due notice to cause the maintenance work of the said tank in far as his liability in this behalf extends and the repairs of the said boundary marks to be carried out and to recover the cost of such maintenance work and such repairs as a revenue demand from the said occupant or other lawful owner.

P. T. (

5527- GPB 40 pads 100 sheets each—154.80

Tahsil Officer, Sp. Tahsil.

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IN THE HIGH COURT OF KARNATAKA, BANGALORE

DATED THIS THE 26TH DAY OF AUGUST 2004

PRESENT

ANNEXURE-C

THE HON'BLE MR. N.K.JAIN, CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE N.KUMAR

REVIEW PETITION No 41 OF 2002

IN

CIVIL PETITION NO.1281 OF 2001

IN

WRIT PETITION NO.25394 OF 1992

BETWEEN

1 HEMANNA S/O MUNI VENKATAPPA
MAJOR, R/A SATANUR, JALA HOBLI
BANGALORE NORTH TALUK

... PETITIONER

(By Sri : M S PURUSHOTHAMA RAO)

AND :

MUNIYAPPA @ DOOMANNA
SINCE DECD BY LRS

1 MUNIYAMMA
W/O MUNIYAPPA @ DOOMANNA
MAJOR, R/A SATANUR, JALA HOBLI
BANGALORE NORTH TALUK

2 NARAYANASWAMY S/O MUNIYAPPA @ DOOMANNA
MAJOR, R/A SATANUR JALA HOBLI
BANGALORE NORTH TALUK

3 AVALAPPA
S/O MUNIYAPPA DOOMANNA
R/A SATANUR, JALA HOBLI
BANGALORE NORTH TALUK



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- 60 2
- 4 KEMPANNA
S/O MUNE GOWDA
MAJOR, R/A SATANUR OBLI
BANGALORE NORTH TALUK
 - 5 LAND TRIBUNAL
DEVANAHALLI
BY ITS SECRETARY/TAHSILDAR
DEVANAHALLI
 - 6 STATE OF KARNATAKA
BY SECRETARY TO GOVT
DEPT OF REVENUE
KARNATAKA GOVT SECRETARIAT
VIDHANA SOUDHA
BANGALORE 1

... RESPONDENTS

(Sri: SMT.D P REVATHI FOR SRI.D.P SHIVAPRASAD FOR
R1 to R-4. SRI.M.N.SESHADRI AGA FOR R-5 AND 6)

This Review Petition filed by counsel for the Petitioner under order 47 Rule 1 of CPC praying for review of the order:7.12.2001 passed in C.P.No. 1281/2001 in W.P.No.25394/92.

This petition coming on for admission this day, THE CHIEF JUSTICE, made the following:

ORDER

The petitioner had filed C.P.3393/1991 under the amended provisions of the Karnataka Land Reforms Act. The said petition was ordered to be registered as a writ petition and it was numbered as W.P.No.25394/1992. On 12-7-1993 the writ petition came to be dismissed for non-prosecution. C.P.No.1281/2001 was filed to recall the said order. This Court by an order dated 7-12-2001 dismissed



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the Civil Petition. This review petition is filed for reviewing the order dated 7-12-2001 passed in C.P.1281/2001.

2.Learned counsel for the petitioner submits that while showing the name of the counsel in the order sheet it has been wrongly mentioned as Sri.D.V.Padmanabaiah instead of Sri.M.C.Ramachandraiah as appearing for petitioner. Hence the counsel could not be present on 12-7-1993 on which date the case came to be dismissed for non-prosecution. Hence he submits that ^{the} order passed in C.P.No.1281/2001 may be reviewed and the order passed in W.P.No.25394/92 may be recalled and the writ petition may be disposed of on merits.

3.Learned counsel for respondents 1 to 4 and the learned Government Advocate submits that the order passed in C.P.No.1281/2001 needs no interference as the same has been passed after hearing both the parties.

4. Heard the learned counsel for the parties and perused the material on record.

5. This court considered the matter in detail while passing the order in C.P.No.1281/2001 and found that there was not good ground to recall the order dated 12-7-1993 passed in the writ petition. Under the circumstances, we



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find no reason to review the order passed in
C.P.No.1281/2001. This review petition is dismissed.

Sd/-
Chief Justice

Sd/-
Judge

sbb/-



TRUE COPY

W. S. Srinivasan
Section Officer
High Court of Karnataka
Bangalore-560 001

- a) The date on which the application was made *27/7/16*
- b) The date on which charges and additional Charges if any are entered for
- c) The date on which charges and additional Charges if any are deposited/Paid
- d) The date on which the copy is ready *28/7/16*
- e) The date of notifying that the copy is ready for delivery
- f) The date on which the applicant is required to appear on or before *28/7/16*
- g) The date on which the copy is delivered to the Applicant *1/8/16*
- h) Examined by *1/8/16*

ಯುಲಪಂಕ ಉಪನಗರ

ANNEXURE-D

ಪ್ರಕರಣ ಸಂಖ್ಯೆ : ಆಲ್.ಆರ್.ಟಿ (ವಿವಾದ) 32/2001-02

ಅರ್ಜಿದಾರರು

ವಿರುದ್ಧ

ಪ್ರತಿವಾದಿಗಳು

1) ಮುನಿರಾಬು

ಬಿನ್ ಲೇ|| ಮುನಿರಾಬು

2) ಚನ್ನಪ್ಪ

ಬಿನ್ ಲೇ|| ಮುನಿರಾಬು

3) ಅವಲಪ್ಪ

ಬಿನ್ ಲೇ|| ಮುನಿರಾಬು

4) ನಾರಾಯಣಸ್ವಾಮಿ

ಬಿನ್ ಲೇ|| ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ

ಎಲ್ಲರೂ ಸಾತನೂರು ಗ್ರಾಮದಲ್ಲಿ ವಾಸ,

ಚಾಲಿ ಹೋಬಳಿ,

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು.

ಶ್ರೀ ಹೇಮಣ್ಣ

ಬಿನ್ ಲೇ|| ಮುನಿರಾಬು

ಸಾತನೂರು ಗ್ರಾಮ, ಚಾಲಿ ಹೋಬಳಿ,

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು.



① Bice
② Srinivas
③ Bheemanna
④ Bheemanna
⑤ Bheemanna
⑥ Bheemanna
⑦ Bheemanna
⑧ Bheemanna
⑨ Bheemanna
⑩ Bheemanna

ವಿಷಯ: ಬೆಂಗಳೂರು ಉತ್ತರ (ಅಪರ) ತಾಲ್ಲೂಕು, ಚಾಲಿ ಹೋಬಳಿ, ಸಾತನೂರು ಗ್ರಾಮದ
ಸ. ನಂ. 4 ಮತ್ತು 6 ರ ಜಮೀನಿನ ವಿವಾದ ಕುರಿತು.

ಪ್ರಕರಣದ ಸಾರಾಂಶ:

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು (ಅಪರ), ಚಾಲಿ ಹೋಬಳಿ, ಸಾತನೂರು ಗ್ರಾಮದ ನಾರಾಯಣಸ್ವಾಮಿ
ಬಿನ್ ಲೇ|| ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ಎಂಬವರು, ದಿನಾಂಕ: 2-7-2001 ರಂದು ತಹಶೀಲ್ದಾರರಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ,
ಸಾತನೂರು ಗ್ರಾಮದ ಸ. ನಂ. 4 ರಲ್ಲಿ 1-00-ಎಕರೆ ಮತ್ತು ಸ. ನಂ. 6 ರಲ್ಲಿ 2-08 ಎಕರೆ ಜಮೀನುಗಳು ತಮ್ಮ
ತಂದೆಯವರಿಗೆ ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಳಿಯಿಂದ ಎಲ್.ಆರ್.ಎಫ್. 1/79-80 ರಂತೆ ಅಧಿ ಭೋಗದಾರಿಕೆ
ನೀಡಿದ್ದು, ತಮ್ಮ ತಂದೆಯವರು ಪವತಿಯಾಗಿರುವುದರಿಂದ, ತಮ್ಮ ತಂದೆ ಪವತಿ ಸಬೂಬು ತಮ್ಮ ಹೆಸರಿಗೆ ಸದರಿ
ಜಮೀನುಗಳನ್ನು ಖಾತೆ ಬದಲಾವಣೆ ಮಾಡಿಕೊಡಬೇಕೆಂದು ಕೋರಿದ್ದರೆ ಮೇರಿಗೆ ಸದರಿ ಅರ್ಜಿಯನ್ನು ಸಂಮತ
ರಾಜಸ್ವ ನಿರೀಕ್ಷಕರಿಗೆ ರವಾನಿಸಿ ಖಾತೆ ಬದಲಾವಣೆ ಬಗ್ಗೆ ಸೂಕ್ತ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳಲು ನಿರ್ದೇಶಿಸಿದ್ದು, ಸದರಿ ರಾಜಸ್ವ
ನಿರೀಕ್ಷಕರು ಖಾತೆ ಬದಲಾವಣೆ ಬಗ್ಗೆ ನಿಯಮಗಳಿಗನುಸಾರ ನಮೂನೆ 21-ಎ ನ್ನು ಪ್ರಚುರಪಡಿಸಲಾಗಿ ಸದರಿ
ಜಮೀನುಗಳ ಖಾತೆಯನ್ನು ಅರ್ಜಿದಾರರಾದ ಶ್ರೀ ನಾರಾಯಣಸ್ವಾಮಿಯವರ ಹೆಸರಿಗೆ ಬದಲಾಯಿಸಬಹುದೆಂದು,
ಸದರಿ ಜಮೀನನ್ನು ಇತರೆ ವಾರಸ್ಸು ದಾರರೂ ಸಹ ಸಮ್ಮತಿ ನೀಡಿರುತ್ತಾರೆ. ಆದರೆ, ಸದರಿ ಗ್ರಾಮದ ಹೇಮಣ್ಣ ಬಿನ್
ಲೇ|| ಮುನಿರಾಬು ಎಂಬವರು ದಿನಾಂಕ: 19-12-2001 ರಂದು ತಹಶೀಲ್ದಾರರಿಗೆ ತಕರಾರು ಅರ್ಜಿ ಸಲ್ಲಿಸಿ,
ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳನ್ನು ದೇವನಹಳ್ಳಿ ತಾಲ್ಲೂಕು ಪ್ರಾಥಮಿಕ ಭೂ ಅಭಿವೃದ್ಧಿ ದಿನಾಂಕ: 28-12-1978 ರಲ್ಲಿ

ಹರಾಜು ಮಾಡಿದ್ದು, ಸದರಿ ಜಮೀನುಗಳನ್ನು ತಾವು ಹರಾಜಿನ ಮೂಲಕ ಖರೀದಿಸಿರುವುದಾಗಿಯೂ ಮತ್ತು ಖಾತೆ ಹಾಗೂ ಪಹಣಿಗಳನ್ನು ಮಾಡಿಸಿಕೊಂಡು ಸದರಿ ಜಮೀನುಗಳನ್ನಾಧೀನದಲ್ಲಿರುವುದಾಗಿಯೂ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳಿಗೆ ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಳಿಯವರು ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ನವರನ್ನು ಅಧಿಭೋಗದಾರನ್ನಾಗಿ ಮಾಡಿ ದಿನಾಂಕ : 13-7-82 ರಲ್ಲಿ ಮಾಡಿದ್ದ ಆದೇಶದ ವಿರುದ್ಧ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮನವಿ ಸಲ್ಲಿಸಿದ್ದರ ಮೇಲೆ ತಮ್ಮನ್ನು ರಿಸೀವರನ್ನಾಗಿ ನೇಮಿಸಿರುವುದಾಗಿಯೂ, ಅದರಂತೆ ಸದರಿ ಜಮೀನುಗಳ ಖಾತೆ ಮತ್ತು ಪಹಣಿಯನ್ನು ತಮ್ಮ ಹೆಸರಿಗೇ ಮುಂದುವರಿಸಬೇಕೆಂದೂ, ಯಾವುದೇ ಲೀಟಿಯ ಬದಲಾವಣೆ ಮಾಡಕೂಡದೆಂದು, ಕೋರಿದ್ದ ಅರ್ಜಿಯನ್ನು ದಿನಾಂಕ : 20-12-2001 ರಂದು ಸಂಸುತು ರಾಜಪ್ಪ ನಿರೀಕ್ಷೆ ಕರಿಗೆ ರವಾನಿಸಿ ವರದಿ ಕೇಳಲಾಗಿ, ಸದರಿ ರಾಜಪ್ಪ ನಿರೀಕ್ಷೆ ಕರು ದಿನಾಂಕ : 02-01-2002 ರಲ್ಲಿ ವರದಿ ಸಲ್ಲಿಸುತ್ತಾ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳು, ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶವಂತೆ ಅಫಿಷಿಯಲ್, ರಿಸೀವರ್ ನೇಮಕಾತಿಯಂತೆ ಬಂದ ಸ್ವತ್ತುಗಳಾಗಿದ್ದು, ಇದರಂತೆ 2000-01 ರ ಬೆಳೆಯ ಕಟಾವಿಗೆ ಬಂದಿದ್ದು, ಖರ್ಚು ಕೇವಲ 1020/- ರೂ. ಗಳ ವರಮಾನ ಬಂದಿದ್ದು, ಸದರಿ ಹಣ ಮತ್ತು ಹಿಂದಿನಿಂದಲೂ ಸಹ ಹರಾಜು ಮಾಡಿದ ಹಣವನ್ನು ರಿಸೀವರ್ ಆಗಿ ನೇಮಕಗೊಂಡಿರುವ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಸರ್ಕಾರಕ್ಕೆ ಪಾವತಿಸಿರುವ ಬಗ್ಗೆ ಯಾವುದೇ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲವೆಂದೂ, ಸದರಿ ಹೇಮಣ್ಣ ನವರಿಗೂ ಮತ್ತು ಶ್ರೀಮತಿ ಮುನಿಯಪ್ಪ ಹಾಗೂ ಇತರೆಯವರಿಗೂ ಸಿ.ಪಿ. ನಂ. 1281/2001 ಮತ್ತು ಡಬ್ಲ್ಯೂ.ಪಿ. ನಂ. 25394/92 ರ ಪ್ರಕಾರ ದಾವೆಗಳು ನಡೆದು, ಸದರಿ ಹೇಮಣ್ಣ ನವರು ಸದರಿ ದಾವೆಗಳಲ್ಲಿ ಹಾಜರಾಗಿರಲಿಲ್ಲವಾದ್ದರಿಂದ, ಅವರ ಅರ್ಜಿಗಳು ಸಹ ಆಗಿರುವುದರಿಂದ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ಖಾತೆಯನ್ನು ಬದಲಾಯಿಸಿಕೊಡಬೇಕೆಂದು ಕೋರಿ ಶ್ರೀ ನಾರಾಯಣಸ್ವಾಮಿಯವರು ಸಲ್ಲಿಸಿರುವ ಅರ್ಜಿಯನ್ನು ಪರಿಗಣಿಸುವ ಬಗ್ಗೆ ಸ್ಪಷ್ಟೀಕರಣ ಕೋರಿದ್ದರ ಮೇರೆಗೆ, ಸದರಿ ವಿಚಾರದಲ್ಲಿ ಬೆಂಗಳೂರು ಜಿಲ್ಲಾ ಧಿಕಾರಿಗಳಿಂದ ಸ್ಪಷ್ಟೀಕರಣ ಕೋರಲಾಗಿತ್ತು, ಮಾನ್ಯ ವಿಶೇಷ ಜಿಲ್ಲಾ ಧಿಕಾರಿಗಳು, ಕ್ರ. ಸಂ. ಆರ್.ಆರ್.ಬಿ (1) ಸಿ. ಆರ್. 464/2001-02, ದಿನಾಂಕ : 12-2-2002 ರಲ್ಲಿ ನಿರ್ದೇಶನ ನೀಡುತ್ತಾ ಪ್ರಕರಣಕ್ಕೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಈಗಾಗಲೇ ತಕರಾರು ಅರ್ಜಿ ಸಲ್ಲಿಕೆಯಾಗಿರುವುದರಿಂದ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ನೋಟಿಸು ನೀಡಿ, ಕೋರ್ಟಿನ ಹಿಂದಿನ ಆದೇಶಗಳನ್ನು ಗಣನೆಗೆ ತೆಗೆದುಕೊಂಡು 1964 ಕ. ಭೂ. ಕಂ. ಕಾಯ್ದೆ ಮತ್ತು 1966 ಕ. ಭೂ. ಕಂ. ನಿಯಮಗಳು ನಿಯಮ 66 ಅಡಿಯಲ್ಲಿ ನಿಯಮಾನುಸಾರ ತೀರ್ಮಾನ ತೆಗೆದುಕೊಳ್ಳುವಂತೆ ಕೇಳಿದ್ದರ ಮೇರೆಗೆ, ಪ್ರಕರಣವನ್ನು ವಿವಾದಾಸ್ಪದ ದಾಖಲಾಡಿಕೊಂಡು ವಾದಿ ಮತ್ತು ಪ್ರತಿ ವಾದಿಗಳಿಗೆ ನಿಯಮಗಳನುಸಾರ ನೋಟಿಸು ಜಾರಿ ಮಾಡಿ ವಿಚಾರಣೆ ನಡೆಸಲಾಯಿತು.

ದಿನಾಂಕ : 17-01-2003 ರಂದು ಪ್ರಕರಣವನ್ನು ವಿಚಾರಣೆಗೆ ಕರೆದಾಗ ವಾದಿ ಮತ್ತು ಪ್ರತಿವಾದಿಗಳು ಹಾಜರಿದ್ದು ಹಾಗೂ ಪ್ರತಿ ವಾದಿ ಪರ ವಕೀಲರು ಹಾಜರಾಗಿ ಲಿಖಿತ ಆಕ್ಷೇಪಣೆಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ದಿನಾಂಕ : 22-02-2003 ರಂದು ಪ್ರಕರಣವನ್ನು ವಿಚಾರಣೆಗೆ ಕರೆದಾಗ ಪ್ರತಿ ವಾದಿ ಹಾಜರು, ವಾದಿ 1, 2, 3 ಮತ್ತು 4 ರ ಪರ ವಕೀಲರು ಹಾಜರಾಗಿದ್ದು, 4ನೇ ವಾದಿ ಲಿಖಿತ ವಾದ ಮಂಡಿಸಿರುತ್ತಾರೆ.

ದಿನಾಂಕ : 19-3-2003 ರಂದು ಪ್ರಕರಣವನ್ನು ವಿಚಾರಣೆಗೆ ಕೈಗೆತ್ತಿಕೊಂಡಾಗ ವಾದಿ, ಪ್ರತಿವಾದಿಪರ ಮು ಮತ್ತು ವಕೀಲರು ಹಾಜರಾಗಿದ್ದು, 1, 2 ಮತ್ತು 3 ರ ಪರ ವಕೀಲರು ಮನವಿಯನ್ನು ಸಲ್ಲಿಸಿ, ದಿನಾಂಕ : 22-2-2003 ರಂದು 4ನೇ ವಾದಿಯು ಸಲ್ಲಿಸಿರುವ ಲಿಖಿತ ವಾದವನ್ನೇ, 1, 2 ಮತ್ತು 3ನೇ ವಾದಿಗಳಿಗೂ ಅನ್ವಯಿಸುವುದರಿಂದ ಸದ

ದಿನಾಂಕ : 5-5-2003 ರಂದು ವಿಚಾರಣೆಗೆ ವಾದಿಗಳು ಮತ್ತು ಉಭಯತ್ರ ಪರ ವಕೀಲರು ಹಾಜರಾಗಿದ್ದು, ಪ್ರತಿ ವಾದಿ ಪರ ಲಿಖಿತ ವಾದವನ್ನು ಮಂಡಿಸಿರುತ್ತಾರೆ.

ಕೊನೆಯದಾಗಿ ಪ್ರಕರಣವನ್ನು ದಿನಾಂಕ : 16-8-2003 ರಂದು ವಿಚಾರಣೆ ಕರೆದಾಗ, ವಾದಿ 1, 2 ಮತ್ತು 3 ರ ಪರ ವಕೀಲರು ಹಾಜರಾಗಿದ್ದು, 4ನೇ ವಾದಿ ಮತ್ತು ವಕೀಲರು ಹಾಜರಿದ್ದು, ಪ್ರತಿ ವಾದಿ ಪರ ಆಪರ ಮಗ ಮತ್ತು ವಕೀಲರು ಹಾಜರಾಗಿದ್ದು, ವಾದಿ 4 ರ ಪರ ವಕೀಲರು ಪಾಕೆ ಮಾಡಿಕೊಡಲು ಕೋರಿರುತ್ತಾರೆ. ಪ್ರತಿ ವಾದಿ ಪರ ವಕೀಲರು ಪ್ರಸ್ತುತ ಸ್ವತ್ತು ಹರಾಜಿನಲ್ಲಿ ಪಡೆದಿರುವುದರಿಂದ ವಿಲೇ ಇಡಲು ಕೋರಿದ್ದು, ವಿಚಾರವನ್ನು ಮುಕ್ತಾಯಗೊಳಿಸಿ, ಆದೇಶಕ್ಕೆ ಕಾದಿರಿಸಲಾಯಿತು.

ಮೇಲ್ಕಂಡ ಪ್ರಕರಣದಲ್ಲಿ ಕಡತದಲ್ಲಿರುವ ದಾಖಲೆಗಳು ವಾದಿಗಳ ಲಿಖಿತ ಹೇಳಿಕೆ ಮತ್ತು ಉಭಯತ್ರರೂ ಸಲ್ಲಿಸಿರುವ ಲಿಖಿತ ವಾದಗಳನ್ನು ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಲಾಯಿತು.

ಜ್ಞಾನಿ ಹೋಬಳಿ, ಸಾತನೂರು ಗ್ರಾಮದ ಶ್ರೀ ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ಬಿನ್ ಮುನಿಸ್ವಾಮಪ್ಪ ಎಂಬುವರು, 1979 ರಂದು ದೇವನಹಳ್ಳಿ ತಾಲ್ಲೂಕು, ಭೂ ನ್ಯಾಯ ಮಂಡಳಿಗೆ ನಮೂನೆ 7 ರಲ್ಲಿ ಗೇಣಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ, ಸಾತನೂರು ಗ್ರಾಮದ ಸ. ನಂ. 4 ರಲ್ಲಿ 1-00 ಎಕರೆ ಮತ್ತು ಸ. ನಂ. 6 ರಲ್ಲಿ 2-08 ಗುಂಟೆ ಜಮೀನುಗಳನ್ನು ಗೇಣಿದಾಸನಾಗಿ ಅನುಭವಿಸುತ್ತಿರುವುದರಿಂದ, ಕ. ಭೂ. ಸು. ಕಾಯ್ದೆ ವಿಧಿ 48 ಎ ಪ್ರಕಾರ ತಮ್ಮನ್ನು ಅಧಿಭೋಗದಾರರನ್ನಾಗಿ ಮಾಡಬೇಕೆಂದು ಕೋರಿದ್ದರ ಮೇರೆಗೆ ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು ಪ್ರಕರಣವನ್ನು ಎಲ್. ಆರ್. ಎಫ್. ಕೆ. ಗೆತ್ತ ಕೊಂಡಾಗ, ಸದರಿ ಗ್ರಾಮದ, ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಸದರಿ ಪ್ರಕರಣದಲ್ಲಿ 2ನೇ ಪ್ರತಿವಾದಿಯಾಗಿ, ತಕರಾರು ಅರ್ಜಿ ಸಲ್ಲಿಸಿ ಮೇಲ್ಕಂಡ ಸ್ವತ್ತುಗಳನ್ನು ತಾಪು ತಾಲ್ಲೂಕು ಪ್ರಾಥಮಿಕ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನವರು ಹರಾಜು ಮಾಡಿದಾಗ, ಹರಾಜಿನಲ್ಲಿ ಪಡೆದು ಅನುಭವಿಸುತ್ತಿರುವುದಾಗಿ ದಾಖಲೆಗಳಾಗಿ ಸದರಿ ಜಮೀನುಗಳ ಆರ್. ಟಿ. ಸಿ. ಪ್ರತಿಗಳನ್ನು ಹಾಜರು ಪಡಿಸಿದ್ದರ ಮೇರೆಗೆ, ಸದರಿ ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು ವಿಚಾರಣೆಯನ್ನು ಮುಂದುವರೆಸಿ, 1ನೇ ಪ್ರತಿವಾದಿ ಭೂ ಮಾಲೀಕರಾದ ಶ್ರೀ ಮುನಿಸ್ವಾಮಪ್ಪ ಉ|| ದೂಮಣ್ಣ ಮತ್ತು 2ನೇ ಪ್ರತಿವಾದಿ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರಿಗೆ ನೋಟೀಸು ನೀಡಲು, 1ನೇ ಪ್ರತಿವಾದಿ ಭೂ ಮಾಲೀಕರು ನಾವತ್ತೆಯಾಗಿದ್ದರಿಂದ ಸಂಮತು ರಾಜಪ್ಪ ನಿರೀಕ್ಷ ಕರನ್ನು ಸದರಿ ಸ್ವತ್ತುಗಳಿಗೆ ರಿಸೀವರ್ ಆಗಿ ನೇಮಿಸಿದ್ದರ ಮೇರೆಗೆ, ನಿರಾಕರಿಸಿದ 2ನೇ ಪ್ರತಿವಾದಿ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಕ್ರ. ಸಂ. 12045/79 ರಿಟ್ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದರ ಮೇರೆಗೆ, ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದವರು ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಳಿಯ ಆದೇಶವನ್ನು ಮಾರ್ಪಾಡು ಮಾಡಿ ಅರ್ಜಿದಾರರು ಸಲ್ಲಿಸಿರುವ ನಮೂನೆ 7 ರ ಬಗ್ಗೆ ತೀರ್ಮಾನವಾಗುವವರೆವಿಗೂ 2ನೇ ಪ್ರತಿವಾದಿ ಹೇಮಣ್ಣ ನವರನ್ನೇ ಮುದ್ದಂತರ ರಿಸೀವರ್ ಆಗಿ ನೇಮಕ ಮಾಡಿ, ಖರ್ಚು ಕಳೆದು ಬೆಲೆಯನ್ನು ಸರ್ಕಾರಕ್ಕೆ ಪಾವತಿಸತಕ್ಕದ್ದೆಂದೂ ಆಗಿಂದಾಗ್ಗೆ ಸದರಿ ವಿಷಯದ ಬಗ್ಗೆ ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರಿಂದ ಅಪ್ಪಣೆಯನ್ನು ಪಡೆಯಬೇಕೆಂದೂ ದಿನಾಂಕ : 6-11-79 ರಲ್ಲಿ ಆದೇಶ ನೀಡಿದ್ದರ ಮೇರೆಗೆ, ಶ್ರೀ ಹೇಮಣ್ಣ ನವರೇ ಸದರಿ ಜಮೀನುಗಳ ಅನುಭವದಲ್ಲಿ ಮುಂದುವರಿದಿದ್ದುದರಿಂದ, ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು ದಿನಾಂಕ : 11-12-80 ರಲ್ಲಿ ವಿಚಾರಣೆಯನ್ನು ಮುಂದುವರಿಸಿದಾಗ 2ನೇ ಪ್ರತಿವಾದಿಯಾದ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಲಿಖಿತ ಹೇಳಿಕೆ ನೀಡಿ ಅರ್ಜಿದಾರರು ಅಧಿಭೋಗದಾರರಿಗೆ ಕೋರಿರುವ ಜಮೀನುಗಳು ತಮ್ಮ ಅನುಭವದಲ್ಲಿರುವುದಾಗಿಯೂ, ಸದರಿ ಜಮೀನುಗಳು 1ನೇ

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ಪ್ರತಿವಾದಿ ಮುನಿಸ್ವಾಮಪ್ಪನವರಿಗೆ ಸೇರಿದವುಗಳೆಂದು ತಾವು ಬಪ್ಪಿರುವುದಾಗಿಯೂ, ಶ್ರೀ ಮುನಿಸ್ವಾಮಪ್ಪನವರು ಅರ್ಜಿದಾರರಿಗೆ ತಂದೆಯಾಗಬೇಕೆಂದೂ, ಸದರಿ ಜಮೀನುಗಳು ವಿಭಾಗದ ಮೂಲಕ ಅರ್ಜಿದಾರರ ತಂದೆಗೆ ಬಂದಿದ್ದವೆಂದೂ ಶ್ರೀ ಮುನಿಸ್ವಾಮಪ್ಪನವರು ತಾಲ್ಲೂಕು ಪ್ರಾಥಮಿಕ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನಲ್ಲಿ, ಮೇಲ್ಕಂಡ ಸ್ವತ್ತುಗಳನ್ನು ಈಡುಮಾಡಿ ಸಾಲ ಪಡೆದು, ಸದರಿ ಸಾಲ ತೀರಿಸಲು ಸಾಧ್ಯವಾಗದೆ ಪ್ರಯುಕ್ತ, ಸದರಿ ಬ್ಯಾಂಕಿನವರು, ಮೇಲ್ಕಂಡ ಸ್ವತ್ತುಗಳನ್ನು ಹರಾಜು ಮಾಡಿದ್ದು, ಹರಾಜಿನಲ್ಲಿ ತಾವು ಸದರಿ ಜಮೀನುಗಳನ್ನು ಪಡೆದಿದ್ದು, ಹರಾಜು ಖಾಯಂ ಆಗಿರುವುದಾಗಿಯೂ ಮತ್ತು ಸದರಿ ಹರಾಜು ದಿನಾಂಕ : 28-12-78 ರ ಹಕ್ಕುಪತ್ರದಲ್ಲಿಯೂ ಸಹ ಪ್ರಕಟವಿರುವುದಾಗಿಯೂ, ಮೇಲ್ಕಂಡ ಸ್ವತ್ತುಗಳು ದಿನಾಂಕ : 20-12-1978 ರಿಂದಲೂ ತಮ್ಮ ಅನುಭವದಲ್ಲಿರುವುದರಿಂದ ಅರ್ಜಿದಾರರ ಕೋರಿಕೆಯನ್ನು ವಜಾಕರಿಸಬೇಕೆಂದು ಕೋರಿರುತ್ತಾರೆ. ಆದರೆ ಅರ್ಜಿದಾರರು ದಿನಾಂಕ : 23-2-1981 ರಲ್ಲಿ ಲಿಖಿತ ಹೇಳಿಕೆ ನೀಡಿಸದ ಸ್ವತ್ತುಗಳು ಜಂಟಿ ಸಂಸಾರದ ಪಿತ್ತಾರ್ಜಿತ ಸ್ವತ್ತುಗಳಾಗಿದ್ದು, ತಮ್ಮ ತಂದೆಗೆ ವಿಭಾಗದ ಮೂಲಕ ಬಂದು, ಪ್ರಕರಣದಲ್ಲಿ 1ನೇ ಪ್ರತಿವಾದಿಯಾದ ಮುನಿಸ್ವಾಮಪ್ಪನವರಿಗೆ ವಯಸ್ಸಾಗಿದ್ದರಿಂದ, ತಮಗೆ ಗುತ್ತಿಗೆಗೆ ನೀಡಿದ್ದರೆಂದೂ, ಸುಮಾರು 20 ವರ್ಷಗಳ ಕಾಲ 1ನೇ ಪ್ರತಿವಾದಿಗೆ ಗೇಣಿದಾರರಾಗಿ ಸದರಿ ಜಮೀನುಗಳನ್ನು ಅನುಭವಿಸುತ್ತಿರುವುದಾಗಿ, 2ನೇ ಪ್ರತಿವಾದಿಯು ಸದರಿ ಜಮೀನುಗಳನ್ನು ಹರಾಜಿನಲ್ಲಿ ಪಡೆದಿರುವುದಕ್ಕೆ ತಾವು ಬದ್ಧರಾಗಿರುವುದಿಲ್ಲವೆಂದೂ, ಸದರಿ ಹರಾಜಿನ ವಿರುದ್ಧ ಕರ್ನಾಟಕ ಮೇಲ್ಮನವಿ ಪ್ರಾಧಿಕಾರದಲ್ಲಿ ಮೊದಲಿನಿಂದಲೂ ಸಿದ್ಧ, ಸದರಿ ಪ್ರಾಧಿಕಾರದ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ 544/79, ದಿನಾಂಕ 11-7-1980 ರಲ್ಲಿ ಸದರಿ ಹರಾಜು ವಜಾ ಆಗಿರುವುದಾಗಿಯೂ ಎಂದು ಭೂ ನ್ಯಾಯಮಂಡಲಿಯವರ ಗಮನಕ್ಕೆ ತಂದಾಗ, ಸದರಿ ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು, ಅರ್ಜಿದಾರರೇ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ಪ್ರಾಧೀನದಲ್ಲಿರುವುದು ಕಂಡು ಬಂದ ಮೇರೆಗೆ ಮತ್ತು ಗೇಣಿ ಜಮೀನನ್ನು ಹರಾಜು ಮಾಡಲು ಪ್ರಾಥಮಿಕ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನವರಿಗೆ ಅಧಿಕಾರವಿರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಸಾತಮಗು ಗ್ರಾಮದ ಸ. ನಂ. 4 ರಲ್ಲಿ 1-00 ಎಕರೆ ಜಮೀನು ಮತ್ತು ಸ. ನಂ. 6 ರಲ್ಲಿ 2-08 ಗುಂಟೆ ಜಮೀನು ಸದರಿ ಜಮೀನನ್ನು ಗೇಣಿದಾರರಾಗಿದ್ದ ಅರ್ಜಿದಾರರು ಶ್ರೀ ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ಬಿನ್ ಮುನಿಸ್ವಾಮಪ್ಪನವರ ಅಧಿಭೋಗರನ್ನಾಗಿ ಪೋಂದಾಯಿಸಲು ಪ್ರಕರಣದ ಸಂಖ್ಯೆ ಎಲ್. ಆರ್. ಎಫ್. 1/79-80 ರ ಪ್ರಕಾರ ದಿನಾಂಕ 13-7-1982 ರಲ್ಲಿ ಆದೇಶ ನೀಡಿರುತ್ತಾರೆ. ಆದರಂತೆ ಅರ್ಜಿದಾರರಿಗೆ ದಿನಾಂಕ : 12-10-1982 ರಲ್ಲಿ ನಮೂನೆ 10 ರಲ್ಲಿ ಹಕ್ಕುಪತ್ರವನ್ನು ನೀಡಿರುತ್ತಾರೆ.

ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯ ದಿನಾಂಕ : 13-7-1982 ರ ಆದೇಶದ ವಿರುದ್ಧ ಶ್ರೀ ಹೇಮಣ್ಣ ಬಿ ಮುನಿವೆಂಕಟಪ್ಪನವರು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಸಂಖ್ಯೆ 25394/92 ರ ಪ್ರಕಾರ ಸಲ್ಲಿಸಿದ್ದ ಸ ಪ್ರಕರಣದಲ್ಲಿ ಶ್ರೀ ಹೇಮಣ್ಣನವರು ನ್ಯಾಯಾಲಯಕ್ಕೆ ಸತತವಾಗಿ ಗೈರುಹಾಜರಾಗಿದ್ದರಿಂದ ದಿನಾಂಕ : 12-7-93 ರಿಟ್ ಅರ್ಜಿ ವಜಾ ಆಗಿರುತ್ತದೆ.

ಪುನಃ ಶ್ರೀ ಹೇಮಣ್ಣನವರು ಸದರಿ ರಿಟ್ ಅರ್ಜಿಯಲ್ಲಿ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದವರು ದಿನಾಂಕ 12-7-1993 ರಂದು ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ 25394/92 ರಲ್ಲಿ ನೀಡಿದ್ದ ಆದೇಶದ ವಿರುದ್ಧ ಸದರಿ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಿ.ಪಿ. ನಂ. 1281/2001 ರಲ್ಲಿ ಮರು ಪರಿಶೀಲನೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಅರ್ಜಿಯನ್ನು

ಈ ಪ್ರಕರಣದಲ್ಲಿ ಪ್ರತಿವಾದಿಯಾದ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ದಿನಾಂಕ : 17-1-2003 ರಂದು ವಿಚಾರಣೆ ಸಮಯದಲ್ಲಿ ಅರ್ಜಿದಾರರ ಲಿಖಿತ ಪೇಳಿಕೆಗೆ ಆಕ್ಷೇಪಣೆ ಸಲ್ಲಿಸಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ತಾವು ಸಲ್ಲಿಸಿದ ರಿಟ್ ಅರ್ಜಿ 25394/92 ಮತ್ತು ಸಿ. ಪಿ. ನಂ. 1281/01 ವಜಾ ಆಗಿದ್ದರೂ ಸಹ ಆರ್. ಪಿ. ನಂ. 41/20002 ವಾಕೆ ಇರುವುದರಿಂದ ಗೇಣಿ ಅರ್ಜಿ ತೀರ್ಮಾನವಾದಂತಾಗುವುದಿಲ್ಲ. ಪ್ರಸ್ತುತ ಜಮೀನುಗಳನ್ನು ತಾವು ಹರಾಜಿನಲ್ಲಿ ಖರೀದಿಸಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ ರಿಸೀವರ್ ಆಗಿ ಅನುಭವಿಸುತ್ತಿರುವುದರಿಂದ, ಅರ್ಜಿದಾರರು ಅವರ ಕೋರಿಕೆಯನ್ನು ವಜಾ ಕರಿಸಬೇಕೆಂದು ಕೋರಿರುತ್ತಾರೆ.

ದಿನಾಂಕ : 22-2-2003 ರಂದು ಎಲ್ಲಾ ಅರ್ಜಿದಾರರ ಪರ 4ನೇ ಅರ್ಜಿದಾರರಾದ ಶ್ರೀ ಮುನಿರಾಜು ಅವರು ಸಲ್ಲಿಸಿರುವ ಲಿಖಿತವಾದವನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ, ದಿನಾಂಕ : 13-7-1982 ರಲ್ಲಿ ಪ್ರಕರಣದ ಸಂಖ್ಯೆ ಎಲ್. ಆರ್. ಎಫ್ 1/79-80 ರ ಪ್ರಕಾರ ದೇವನಹಳ್ಳಿ ತಾಲ್ಲೂಕು, ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು ನೀಡಿರುವ ತೀರ್ಮಾನಂತೆ, ಪಾತನೂರು ಗ್ರಾಮದ ಸ. ನಂ. 4 ರಲ್ಲಿ 1-00 ಎಕರೆ ಮತ್ತು ಸ. ನಂ. 6 ರಲ್ಲಿ 2-08 ಗುಂಟೆ ಜಮೀನುಗಳ ಖಾತೆಯನ್ನು ತಪ್ಪು ಹೆಸರಿಗೆ ಮಾಡಿಕೊಡಲು ಕೋರಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದಾಗಿಯೂ, ದಿನಾಂಕ : 17-01-79 ರಲ್ಲಿ ನಾರಾಯಣಸ್ವಾಮಿಯವರ ತಂದೆಯವರಾದ ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ಅವರು ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳಿಗೆ ಗೇಣಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದರು. ಆದರೆ ವಾಲಿ ಅವರು ದಿನಾಂಕ : 25-9-91 ರಂದು ಪವತಿಯಾಗಿರುತ್ತಾರೆ. ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು ಶ್ರೀ ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ನವರನ್ನು ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳಿಗೆ ಅಧಿಭೋಗದನ್ನಾಗಿ ಮಾಡಿ ತೀರ್ಪು ನೀಡಿರುತ್ತಾರೆ. ಸದರಿ ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯಲ್ಲಿ ಪ್ರಕರಣ ವಾಕೆ ಇರುವಾಗ, ಸಂಮತ ರಾಜಸ್ವ

ವಿತ್ತಿಗೆ ಕರನ್ನು ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳಿಗೆ ಅಭಿಷೇಕ ರಿಸೀವರ್ ಆಗಿ ನೇಮಕ ಮಾಡಿರುತ್ತಾರೆ. ಈ ಆದೇಶದ ವಿರುದ್ಧ ಪ್ರತಿವಾದಿಯಾದ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ದೂನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿದ್ದ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ 12045/79 ದಿನಾಂಕ : 6-11-79 ರಂದು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯ ಆದೇಶವನ್ನು ಮಾರ್ಪಾಡು ಮಾಡಿ, ಪ್ರತಿವಾದಿ ಹೇಮಣ್ಣ ನವರನ್ನು ಮಧ್ಯಂತರ ರಿಸೀವರನ್ನಾಗಿ ನೇಮಿಸಿ ಫಸಲಿನ ಬೆಲೆಯನ್ನು ಪಾವತಿಸಲು ನಿರ್ದೇಶಿಸಿರುತ್ತಾರೆ. ಪ್ರತಿವಾದಿಗಳು ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳನ್ನು ಪ್ರಾಥಮಿಕ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನಿಂದ ಹರಾಜಿನಲ್ಲಿ ಖರೀದಿಸಿರುವುದಾಗಿ ಹೇಳಿರುತ್ತಾರೆ. ಆದರೆ, ಸದರಿ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನವರು ಮಾಡಿದ್ದ ಹರಾಜನ್ನು ಕರ್ನಾಟಕ ಮೇಲ್ಮನೆ ವಿ

ಪ್ರಾಧಿಕಾರದವರು ವಜಾ ಮಾಡಿರುತ್ತಾರೆ. ಪ್ರತಿವಾದಿ ಹೇಮಣ್ಣ ನವರು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿದ್ದ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ 25394/92 ಮತ್ತು ನಂ. ಸಿ. ಪಿ. 1281/2001 ವಜಾ ಆಗಿರುತ್ತದೆ. ಆದರೆ ಹಾಲಿ ಪ್ರತಿವಾದಿಯು ಆರ್. ಪಿ. ನಂ. 41/2002 ಅರ್ಜಿಯನ್ನು ಸಲ್ಲಿಸಿದ್ದು, ವಾಕೆ ಇರುತ್ತದೆ. ಆದರೆ ಇದನ್ನು ಪರಿಗಣಿಸುವಂತಿಲ್ಲ. ಯಾಕೆಂದರೆ ಈ ವಿಚಾರದಲ್ಲಿ ಯಾವುದೇ ನೋಟೀಸ್ ಜಾರಿಯಾಗಿರುವುದಿಲ್ಲ. ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯ ಆದೇಶದಂತೆ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ಅರ್ಜಿದಾರರ ತಂದೆಯವರ ಹೆಸರಿಗೆ ಮಂಜೂರಾಗಿದ್ದು, ತಂದೆಯವರು ಪವತಿಯಾಗಿರುವುದರಿಂದ ಅವರ ಪವತಿ ಸಬೂಬು ಅರ್ಜಿದಾರರುಗಳ ಹೆಸರಿಗೆ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ವಾಖಾಸೆಗಳನ್ನು ನಮೂದಿಸಬೇಕೆಂದು ವಾದಿಸಿರುತ್ತಾರೆ. ದಿನಾಂಕ : 5-5-2003 ರಂದು ವಿಚಾರಣೆ ಸಮಯದಲ್ಲಿ ಪ್ರತಿವಾದಿಯಾದ ಹೇಮಣ್ಣ ನವರು

ಅರ್ಜಿದಾರರ ಲಿಖಿತವಾದಗಳಿಗೆ ಸಲ್ಲಿಸಿರುವ ಲಿಖಿತ ಉತ್ತರಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ, ತಾವು ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದ ಪ್ರಕಾರ ರಿಸೀವರ್ ಆಗಿ ನೇಮಕವಾಗಿ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳನ್ನು ಅನುಭವಿಸುತ್ತಿರುತ್ತೇನೆ. ಸದರಿ ಆದೇಶವನ್ನು ನ್ಯಾಯಾಲಯವು ವಾಪಸ್ ಪಡೆಯುವವರೆವಿಗೂ ಸದರಿ ಜಮೀನುಗಳ ಅನುಭವದಲ್ಲಿ ಮುಂದುವರಿಯಲು

ಪ್ರತಿವಾದಿಗಳು ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳನ್ನು ಪ್ರಾಥಮಿಕ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನಿಂದ ಹರಾಜಿನಲ್ಲಿ ಖರೀದಿಸಿರುವುದಾಗಿ ಹೇಳಿರುತ್ತಾರೆ. ಆದರೆ, ಸದರಿ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನವರು ಮಾಡಿದ್ದ ಹರಾಜನ್ನು ಕರ್ನಾಟಕ ಮೇಲ್ಮನೆ ವಿ ಪ್ರಾಧಿಕಾರದವರು ವಜಾ ಮಾಡಿರುತ್ತಾರೆ. ಪ್ರತಿವಾದಿ ಹೇಮಣ್ಣ ನವರು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿದ್ದ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ 25394/92 ಮತ್ತು ನಂ. ಸಿ. ಪಿ. 1281/2001 ವಜಾ ಆಗಿರುತ್ತದೆ. ಆದರೆ ಹಾಲಿ ಪ್ರತಿವಾದಿಯು ಆರ್. ಪಿ. ನಂ. 41/2002 ಅರ್ಜಿಯನ್ನು ಸಲ್ಲಿಸಿದ್ದು, ವಾಕೆ ಇರುತ್ತದೆ. ಆದರೆ ಇದನ್ನು ಪರಿಗಣಿಸುವಂತಿಲ್ಲ. ಯಾಕೆಂದರೆ ಈ ವಿಚಾರದಲ್ಲಿ ಯಾವುದೇ ನೋಟೀಸ್ ಜಾರಿಯಾಗಿರುವುದಿಲ್ಲ. ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯ ಆದೇಶದಂತೆ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ಅರ್ಜಿದಾರರ ತಂದೆಯವರ ಹೆಸರಿಗೆ ಮಂಜೂರಾಗಿದ್ದು, ತಂದೆಯವರು ಪವತಿಯಾಗಿರುವುದರಿಂದ ಅವರ ಪವತಿ ಸಬೂಬು ಅರ್ಜಿದಾರರುಗಳ ಹೆಸರಿಗೆ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ವಾಖಾಸೆಗಳನ್ನು ನಮೂದಿಸಬೇಕೆಂದು ವಾದಿಸಿರುತ್ತಾರೆ. ದಿನಾಂಕ : 5-5-2003 ರಂದು ವಿಚಾರಣೆ ಸಮಯದಲ್ಲಿ ಪ್ರತಿವಾದಿಯಾದ ಹೇಮಣ್ಣ ನವರು

ಅವಕಾಶವಿರುತ್ತದೆ. ಸದರಿ ಜಮೀನುಗಳನ್ನು ಹರಾಜಿನಲ್ಲಿ ಬಿರೀದಿಸಿ ಅನುಭವಿಸುತ್ತಿರುವುದರಿಂದ ಸದರಿ ಜಮೀನುಗಳನ್ನು ಬಿಡಿಸಲು ಈ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಅಧಿಕಾರವಿರುವುದಿಲ್ಲ. ಗೇಣಿ ಅರ್ಜಿ ಬಗ್ಗೆ ಇದುವರೆವಿಗೂ ಇತ್ಯರ್ಥವಾಗಿರುವುದಿಲ್ಲ. ರಿವಿಜನ್ ವಿಟಪನ್ ನಂ. 41/2002 ಬಾಕಿ ಇರುತ್ತದೆ. ಅರ್ಜಿದಾರರು ತಮ್ಮನ್ನು ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳಿಂದ ಬಿಡಿಸಬೇಕಾದರೆ, ಅರ್ಜಿದಾರರು ಪಿಎಲ್ ನ್ಯಾಯಾಲಯದ ಮೊರೆ ಹೋಗಬೇಕಾಗಿರುತ್ತದೆ. ಆದ್ದರಿಂದ ಅವರ ಅರ್ಜಿಯನ್ನು ವಜಾಕರಿಸಬೇಕೆಂದು ವಾದಿಸಿರುತ್ತಾರೆ. ಆದ್ದರಿಂದ ಈ ಕೆಳಕಂಡಂತೆ ಆದೇಶ ನೀಡಲಾಗಿದೆ.

ಆದೇಶ

ಬೆಂಗಳೂರು ಉತ್ತರ (ಅಪರ) (ಹಿಂದಿನ ದೇವನಹಳ್ಳಿ ತಾಲ್ಲೂಕು) ತಾಲ್ಲೂಕು ಜಾಲ ಹೋಬಳಿ, ಪಾತನೂರು ಗ್ರಾಮದ ಸ. ನಂ. 4 ರಲ್ಲಿ 1-00 ಎಕರೆ ಮತ್ತು ಸ. ನಂ. 6 ರಲ್ಲಿ 2-08 ಗುಂಟೆ ಜಮೀನು, ಅರ್ಜಿದಾರರ ಪಿತ್ರಾರ್ಜಿತ ಆಸ್ತಿಯಾಗಿದ್ದು, ಸದರಿ ಜಮೀನುಗಳು ನೋಂದಣಿಯಾದ ವಿಭಾಗ ಪತ್ರದ ಮೂಲಕ ಅರ್ಜಿದಾರ ತಾತನವರಾದ ಶ್ರೀ

ಮುನಿಸ್ವಾಮಪ್ಪ ಉ|| ದೂಮಣ್ಣ ನವರ ಭಾಗಕ್ಕೆ ಬಂದಿದ್ದು, ಅನುಭವಿಸುತ್ತಿದ್ದು ಸದರಿಯವರಿಗೆ ವಯಸ್ಸಾಗಿದ್ದ ಕಾರಣ ಅವುಗಳನ್ನು ಅವರ ಪ್ಲಾಂಟ್ ಮಗನಾದ ಶ್ರೀ ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ನವರಿಗೆ ವಾರಕ್ಕೆ ಕೊಟ್ಟಿದ್ದು, ಸದರಿ ಮುನಿಯಪ್ಪ ಉ|| ದೂಮಣ್ಣ ನವರು ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿ ನಮೂನೆ 7 ರಲ್ಲಿ ಗೇಣಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದರ ಮೇರೆಗೆ, ಸದೇ ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು ವಿಚಾರಣೆ ಮಾಡುವಾಗ ಸದರಿ ಗೇಣಿ ಅರ್ಜಿ ಬಗ್ಗೆ ತಕರಾರು ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಶ್ರೀ

ಹೇಮಣ್ಣ ನವರ ತಕರಾರು ಅರ್ಜಿಯ ಬಗ್ಗೆ ವಿಚಾರಣೆ ನಡೆಸಿ, ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಸದರಿ ಭೂ ಮಾಲೀಕರಾದ ಶ್ರೀ

ಮುನಿಸ್ವಾಮಪ್ಪ ಬನ್ ದೂಮಣ್ಣ ನವರು ವಂದಿದ್ದು, ಪಾಲದ ಬಾಕಿಗೆ ಹರಾಜು ಮೂಲಕ ಬಿರೀದಿ

ಅನುಭವಿಸುತ್ತಿದ್ದು ದರಿಂದ ಸದರಿ ಜಮೀನುಗಳಿಗೆ ಸಂಮತ ರಾಜಪ್ಪ ನಿರೀಕ್ಷಕರನ್ನು ರಿಸೀವರ್‌ನಾಗಿ ನೇಮಿಸಿದ್ದು

ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಸದರಿ ಆದೇಶದ ವಿರುದ್ಧ ಸರ್ಕಾರಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿದ್ದ ರಿಟ್ ಅರ್ಜಿ

ಆದೇಶದಂತೆ ಸದರಿ ಹೇಮಣ್ಣ ನವರನ್ನೇ ಮಧ್ಯಂತರ ರಿಸೀವರ್‌ನಾಗಿ ನೇಮಿಸಿ ಸದರಿ ಜಮೀನುಗಳ ಭಸಲಿನ ಚಲೆಯ

ಪ್ರತಿ ಸಾರಿಯೂ ತಪ್ಪದೇ ಸರ್ಕಾರಕ್ಕೆ ಪಾವತಿಸುವಂತೆ ಆದೇಶ ನೀಡಲಾಗಿತ್ತು. ಆದರೆ ಸದರಿ ರಿಟ್ ಅರ್ಜಿಯು,

ಹೇಮಣ್ಣ ನವರ ಗೈರು ಹಾಜರಿಯಿಂದ ವಜಾ ಆಗಿರುತ್ತದೆ. ತದನಂತರ ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿಯನ್ನು ಸಹ ಮ

ಉಚ್ಚ ನ್ಯಾಯಾಲಯದವರು ವಜಾ ಮಾಡಿರುತ್ತಾರೆ. ಸದರಿ ಜಮೀನುಗಳಿಗೆ ರಿಸೀವರ್ ಆಗಿ ನೇಮಕಗೊಂಡಿದ್ದ ರಾ

ನೀರಿಕ್ಷಕರು ದಿನಾಂಕ : 2-1-2002 ರಲ್ಲಿ ವರದಿ ಸಲ್ಲಿಸಿರುವಂತೆ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು, ಸದರಿ ಜಮೀನುಗಳ

ಬಾಬು ಬೆಲೆಯ ಹಣವನ್ನು ಸರ್ಕಾರಕ್ಕೆ ಪಾವತಿಸಿರುವ ಬಗ್ಗೆ ಯಾವುದೇ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲ

ವರದಿ ಮಾಡಿರುತ್ತಾರೆ. ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಹಾಲಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಆರ್.ಪಿ. 41/2002

ಇರುವುದಾಗಿ ಹೇಳಿರುವ ಬಗ್ಗೆ ಅರ್ಜಿದಾರರಿಗೆ ಸದರಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಯಾವುದೇ ನೋಟ

ಜಾರಿಯಾಗಿರುವುದಿಲ್ಲ ಎಂದು ಹೇಳಿರುತ್ತಾರೆ. ತಾಲ್ಲೂಕು ಭೂ ನ್ಯಾಯ ಮಂಡಲಿಯವರು, ಮೇಲ್ಕಂಡ ಜಮೀನು

ಗೇಣಿದಾರರಿಗೆ ಮಂಜೂರು ಮಾಡುವಾಗ, ಸದರಿ ಜಮೀನುಗಳನ್ನು ಪ್ರಾಥಮಿಕ ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನ

ಜಮೀನುದಾರರು ಮಾಡಿದ್ದ ಪಾಲಕ್ಕಾಗಿ ಹರಾಜುಮಾಡಿರುವುದು ಕಾನೂನು ಬಾಹೀರವಾದುದೆಂದು ಪರಿ

ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳನ್ನು ಗೇಣಿದಾರರಿಗೆ ಅಧಿಭೋಗವನ್ನಾಗಿ ನೋಂದಾಯಿಸಲು ಆದೇಶ ನೀಡಿರುತ್ತಾರೆ. ತಾಲ್ಲೂಕು ಭೂ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕಿನವರು ಮಾಡಿದ್ದ ಹಲಾಖೆ. ಎ. ಬಿ. ಆದೇಶದಂತೆ ವಹಾ ಆಗಿದ್ದು, ಸದರಿ ಹಲಾಖೆ ಬಗ್ಗೆ ಮುಂದಿನ ವಿಚಾರಣೆಗಾಗಿ ಸಹಕಾರ ಸಂಘಗಳ ಉಪ ನಿರ್ದೇಶಕರಿಗೆ ಹಿಂದಿರುಗಿಸಿರುತ್ತಾರೆ. ಸದರಿ ಪ್ರಕರಣವು ಸಹಕಾರ ಸಂಘಗಳ ಉಪನಿರ್ದೇಶಕರಲ್ಲಿ ದಿನಾಂಕ: 11-7-80 ರಿಂದ ವಾಕೆ ಇರುತ್ತದೆ. ಈ ಬಗ್ಗೆ ಯಾವುದೇ ಆದೇಶವನ್ನು ಪ್ರತಿವಾದಿಯು ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲ. ಹಾಲಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಶ್ರೀ ಹೇಮಣ್ಣ ನವರು ಸಲ್ಲಿಸಿರುವ ಆರ್.ಒ. 42/2002 ದಿನಾಂಕ: 15-01-2002 ರಿಂದ ವಾಕೆ ಇರುತ್ತದೆ. ಈ ಬಗ್ಗೆಯಲ್ಲಿ ತಮಗೆ ಯಾವುದೇ ತಿಳುವಳಿಕೆ ಪತ್ರ ಬಂದಿರುವುದಿಲ್ಲವೆಂದು ಅರ್ಜಿದಾರರು ವಾದಿಸಿರುತ್ತಾರೆ. ಆದ್ದರಿಂದ ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ಬಗ್ಗೆ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ವಾಕೆ ಇರುವ ಆರ್.ಒ. 42/2002 ರ ಆದೇಶವನ್ನು ಒಳಪಡಿಸಿ, ಮೇಲ್ಕಂಡ ಜಮೀನುಗಳ ಖಾತೆಯಲ್ಲಿ ಮೂಲ ಖಾತೆದಾರರ ಪವತಿ ಸಮೂಹ ಅಪರ ಇತರೆ ವಾರಸುದಾರರು ನೀಡಿರುವ ಹೇಳಿಕೆಯಂತೆ ಅರ್ಜಿದಾರರಾದ ಶ್ರೀ ನಾರಾಯಣಸ್ವಾಮಿ ಬಿನ್ ಮುನಿಯಪ್ಪ ಉ|| ವಮಣ್ಣ ನವರ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡಲು ಆದೇಶ ನೀಡಿದೆ.

ಈ ಆದೇಶವನ್ನು ಶೀಘ್ರ ಲಿಖಿತರಾಗಿ ಉತ್ತರೇಖಿಸಿ ನೀಡಿ, ಬೆರಳಚ್ಚು ಮಾಡಿಸಿ, ಓದಿ ತಿದ್ದಿ ದಿನಾಂಕ : 15-11-2003 ರಂದು ಮುಕ್ತ ನ್ಯಾಯಾಲಯ ಘೋಷಿಸಲಾಯಿತು.



ತಹಶೀಲ್ದಾರ್,

ಬೆಂಗಳೂರು ಉತ್ತರ (ಆಪರ) ತಾಲ್ಲೂಕು
ಯಲಹಂಕ ಉಪನಗರ.

ಯು.ಎ. ಸಿ.ಎ.ಎ.ಎ.ಎ.

ತಹಶೀಲ್ದಾರ್, 15/11/03

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು (ಆಪರ)

ಯಲಹಂಕ, ಬೆಂಗಳೂರು

ಸಿ.ಎ.

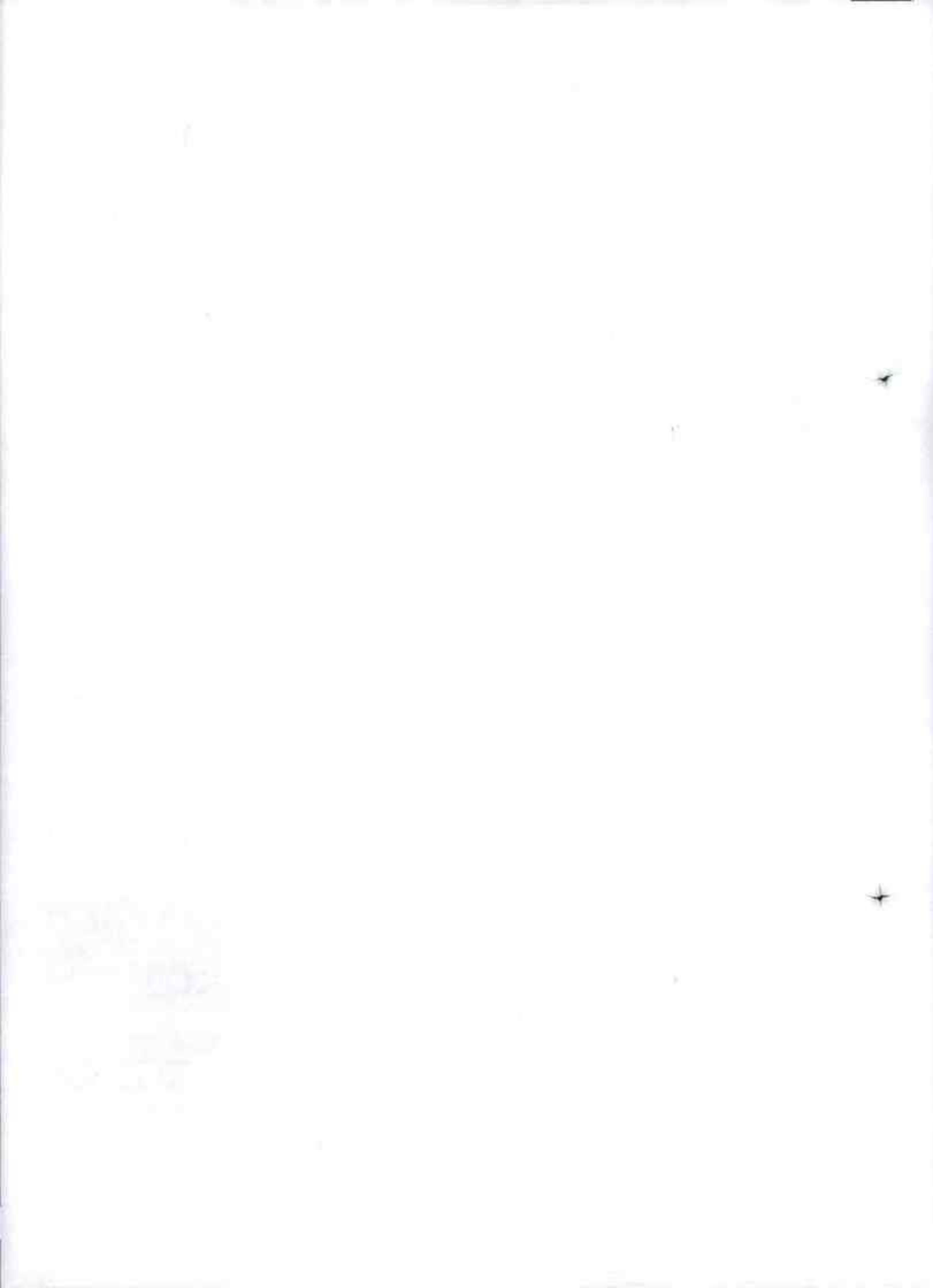
ಅರ್ಜಿದಾರನ ಹೆಸರು N. 1907/03

ಅರ್ಜಿ ಕೊಟ್ಟ ದಿನಾಂಕ 1.1.2004

ಕಯಾರಿಸಿದ ದಿನಾಂಕ 17.1.2004

ಕಯಾರಿಸಿದವರ ಹೆಸರು H. P. S.

ಮೊಖಬಲ ಮಾಡಿದವರ ಹೆಸರು N. 1907/03



TRANSLATED COPY OF ANNEXURE-D

BEFORE THE TAHSILDAR, BANGALORE NORTH
(ADDL) TALUK, YALAHANKA SATELLITE TOWN

Case No.RRT(DIS).37/2001-02

<u>Petitioners</u>	<u>V/s</u>	<u>Respondents</u>
1) Muniraju S/o Pillegowda 2) Channappa S/o Late Munishamaiah 3) Avalappa S/o Late Munishamaiah 4) Narayanaswamy S/o Late Muniyappa @ Doomanna All are residing at Sathanur Village, Jala Hobli, Bangalore North Taluk		Sri Hemanna S/o Late Munivenkatappa Sathanur Village, Jala Hobli, Bangalore North Taluk

Sub: Dispute in respect of the land bearing Sy.No.
4 and 6 of Sathanur Village, Jala Hobli,
Bangalore North (Addl) Taluk-reg.

BRIEF FACTS OF THE CASE:

One Narayanaswamy S/o Late Muniyappa @ Doomanna, Sathanur Village, Jala Hobli, Bangalore North Taluk (Additional) has filed the application before the Tahsildar on 2.7.2001 stating that, the Taluk Land Tribunal granted Occupancy Right in favour of his father in respect of the land bearing Sy.No.4 measuring 1.00 acre and Sy.No.6 measuring 2.08 acres of Sathanur Village, in LRF.1/79-80, and since his father died hence requested to transfer the Katha of the said lands in his favour, on that basis the said application has been forwarded to Hobli Revenue Inspector and directed to take appropriate action in respect of transfer of Katha, the said Revenue Inspector

published Form-21A in connection with transfer of Katha in accordance with Rules, other legal heirs have also expressed their consent that the Katha of the said lands may be transferred in favour of the applicant Sri Narayanaswamy. But, one Hemanna S/o Late Munivenkqatappa of the said Village filed objection before the Tahsildar on 19.12.2001, contending that the Primary Land Development, Devanahalli Taluk auctioned the aforesaid land on 28.12.1978 and he has purchased the said lands through auction and he is in possession of the said after got transferring Katha and RTC into his name and on the basis of the Writ Petition filed before the High Court of Karnataka against the Order dated 13.7.82 passed by granting occupancy rights in favour of Muniyappa @ Doomanna by Taluk Land Tribunal in respect of the aforesaid lands, he was appointed as Receiver, and hence requested that accordingly the Katha and RTC of the said lands are to be continued in his name only, and no change has to be made whatsoever and the same was forwarded to Hobli Revenue Inspector on 20-12-2001 directing him to submit the report, the said Revenue Inspector has submitted the Report on 02.01.2002 stating that the aforesaid lands have come as per the appointment of the Official Receiver as per the Order of the High Court of Karnataka, accordingly, the crop of 2000-01 has come to harvest, and derived the income of Rs.1020/- after deducting the expenditure, and Sri Hemanna, who was appointed as Receiver has not produced any documents for having paid the said amount and also the earlier auction amount, and

the cases were held to the said Hemanna and Sri.Muniyappa and others in C.P No.1281/2001 and WP No.25394/92 and since the said Hemanna was not appeared in the said cases, his petitioners were dismissed and hence in connection with considering the application of Sri Narayanaswamy requesting to transfer the Katha of the aforesaid lands, clarification has been sought for, accordingly, clarification is sought in connection with said matter from Deputy Commissioner, Bangalore, the Hon'ble Special Deputy Commissioner, has passed an order in RRT (1) CR.464/2001-02 dated 12.2.2002 directed that since objection has already been filed in connection with the case hence issue notices to both the parties and by taking into consideration of earlier orders of the Court and take decision under K.L.R Act 1964 and Rule 66 of K.L.R.Rules, 1966, accordingly the case has been registered as dispute and enquiry has been conducted after issuing notices to the Petitioners and respondent in accordance with the Rules.

When the hearing of the case called on 17.01.2003, the petitioners and respondent were present and Advocate for Respondent present and filed written objections.

When the hearing of the case called on 22.02.2003, the respondent present, Advocate for Petitioners No.1,2,3 and 4 present and filed the Written Arguments of the 4th Petitioner.

When the hearing of the case was taken up on 19.3.2003, the petitioner, son of the respondent and Advocate were present, Advocate of petitioner No.1,2,3

filed memo stating the Petitioners No.1,2,3 have adopted the written arguments filed by the Petitioner No.4.

The Petitioners and Advocates for both the parties were present for the hearing on 5.5.2003 and filed the written arguments on behalf of the Respondent.

Finally, when the case was called for hearing on 16.8.2003, Advocate for Petitioners No.1,2,3 present and Petitioner No.4 and his Advocate present, Son of the Respondent and Advocate were present, Advocate for 4th Petitioner requested to mutate the Katha. The Advocate for respondent prayed that as the property in question has been purchased under auction, to keep in abeyance and after completion of the hearing, the case is reserved for orders.

In the above case, the documents on record, written statement of the petitioners and the written arguments filed by both the parties have been perused in detail.

One Sri Muniyappa @ Doomanna S/o Muniswamappa, Sathanur Village, Jala Hobli, has filed the tenancy application under Form-7 on 01.7.1979 before the Land Tribunal, Devanahalli Taluk, stating that he is enjoying the land bearing Sy.No.4 measuring 1.00 acre and Sy.No.6 measuring 2.08 guntas of Sathanur Village, as Tenant hence request to declare him as Occupant under Sec.48A of the K.L.Reforms Act, the Taluk Land Tribunal after registering the case as per LRF.1/79-80 and when the application of Sri Muniyappa @ Doomanna for hearing, one Sri Hemanna of the said Village, filed objection as 2nd Respondent in the said case, contending the when the aforesaid properties were auction by the Taluk Primary

Land Development Bank, he has purchased the same in the auction and is enjoying and produced the Copies of RTC pertaining to the said lands, accordingly the said Taluk Land Tribunal continued the hearing, issued the notice to the 1st respondent/land owner Sri.Muniswamappa @ Doomanna and 2nd Respondent: Sri Hemanna, because of the disappearance of the 1st respondent/land owner hence appointed the Hobli Revenue Inspector as receiver for the said properties, the 2nd respondent Sri Hemanna being aggrieved filed the W.P No.12045/79 before the High Court of Karnataka, the Hon'ble High Court has passed by the Order on 6.11.79 by modifying the order of the Taluk Land Tribunal, and by appointing the 2nd respondent Hemanna as Interim Receiver and directed to pay the value of the crop after deducting the expenses to the Government and permission has to be obtained from the Taluk Land Tribunal from time to time, accordingly, Sri Hemanna is continued to be in enjoyment of the said lands hence when the Taluk Land Tribunal continued the hearing on 11.12.80, 2nd Respondent Sri Hemanna has filed written statement, contending that he is in enjoyment of the lands for which the petitioners sought for occupancy rights, he will admit that the said lands were belonging to the 1st respondent Muniswamappa, Sri Muniswamappa is the father of the petitioners, the father of petitioners got the said lands through partition, Sri Muniswamappa availed the loan by hypothecating the aforesaid lands with Taluk Primary Land Development Bank, since it was not possible for him to discharge the said loan, the said Bank auctioned the

aforesaid properties, he has purchased the said lands in auction, and the auction has been confirmed and the said auction has also been published in the Gazette on 28.12.78, since the aforesaid properties are in his enjoyment right from 20.12.1978 hence prayed to reject the prayer of the applicant. But, the applicant has filed written statement on 23.2.1981 stating that the said properties are the joint family ancestral properties, the same has fallen to the share of his father through partition, since Muniswamappa, the 1st respondent of the case is aged, he has given the same to him on Lease and he is enjoying the said lands since last 20 years as tenant under the 1st respondent, he is not binding for having purchased the said lands by the 2nd respondent in auction, he has filed an appeal against the said auction before the Karnataka Appellate Authority and the said auction has been set aside by the order of the said Authority in Appeal No.544/79 dated 11.7.1980 and when the said fact has been brought to the notice of the Land Tribunal, the said Land Tribunal has found that the applicant himself is in possession of the aforesaid lands, and since Primary Land Development Bank has no rights to auction the tenanted land hence passed an order on 13.7.1982 in Case No.L.R.F.1/79-80 by registering the Applicant Sri Muniyappa @ Doomanna S/o Muniswamappa, as an occupant who was the tenant of the Land bearing Sy.No.4 measuring 1.00 acre and Sy.No.6 measuring 2.08 guntas of Sathanur Village. Accordingly, Hakkupatra in Form 10 has been issued to the applicant on 12.10.1982.

Sri. Hemanna S/o Munivenkatappa has filed the Writ

Petition No.25394/92 against the order dated 13.7.1982 passed by the Land Tribunal before the High Court of Karnataka, since Sri Hemanna continuously remained absent in the case, the said writ petition came to be dismissed on 12.7.93.

As against the order dated 12.7.1993 passed by the Hon'ble High court in W.P No.25394/92, he once again filed C.P.No.1281/2001 before the said Court and the same was came to be dismissed on _____.

Sri Hemanna, respondent in this case has filed objections to the written statement of the petitioners during the course of hearing on 17.1.2003 contending that, even though W.P.No.25394/92 and C.P.No.1281/01 were dismissed, R.P.No.41/2002 is pending hence tenancy application will not be decided. As the lands in question were purchased by him in the auction and enjoying as Receiver as per the Order of the High Court, hence prayed to reject the prayer of the petitioners.

While perusing the Written Arguments filed by the 4th Petitioner Sri Muniraju on behalf of all the petitioners on 22.2.2003, as per the Order dated 13.7.1982 by the Land Tribunal, Devanahalli Taluk in Case No.LRF.1/79-80, the application has been filed requesting to transfer the Katha of the land bearing Sy.No.4 measuring 1.00 acre and Sy.No.6 measuring 2.08 guntas of Sathanur Village in favour of them, on 17.01.79, Muniyappa @ Doomanna, father of Narayanaswamy has filed tenancy application for the aforesaid lands. But, at present he died on 25.9.91. The Taluk Land Tribunal passed as order registering Sri

Muniyappa @ Doomanna as occupant of the aforesaid lands. When the case was pending before the said Land Tribunal, appointed Hobli Revenue Inspector as Official Receiver of the aforesaid lands. As against the said order, the respondent Sri Hemanna has filed W.P.No.12045/79 before the Hon'ble High Court of Karnataka, wherein the Hon'ble Court passed an order by modifying the order dated 6.11.79 passed by the Land Tribunal and appointed the respondent Hemanna as Interim Receiver and directed to pay the value of the yield. The respondent has stated that he has purchased the aforesaid lands in auction conducted by the Primary Land Development. But, the Karnataka Appellate Authority set aside the auction conducted by the said Land Development Bank. The W.P.No.25394/92 and C.P No.1281/2001 filed by the respondent Hemanna before the High Court of Karnataka were came to be dismissed. But at present the respondent has filed R.P.No.41/2002 is pending. But the same cannot be considered, because no notice whatsoever has been served in the matter. As per the Order of the Land Tribunal, the aforesaid lands were granted in favour of the father of the petitioners, since the father since deceased, hence argued that the records of the aforesaid land should be transferred in favour of the petitioners by way of inheritance. During the course of hearing on 5.5.2003, while perusing the written answers submitted by the respondent Hemanna to the written arguments of the petitioners, he has stated that as per the order of the High Court he was appointed as Receiver and enjoying the

aforesaid lands. There is a provision for him to continue in enjoyment of the said lands, till the court will withdraw the said order, since he has purchased the said lands in auction and enjoying the same, this Authority has no power to release the said lands. Till date, the tenancy application is not yet disposed. Revision Petition No.41/2002 is pending. In case if the petitioners wanted to release him from the aforesaid lands, the petitioners have to approach the Civil Court. Therefore, argued that the petition filed by them is liable to be dismissed. Therefore, the following order is passed.

ORDER

The land bearing Sy.No.4 measuring 1.00 acre and Sy.No.6 measuring 2.08 guntas of Sathanur Village, Jala Hobli, Bangalore North (Additional) (the then Devanahalli Taluk) Taluk is the ancestral property of the petitioners, the said lands were fallen to the share of Sri Muniswamappa @ Doomanna, grand father of the petitioners through registered Partition Deed and he was enjoying the same, since he was aged he has given the said lands to his own son Sri Muniyappa @ Doomanna on Wara basis, on the basis of the Application under Form-7 filed by the said Muniyappa @ Doomanna before the Taluk Land Tribunal, the said Land Tribunal after conducting enquiry in respect of the Objection filed by Sri Hamanna in respect of the said tenancy application, since Sri Hemanna purchased the said lands through Auction for loan raised the said land owner Sri Muniswamappa @ Doomanna and was enjoying the same, appointed Hobli Revenue Inspector as Receiver for

the said lands, as per the Order passed by the High Court of Karnataka in Writ Petition filed by Sri Hemanna against the said order, the Hon'ble court appointed the said Hemanna as Interim Receiver and directed to pay the value of the yield of the said lands every year to the Government. But, the said writ petition came to be dismissed due to absence of Hemanna. Thereafter, High Court also dismissed Revision Petition. The Revenue Inspector who was appointed as Receiver for the said land submit the report on 2.1.2002, stating that Sri Hemanna has not produced any documents for having paid the amount of the said lands to the Government. No notice whatsoever is served on the petitioners by the High Court in RP.41/2002 filed by Sri Hemanna. While granting the aforesaid lands to the tenants by the Taluk Land Tribunal, by considering that auction conducted in respect of the said lands by the Primary Land Development Bank for loan raised by the land owner is illegal and directed to register the tenants as Occupants of the aforesaid lands. As per the Order of K.A.T the auction conducted by the Taluk Land Development Bank has been set aside, and remanded the case back to the Deputy Director of Co-operative Societies for further enquiry in respect of the said auction. The said case is pending since 11.7.80 before the Deputy Director of Co-operative Societies. The respondent has not produced any order to that effect. At present, R.P.No.42/2002 filed by Sri Hemanna before the High Court is pending since 15.01.2002. The petitioners have argued that they have not received any notice to that effect. Therefore, as per the

statement given by other legal heirs, it is directed to mutate the Katha in respect of the aforesaid lands in the name of the Petitioner Sri Narayanaswamy S/o Muniyappa @ Doomanna by way of Inheritance subject to the final order that may be passed in R.P.42/2002 pending before the High Court.

This Order has been dictated to the Stenographer, after typing, read, corrected and pronounced in the Open Court on 15.11.2003.

Sd/-
Tahsildar,
Bangalore North (Additional) Taluk
Yalahanka Satellite Town

//TRUE COPY//

TRANSLATED COPY OF ANNEXURE-E

RECORD OF RIGHTS, TENANCY AND PAHANI PATRIKE, (R.T.C.) - FORM NO.16

Print Page No 1

Village Form 2

Village Account Form No.2

Taluk Seal

TALUK: BANGALORE NORTH(ADDL)

HOBLI JALA-2

Village: SATHANUR

Page No. 99 03/11/2004 17:56:00 to 25/04/2007 15:39:

1. Survey No. 6	3. Khethwar Total Extent Phut Kharab (a) Phut Kharab (b) Balance	Acre Guntas H 2.08.00.00 2.08.00.00	4. Assessment a) Land Revenue b) Jodi c) Cesses d) Water Tax	Rs. P.s. 11.42 Total 11.42	9. Name of the owner of Khathjedur with Father's name Narayanaswamy S/o Muniyappa @ Doornanna	10. Nature of Possession MR.19/2003-2004 01/06/2004	11. Other rights and liabilities Rights Liabilities		
2. Hissa :									
5. Type of Soil Black	7. No. of Trees Name No.	8. Irrigation as per Khathewar S. No. Source Monsoon Pre Monsoon Gardens Total							
6. Patta GOVT		Rain	2.8.0.0						
12. Cultivation and Tenancy details									
Year and Season 1	Cultivators name and residence 2	Mode of Cultivation 3	Tenancy Detail Extent 4 A.G Lease 5 Class 6 Land Utilisation Dry, Irrigated, Garden 8		Name of Crop 9	Crop Area Pare 10 Mixed 11 Total 12	Source of Irrigation 13	Production per Acre 14	Total of Mixed Crops Name of Mixture 15 Extent 16 A.G
2004-2005 Monsoon	M.Munegowda Hemanna Narayanaswamy	Self Self Self			Paddy	2.8.0.0			
Extent in Acres and Guntas					SD/- Village Accountant Computerised RTC Disbursement Centre, Bangalore North (Addl) Taluk Yalahanka, Bangalore				

Receipt No.603121 dated 24/05/2014 00:00 Amount Rs.10.00

//TRUE COPY//

TRANSLATED COPY OF ANNEXURE-EI

84

RECORD OF RIGHTS, TENANCY AND PAHANI PATRIKE, (R.T.C.) - FORM NO.16

Print Page No.1

Village Form 2

Village Account Form No.2

Taluk Seal TALUK: BANGALORE NORTH(ADDL)

HOBLI-JALA-2

Village: SATHANUR

Page No. 99 03/11/2004 17:56:00 to 25/04/2007 15:39

1. Survey No.	3. Khethwar	Acre Guntas II	4. Assessment	Rs. Pk.	9 Name of the owner of Khajedar with Father's name	Extent A G	Katha No.	10. Nature of Possession	11. Other rights and liabilities
6	Total Extent Phut Kharab (a) Phut Kharab (b) Balance	2.08.00.00 2.08.00.00	a) Land Revenue b) Jodi c) Cesses d) Water Tax	11.42 Total 11.42	Narayanawamy S/o Muniyappa @ Doomanna	2.08.00.00		MR.19/2003-2004 01/06/2004	
2. Hissa :									
5. Type of Soil	7. No. of Trees	8. Irrigation as per Khathwar							
Black	Name No.	S. No. Source	Monsoon	Pre Monsoon	Gardens	Total			
		Rain	2.8.0.0			2.8.0			
6. Patta GOVT									
12. Cultivation and Tenancy details									
Year and Season	Cultivators name and residence	Mode of Cultivation	Tenancy Detail			Dry, Irrigated, Garden	Name of Crop	Crop Area	
1	2	3	Extent 4 A. G	Lease 5	Class 6	Extent 7 A. G	9	Pure 10	Mixed 11
2005-2006 Monsoon	M.Munegowda Hemanna Narayanawamy	Self Self Self			1	2.8.0.0	Wet 8	2.8.0.0	2.8.0.0
13. Land utilization and agriculture statistics									
			Land Utilisation		Source of Irrigation		Produce per Acre		Total of Mixed Crops
			Extent 4 A. G	Lease 5	Class 6	Extent 7 A. G	9	14	Name of Mixture 15
						2.8.0.0	Wet 8	2.8.0.0	15
									16 A. G
SD/-									
Village Accountant									
Computerised RTC Disbursement									
Centre,									
Bangalore North (Addl) Taluk									
Yalahanka, Bangalore									

Extent in Acres and Guntas

Receipt No.603121 dated 24/05/2014 00 00 Amount Rs.10.00

//TRUE COPY//

TRANSLATED COPY OF ANNEXURE-E2

RECORD OF RIGHTS, TENANCY AND PAHANI PATRIKE, (R.T.C.) - FORM NO.16

Print Page No.1

Village Form 2

Village Account Form No.2

Taluk Seal TALUK: BANGALORE NORTH(ADDL)

HOBLI: JALA-2

Village: SATHANUR

Page No. 99 03/11/2004 17:56:00 to 25/04/2007 15:39

1. Survey No.	3. Khetthwar	Acre Gania H	4. Assessment	Rs.	Ps.	9. Name of the owner of Khabjeddar with Father's name	10. Nature of Possession	11. Other rights and liabilities			
6	Total Extent Phut Kharab (a) Phut Kharab (b) Balance	2.08.00.00 2.08.00.00	a) Land Revenue b) Jodi c) Cesses d) Water Tax	11.42		Narayanaswamy S/o Muniyappa @ Doomanna	MR.19/2003- 2004 01/06/2004				
2. Hissa :			Total	11.42							
5. Type of Soil	7. No. of Trees	8. Irrigation as per Khatbhar									
Black	Name No.	S. No. Source	Monsoon	Pre Monsoon	Gardens	Total					
		Rain	2.8.0.0			2.8.0					
6. Patta											
GOVT											
12. Cultivation and Tenancy details											
Year and Season	Cultivators name and residence	Mode of Cultivation	Tenancy Detail			Dry, Irrigated, Garden	Name of Crop	Source of Irrigation	Produce per Acre	Total of Mixed Crops	
1	2	3	Extent	Lease	Class	Extent	9	13	14	Name of Mixture	Extent
2006-2007 Monsoon	M.Munegowda Hemanna Narayanaswamy	Self Self Self	4 A.G	5	6	7 A.G	Paddy	13	14	15	16 A.G
					1	2.8.0.0	Wet	2.8.0.0			
SD/-											
Village Accountant											
Computerised RTC Disbursement											
Centre,											
Bangalore North (Addl) Taluk											
Yalahanka, Bangalore											

Extent in Acres and Guntas Receipt No.594916 dated 16/05/2013 00 00 Amount Rs.10.00

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TRANSLATED COPY OF ANNEXURE-F

88

RECORD OF RIGHTS, TENANCY AND PAHANI PATRIKE, (R.T.C.) - FORM NO.16

Print Page No.1

Village Form 2

Village Account Form No.2

Taluk Seal TALUK: BANGALORE NORTH(ADDL)

HOBLI-JALA-2

Village: SATHANUR

Page No. 99 06/05/2004 13:39:00 to 03/11/2004 17:56

1. Survey No.	3. Khelwar	Acre Ganta H	4. Assessment	Rs.	Ps.	9. Name of the owner of Khajedar with Father's name	10. Nature of Possession	11. Other rights and liabilities
6	Total Extent Phut Kharab (a) Phut Kharab (b) Balance	2.08.00.00 2.08.00.00	a) Land Revenue b) Jodi c) Cesses d) Water Tax	11.42		Narayanaswamy S/o Muniyappa @ Doomanna	MR.19/2003- 2004 01/06/2004	
2. Hissa :			Total	11.42				
5. Type of Soil	7. No. of Trees	8. Irrigation as per Khathewar						
Black	Name No.	S. No.	Source	Monsoon	Pre Monsoon	Gardens	Total	
				2.8.0.0			2.8.0	
6. Patta GOVT								
12. Cultivation and Tenancy details								
Year and Season	Cultivators name and residence	Mode of Cultiva tion	Tenancy Detail			Dry, Irrigated, Garden	Name of Crop	Source of Irrigati on
1	2	3	Extent	Lease	Class	Extent	9	13
2003-2004 Monsoon	M.Munegowda Hemanna Narayanaswamy	Self Self Self	4 A.G	5	6	7 A.G	Paddy	14
					1	2.8.0.0	2.8.0.0	15
								16 A.G
SD/- Village Accountant Computerised RTC Disbursement Centre, Bangalore North (Addl) Taluk Yalahanka, Bangalore								

Extent in Acres and Guntas

Receipt No.603121 dated 24/05/2014 00 00 Amount Rs.10.00

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TRANSLATED COPY OF ANNEXURE-F1

RECORD OF RIGHTS, TENANCY AND PAHANI PATRIKE, (R.T.C.) - FORM NO.16

Print Page No.1

Village Form 2

Village Account Form No.2

Taluk Seal

TALUK: BANGALORE NORTH(ADDL)

HOBBI JALA-2

Village: SATHANUR

Page No. 99 03/11/2004 17:56:00 to 25/04/2007 15:39;

1. Survey No. 4	3. Khethwar Total Extent Phut Kharab (a) Phut Kharab (b) Balance	Acre Gunta H 3.22.00.00 0.01.00.00 3.21.00.00	4. Assessment a) Land Revenue b) Jodi c) Cesses d) Water Tax	Rs. Ps. 17.35	9. Name of the owner of Khajedar with Father's name *Muniyappa *M.Munegowda S/o Late Munivenkatappa *Hemanna S/o Late Munivenkatappa *Narayanawamy S/o Muniyappa @ Doornanna	10. Nature of Possession LRF 4/79-80 MR.3/2002-03 Partition 26/11/2002 MR.3/2002-03 Partition 26/11/2002 MR.19/2003-2004-01/05/2004	11. Other rights and liabilities Rights Liabilities
2. Hissa :			Total	17.35			
5. Type of Soil Black	7. No. of Trees Name No.	8. Irrigation as per Khathewar S. No. Source Monsoon Pre Monsoon Total Rain 3.21.0.0					
6. Patta GOVT							

13. Land utilization and agriculture statistics															
Year and Season 1	Cultivators name and residence 2	Mode of Cultivation 3	Tenancy Detail				Dry, Irrigated, Garden 8	Name of Crop 9	Crop Area		Source of Irrigation 13	Production per Acre 14	Total of Mixed Crops		
			Extent 4 A.G	Lease 5	Chas 6	Extent 7 A.G			Pure 10	Mixed 11 Total 12			Name of Mixture 15	Extent 16 A.G	
2004-2005 Monsoon	Muniyappa M.Munegowda Hemanna Narayanawamy	Self Self Self Self			1	3.21.0.0	Wet	Paddy	3.21.0.0						

SD/-
Village Accountant
Computerised RTC Disbursement Centre,
Bangalore North (Addl) Taluk
Yalahanka, Bangalore

Extent in Acres and Guntas

Receipt No.595866 dated 09/12/2014 00 00 Amount Rs.10.00

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ANNEXURE-F2

Print Page No: 1 Village Account File No. 2
99 03/11/2004 17:56:00 TO 26/04/2007 15:39

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ಇಂಥ ಒಂದು ಪ್ರಯತ್ನವನ್ನು 1956 ರ ಡಿಸೆಂಬರ್ 40, 42, 53 ಮತ್ತು 70

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T.O. 3/20/13 Staffing

26

RECORD OF RIGHTS, TENANCY AND PAHANI PATRIKE, (R.T.C.) - FORM NO.16

Print Page No.1

Village Form 2

Village Account Form No.7

Taluk Seal TALUK: BANGALORE NORTH(ADDL)

HOBEL-JALALA-2

Village: SATHANUR

Page No. 99 03/11/2004 17:56:00 to 25/04/2007 15:39:

1. Survey No.		3. Khathewar		Acre Ganta H		4. Assessment		Rs. Ps.		9. Name of the owner of Khathewar with Father's name		10. Nature of Possession		11. Other rights and liabilities																	
4		Total Extent Phut Kharab (a) Phut Kharab (b) Balance		3.22.00.00 0.01.00.00 3.21.00.00		a) Land Revenue b) Jodi c) Cesses d) Water Tax		17.35		*Muniyappa *M.Munegowda S/o Late Munivenkatappa *Hemanna S/o Late Munivenkatappa *Narayanaswamy S/o Muniyappa @ Doornanna		L.R.F. 4/79-80 MR.3/2002-03 Partition 26/11/2002 MR.3/2002-03 Partition 26/11/2002 MR.19/2003-2004-01/05/2004																			
2. Hisca :						Total		17.35																							
5. Type of Soil Black		7. No. of Trees		8. Irrigation as per Khathewar																											
6. Patta GOVT		Name		S. No.		Source		Pre Monsoon		Gardens		Total																			
		No.										3.21.0																			
				Rain				3.21.0.0				3.21.0																			
12.Cultivation and Tenancy details																															
Year and Season		Cultivators name and residence		Mode of Cultiva tion		Tenancy Detail				Land Utilisation		Dry. Irrigated, Garden		Name of Crop		Crop Area		Source of Irrigati on		Produc -tion per Acre		Total of Mixed Crops									
1		2		3		Extent		Lease		Class		Extent		8		9		Pure		Mixed		Total		13		14		15		Extent 16 A.G	
2005-2006 Monsoon		Muniyappa M.Munegowda Hemanna Narayanaswamy		Self Self Self Self		4 A.G		5		1		3.21.0.0		Wet		Paddy		3.21.0.0		3.21.0.0		3.21.0.0									
																										</					

Extent in Acres and Cientos

Receipt No. 595866 dated 09/12/2014 00 00 Amount Rs.10,00

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ANNEXURE-6

**IN THE HIGH COURT OF KARNATAKA
AT BANGALORE**

Dated this the 2nd day of November, 2012

BEFORE:

THE HON'BLE MR JUSTICE D V SHY LENDRA KUMAR

Writ Petition No. 10750 of 2007 [KLR-RES]

BETWEEN

1. SMT MUNIYAMMA
SINCE DECEASED REP. BY HER LR
 - a) MUNIYAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
2. SRI NARAYANASWAMY
S/O LATE MUNIYAPPA @ DOMMANNA
AGED ABOUT 49 YEARS
3. SRI AVALAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
AGED ABOUT 42 YEARS
4. SRI KEMPANNA
SINCE DECEASED REP. BY HIS LR
 - a) SMT ANASUYAMMA
W/O LATE KEMPANNA
AGED ABOUT 30 YEARS
 - b) KUM ASHWINI
D/O LATE KEMPANNA
AGED ABOUT 9 YEARS
 - c) MR ARUN
S/O LATE KEMPANNA
AGED ABOUT 6 YEARS

ALL ARE RESIDENTS OF
SATHANUR VILLAGE
JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK ... PETITIONERS

[By Smt D P Revathi, Adv. for
Sri D P Shivaprasad, Adv.]

AND

1. SRI HEMANNA
SINCE DECEASED REP. BY HIS LRs
 - a) SMT AKKAYAMMA
W/O LATE HEMANNA
AGED ABOUT 70 YEARS
 - b) SRI DANEGOWDA
S/O LATE HEMANNA
AGED ABOUT 54 YEARS
 - c) SRI MUNIVENKATEGOWDA
S/O LATE HEMANNA
AGED ABOUT 50 YEARS
 - d) SRI GOPALAGOWDA @ PRAKASH
S/O LATE HEMANNA
AGED ABOUT 47 YEARS

R1(a) TO R1(d) ARE
R/O SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK

2. SRI MUNIRAJU
S/O PILLE GOWDA
AGED ABOUT 50 YEARS
R/O SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK

3. SRI CHANNAPPA
SINCE DECEASED REP. BY HIS LRs

- a) SMT RUDRAMMA
W/O LATE CHANNAPPA
AGED ABOUT 70 YEARS
R/O SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK
- b) SMT CHIKKAMUNIYAMMA
W/O SHIVANNA
AGED ABOUT 54 YEARS
R/O KAMALUR, TUBEGERE HOBLI
ANTARAHALLI POST,
DODDABALLAPUR TALUK
- c) SRI SHAMANNA
S/O LATE CHANNAPPA
AGED ABOUT 54 YEARS
- d) SRI VENUGOPAL
S/O LATE CHANNAPPA
AGED ABOUT 50 YEARS
- e) SMT KEMPAMMA
W/O MUNINANJAPPA
AGED ABOUT 38 YEARS
- f) SRI CHIKKAVALAPPA
S/O LATE CHANNAPPA
AGED ABOUT 36 YEARS

R3(c) TO R3(f) ARE R/O
SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK

4. THE SPECIAL DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE

... RESPONDENTS

[By Sri V F Kumbar, Adv. for C/R1(a-d);
Sri Balaraj A C, Adv. for R2, R3(a & b);
Sri R B Sathyanarayana Singh, HCGP for R4;
R3(c), R3(d) & R3(e) are served]

THIS PETITION IS FILED UNDER ARTICLES 226 AND 227 OF
THE CONSTITUTION OF INDIA, PRAYING TO QUASH THE ORDER

DT. 22.6.2007 PASSED BY THE SPECIAL DEPUTY COMMISSIONER, BANGALORE URBAN DISTRICT, BANGALORE IN R.P.NO.97/04-05 CONNECTED WITH MIS.APPEAL NO.10/05-06 (ANNEXURE-A) AND BE FURTHER PLEASED TO ALLOW REVISION PETITION 97/05-06 FILED BY THE PETITIONER HEREIN AND DISMISS MISC.APPEAL NO.10/05-06 FILED BY THE R1 HEREIN AND FURTHER PERMIT THE PETITIONERS TO WITHDRAW THE DEPOSIT AMOUNT OF RS.55,029/- TO WHICH THEY ARE ENTITLED ON CONFIRMATION OF ORDER DT. 13.7.1982 IN L.R.F.NO.1/1979-80, ORDER DT.26.8.2004 IN REVIEW PETITION NO.41/2002 AND ETC.,

THIS PETITION COMING ON FOR FURTHER HEARING, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Writ petitioners are aggrieved by the order dated 7-9-2004 passed in RA No 50/2004-05 by the Assistant Commissioner, Bangalore North vide Annexure-J to the writ petition, whereby the Assistant Commissioner has allowed the appeal of the first respondent and has set aside the order dated 15-11-2003 passed by the Tahsildar, Bangalore north additional taluk in RRT(DIS) 32/01-02, mutating the entries in the revenue records in respect of an extent of 1 acre of land in Sy No 4 of Sathanur village, Jala hobli, Bangalore north taluk and also an extent of 2 acres 8 guntas of land in Sy No 6 of the very village, in favour of fourth petitioner and have sought for quashing of this order

5
97

and also further confirmation order dated 22-6-2007 [copy at Annexure-A to the writ petition] passed by the special Deputy Commissioner, Bangalore district in Revision Petition No 97/2004-05, dismissing the revision petition at the instance of second petitioner and also the order of the passed by the very Deputy Commissioner in the very same common order, allowing Misc Appeal No 10/2005-06, that had been filed by the first respondent under Section 89-C(2) of the Karnataka Cooperative Societies Act, 1959 [for short, the Societies Act].

2. Writ petitioners have sought for quashing of the order of the Assistant Commissioner and also the special Deputy Commissioner, which are said to be adverse to their interest, on the premise that the writ petitioners had been conferred with occupancy rights in respect of the subject lands and to the extent referred to above as per the order dated 13-7-1982 [copy at Annexure-B to the writ petition] passed by the land tribunal, Devanahalli, on an application

98 5
filed before it by one Muniyappa @ Doomanna s/o
Muniswamappa - husband of first petitioner, father of
petitioners 2 and 3 and grandfather of fourth petitioner.

3. Writ petitioners have also placed reliance on the order
of the Karnataka Appellate Tribunal dated 11-7-1980
passed in Appeal No 544/1979, an appeal filed by the
daughters of one Muniswamappa, who, undoubtedly,
owned the subject lands to an extent of 3 acres 21 guntas
in Sy No 4 and 2 acres 3 guntas in Sy No 6, having
inherited the same in a family partition. In the said
appeal, the tribunal had set aside the award dated 4-11-
1973 passed by in Dispute No 77/73-74 by the arbitrator of
cooperative societies, Bangalore district, which was an
award that had come to be passed at the instance of
primary land development cooperative bank limited,
Devanahalli on a dispute raised by this bank as against the
said Muniswamappa, who had, without any dispute,
mortgaged both parcels of these lands in the above

mentioned survey numbers in favour of the said cooperative bank and had defaulted in repayment of loan and for recovery of the said amount, the bank had obtained an award as against the borrower Muniswamappa.

4. There is multiplicity of proceedings both on the side of the efforts for recovery of amount by the cooperative bank from its borrower and also proceedings on the side of writ petitioners through their predecessor-in-title namely Muniyappa, who had filed an application in Form No 7 for grant of occupancy rights in respect of the two parcels of land to be the tenant under his very father, but to an extent of 1 acre in Sy No 4 and 2 acres 8 guntas in Sy No 6. It is this application which had resulted in the order of the land tribunal dated 13-7-1982.

5. The developments on the proceedings under the Societies Act are that subsequent to the award dated 4-11-1973, which the bank had obtained as against its borrower, it appears, the bank had in execution of the award sought

to bring the two parcels of agricultural land to auction through auction sale conducted on 15-4-1978 and was sold on 17-4-1978 and it is the version of first respondent that he purchased the subject lands in the auction sale and the auction sale was further confirmed on 30-6-1978. Thereafter, the auction sale was confirmed by the assistant registrar of cooperative societies, Doddaballapura on 14-12-1978 and the same was notified in the gazette dated 28-12-1978. Under the sale deed, it appears, the entire extent of the land in the two survey numbers referred to above had been conveyed in favour of first respondent.

6. It appears, that the writ petitioners had petitioned to the Tahsildar in the year 2001 for mutating their names in the revenue records on the strength of the order passed by the land tribunal and after it became known that the order of the land tribunal had more or less attained finality and in the background of the very order having been challenged by the first respondent before this court by filing WP No

28672 of 1982 and this petition came to be allowed as per order dated 17-9-1984 [copy at Annexure-C to the writ petition] and the matter was remanded to the land tribunal. However, the applicant before the land tribunal namely Muniyappa preferred writ appeal in WA No 667 of 1985, which came to be allowed in terms of judgment dated 16-4-1987 [copy at Annexure-D to the writ petition], in the sense, the order of the learned Single Judge was set aside, but, as in the meanwhile an appellate authority had been constituted to hear appeals against orders passed by land tribunals, the matter was transferred, in the sense, the writ petition papers were transferred to the appellate tribunal. The matter went before the appellate tribunal, but remained pending there for a considerable length of time and by way of an amendment to the Karnataka Land Reforms Act, 1961 [for short, Reforms Act], the appellate tribunal itself was abolished. Whereupon, the matter returned to this court and was numbered as CP 3393 of 1991 and later renumbered as WP No 25394 of 1992. The

said writ petition, was dismissed for non-prosecution in terms of order dated 17-7-1993 [copy at Annexure-E to the writ petition]. Thereafter, CP No 1281 of 2001 was filed for restoration of the petition, but which was also dismissed as per order dated 7-12-2001 [copy at Annexure-F to the writ petition] and a further review petition to review the order in the civil petition also came to be dismissed as per order dated 26-8-2004 [copy at Annexure-G to the writ petition].

7. It is in the wake of such developments, it appears, the writ petitioners had filed an application before the tahsildar for effecting entries in their favour in the revenue records and the tahsildar passed favourable orders in favour of writ petitioners as per his order dated 15-11-2003 [copy at Annexure-H to the writ petition]. But this order came to be set aside by the Assistant Commissioner at the instance of first respondent as per order dated 7-9-2004 [copy at Annexure-J to the writ petition] in an appeal and a further confirmation order passed by the Deputy Commissioner as

per order dated 5-2-2007 [copy at Annexure-K to the writ petition].

8. Such is the background leading to the filing the present petition and questioning these two orders of the Assistant Commissioner and the Deputy Commissioner with a further relief in favour of first respondent on his application under Section 89 of the Societies Act.

9. Notice had been issued to the respondents and the writ petition had been admitted by issue of rule. First respondent, later by his LRs, is represented by Sri V F Kumbar, Advocate and other private respondents are represented by counsel Sri A C Balaraj. The Deputy Commissioner is represented by Sri R B Sathynarayana Singh, learned government pleader.

10. The matter was heard at some length, over a period and during several hearings and was heard further today.

11. Submission of Ms D P Revathi, learned counsel for the petitioners, placing reliance on the order of the land tribunal and the incidental order of the Karnataka appellate tribunal setting aside the award, is that the orders now passed by the Assistant Commissioner and the Deputy Commissioner virtually amounts to sitting in judgment over the order of the land tribunal, which order has attained finality in view of the proceedings before this court in writ proceedings at the instance of first respondent, which was not fruitful and therefore the Assistant Commissioner and the Deputy Commissioner could not have ventured to disturb the order passed by the tahsildar based on the order of the land tribunal.

12. It is submitted that in view of the provisions of Section 44 of the Reforms Act, reading as under:

44. Vesting of land in the State Government:-

(1) All lands held by or in the possession of tenants (including tenants against whom a decree or order for eviction or a certificate for

resumption is made or issued) immediately prior to the date of commencement of the Amendment Act, other than lands held by them under leases permitted under section 5, shall, with effect on and from the said date, stand transferred to and vest in the State Government.

(2) Notwithstanding anything in any decree or order of or certificate issued by any Court or authority directing or specifying the lands which may be resumed or in any contract, grant or other instrument or in any other law for the time being in force, with effect on and from the date of vesting and save as otherwise expressly provided in this Act, the following consequences shall ensue, namely:—

- (a) all rights, title and interest vesting in the owners of such lands and other persons interested in such lands shall cease and be vested absolutely in the State Government free from all encumbrances;
- (b) ~~[x x x]~~ amounts in respect of such lands which become due on or after the date of vesting shall be payable to the State Government and not to the landowner, landlord or any other person and any payment made in contravention of this clause shall not be valid;
- (c) all arrears of land revenue, cesses, water rate or other dues remaining lawfully due on the date of vesting in respect of such lands shall after such

date continue to be recoverable from the landowner, landlord or other person by whom they were payable and may, without prejudice to any other mode of recovery, be realised by the deduction of the amount of such arrears from the amount payable to any person under this Chapter;

- (d) no such lands shall be liable to attachment in execution of any decree or other process of any Court and any attachment existing on the date of vesting and any order for attachment passed before such date in respect of such lands shall cease to be in force;
- (e) the State Government may, after removing any obstruction which may be offered, forthwith take possession of such lands;

Provided that the State Government shall not dispossess any person of any land in respect of which it considers, after such enquiry as may be prescribed, that he is prima facie entitled to be registered as an occupant under this Chapter;

- (f) the landowners, landlord and every person interested in the land whose rights have vested in the State Government under clause (a), shall be entitled only to receive the amount from the State Government as provided in this Chapter;

- (g) *permanent tenants, protected tenants and other tenants holding such lands shall, as against the State Government, be entitled only to such rights or privileges and shall be subject to such conditions as are provided by or under this Act; and any other rights and privileges which may have accrued to them in such lands before the date of vesting against the landlord or other person shall cease and determine and shall not be enforceable against the State Government.*

a tenanted land and in the present case to the extent of 1 acre in Sy No 4 and 2 acres 3 guntas in Sy No 6 of Sathanur village, Jala hobli, Bangalore north taluk, came to be vested in the state government, free of all encumbrances; that this happened as on 1-3-1974, the appointed date under the Reforms Act; that thereafter, the charge on the lands by the bank by way of mortgage, assuming was initially valid, stood extinguished and further proceedings pursuant to the charge viz., mortgage in favour of the bank, shall all became null and void and therefore neither the auction sale of the year 1978 nor

108 71.
further proceedings pursuant to the same can not lend any semblance of legality to those proceedings and therefore are all of no consequence in law and in this background the order of the Assistant Commissioner, affirmed by the Deputy Commissioner, is not sustainable and for the very reason, it is submitted that the order of the Deputy Commissioner on an application filed by first respondent under Section 89-C(2) of the Societies Act cannot be sustained; that the proceeds which the first respondent had deposited before the Deputy Commissioner pursuant to the order passed by this court during the pendency of WP No 12045 of 1979, appointing first respondent as interim receiver and permitting that amount to be drawn by the first respondent cannot also be sustained and that amount has to necessarily enure to the benefit of the writ petitioners, as the order of the land tribunal having become final and proceedings in favour of first respondent being null and void, particularly for purchase of the subject land in the auction sale, which was also subject

matter of proceedings before the land tribunal, being *non est* in law, the amount should necessarily enure to the benefit of the petitioners and the order to the effect that it should be released in favour of the first respondent should also be set aside.

13. *Per contra*, Sri V F Kumbar, learned counsel for first respondent, now represented by LRs, has very vehemently urged that the first respondent is a *bona fide* purchaser in a public auction conducted by the bank, a cooperative bank in this case; that the relationship between a cooperative bank and its customer and member is all regulated by a special enactment viz., the Societies Act; that these provisions have an overriding effect in respect of all other provisions and statutes; that the original owner of the subject lands having mortgaged the lands in favour of the bank way back in the year 1965 as per two mortgage deeds dated 13-8-1965 and 29-11-1965, the bank has first charge over such lands; that the owner of the lands cannot

create any interest, whether by way of tenancy or otherwise, in respect of the lands after their mortgage in favour of the bank and the tenancy is subject to the mortgage cannot be of any avail and in this regard has placed reliance on the provisions of Sections 83, 87-B and 95 of the Societies Act and therefore submits that creation of a tenancy lease in favour of the predecessor of petitioners, assuming that it was so, is voided in terms of sub-section (2) of Section 95 of the Societies Act, reading as under:

95. Mortgagor's powers to lease :-

(1) ~~xxx~~

(2) *Any lease granted in contravention of the provisions of sub-section (1) shall be void*

and if the tenancy itself is void, proceedings under the provisions of Reforms Act falls to the ground and therefore there is no need for interference with the order passed by the Assistant Commissioner and affirmed by the Deputy Commissioner in a further revision petition.

14. Sri Kumbar has also submitted that the order passed by the Karnataka Appellate Tribunal at Annexure-M is of no impact on the first respondent for the reason that the appeal had been preferred by persons claiming to be legal heirs of the mortgager after the award had been passed by the arbitrator in favour of the bank and the bank in execution of the award had sold the properties and in view of the auction sale before filing of the appeal, the interest of the auction purchaser cannot be affected, even assuming for argument's sake that the award has been set aside subsequently. In support of the submission, Sri Kumbar has relied on the decision of the Supreme Court in the case of **JANAK RAJ vs GUREDIAL SINGH [AIR 1967 SC 608]**.

15. Sri Kumbar also submits that the application filed by the first respondent under Section 89-C(2)(b) of the Societies Act, reading as under:

89-C Certificate to purchase, delivery of property and title of purchaser

(1) xxx

(2)(a) xxx

(b) Where the property sold is in the occupancy of a tenant or other person entitled to occupy the same, and a certificate in respect thereof has been granted under the foregoing sub-section, the Deputy Commissioner shall, on the application of the purchaser and after notice to such tenants or other persons, order the delivery to be made by affixing copy of the certificate of the sale in a conspicuous place on the property and proclaiming to the occupant by beat of drum or other customary mode at some convenient place, that the right, title and interest of the mortgagor have been transferred to the purchaser.

is therefore justified in the above narration of facts and developments and the Deputy Commissioner is also right in passing the impugned order for resumption infavour of the auction purchaser-first respondent.

16. Sri R B Sathyanarayana Singh, learned Government Pleader, appearing for fourth respondent Deputy Commissioner strongly supports the orders passed by the authorities.

17. The Deputy Commissioner under the impugned order, which is quite elaborate, has indicated that there cannot be a tenancy between close relatives and that conferment of occupancy rights in favour of predecessor in title of writ petitioners is not valid. While, the order passed by the tahsildar is based on the order passed by the land tribunal conferring occupancy rights in favour of the predecessor of the writ petitioners namely Muniyappa, the Assistant Commissioner in the first instance accepted the contention urged on behalf of the auction purchaser that his interest should not be affected by the order of the land tribunal and therefore cannot enure to the benefit of the writ petitioners and set aside the order of the tahsildar. This is confirmed by the Deputy Commissioner. The order relating to resumption of the lands and direction for releasing the deposited amount is only consequential. Therefore, the crux of the matter in the present petition that is required to be examined is as to whether the Assistant Commissioner and the Deputy Commissioner could have in any way

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interfere with the order passed by the tahsildar mutating the entries in the revenue records infavour of the writ petitioners?

18. It is now well settled that the entries in the revenue records follow title to the land. Proceedings of the land tribunal under the provisions of the Reforms Act and conferment of occupancy rights in favour of the tenant is virtually in the nature of conferment of title on a tenant and the order passed by the land tribunal, which is a specialized tribunal under the provisions of the Reforms Act attained finality. In fact, even civil courts have no jurisdiction to interfere or set aside order passed by the land tribunal. When the order of the land tribunal registering occupancy rights in favour of predecessor of writ petitioner had been questioned before this court by way of filing a writ petition by the first respondent, but did not result in any positive order in favour of first respondent nor the order of the land tribunal was set aside, the order of the

land tribunal stands affirm or independently and at any rate it is the bounden duty of the revenue authorities to take note of this order and to give effect to the order. That part of the requirement on the part of the revenue authorities was initially performed by the tahsildar as per the order at Annexure-H, but is set aside by the Assistant Commissioner and affirmed in revision by the Deputy Commissioner. The reasoning assigned by the Assistant Commissioner and Deputy Commissioner is clearly contrary to the legal position and at any rate the Assistant Commissioner or Deputy Commissioner has no powers to sit in judgment over the orders of the land tribunal. It is, therefore, the order relating to setting aside of the entries in the names of writ petitioners by these two authorities does not sustain.

19. In so far as the argument relating to the auction purchaser having obtained valid title and that title being unimpeachable though subsequently the right, which is

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akin to a decree passed civil court, is set aside and based on the judgment of the Supreme Court in the case of **JANAK RAJ** [supra] and as submitted by Sri Kumbar, learned counsel for first respondent is concerned, it is found in the present case that the judgment or award passed by the arbitrator had been set aside, though at the instance of daughters of the original owner, and though it is claimed that first respondent had not been made as a party to that proceedings, nevertheless, that is an order which stands as on date and having set aside the award of the arbitrator. While it is contended by Sri Kumbar that it was without notice and cannot bind first respondent, irrespective of these contentions, it is found in the present case that even the proceedings for auction sale etc., on and after 1-3-1974 are all of no consequence in law, in view of the provisions of Section 44(2)(a) of the Reforms Act. The land tribunal having recorded a finding of fact that as on 1-3-1974, predecessor of petitioners was a tenant and based on that fact having registered him as tenant in respect of

the land in question, it was not also open to the Assistant Commissioner or the Deputy Commissioner to characterize such order conferring occupancy rights is bad in law or void for the reason that there existed relationship between the parties i.e. landlord and tenant. Whether such reasoning is right or wrong or justified or otherwise, it is not within the domain of the revenue authorities to assign such reasons to get over the order passed by the land tribunal.

20 In so far as judgment of the Supreme Court cited supra is concerned, I find that when the original proceedings for bringing the auction sale itself is voided, I am of the view that the judgment is of no application, as the judgment will apply to a case where the sale proceedings are independently valid and sustain. The very sale proceedings are voided in the present case by operation of statute and not by any private act by parties. In fact, reliance placed by Sri Kumbar on the provisions of

118 81 ...
Section 95(2) of the Societies Act also is of no avail to the first respondent, as it is not by any volition of the parties rights are created in favour of a tenant under the statute and extinguishing of the right of the bank-mortgagee is by operation of Section 44 of the Reforms Act. In view of such statutory position, I am of the view that in the present set of facts in the present case, the judgment of the Supreme court cited supra is not applicable to enure to the benefit of first respondent.

21. It is also not possible nor necessary for this court to go into the question as to at what point of time tenancy had been created, particularly to go back the order of the land tribunal, as it is not based on any legal position, but on question of fact, which, though urged by Sri Kumbar, learned counsel for first respondent, should enure to the benefit of the first respondent, in the absence of any concluded pleadings and fact on this aspect, it is not open to this court to reexamine the validity of the order of the

land tribunal in this writ petition, more so at the instance of a person for whose benefit the order had been passed to invalidate the order when without any dispute an attempt on the part of the first respondent has failed before this court to get over the order of the land tribunal.

22. Though it is contended by Sri Kumbar that an auction sale once held unless is challenged by a person who is interested or who claims aggrieved by the auction sale, but the writ petitioners having not done so, cannot claim any benefit to the contrary, is an argument that cannot be accepted, in the wake of the reasoning assigned above and as in the instant case the consequence in law follow due to statutory provisions.

23. In the result, this writ petition is allowed, orders at Annexure-A and J are both quashed by issue of writ of certiorari and the order passed by the tahsildar at Annexure-H is restored. Annexure-K order being only of the nature of a consequential order, is also not sustainable

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and being an order passed on an application made by the first respondent, is also quashed and direction is issued to the Deputy Commissioner to refund the amount in deposit in favour of the writ petitioners.

24. Rule made absolute to the extent indicated above.

Sd/-
JUDGE

*pjk

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ANNEXURE-H

W.A.No.8592/2012

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 25TH DAY OF MARCH, 2014

:PRESENT:

THE HON'BLE MR. JUSTICE N.K. PATIL

AND

THE HON'BLE MR. JUSTICE PRADEEP D. WAINGANKAR

W.A.NO.0592/2012 (KLR-RES)

BETWEEN:

LATE HEMANNA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES

1. SMT.AKKAYAMMA W/O LATE HEMANNA
AGED ABOUT 75 YEARS
2. SRI DANEGOWDA S/O LATE HEMANNA
AGED ABOUT 59 YEARS
3. SRI MUNIVENKATEGOWDA S/O LATE HEMANNA
AGED ABOUT 55 YEARS
4. SRI GOPALAGOWDA @ PRAKASH
S/O LATE HEMANNA
AGED ABOUT 52 YEARS

ALL ARE RESIDING AT SATHANUR
VILLAGE, JALA HOBLI-560 015
BANGALORE NORTH (ADDL.) TALUK

... APPELLANTS

(BY SRI REUBEN JACOB, OF
M/S JACOB & CO., ADVS.)



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AND:

LATE MUNIYAMMA
SINCE DECEASED REPRESENTED
BY HER LEGAL REPRESENTATIVES

1. SRI MUNIYAPPA
S/O LATE MUNIYAPPA
@ DOMMANNA, MAJOR
2. SRI NARAYANASWAMY.
S/O LATE MUNIYAPPA @
DOMANNA
AGED ABOUT 54 YEARS
3. SRI AVALAPPA
S/O LATE MUNIYAPPA @
DOMMANNA
AGED ABOUT 47 YEARS

SRI KEMPANNA SINCE DECEASED
REPRESENTED BY HIS LEGAL
REPRESENTATIVES
RESPONDENT NOS. 4 TO 6 BELOW

4. SMT. ANASUYAMMA
W/O LATE KEMPANNA
AGED ABOUT 35 YEARS
5. KUM. ASHWINI
D/O LATE KEMPANNA
AGED ABOUT 14 YEARS
6. MR. ARUN
S/O LATE KEMPANNA
AGED ABOUT 11 YEARS

RESPONDENTS 1 TO 6 ARE
R/AT SATHNUR VILLAGE



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W.A.No.8592/2012

JALA HOBLI-560 015
BANGALORE NORTH (ADDL.) TALUK

7. SRI MUNIRAJU
S/O PILLEGOWDA
AGED ABOUT 55 YEARS
RESIDING AT SATHANUR
VILLAGE, JALA HOBLI-560 015
BANGALORE NORTH (ADDL.) TALUK

SRI CHANNAPPA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES
RESPONDENT NOS.8 TO 13 BELOW

8. SMT.RUDRAMMA
W/O LATE CHANNAPPA
AGED ABOUT 75 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560 015
BANGALORE NORTH (ADDL) TALUK
9. SMT.CHIKKAMUNIYAMMA
W/O SHIVANNA
AGED ABOUT 59 YEARS
R/AT KAMALUR
TUBUGERE HOBLI
ANTARAHALLI POST-561 2013
DODDABALLAPUR TALUK
10. SRI SHAMANNA
S/O LATE CHANNAPA
AGED ABOUT 59 YEARS
11. SRI VENUGOPAL
S/O LATE CHANNAPPA
AGED ABOUT 55 YEARS



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W.A.No.8592/2012

12. SMT.KEMPAMMA
W/O MUNINANJAPPA
AGED ABOUT 43 YEARS

13. SRI CHIKKAVALAPPA
S/O LATE CHANNAPPA
AGED ABOUT 41 YEARS

RESPONDENT NOS.10 TO 13
ARE R/AT SATHANUR VILLAGE
JALA HOBLI-560 015
BANGALORE NORTH (ADDL) TALUK

14. THE SPECIAL DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE-560 009

... RESPONDENTS

(BY SMT.D.P.REVATHI FOR
SRI D.P.SHIVAPRASAD, ADVOCATE
FOR C/R1 TO R4; SRI D.ASHWATHAPPA,
AGA FOR R14)

THIS WRIT APPEAL IS FILED UNDER SECTION 4
OF THE KARNATAKA HIGH COURT ACT, PRAYING TO
SET ASIDE THE ORDER PASSED IN THE WRIT PETITION
NO.10750/2007(KLR-RES) DATED 2.11.2012.

THIS WA COMING ON FOR PRELIMINARY HEARING
THIS DAY, N.K. PATIL J., DELIVERED THE FOLLOWING:



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W.A.No.8592/2012

J U D G M E N T:

We have heard the learned Counsel for the appellants and the learned Counsel for the respondents.

2. Shri Reuben Jacob, learned Counsel appearing for the appellants has filed a Memo dated 25.03.2014 which reads as follows:

"The undersigned counsel for the appellants submits on instructions that the appellants may be permitted to withdraw the above W.A.No.8952/2012 with liberty to file an original suit (O.S.) seeking for declaration of ownership in respect of the properties in dispute in this appeal (Sy.No.4 measuring 1 Acre and Sy.No.6 measuring 2 Acres 8 Guntas of Sathanur village, Bangalore North Additional Taluk) before the jurisdictional civil court. This appeal may kindly be disposed with the said liberty reserved to the appellants. It is also prayed that this Hon'ble Court may be pleased to observe that the revenue entries in respect of the



lands in question would be subject to the outcome of the said original suit. The present memo may kindly be taken on record in the interest of justice and equity."

4. With these observations, the instant appeal stands disposed of.



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W.A.No.8592/2012

In view of disposal of the appeal, the relief sought in I.A.3/2013 does not survive for consideration. Hence, I.A.3/2013 stands disposed of as having become infructuous.

Sd/-
JUDGE

Sd/-
JUDGE

Yn.

'TRUE COPY'
[Signature]
Section Officer, 314/14
High Court of Karnataka
Bangalore-560 001



- a) The date on which the application was made 10-11-14
- b) The date on which charges and additional charges if any, are called for 10-11-14
- c) The date on which charges and additional charges, if any are deposited/Paid 10-11-14
- d) The date on which the copy is ready 10-11-14
- e) The date of notifying that the copy is ready for delivery 10-11-14
- f) The date on which the applicant is required to appear on or before 10-11-14
- g) The date on which the copy is delivered to 10-11-14

(3514) 10687/16
Venkatesha

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ANNEXURE-J

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 14TH DAY OF JULY, 2016

PRESENT

THE HON'BLE MR. SUBHRO KAMAL MUKHERJEE
CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE RAVI MALIMATH

REVIEW PETITION NO.1263 OF 2014

BETWEEN

LATE HEMANNA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES

1. SMT AKKAYAMMA
W/O LATE HEMANNA
AGED ABOUT 77 YEARS
RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
2. SRI DANEGOWDA
S/O LATE HEMANNA
AGED ABOUT 61 YEARS
RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
3. SRI MUNIVENKATEGOWDA
S/O LATE HEMANNA
AGED ABOUT 57 YEARS



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RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA

4. SRI GOPALAGOWDA @ PRAKASH
S/O LATE HEMANNA
AGEDA BOUT 54 YEARS
RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA

... PETITIONERS

(BY SRI.H.R.VISHWANATH, ADVOCATE)

AND

LATE MUNIYAMMA
SINCE DECEASED REPRESENTED BY
HER LEGAL REPRESENTATIVES

1. SRI MUNIYAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
MAJOR
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
2. SRI NARAYANASWAMY
SINCE DECEASED REPRESENTED BY
HIS LEGAL REPRESENTATIVES
- 2(A) PAPAMMA
W/O LATE NARAYANASWAMY
AGED ABOUT 52 YEARS
- 2(B) B. MOUNA
D/O LATE NARAYANASWAMY

BOTH ARE R/A SATHANUR VILLAGE



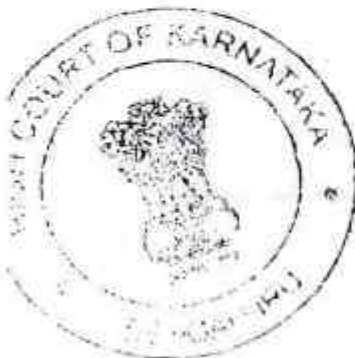
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JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA.

3. SRI AVALAPPA
S/O LATE MUNIYAPPA @ DOMANNA
SRI KEMPANNA
AGED ABOUT 49 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA

KEMPANNA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES

4. SMT. ANASUYAMMA
W/O KEMPANNA
AGED ABOUT 37 YEARS,
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA
5. KUM. ASHWINI
S/O LATE KEMPANNA
AGED ABOUT 16 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA
6. MR. ARUN
S/O LATE KEMPANNA
AGED ABOUT 13 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA



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SINCE THE RESPONDENTS NO.5 AND 6 ARE
MINORS, REPRESENTED BY THEIR MOTHER
NATURAL GUARDIAN RESPONDENT NO. 4

7. SRI MUNIRAJU
S/O PILLEGOWDA
AEGD ABOUT 57 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA

CHANNAPPA
SINCE DECEASED BY REPRESENTED
HIS LEGAL REPRESENTATIVES

8. SMT. RUDRAMMA
W/O LATE CHANNAPPA
AGED ABOUT 77 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
9. SMT CHIKKAMUNIYAMMA
W/O SHIVANNA
AGED ABOUT 61 YEARS
R/AT KAMALUR
TUBUGER HOBLI
ANTARAHALLI POST-561203
DODDABALLAPUR TALUK, KARNATAKA
10. SRI SHAMANNA
S/O LATE CHANNAPPA
AGED ABOUT 61 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA



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11. SRI VENUGOPAL
S/O LATE CHANNAPPA
AGED ABOUT 57 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
12. SMT KEMPAMMA
W/O MUNINANJAPPA
AGED ABOUT 45 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
13. SRI CHIKKAVALAPPA
S/O LATE CHANNAPPA
AGED ABOUT 43 YEARS
R/AT SATHNUR VILLAGE
JALA HOBLI 560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
14. THE SPECIAL DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE-560 009,
KARNATAKA

... RESPONDENTS

(SMT.D.P.REVATHI, ADVOCATE FOR SRI.D.P.SHIVAPRASAD,
ADVOCATE FOR RESPONDENT NOS.1 TO 4
SRI.A.C.BALARAJ, ADVOCATE FOR RESPONDENT NOS.7 TO 13
MISS NILOUFER AKBAR, ADDITIONAL GOVERNMENT ADVOCATE
FOR RESPONDENT NO.14
RESPONDENT NOS.5 AND 6 ARE SERVED AND UNREPRESENTED)

THIS REVIEW PETITION IS FILED UNDER ORDER 47 RULE 1 OF
CPC, PRAYING TO REVIEW THE ORDER DATED 25.3.2014 PASSED IN
W.A. NO.8592/2012 (KLR-RES), ON THE FILE OF THE HON'BLE HIGH
COURT OF KARNATAKA, BANGALORE.



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THIS PETITION COMING ON FOR HEARING THIS DAY, THE
CHIEF JUSTICE MADE THE FOLLOWING:

ORDER

The application for review is barred by limitation.

2. This is an application for review on the allegations against the erstwhile advocate.
3. It appears from the order impugned that both the Hon'ble Single Judges, who have now retired, recorded the statements made in a memorandum moved by the learned advocate, in the Court, and disposed of the writ appeal in terms of the said memorandum. Liberty was granted to the appellants to work out their remedy before the jurisdictional Civil Court and all questions raised in the writ appeal were left open.
4. We do not find any error apparent on the face of the record, requiring interference.



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5. The application for condonation of delay in filing the application for review is dismissed. Consequently, the application for review is, also, dismissed.

6. In view of dismissal of this application for review, pending interlocutory application does not survive for consideration and is, also, dismissed.

7. We make no order as to costs.

Sd/-
CHIEF JUSTICE

Sd/-
JUDGE



TRUE COPY

[Signature]
Section Officer
H.C. of Karnataka,
Bangalore-560 001
18/7/16

- a) The date on which the application was made 15/7/16
- b) The date on which charges and additional charges if any were paid for
- c) The date on which the charges and additional charges were paid/Paid
- d) The date on which the copy is ready 18/7/16
- e) The date on which the copy is ready for delivery 18/7/16
- f) The date on which the copy is required to be delivered 21/7/16
- g) The date on which the copy is delivered to the Applicant 21/7/16
- h) Examined by *[Signature]*

ANNEXURE-K

ಹ.ಆ.ಆ. 10/11-2012

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ಕೆ.ಎ.ಆ.ಆ.ಆ.

ಹೇಳಿಕೆ:- 2ನೇ ಕ್ರಮಕ್ಕೆ ಸಿಬ್ಬಂದಿ ಸಂಖ್ಯೆ 2.08
4ನೇ 1.000 ಕ್ಕಿಂತ 06ನೇ
2.08 ಕ್ಕಿಂತ ಸುಮಾರು: 2.08
ಬಿಟ್ಟು ಬಿಟ್ಟು ಸುಮಾರು: 2.08
ಬಿಟ್ಟು ಬಿಟ್ಟು ಸುಮಾರು: 2.08

1) ಬಿಟ್ಟು ಬಿಟ್ಟು ಸುಮಾರು: 2.08
ಕ್ರಮಕ್ಕೆ ಸಿಬ್ಬಂದಿ ಸಂಖ್ಯೆ 2.08
ಸಿಬ್ಬಂದಿ ಸಂಖ್ಯೆ 2.08
2.08 ಕ್ಕಿಂತ ಸುಮಾರು: 2.08
ಬಿಟ್ಟು ಬಿಟ್ಟು ಸುಮಾರು: 2.08
2007 (KLE EES) ರಲ್ಲಿ "KLE EES" ರಲ್ಲಿ
Annexure A and J are both quoted. and
Order passed by the tahsildar at Annexure
It is stated that the tahsildar at Annexure

2) ಬಿಟ್ಟು ಬಿಟ್ಟು ಸುಮಾರು: 2.08
ಬಿಟ್ಟು ಬಿಟ್ಟು ಸುಮಾರು: 2.08
L.A No: 8592/2012 (KLE EES) ರಲ್ಲಿ
The subject sought in I.A/2013 does not
Survive for Consideration. Hence I.A. 3/2013 stands
disposed of as having become infructuous."

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3) ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ರಿಂದ ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ರಿಂದ ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ

15/5/14

ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ

ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ

10/7/2014

ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ

In the result the unit police
 allowed. order of Amman
 are here Quashed. by issue of
 writ of certiorari and the
 passed by the Tribunal at the
 '4' is restored. Court for
 the purpose. And Police
 of the Court. And the
 Court.

ನಾವು

ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
 ಕೃಷಿ ಮತ್ತು ಮತ್ಸ್ಯ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ

6)

2)



IA 3/2013 does not survive for
 & consideration. Hence 2A3/2013
 stands disposed of as having become
 infructuous. Admittedly, being
it was infructuous it should
not be re-opened

3/15/13

1/10/13

1/10/13

1/10/13

1/10/13

5)

Admittedly being it was infructuous it should not be re-opened

3/15/13

6)

Admittedly being it was infructuous it should not be re-opened

3/15/13

7) Admittedly

1/10/13

Admittedly being it was infructuous it should not be re-opened

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ಅ.ಅರ.ತಿ (ಹಾ) ಸಿ.ಆರ್/70/2014-13

Typed copy of ANNEXURE K

ಕಛೇರಿ ಟೈಪ್

ವಿಷಯ: ಜಾಲ ಹೋಬಳಿ, ಸಾತನೂರು ಗ್ರಾಮದ ಸ.ನಂ. 4
ರಲ್ಲಿ 1.00 ಹಾಗೂ ಸ.ನಂ. 06 ರಲ್ಲಿ 2.08 ಜಮೀನು
ಸಂಬಂಧ ಖಾತೆ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ
ಆದೇಶದಂತೆ ಖಾತೆ ಮಾಡುವ ಬಗ್ಗೆ.

- ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಜಾಲ ಹೋಬಳಿ, ಸಾತನೂರು
ಗ್ರಾಮದ ಸ.ನಂ.4 ರಲ್ಲಿ 1.00 ಹಾಗೂ ಸ.ನಂ.06 ರಲ್ಲಿ 2.08 ರ
ಜಮೀನಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯ ಪ್ರಕರಣ
ಸಂಖ್ಯೆ: W.P.No.10750/2007 (KLR-RES) ರಂತೆ
"ಮನವಿಯನ್ನು ಪುರಸ್ಕರಿಸಿ Annexure A and J Are both
quashed and order passed by the Tahsildar at
Annexure H is restored ಎಂದು ಆದೇಶಿಸಿರುತ್ತಾರೆ.
- ತದನಂತರ ಸದರಿ ಆದೇಶದ ಮೇಲೆ ಮೇಲ್ಕನವಿ ಸಲ್ಲಿಸಿದ್ದು, ಮಾನ್ಯ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯ W.A ಪ್ರಕರಣ ಸಂಖ್ಯೆ: W.A.No.8592/
2012 (KLR-RES) ರಂತೆ ಪ್ರಕರಣ ದಾಖಲಾಗಿದ್ದು, "The Relief
sought in I.A./2013 does not survive for
consideration. Hence I.A.3/2013 stands disposed of
as having become instructuous" ಎಂದು ಆದೇಶಿಸಿರುತ್ತಾರೆ.
- ಆದ್ದರಿಂದ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯ ಆದೇಶದಂತೆ ಶ್ರೀ.ದೊಮ್ಮಣ್ಣ
@ ಮುನಿಯಪ್ಪ ರವರಿಗೆ ಖಾತೆ ಮಾಡಿಕೊಡುವಂತೆ ಅರ್ಜಿದಾರರು
ಕೋರಿದ್ದು, ಮುಂದಿನ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ಅರ್ಜಿ ಕೋರಿ ಕಡತ
ಮಂಡಿಸಿದೆ.

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14-5-14

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4/5). ನಿರ್ದೇಶನ ಅರ್ಜಿದಾರರು ಮನವಿ ಸಲ್ಲಿಸಿ ಜಾಲ ಹೋಬಳಿ, ನಾತನೂರು ಗ್ರಾಮದ ಸರ್ವೆ ನಂ.4 ರಲ್ಲಿ 1-00 ಎಕರೆ ಹಾಗೂ ಸ.ನಂ.6 ರಲ್ಲಿ 2.08 ಎ.ಗು ಜಮೀನಿನ ಬಾಕಿಯನ್ನು ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ ವರ್ಗಾವಣೆ ಕೋರಿದ್ದು, ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದ ಪ್ರತಿಯನ್ನು ತಮ್ಮ ಅವಗಾಹನೆಗೆ ಮಂಡಿಸಿದೆ.

W.P.No.10750/2007 ದಿನಾಂಕ: 02.11.2012 ರ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದ ಮೂಲ ಸಂಖ್ಯೆ: 27 ಪ್ಯಾರ 23 ರಲ್ಲಿ

In the result this Writ Petition is allowed orders at Annexure 'A' and 'J' are both quashed by issue of writ of certiorari and the order passed by the Tahsildar at Annexure 'H' is restored ಎಂಬುದಾಗಿ ಆದೇಶಿಸಿರುವುದು ಕಂಡು ಬಂದಿರುತ್ತೆ. ನದರಿ ಆದೇಶವನ್ನು ಪ್ರಶ್ನಿಸಿ ಶ್ರೀ.ಹೇಮಣ್ಣ ಇವರು ಭವತಿ ಪಾರಸುದಾರರಾದ ಶ್ರೀಮತಿ.ಅಕ್ಕಮ್ಮ, ಶ್ರೀ.ದಾನೇಗೌಡ, ಶ್ರೀ. ಮುನಿವೆಂಕಟೇ ಗೌಡ ಹಾಗೂ ಶ್ರೀ.ಗೋಪಾಲಗೌಡ ಉ ಪ್ರಕಾಶ್ ರವರುಗಳು ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲ W.A.No.8592/ 2012 ರಂತೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ದಿನಾಂಕ: 25.03.2014 ರಂದು ಆದೇಶ ✓ ನೀಡಿರುವಂತೆ ಆದೇಶ ಮೂಲ 6 ರಲ್ಲಿನ ಪ್ಯಾರ 3 ರಲ್ಲಿ

In the light of the statements made in the memo, as extracted supra, the instant appeal filed by the appellants is disposed of as with drawn reserving liberty to the appellants to work out their remedy before the jurisdictional civil court and all contentions urged in writ appeal are left as per. It is needless to clarify the names of the contesting respondents entered in the record of right certifying the mutation shall be subject to the

outcon
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I.A. 3

3/2C

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outcome of the judgement and decree to be passed in the
suit to be filed by the appellants.

In view of disposal of the appeal, the relief sought
I.A. 3/2013 does not survives for consideration. Hence IA
3/2013 stands disposal of as having become infructuous
ಎಂಬುದಾಗಿ ಆದೇಶವಾಗಿದ್ದು. ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ
ಕ್ರಮವಹಿಸಲು ಸೂಕ್ತ ಆದೇಶ ನೀಡಿದೆ

ಸಹಿ/- 17.05.2014

"ಸೂಕ್ತ ಆದೇಶವನ್ನು ನೀಡಿದೆ"

ಸಹಿ/-

ವಿಶೇಷ ತಹಶೀಲ್ದಾರ್,

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು (ಅಪರ)

ಬೆಂಗಳೂರು ಜಿಲ್ಲೆ, 13-7-14.

TRANSLATED COPY OF ANNEXURE-K

RRT(JAA)CR.70/2014-15

OFFICE NOTE

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Sub: In pursuant to the Order of the Hon'ble High Court, to mutate the Katha in respect of land bearing Sy.No.4 measuring 1.00 acre and Sy.No.06 measuring 2.08 guntas of Sathanur Village, Jala Hobli – reg.

1. With reference to the above subject, the Hon'ble High Court passed an order in respect of the land bearing Sy.No.4 measuring 1.00 acre and Sy.No.06 measuring 2.08 guntas of Sathanur Village, Jala Hobli in W.P.No.10750/2007 (KLR-RES) as "Annexure A and J are both quashed and order passed by the Tahsildar at Annexure-H is restored by allowing writ petition".
2. Thereafter, an appeal has been filed against the said order in W.A No.8592/2012 (KLR-RES), wherein it is ordered as "The Relief sought in I.A./2013 does not survive for consideration. Hence I.A.3/2013 stands disposed of as having become infructuous".
3. Therefore, the applicant has requested to mutate the Katha in favour of Sri.Doomanna @ Muniyappa as per the Order of the Hon'ble High Court, file is put up requesting to take further action.
4.) The applicant has filed the application requesting to transfer the Katha of the land bearing Sy.No.4 measuring 1.00 acre and Sy.No.06 measuring 2.08 guntas of Sathanur Village, Jala Hobli as per the order of the Hon'ble High Court, copy of the Order of Hon'ble High Court is put up for your perusal.

....2

In Para 23 of Page No.27 of the Order dated 02.11.2012 passed by the Hon'ble High Court in W.P No.10750/2007-

It is found that the order passed as

In the result this Writ Petition is allowed. Orders at Annexure 'A' and 'J' are both quashed by issue of writ of certiorari and the order passed by the Tahsildar at Annexure 'H' is restored. Sri Hemanna, Legal Representatives of the deceased i.e. Smt.Akkamma, Sri Danegowda, Sri Munivenkategowda and Sri Gopalagowda @ Prakash have filed W.A.No.8592/2012 challenging the said order before the Hon'ble High Court, the Hon'ble Court in Para 3 of Page 6 of its order held that -

In the light of the statements made in the memo, as extracted supra, the instant appeal filed by the appellants is disposed of as withdrawn reserving liberty to the appellants to work out their remedy before the jurisdictional civil court and all contentions urged in writ appeal are left as per. It is needless to clarify the names of the contesting respondents entered in the record of right certifying the mutation shall be subject to the outcome of the judgement and decree to be passed in the suit to be filed by the appellants.

In view of disposal of the appeal, the relief sought I.A.3/2013 does not survives for consideration. Hence IA.3/2013 stands disposal of as having become infructuous. It is requested to take appropriate action as per the order of the Hon'ble High Court.

Sd/-17.05.2014

- 5) Appropriate order is passed.
- 6) Applicants have filed the application under Right to Information Act and requested to supply the documents of the record. Put up for orders for issuance of the same.

Sd/- 15/7/14

7)

//TRUE COPY//

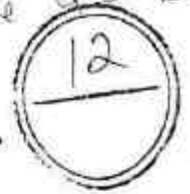
No. RNT/3/CR/70/2014-15

Date 25.6.14

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ORDER.

ANNEXURE-L



Perused the entire records as well as the orders passed in W.P. No. 10750/2007(KLR-RES) 2nd November 2012, as well as W.A. No. 8592/2012(KLR- RES) 25th March 2014.

In view of the memo dated 25/03/2014 filed by the advocates of the appellants of W.A. No. 8592/2012(KLR- RES), the court has passed order as follows:-

"3. In the light of the statements made in the memo, as extracted supra, the instant appeal filed by the appellants is disposed of, as withdrawn reserving the liberty to the appellants to work out their remedy before the jurisdictional Civil court and all contentions urged in the writ appeal are left open. It is needless to clarify that the names of the contesting respondents entered in the record of rights certifying the mutation shall be subject to the outcome of the judgment and decree to be passed in the suit to be filed by the appellants".

In view of the above order passed, it is appropriate to retain the names of the persons entered in the RTC and Mutation as on 25/03/2014, and the same names of the persons shall continue till the outcome of the judgment and decree that may be obtained from competent court of law.

Hence, ordered accordingly.

25/6/14
ಎಲೆಷನ್ ಕಮಿಷನರ್
ಕರ್ನಾಟಕ ರಾಜ್ಯ ಚುನಾವಣಾ ಆಯುಕ್ತರು (ಕಚೇರಿ)
ಬೆಂಗಳೂರು ಜಿಲ್ಲೆ.



The Special Tahsildar,
Bangalore North (Addl) Taluk,
Yelahanka New Town,
Bangalore

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Sub:- To restore the entreis in name of LR's of Sri. Dhoomanna @ Muniyappa in the RTCs in respect of Sy.4, measuring 01 acre and Sy.6, measuring 02 acres 08 guntas, both situated at Sathnur Village, Jala Hobli, Bangalore North Addl. Taluk as per Order dated 15.11.2003 passed in RRT No.32/2001-02.

Sir,

1. I am permanently residing at Sathnur Village, Jala Hobli, Bangalore North Addl. Taluk, I am an agriculturist. Myself and my brothers are the absolute owners in peaceful possession and enjoyment of agriculture lands bearing Sy.no.4, measuring 01 acre and Sy.No.6, measuring 02 acres 08 guntas of Sathnur Village, Jala Hobli, Bangalore North Addl. Taluk.
2. I further submit that the above mentioned properties belonged to our father late Sri. Doomanna @ Muniyappa. He had filed Tenancy Application in Form No.7 for Registration of Occupancy Rights in respect of Sy.no.4, measuring 01 acre and Sy.no.6, measuring 02 acres 08 Guntas of Sathnur Village, Jala Hobli, Devanahalli Taluk, (Now Bangalore North Taluk) against Hemanna and another in LRF No.1/79-80 before the Land Tribunal, Devanahalli Taluk.



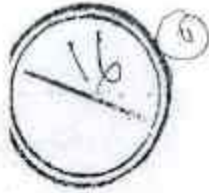
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3. And by Order dated 13.07.1982, the Application was allowed and Doomanna was registered as occupant subject to payment of premium, paid by Doomanna. The copy of the occupant certificate is herewith produced at Document no.1
4. Being aggrieved by the Order dated 13.07.1982 passed by the Land Tribunal in LRF 1/79-80, the said Hemanna filed W.P 28672/82 and by Order dated 17.09.1984, the Hon'ble High Court was pleased to allow the W.P. quashing the Order dated 13.07.1982 and the matter was remitted to the Land Tribunal for fresh disposal.
5. Muniyappa @ Doomanna preferred Writ Appeal No.667/85 and by Order dated 16.4.1987, the Order made in writ petition No.28672/82 was set aside.
6. The writ records stood transferred to the Appellate Authority constituted and renumbered as LRA 208/1987 to treat it as an Appeal presented against the Orders of the Land Tribunal and to dispose of the same in accordance with law.
7. The Land Reforms Appellate Authority was abolished in 1990 and C.P 3393/91 was filed by Hemanna before the Hon'ble High Court. I further state that our father Sri. Doomanna @ Muniyappa died on 25.09.1991.

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8. C.P.3393/91 was registered as WP 25394/92 KLRA before the Hon'ble High Court. The same was dismissed on 12.07.1993 for non prosecution.
9. Hemanna filed C.P.No.1281/2001 in W.P No.25394/92 for recalling Order dated 12.07.1993 after lapse of 8 years and by Order dated 7/12/2001 C.P.1281/2001 also came to be dismissed.
10. Hemanna preferred Review Petition No.41/2002 against Order dated 7.12.2001. The said Review Petition No.41/02 came to be dismissed on merits before the Hon'ble High Court of Karnataka by order dated 26/08/2004 confirming the Order dated 13/07/1982 passed in L.R.F. No. 1/1979-80.
11. Hence, Order passed by the Land Tribunal in LRF 1/79-80 dated 13.07.1982 stands confirmed and finally decided after dismissal of W.P.25394/92 on 12.07.1993 which has been confirmed in C.P.1281/01 on 07/12/01 and Review Petition 41/2002 on 26/08/2004 and reached finality.
12. Consequently, on the Application of the Petitioners in RRT No. Dis. 32/2001-02, the Tahsildar has passed the order dated 15.11.2003 directing the Mutation Entries to be changed in favour of the Petitioners as per the Occupancy Rights passed in L.R.F. No. 1/1979-80 and confirmed upto Review Petition in



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41/2002. The said order was subjected to the decision that may be passed in the Review Petition 41/2002 before the Hon'ble High Court of Karnataka. The Review Petition 41/2002 came to be dismissed by the Hon'ble High Court of Karnataka by Order dated 26/08/2004.

13. On the passing of the said order, the Khatha was mutated in the name of Narayanaswamy s/o Deomanna and the Pahani entries have been effected in his favour as per the order dated 15.11.2003 passed in RRT No. 32/2001-02. The copy of the order herewith produced at Document No.2.
14. Further the Petitioners have been put in possession of the said properties as 1st Respondent Hemanna was appointed only as an interim receiver pending disposal of LRF 1/79-80.
15. Hemanna preferred R. A. No.50/2004-05 before the Assistant Commissioner, Bangalore North-Sub Division, against the order dated 15.11.2003 passed by the Tahasildar directing the Mutation Entries to be changed in favour of the Petitioners as per the Occupancy Grants passed in LRF. No. 1/1979-80.
16. The R. A. No. 50/2004-05 was heard on merits and the Assistant Commissioner was pleased to allow the Appeal in R.R.T. Appeal 50/2004 by Order dated 07/09/2004.

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17. Hence the Petitioners approached the Special Deputy Commissioner, Bangalore Urban in Revision Petition No.97/2004-05, and the Deputy Commissioner, Urban District, Bangalore, was pleased to club Revision Petition No.97/04-05 filed by the Petitioners herein along with Miscellaneous Petition No.10/05-06 filed by the 1st Respondent herein and heard them together on merits on 14.05.2007.

18. The Special Deputy Commissioner, Urban District, has been pleased to pass orders on R.P.97/04-05 connected with Miscellaneous Appeal No.10/05-06 and has been pleased to dismiss R.P.97/04-05 and allowed Miscellaneous Appeal No.10/05-06 by order dated 22.06.2007.

19. I further states that myself and my family members preferred Writ Petition No. 10750 of 2007 before the Hon'ble High Court of Karnataka Bangalore challenging the Order of Deputy Commissioner, Bangalore Urban, Bangalore and the said Writ Petition came to be allowed on merits by Order dated 02.11.2012. The copy of the order herewith produced at Document No.3.

20. I further state that the LRs of Hemanna preferred W.A. No. 8592 of 2012 before the Hon'ble High Court of Karnataka Bangalore and the said Appeal also came to be withdrawn and



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disposed off on 25.03.2014 AND FINALLY DECIDED IN OUR
FAVOUR. The copy of the Order is herewith produced at
Document No.4.

21. Hence, I request this Hon'ble Authority to restore the Khatha in
name LRs of Sri. Doomanna @ Muniyappa as per Order of
Hon'ble High Court of Karnataka, Bangalore. The Copies of the
MR and RTCs (for the years 2003-04) are herewith produced
at Document No.4 and 5.

Thanking you,

S.D. Avalappa

Your's
(S. D. Avalappa)

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LIST OF DOCUMENTS

1. Copy of the Occupant Certificate.
2. The copy of the RRT order.
3. ^{C.C} Copy of the Order in W.P No. 10750 of 2007.
4. ^{C.C} ~~Copy~~ of the Order in W.A. 8592 OF 2012.
5. Copy of the MR and RTC. *for the year 2003-04*
6. Copy of the application dated 03.12.2012.
7. Copy of the Endorsement dated 20.08.2013.
8. Copy of the application dated 27.08.2013.
9. Copy of the application dated 02.12.2013.
10. *for the year 2013-14.*

SDP S.J.



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IN THE COURT OF THE ASSISTANT COMMISSIONER
BENGALURU NORTH SUB-DIVISION, BENGALURU.560001.

Dated this the 22nd day of Dec 2014.

Present: Shri.Mahesh Babu.N. KAS
Assistant Commissioner,
Bengaluru North Sub-Division.
R.A. (BNA).No. 171/2014-15.

ANNEXURE-M

Appellant: Sri.Avalappa,
S/o.late.Muniyappa @Dommanna,
Aged about 50 years,
R/a. Sathanur Village,
Jala Hobli,
Bengaluru North (Addl.) Taluk.

Respondent: The Special Tahsildar,
Bengaluru North (Addl) Taluk,
Yelahanka New Town,
Bengaluru.

The above appeal is preferred by the appellant under Section 136(2) of the Karnataka Land Revenue Act 1964 (hereinafter referred to as the 'Act' in brief), to set aside the order dated 25.06.2014 passed by the respondent in Case No.RRT (J) CR. 70/2014-15 in respect of the lands bearing Sy.No. 6 measuring 2 Acre 8 Guntas and Sy.No. 4 measuring 1 acre, both are situated at Sathanur Village, Jala Hobli, (then Devanahalli Taluk) Bengaluru North Addl. Taluk, Bengaluru. (hereinafter referred to as the 'subject property').

The contention of the appellant is that his father Sri.Muniyappa, @ Dommanna was granted with an occupancy right in respect of the agricultural land bearing Sy.No. 6 measuring 2 Acre 8 Guntas and Sy.No.4 measuring 1 acre,

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Both are situated at Sathanur Village, Jala Hobli, (then Devanahalli Taluk) Bengaluru North Addl. Taluk by the Land Tribunal Devanahalli by its order dated 13-07-1982 in LRF No. 1/1979-80. The opponent Sri. Hemanna had preferred W.P.No.25394/1992 before the Hon'ble High Court of Karnataka challenging the orders of the Land Tribunal and the same came to be dismissed on 12-07-1993 for non-prosecution. The said Sri. Hemanna preferred C.P.No.1281/2001 for recalling the order dated 12-07-1993 which also came to be dismissed by the Hon'ble High Court of Karnataka by the order dated 07-12-2001 and the same has been confirmed in Review Petition No.41/2002 on 26-08-2004. Consequently on the application filed by the appellant & others in RRT No.Dis.32/2001-02 the Tahsildar has passed an order on 15-11-2003 and directed to change Mutation entries in favour of the appellant as per the occupancy rights granted in LRF.1/1979-80 and confirmed up to Revision petition in 41/2002. The said Sri. Hemanna preferred RA No. 50/2004-05 before the Assistant Commissioner, Bangalore North Sub-Division, against the order passed by the Tahsildar, directing the mutation entries to be changed in favour of the appellants and the same came to be allowed vide order dated 07-09-2004. The appellant approached the Special Deputy Commissioner, Bangalore Urban in Revision Petition No.97/2004-05 and he was pleased to club the Revision 97/2004-05 along with the Miscellaneous petition No.10/2005-06 filed before him and heard them together on merits on 14-05-2007 and thereafter dismissed the RP No.97/2004-05 on 22-06-2007 and allowed the Misc.petition No.10/2005-06. Being aggrieved by the dismissal of RP No.97/2004-05 by the Special Deputy Commissioner, the appellant had preferred a Writ Petition No.10750/2007 before

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The Hon'ble High Court of Karnataka and the said WP came to be allowed on merits by its order dated 02-12-2012. The LRs of Sri. Hemanna preferred W.A No.8592/2012 before the Hon'ble High Court of Karnataka and the said appeal also came to be withdrawn and disposed off on 25-03-2014. Finally, the appellant filed an application on 25-4-2014 before the respondent and the respondent considered the application of the appellant on 25-06-2014 as mentioned in the office notes. However, by taking undue advantage of Sri. Danegowda, son of Sri. Hemanna who is the present member of Hunsemaranahalli and Marenahalli Zillapanchayat the highly influential and powerful person, influenced the respondent to pass the impugned order dated 25-06-2014 in Case No.RRT (J) CR. 70/2014-15. Being aggrieved by the said order, the appellant preferred the present appeal.

I have heard the arguments of the appellant and perused the documents.

It appears that the appellant made an application on 25-04-2014 before the respondent for restoration of the entries in the name of Lrs of Sri. Domanna @ Muniyappa but the respondent coating the order in the Writ Appeal No 8592/2012 issued a direction to retain the name of the person in the RTC and mutation as on 2-03-2014 till outcome of the Judgment and Decree that may be obtained from competent court of law. By Going through the order in the Writ Appeal wherein the appellant has withdrawn the Writ Appeal shows that the name of the appellant herein is continued in the revenue records but the respondent failed to understand the order passed in the Writ Appeal and by passing the cryptic order further the office note produced by the appellant also

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some other things. By going through the documents produced by the appellant it is shown that the occupancy right granted by the Land Tribunal in favour of the father of the appellant attained finality. That being the position I am of the opinion that the impugned order is liable to be set-aside. However it is made it clear that entry in favour of Lrs of late Sri Muniyappa @ Domanna are subject to out-come of the Judgment and Decree to be passed in the suit to be filed by the appellants in Writ Appeal No 8592/2012.

In view of the foregoing I proceed to pass the following;

ORDER

The appeal is hereby allowed. The impugned order dated 25-06-2014 in Case No.RRT (J) CR. 70/2014-15 is hereby set aside. The respondent is hereby directed to restore the entries in the name of Lrs of Sri Domanna @ Sri Muniyappa in the RTC and mutation in respect of land bearing Sy No 6 measuring to an extent of 2 Acre 8 Guntas, and land bearing Sy No 4 measuring to an extent of 1 Acre situated at Sathanur Village, Jala Hobli, Bangalore North Addl Taluk, pursuant to the direction of the Hon'ble High Court of Karnataka in Writ Appeal No 8592/2012 dated 25-03-2014 and securing all relevant records, in accordance with law.

(Order pronounced in the open court on this th day).

- 1) ಸರ್ಕಾರಿ ದಾಖಲೆಗಳು: 16/05/15 SD
- 2) ಸರ್ಕಾರಿ ದಾಖಲೆಗಳ ವಿವರಣೆ: 17/01/15
- 3) ಸರ್ಕಾರಿ ದಾಖಲೆಗಳ ವಿವರಣೆ: 22/08/15
- 4) ಸರ್ಕಾರಿ ದಾಖಲೆಗಳ ವಿವರಣೆ: 17/11/15
- 5) ಸರ್ಕಾರಿ ದಾಖಲೆಗಳ ವಿವರಣೆ: 19/11
- 6) ಸರ್ಕಾರಿ ದಾಖಲೆಗಳ ವಿವರಣೆ: 3661
- 7) ಸರ್ಕಾರಿ ದಾಖಲೆಗಳ ವಿವರಣೆ: 3661

MAHESH BABU.N
ASST.COMMISSIONER,
BENGALURU NORTH SUB DIVISION,
BENGALURU.

ಶ್ರೀ ಮಹೇಶ್ ಬಾಬು
ಅಸ್ಟೆಂಟ್ ಕಮಿಷನರ್
ಬೆಂಗಳೂರು ನಾರ್ತ್ ಸಬ್ ಡಿವಿಷನ್
ಬೆಂಗಳೂರು

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ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ, ಬೆಂಗಳೂರು
ಮುನಿರಪಾಲಿಕಾ ಆರ್ಜಿ ಸಂಖ್ಯೆ: ಆರ್.ಪಿ. 99/2015-16

ಉಪಸ್ಥಿತರು: ಶ್ರೀ ಕೆ.ಎ. ದಯಾನಂದ, ಭಾ.ಆ.ಸಿ.,
ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ,
ಬೆಂಗಳೂರು.

ANNEXURE-N

ಆರ್ಜಿದಾರರು

ವಿರುದ್ಧ

ಎದುರುದಾರರು



1. ಶ್ರೀಮತಿ ಅಕ್ಕಯ್ಯಮ್ಮ
ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ,
ವಯಸ್ಸು 70 ವರ್ಷ,
ಹೇಮಣ್ಣ,
ವಯಸ್ಸು ಸುಮಾರು 45 ವರ್ಷ,
3. ಶ್ರೀ ಮುನಿವೆಂಕಟೇಗೌಡ
ಬಿನ್ ಲೇಟ್: ಹೇಮಣ್ಣ,
ವಯಸ್ಸು ಸುಮಾರು 43 ವರ್ಷ,
4. ಶ್ರೀ ಗೋಪಾಲಗೌಡ
ಬಿನ್ ಲೇಟ್: ಹೇಮಣ್ಣ,
ವಯಸ್ಸು ಸುಮಾರು 40 ವರ್ಷ,
ಎಲ್ಲರೂ ಸಾಕನೂರು ಗ್ರಾಮವಾಸಿಗಳು,
ಜಾಲ ಹೋಬಳಿ,
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು.

1. ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪ ವಿಭಾಗ,
ಬೆಂಗಳೂರು.
2. ವಿಶೇಷ ತಹಶೀಲ್ದಾರ್
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು,
ಯಲಹಂಕ ನ್ಯಾಟೋ,
ಬೆಂಗಳೂರು.
3. ಶ್ರೀ ಅವಳಪ್ಪ
ಬಿನ್ ಲೇಟ್: ಮನಿಯಪ್ಪ
@ ದೊಮ್ಮಣ್ಣ
ವಯಸ್ಸು ಸುಮಾರು 50 ವರ್ಷ,
ಸಾಕನೂರು ಗ್ರಾಮವಾಸಿ,
ಜಾಲ ಹೋಬಳಿ,
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು.

ಪ್ರಸ್ತಾವನೆ:

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ಜಾಲ ಹೋಬಳಿ, ಸಾಕನೂರು ಗ್ರಾಮದ ಸ.ನಂ. 6 ರಲ್ಲಿ 2.08 ಗುಂಟೆ
ಜಮೀನು ಮತ್ತು ಸ.ನಂ. 4 ರಲ್ಲಿ 1.00 ಎಕರೆ ಜಮೀನನ್ನು 2ನೇ ಪ್ರತಿವಾದಿ ಅವರ ಆದೇಶ ಸಂಖ್ಯೆ:
ಆರ್/ಆರ್/ಟಿ(ಬಿ) ಸಿಆರ್/70/2014-15 ದಿನಾಂಕ: 25-06-2014 ರ ತಮ್ಮ ಆದೇಶದಲ್ಲಿ ಈ ಪ್ರಕರಣದ 3ನೇ
ಪ್ರತಿವಾದಿಯ ಹೆಸರಿಗೆ ಖಾತೆ ವರ್ಗಾಯಿಸಲು ತಿರಸ್ಕರಿಸಿರುವ ಆದೇಶವನ್ನು 1ನೇ ಪ್ರತಿವಾದಿಯು ತನ್ನ ಆದೇಶ
ಸಂಖ್ಯೆ: ಆರ್.ಎ (ಬಿಎಸ್ಎ) 171/2014-15 ದಿನಾಂಕ: 22-12-2014 ರ ಆದೇಶದಲ್ಲಿ ರದ್ದುಪಡಿಸಿ ಸದರಿ

[Signature]

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ಜಮೀನುಗಳನ್ನು ಈ ಪ್ರಕರಣದ 3ನೇ ಪ್ರತಿವಾದಿಯ ಹೆಸರಿಗೆ ಮಾತೆ ವರ್ಗಾಯಿಸುವಂತೆ ಆದೇಶಿಸಿರುವ ಆದೇಶದ ವಿರುದ್ಧ ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿದಾರರು ಕರ್ನಾಟಕ

ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ 1964 ರ ವಿಧಿ 136(3) ರ ಅನ್ವಯ ಈ ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿಯನ್ನು ಈ ನ್ಯಾಯಾಲಯದ ಮುಂದೆ ತಂದಿರುತ್ತಾರೆ. ಹಾಗೂ ತಮ್ಮ ಅರ್ಜಿಯ ಜೊತೆ ಪ್ರಶ್ನಿತ ಆದೇಶಕ್ಕೆ ತಡೆಯಾಜ್ಞೆಯನ್ನು ಕೋರಿ ಪ್ರಮಾಣ ಪತ್ರದೊಡನೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಅರ್ಜಿಯನ್ನು ದಿನಾಂಕ: 27-06-2015 ರಂದು ಪರಿಶೀಲಿಸಿ ಅರ್ಜಿಯನ್ನು ವಿಚಾರಣೆಗೆ ಅಂಗೀಕರಿಸಿ ಪ್ರಶ್ನಿತ ಆದೇಶಕ್ಕೆ ಮುಂದಿನ ವಿಚಾರಣಾ ದಿನಾಂಕದವರೆಗೆ



ನೀಡಿರುತ್ತದೆ ಮತ್ತು ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ: 5-10-2015 ಕ್ಕೆ ನಿಗದಿಪಡಿಸಿ, ಈ ವಿಚಾರಣೆಗೆ ಹಾಜರಾಗುವಂತೆ ನೋಟೀಸ್ ನೀಡಲಾಗಿರುತ್ತದೆ ಮತ್ತು 1ನೇ ಪ್ರತಿವಾದಿಗೆ ಅವರ ನ್ಯಾಯಾಧಿಕಾರದ ವ್ಯಾಪ್ತಿಯಡಿರುವ ಮುಂಚಿತವಾಗಿ ಕಳುಹಿಸುವಂತೆ ಸೂಚಿಸಲಾಗಿರುತ್ತದೆ. ಈ ಮಧ್ಯೆ ದಿ: 29-07-2015

ರಂದು ಉಭಯತ್ತರ ಪರ ವಕೀಲರು ಹಾಜರಿದ್ದು, ಪ್ರಕರಣವನ್ನು ಹಿಂದೂಡಲು ಕೋರಿದ್ದುದನ್ನು ಪರಿಶೀಲಿಸಿ, ವಿಚಾರಣೆಯನ್ನು ದಿ: 13-08-2015-ಕ್ಕೆ-ನಿಗದಿಪಡಿಸಿರುತ್ತದೆ. ತದನಂತರ ದಿ: 13-08-2015 ರಿಂದ 28-05-2015 ರವರೆಗೆ ವಿವಿಧ ದಿನಗಳಂದು ವಿಚಾರಣೆಯನ್ನು ನಡೆಸಿರುತ್ತದೆ.

ಅರ್ಜಿದಾರರು ತಮ್ಮ ಅರ್ಜಿಯಲ್ಲಿ ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ಜಾಲ ಹೋಬಳಿ, ಸಾತನೂರು ಗ್ರಾಮದ ಸ.ನಂ. 4 ರಲ್ಲಿ 1.00 ಎಕರೆ ಜಮೀನು ಮತ್ತು ಸ.ನಂ. 6 ರಲ್ಲಿ 2.08 ಗುಂಟೆ ಜಮೀನು ಮೂಲತಃ ಮುನಿಹಾಮಪ್ಪ ಬಿನ್ ಮುನಿಯಪ್ಪ ಎಂಬವರಿಗೆ ಸೇರಿದ್ದು, ಆತನು ಪ್ರಾಥಮಿಕ ಕೃಷಿ ಅಭಿವೃದ್ಧಿ ಬ್ಯಾಂಕ್, ದೇವನಹಳ್ಳಿ ರವರಿಂದ ಸದರಿ ಸ್ವತ್ತನ್ನು ಆಧಾರ ಮಾಡಿ, ಸಾಲ ಪಡೆದು, ಸಾಲ ತೀರಿಸದೇ ಬಾಕಿದಾರನಾಗಿದ್ದುದರಿಂದ ಸದರಿ ಸ್ವತ್ತನ್ನು ಬ್ಯಾಂಕಿನ ಕೋ ಆಪರೇಟಿವ್ ಸೊಸೈಟಿ ರಿಜಿಸ್ಟ್ರಾರ್ ರವರು ನಂ. 77/1973-74 ರಂತೆ ವಿಚಾರಣೆ ನಡೆಸಿ 4-1-1973 ರಂದು ಆರ್ಮಾಡ್ ಆದೇಶ ಹೊರಡಿಸಿ ತದನಂತರ ಪಾರಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ: 52/1974-75 ರಂತೆ ಸದರಿ ಸ್ವತ್ತನ್ನು ಸಾರ್ವಜನಿಕ ಹರಾಜಿಗಿಟ್ಟಾಗ ಅರ್ಜಿದಾರರ ತಂದೆ ಹರಾಜಿನಲ್ಲಿ ಜೆಟ್ಟಿನ ಮೊತ್ತಕ್ಕೆ ಕೂಗಿ 30-6-1978 ರಂದು ಸದರಿ ಹರಾಜು ಸ್ವೀಕರಣವಾಗಿರುವುದರಿಂದ ತನ್ನ ತಂದೆಗೆ ಸದರಿ ಸ್ವತ್ತನ್ನು ನೋಂದಾಯಿಸಿಕೊಟ್ಟು ರಾಜ್ಯಪತ್ರದಲ್ಲಿಯೂ ಸಹ 28-2-1978 ರಂದು ಈ ಬಗ್ಗೆ ಪ್ರಕಟಣೆಯಾಗಿ ತನ್ನ ತಂದೆ ಮತ್ತು ಕುಟುಂಬದವರು ಸ್ವಾಧೀನದಲ್ಲಿರುವುದರಿಂದ ತಿಳಿಸಿರುತ್ತಾರೆ.

(Signature)

ಮುಂದುವರೆದು, 3ನೇ ಪ್ರತಿವಾದಿಯ ತಂದೆ ಭೂಸುಧಾರಣಾ ಕಾಯ್ದೆ ಅಡಿಯಲ್ಲಿ ನಮೂನೆ-7 ರ ಗೇಣಿ ಅರ್ಜಿಯನ್ನು ತನ್ನ ತಂದೆ ಮುನಿರಾಮಪ್ಪನವರ ವಿರುದ್ಧ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣದಲ್ಲಿ ಪರಾಜಿನಲ್ಲಿ ಕೊಂಡಿದ್ದ ತಮ್ಮನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡಿರಲಿಲ್ಲವೆಂದು, ಇದರಿಂದ ಭೂ ಸ್ವಾಯಮಂಡಳಿಯು 3ನೇ ಪ್ರತಿವಾದಿಯ ತಂದೆಗೆ ಅಧಿಭೋಗದಾಕಿ ಹಕ್ಕನ್ನು ನೀಡಿದ ವಿಷಯ ತನಗೆ ತಡವಾಗಿ ಗೊತ್ತಾಗಿ, ತಾವು ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಭೂಸ್ವಾಯಮಂಡಳಿಯ ಆದೇಶವನ್ನು ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ: 12045/1979 ರ ಮೇರೆ ಪ್ರಶ್ನಿಸಿದ್ದು, ತದನಂತರ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ಪ್ರಕರಣವನ್ನು ಮರು ವಿಚಾರಣೆಗೆ ಭೂ ಸ್ವಾಯಮಂಡಳಿಗೆ ಕಳುಹಿಸಿತ್ತೆಂದು, ಪುನಃ ಭೂ ಸ್ವಾಯಮಂಡಳಿಯು ದಿ: 13-07-1982 ರ ತನ್ನ ಆದೇಶದಲ್ಲಿ ಪ್ರತಿವಾದಿಯ ತಂದೆಗೆ ಗೇಣಿ ಹಕ್ಕನ್ನು ನೀಡಿ ಅದೇಶಿಸಿದ್ದುದರಿಂದ ಪುನಃ 2 ರಿಂದ 4 ಮೇಲ್ಮನವಿದಾರರ ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಡಬ್ಲ್ಯೂ.ಪಿ. 28672/1982 ರ ಮೇರೆ ರಿಟ್ ಅರ್ಜಿಯನ್ನು ದಾಖಲು ಮಾಡಿದಾಗ ಭೂ ಸ್ವಾಯಮಂಡಳಿಯು ದಿ: 17-09-1984 ರ ತನ್ನ ಆದೇಶದಲ್ಲಿ ಮತ್ತೆ ಪ್ರಕರಣವನ್ನು ಭೂ ಸ್ವಾಯಮಂಡಳಿಗೆ ಮರು ವಿಚಾರಣೆಗೆ ಕಳುಹಿಸಿತ್ತೆಂದು, ಸದರಿ ಆದೇಶದ ವಿರುದ್ಧ 3ನೇ ಪ್ರತಿವಾದಿಯ ತಂದೆ ರಿಟ್ ಅಪೀಲು ಸಂಖ್ಯೆ: 667/1985 ರ ಮೇರೆ ರಿಟ್ ಅಪೀಲನ್ನು ದಾಖಲು ಮಾಡಿದ್ದು, ಆದೇಶಕ್ಕೆ ಜಿಲ್ಲಾ ಮಟ್ಟದಲ್ಲಿ ಭೂ ಸ್ವಾಯಮಂಡಳಿಯ ಮೇಲ್ಮನವಿ ಪ್ರಾಧಿಕಾರವು ರಚನೆಯಾಗಿದ್ದುದರಿಂದ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಏಕಸದಸ್ಯ ಪೀಠದ ಆದೇಶವನ್ನು ರದ್ದುಪಡಿಸಿದ ನ್ಯಾಯಾಲಯವು ಮರು ವಿಚಾರಣೆಗೆ ಜಿಲ್ಲಾ ಭೂಸುಧಾರಣಾ ಮೇಲ್ಮನವಿ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಪ್ರಕರಣವನ್ನು ವರ್ಗಾಯಿಸಿತ್ತೆಂದು, ತದನಂತರ ಜಿಲ್ಲಾ ಮೇಲ್ಮನವಿ ಪ್ರಾಧಿಕಾರವು ಸರ್ಕಾರಿ ಆದೇಶದಂತೆ ರದ್ದಾಗಿದ್ದುದರಿಂದ ಮತ್ತೆ ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೇಲ್ಮನವಿದಾರರ ತಂದೆಯು ಸಿ.ಪಿ ಅರ್ಜಿಯನ್ನು ದಾಖಲು ಮಾಡಿದಾಗ ಉಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಜಿಲ್ಲಾ ಮೇಲ್ಮನವಿ ಪ್ರಾಧಿಕಾರದಿಂದ ಕಡತವು ವರ್ಗಾವಣೆಯಾಗಿ ಡಬ್ಲ್ಯೂ.ಪಿ. 25394/1992 ಎಂದು ನಂಬಲಾಗಿತ್ತೆಂದು, ಮತ್ತು ಸದರಿ ಅರ್ಜಿಯು ವಜಾ ಆಗಿದ್ದು, ತದನಂತರ ಮತ್ತೆ ಸಿ.ಪಿ. ನಂ. 1281/2001 ರಂತೆ ಪುನರ್ ಪರಿಶೀಲಿಸಲು ಅರ್ಜಿ ಹಾಕಿದಾಗ ಸದರಿ ಅರ್ಜಿಯು ಸಹ ವಜಾ ಆಗಿತ್ತೆಂದು, ಪುನಃ ಪುನರ್ ಪರಿಶೀಲನಾ

ಅರ್ಜಿ ಸಂಖ್ಯೆ: 41/2002 ರ ಮೇರೆ ಅರ್ಜಿ ದಾಖಲು ಮಾಡಿದಾಗ ಅದು ಸಹ ವಜಾ ಆಗಿತ್ತೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ.



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ಮುಂದುವರೆದು, ತಮ್ಮ ತಂದೆ ಹರಾಜಿನಲ್ಲಿ ಹೆಚ್ಚಿನ ಮೊತ್ತಕ್ಕೆ ಬಿಡ್ಡು ಮಾಡಿ ಪ್ರಶ್ನಿತ ಜಮೀನನ್ನು ಪಡೆದುದರಿಂದ ಕರ್ನಾಟಕ ಕೋ ಆಪರೇಟಿವ್ ಸೊಸೈಟಿ ಸೆಕ್ಷನ್ 89(3) ರ ಅಡಿಯಲ್ಲಿ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳವರ ಮುಂದೆ ಮಿಷ್ ಅರ್ಜಿ 10/2005-06 ರಂತೆ ದಾಖಲು ಮಾಡಿದ್ದರೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ.

ಮುಂದುವರೆದು, 3ನೇ ಪ್ರತಿವಾದಿಯ ತಂದೆ ತಮ್ಮ ತಂದೆ ದಾಖಲು ಮಾಡಿದ ರಿಟ್ ಅರ್ಜಿ ಮತ್ತು ಸಿ.ಪಿ. ಅರ್ಜಿ, ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿಗಳು ವಜಾ ಆಗಿದ್ದುದರ ಲಾಭ ಪಡೆದು ತಹಶೀಲ್ದಾರ್ ರವರ ಮುಂದೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ 3ನೇ ಪ್ರತಿವಾದಿಯ ತಂದೆಯ ಹೆಸರಿಗೆ ಖಾತೆ ವರ್ಗಾವಣೆಯನ್ನು ಭೂ ನ್ಯಾಯಮಂಡಳಿಯ ಆದೇಶದಂತೆ ಪಡೆದರೆಂದು, ತಾವು ಆದನ್ನು ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳವರ ಮುಂದೆ ಪ್ರಶ್ನಿಸಿದಾಗ ಈ ಬಗ್ಗೆ ವಿಚಾರಣಾ ನಡೆಸಿ



ವಿಭಾಗಾಧಿಕಾರಿಗಳು ತಹಶೀಲ್ದಾರ್ ರವರು ಮಾಡಿದ ಆದೇಶವನ್ನು ರದ್ದುಪಡಿಸಿ ಮೊದಲಿನಂತೆ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳನ್ನು ಇಡಲು ಆದೇಶಿಸಿದ್ದರೆಂದು, ಸದರಿ ಆದೇಶದ ವಿರುದ್ಧ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳವರ ಮುಂದೆ ಆರ್.ಪಿ. ಸಂ. 49/2004-05 ರಂತೆ 3ನೇ ಪ್ರತಿವಾದಿಯ ತಂದೆ ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿಯನ್ನು ಸಲ್ಲಿಸಿದಾಗ, ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳವರು ಸದರಿ ಅರ್ಜಿಯನ್ನು ವಜಾ ಮಾಡಿ ತಾವು ಸಲ್ಲಿಸಿದ ಮಿಷ್ 10/2005-06 ನ್ನು ಎತ್ತಿ ಹಿಡಿದರೆಂದು, ಸದರಿ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳವರ ಆದೇಶದ ವಿರುದ್ಧ 3ನೇ ಪ್ರತಿವಾದಿಯ ತಂದೆ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ: ಡಬ್ಲ್ಯೂ.ಪಿ. 1075/2007 ರ ಮೇರೆ ರಿಟ್ ಅರ್ಜಿ ದಾಖಲು ಮಾಡಿದಾಗ ಸದರಿ ರಿಟ್ ಅರ್ಜಿಯನ್ನು ಘನ ನ್ಯಾಯಾಲಯವು ಪುರಸ್ಕರಿಸಿದ್ದುದರಿಂದ ತಾವು ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಅಪೀಲು ಸಂಖ್ಯೆ: ಡಬ್ಲ್ಯೂ.ಎ. 8592/2012 ನ್ನು ದಾಖಲು ಮಾಡಿದ್ದು, ತದನಂತರ ಆದನ್ನು ಹಿಂಪಡೆಯಲಾಯಿತೆಂದು, ಮತ್ತು ಮೇಲ್ಮನವಿದಾರರು ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿ ಆರ್.ಪಿ. 1263/2014 ನ್ನು ದಾಖಲು ಮಾಡಿರಿಟ್ ಅಪೀಲು ಸಂಖ್ಯೆ: 8592/12 ರ ದಿನಾಂಕ: 25-03-2014 ರ ಆದೇಶವನ್ನು ಪುನರ್ ಪರಿಶೀಲಿಸಿರುವಂತೆ ಕೋರಿರುವುದಾಗಿ, ಸದರಿ ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿಯ ವಿಚಾರಣೆಗೆ ಬಾಕಿ ಇರುತ್ತದೆಂದು, ಈ ಮಧ್ಯೆ 3ನೇ ಪ್ರತಿವಾದಿಯ ಪರವಾಗಿ 1ನೇ ಪ್ರತಿವಾದಿಯು ಖಾತೆ ವರ್ಗಾಯಿಸುವಂತೆ ಆದೇಶಿಸಿರುವುದರಿಂದ ತಾವು ಸದರಿ ಆದೇಶದ ವಿರುದ್ಧ ಬಾಧಿತರಾಗಿ ಈ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸುತ್ತಿರುವುದಾಗಿ ತಿಳಿಸಿರುತ್ತಾರೆ.

ಮುಂದುವರೆದು, ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಸರಿಯಾದ ರೀತಿಯಲ್ಲಿ ಆದೇಶ ಮಾಡಿಲ್ಲವೆಂದು, ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿಲ್ಲವೆಂದು ಮತ್ತು ರಿಟ್ ಅರ್ಜಿಯಲ್ಲಿನ ಆದೇಶ ಮತ್ತು ರಿಟ್ ಅಪೀಲ್‌ನಲ್ಲಿನ ಆದೇಶವನ್ನು ಸರಿಯಾಗಿ ಅರ್ಥೈಸಿಕೊಳ್ಳದೇ ಪ್ರಶ್ನಿತ ಆದೇಶವನ್ನು ಹೊರಡಿಸಿರುತ್ತಾರೆಂದು ತಿಳಿಸಿರುತ್ತಾರೆ.

(Signature)

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ಇದಕ್ಕೆ ಪ್ರತಿಯಾಗಿ 3ನೇ ಪ್ರತಿವಾದಿಯು ತನ್ನ ಆಕ್ಷೇಪಣೆಯನ್ನು ಸಲ್ಲಿಸುತ್ತಾ, ಪ್ರಶ್ನಿತ ಆದೇಶವು ಕಾನೂನುಬದ್ಧವಾಗಿರುತ್ತದೆ ಎಂದು, ಮತ್ತು ಭೂಸ್ವಾಮ್ಯಮಂಡಳಿಯ ಆದೇಶದಂತೆ ತಮಗೆ ಜಮೀನು ಮಂಜೂರಾಗಿದ್ದು, ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ರಿಟ್ ಅರ್ಜಿಯಲ್ಲಿ ಮೇಲ್ಮನವಿದಾರರು ಸಲ್ಲಿಸಿರುವ ಎಲ್ಲ ಆಂಶಗಳನ್ನು ಪರಿಶೀಲಿಸಿ, ಭೂ ಸುಧಾರಣೆ ಕಾಯ್ದೆ ಅಡಿ ನೀಡಿರುವ ಗೇಣಿ ಅರ್ಜಿಯಂತೆ



ಇರುವುದು ಸರಿಯೆಂದು ಹಾಗೂ ಕೋ ಆಪರೇಟಿವ್ ಸೊಸೈಟಿ ಆಕ್ಟ್ ಅಡಿಯಲ್ಲಿ ಹರಾಜು ಮೂಲಕ ದಿ: 1-3-1974 ಕ್ಕೆ ಭೂ ಸುಧಾರಣಾ ಕಾಯ್ದೆಯಂತೆ ಸರ್ಕಾರದ ವಶಕ್ಕೆ ಪಡೆದುಕೊಂಡಿರುವುದರಿಂದ, ಬ್ಯಾಂಕಿನ ಸಾಲಗಳು ನಿಲ್ಲದೇ ಇರುವುದರಿಂದ, ಭೂ ಸುಧಾರಣಾ ಕಾಯ್ದೆ ಅಡಿಯಲ್ಲಿ ಅಧಿಭೋಗದಾರಿಕೆ ಹಕ್ಕನ್ನು ನೀಡಿರುವುದು ಸಿಂಧುತ್ವ ಪಡೆಯುತ್ತದೆ ಎಂದು ತಿಳಿಸಿರುವುದರಿಂದ ಮತ್ತು ಸದರಿ ರಿಟ್ ಆದೇಶದ ವಿರುದ್ಧ ರಿಟ್ ಅಪೀಲನ್ನು ಸಲ್ಲಿಸಿದ ಮೇಲ್ಮನವಿದಾರರು ಸದರಿ ಅಪೀಲನ್ನು ಹಿಂತೆಗೆದುಕೊಂಡಿರುವುದರಿಂದ ಈ ಎಲ್ಲ ಆಂಶಗಳನ್ನು ಪರಿಶೀಲಿಸಿರುವ 1ನೇ ಪ್ರತಿವಾದಿಯಾದ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ತಮ್ಮ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡುವಂತೆ ಆದೇಶಿಸಿರುತ್ತಾರೆಂದು, ಆದ್ದರಿಂದ ಮೇಲ್ಮನವಿಯನ್ನು ವಜಾಗೊಳಿಸಬೇಕೆಂದು ಕೋರಿರುತ್ತಾರೆ.

ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿದಾರರು ನ್ಯಾಯಾಲಯದ ಆದೇಶದ ಪ್ರತಿಗಳು ಮತ್ತು ಪಹಣಿ ಪ್ರತಿಗಳನ್ನು ಹಾಜರುಪಡಿಸಿ, ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿಯಲ್ಲಿನ ಆಂಶಗಳನ್ನೇ ಪುನರುಚ್ಚರಿಸಿ ಪ್ರಶ್ನಿತ ಆದೇಶವನ್ನು ವಜಾಗೊಳಿಸಿ ಅರ್ಜಿಯನ್ನು ಪುರಸ್ಕರಿಸುವಂತೆ ಕೋರಿರುತ್ತಾರೆ.

ಪುನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿಯಲ್ಲಿನ ಆಂಶಗಳು, ಪ್ರತಿವಾದಿಗಳು ಸಲ್ಲಿಸಿದ ಲಿಖಿತ ಆಕ್ಷೇಪಣೆ ಮತ್ತು ಅರ್ಜಿದಾರರು ಸಲ್ಲಿಸಿದ ಲಿಖಿತ ವಾದ ಮತ್ತು ಹಾಜರುಪಡಿಸಿದ ನ್ಯಾಯಾಲಯದ ಪ್ರತಿಗಳನ್ನು ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಿರುತ್ತದೆ.

ಪ್ರಶ್ನಿತ ಜಮೀನು ಭೂ ನ್ಯಾಯಮಂಡಳಿಯಲ್ಲಿ 3ನೇ ಪ್ರತಿವಾದಿಯು ತಂದೆಗೆ ಮಂಜೂರಾಗಿ ಅಧಿಭೋಗದಾರಿಕೆ ಹಕ್ಕನ್ನು ನೀಡಲಾಗಿರುತ್ತದೆ.

ಇದೇ ಜಮೀನನ್ನು ಮೇಲ್ಮನವಿದಾರರು ಕೋ ಆಪರೇಟಿವ್ ಸೊಸೈಟಿ ಆಕ್ಟ್ ಅಡಿಯಲ್ಲಿ ನಡೆದ ಹರಾಜಿನಲ್ಲಿ ಕೊಂಡುಕೊಂಡಿರುವುದರಿಂದ ತಾವು ಪಕ್ಕದಾರರೆಂದು ಪ್ರತಿಪಾದಿಸುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ.

3ನೇ ಪ್ರತಿವಾದಿ ಲೇಟ್: ಮುನಿಯಪ್ಪ @ ದೊಮ್ಮಣ್ಣ ರವರ ವಾರಸುದಾರರು ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ: 10750/2007 ರ ಮೇಲೆ ಮೇಲ್ಮನವಿದಾರರನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ

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ಮಾಡಿ ರಿಟ್ ಅರ್ಜಿಯನ್ನು ದಾಖಲು ಮಾಡಿದಾಗ ಘನ ನ್ಯಾಯಾಲಯವು ಈ ಬಗ್ಗೆ ಕೂಲಂಕುಶ ವಿಚಾರಣೆ ನಡೆಸಿ, ಭೂ ಸುಧಾರಣಾ ಇಂಪ್ಲಿ ಆಡಿಯಲ್ಲಿ ಗೇಣಿ ಹಕ್ಕನ್ನು ಪಡೆದ ವ್ಯಕ್ತಿಯು ಹಕ್ಕುಳ್ಳವನಾಗುತ್ತಾನೆಂದು, ದಿನಾಂಕ: 2-11-2012 ರಂದು ನೀಡಿರುವ ತೀರ್ಪಿನಲ್ಲಿ ಸ್ಪಷ್ಟವಾಗಿ ಕಂಡುಬರುತ್ತದೆ. ಸದರಿ ತೀರ್ಪಿನ ವಿರುದ್ಧ ಈ ಪ್ರಕರಣದ ಮೇಲ್ಮನವಿದಾರರು ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಅಪೀಲು ಸಂಖ್ಯೆ: ದಬ್ಲ್ಯೂ.ಎ. 8295/2012 ನ್ನು ದಾಖಲು ಮಾಡಿದ್ದು, ತದನಂತರ ತಮ್ಮ ಅರ್ಜಿಯನ್ನು ಹಿಂಪಡೆದಿರುವುದರಿಂದ ಘನ ನ್ಯಾಯಾಲಯವು ದಿನಾಂಕ: 25-03-2014 ರ ತನ್ನ ಆದೇಶದಲ್ಲಿ ಈ ಕೆಳಕಂಡಂತೆ ಆದೇಶಿಸಿರುತ್ತದೆ.



"In the light of the statements made in the memo, as extracted supra; the instant appeal filed by the appellants is disposed of as withdrawn reserving liberty to the appellants to work out their remedy before the jurisdictional Civil Court and all contentions urged in the writ appeal are left open. It is needless to clarify that the names of the contesting respondents entered in the record of rights certifying the mutation shall be subject to the outcome of the judgment and decree to be passed in the suit to be filed by the appellants.

With these observations, the instant appeal stands disposed of."

ಈ ರೀತಿ ಮನರ್ ಪರಿಶೀಲನಾ ಅರ್ಜಿದಾರರ ರಿಟ್ ಅಪೀಲು ನಿರ್ಣೇಶವಾಗಿ ಆಗಿದ್ದು, ಪ್ರಸ್ತುತ ಸದರಿ ರಿಟ್ ಅಪೀಲದಾರರು ಘನ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಆರ್.ಪಿ. 1263/2014 ರಂತೆ ರಿಟ್ ಅಪೀಲಿನ ಆದೇಶವನ್ನು ಮನರ್ ಪರಿಶೀಲಿಸಲು ಆರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದಾಗಿ ತಿಳಿಸಿದ್ದರೂ ಸಹ, ಸದರಿ ಘನ ನ್ಯಾಯಾಲಯದಿಂದ ಯಾವುದೇ ಕಡೆಯಾಜ್ಞೆಯನ್ನು ತಂದಿರುವುದಿಲ್ಲ.

ಪ್ರಸ್ತುತ ಜಮೀನಿನ ಪಹಣಿ ಪರಿಶೀಲನೆಯಂತೆ ಎಂ.ಮುನೇಗೌಡ ಬಿನ್ ಲೇಟ್ ಮುನಿವೆಂಕಟಪ್ಪ, ಎಸ್.ಎಚ್.ದಾಸೇಗೌಡ ಬಿನ್ ಲೇಟ್ ಹೇಮಣ್ಣ, ಎಸ್.ಎಚ್.ಮುನಿವೆಂಕಟೇಗೌಡ ಬಿನ್ ಲೇಟ್ ಹೇಮಣ್ಣ, ಎಸ್.ಎಚ್.ಗೋಪಾಲಗೌಡ ಬಿನ್ ಲೇಟ್ ಹೇಮಣ್ಣರವರ ಹೆಸರುಗಳಿಗೆ ಎಂ.ಆರ್. 3/2002-03 ಮತ್ತು ಎಂ.ಆರ್.ಎಚ್. 11/2012-13 ವಿಭಾಗ ಮತ್ತು ಖೌತಿ ವಾರಸು ಖಾತೆಯಾಗಿ ಪಹಣಿಯಲ್ಲಿ ನಮೂದಿರುವುದು ಕಂಡು ಬರುತ್ತದೆ. ಆದರೆ ಒಂದನೆಯ ದೂರುದಾರರು ಪಹಣಿಯಲ್ಲಿ ನಮೂದಿಸಿರುವ ಖಾತೆದಾರರಿಗೆ ನೋಟೀಸ್ ನೀಡದೆ ಏಕಪಕ್ಷೀಯವಾಗಿ ಮೂರನೆಯ ಪ್ರತಿವಾದಿಗಳ ಹೆಸರಿಗೆ ಪಹಣಿ ಮತ್ತು ಮ್ಯಾಟೇಷನ್ ದಾಖಲಿಸಲು ಆದೇಶ ಹೊರಡಿಸಿರುತ್ತಾರೆ. ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ಅಧಿನಿಯಮಗಳ ಪ್ರಕಾರ ಹಿತಾಸಕ್ತಿಯುಳ್ಳ ವ್ಯಕ್ತಿಗಳಿಗೆ ತಿಳುವಳಿಕೆ ನೀಡಿ ನಂತರ ಆದೇಶ ಹೊರಡಿಸಬೇಕಾಗಿದ್ದು, ಈ ಪ್ರಕರಣದಲ್ಲಿ ಏಕಪಕ್ಷೀಯವಾಗಿ ಆದೇಶ

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TRANSLATED COPY OF ANNEXURE-N
BEFORE THE DEPUTY COMMISSIONER,
BANGALORE URBAN DISTRICT, BANGALORE

REVISION PETITION No.R.P.99/2015-16

Presided by : Sri K.A.Dayanand, IAS.
Deputy Commissioner,
Bangalore Urban District,
Bangalore.

<u>Petitioners</u>	<u>V/s</u>	<u>Respondents</u>
1. Smt.Akkayamma W/o Late Hemanna Aged about 70 years, 2. Sri.Dasegowda S/o Late Hemanna, Aged about 45 years, 3. Sri.Munivenkategowda S/o Late Hemanna, Aged about 43 years, 4. Sri.Gopalagowda S/o Late Hemanna Aged about 40 years, All are residing at: Sathanur Village, Jala Hobli, Bangalore North Taluk		1. Assistant Commissioner Bangalore North Sub Divn Bangalore. 2. Special Tahsildar, Bangalore North Taluk Yalahanka New Town Bangalore. 3. Sri Avalappa S/o Late Muniyappa, @ Doomanna Aged about 50 years, R/o Sathanur Village, Jala Hobli, Bangalore North Taluk

PREAMBLE:

The Revision Petitioners have filed this Revision Petition under Section 136(3) of the Karnataka Land Revenue Act, 1964 against the order passed by the 1st Respondent vide his Order No.RA(BNA).171/2014-15 dated 22.12.2014 directing transfer the Katha of the lands bearing Sy.No.6 measuring 2.08 guntas and Sy.No.4 measuring 1.00 acres of Sathanur Village, Jala Hobli, Bangalore North Taluk in favour of the 3rd Respondent by set asiding the Order No.RRT(J).CR.70.2014-15 dated

25.06.2014 passed by the 2nd Respondent, rejecting to transfer the Katha of the above lands in favour of 3rd Respondent and they have also filed Application along with Affidavit praying to grant stay order to the order in question, after perusing the said application on 27.06.2015, accepted for hearing of the application and stay order has been granted to the order in question till the date of next hearing and the hearing of the case is adjourned to 5.10.2015 and notices were issued to the parties to appear for the hearing and 1st Respondent is directed to send the records his court in advance. In the meanwhile, Advocates of both the parties were present on 29.07.2015 and prayed to advance the case, after considering the same the hearing of his case is posted to 13.08.2015. Thereafter, hearing has been conducted on the various dates from 13.08.2015 to 28.05.2015.

The petitioners in their petition made averments that originally, the bearing Sy.No.4 measuring 1.00 acres and Sy.No.6 measuring 2.08 guntas of Sathanur Village, Jala Hobli, Bangalore North Taluk belongs to one Munishamappa S/o Muniyappa, he availed loan from Primary Agricultural Development Bank, Devanahalli by mortgaging the said property and he became defaulter without discharging the loan hence, the Registrar of Co-operative Society of the Bank after conducting as per 77/1973-74 and passed an Award order on 4.1.1973, thereafter as per Execution Petition No.52/1974-75, when the said property put for public auction, father of the petitioners bid for the highest amount and the said auction

was confirmed on 30.6.1978 hence the said property came to be registered in favour of their father and the same was published even in the Gazette dated 28.2.1978 and their father and family members were in possession of the same.

Further, father of the 3rd respondent has filed tenancy application under Form-7 under Land Reforms Act against his father Munishamappa, in the said case he was not made as party respondent who has purchased the land in the auction, thus he came to know the fact of grant of occupancy right by the Land Tribunal in favour of the father of the 3rd respondent belatedly and challenged the order of the Land Tribunal before the Hon'ble High Court in W.P No.12045/1979, thereafter, the Hon'ble High Court remand the case to the Land Tribunal for fresh enquiry, again the Land Tribunal vide its order dated 13.07.1982 granted the tenancy rights in favour of the father of the 3rd respondent hence, once again the father of the Appellants 2 to 4 filed the WP No.28672/1982 before the Hon'ble High Court of Karnataka, the Hon'ble Court vide its order dated 17.09.1984 once again remanded the case to the Land Tribunal for conducting fresh enquiry, as against the said order the father of the 3rd Respondent, filed Writ Appeal in W.A.No.667/1985, at that time Appellate Authority of the Land Tribunal was constituted in the District Level, hence the Hon'ble Court transferred the case to the District Land Reforms Appellate Authority by set asiding the order of the Single Judge, thereafter, as per the Government order, the District Appellate Authority has been quashed hence once against when the father of the appellants filed C.Petition

before the Hon'ble High Court of Karnataka, the record has been transferred from the District Appellate Authority to the High Court, it was numbered as W.P.25394/1992 and the said petition came to be dismissed, thereafter once again C.P.No.1281/2001 filed for re-verification, the said petition also came to be dismissed, once again Revision Petition No.41/2002 has been filed, the same was also came to be dismissed.

Further informed that as their father has purchased the land in question in the auction by bidding for highest amount hence Miscellaneous Petition No.10/2005-06 came to filed under Sec.89C(3) of the Karnataka Co-operative Society Act before the Special Deputy Commissioner.

Further informed that, the father of the 3rd Respondent, by taking undue advantage of the dismissal of the Writ Petition and C.P , Revision Petitions filed by their father, filed an application before the Tahsildar and got transferred the Katha in favour of the father of the 3rd Respondent as per the order of the Land Tribunal, when the same was questioned before the Assistant Commissioner by them, the Assistant Commissioner after hearing the case, passed an order set asiding the order passed by the Tahsildar and directed to keep the records as in the past, as against the said order, father of the 3rd Respondent filed Revision petition in R.P.No.____/2004-05 before the Deputy Commissioner, the Special Deputy Commissioner dismissed the said petition and upheld the Misc.10/2005-06 filed by them, as against the order of the said Special Deputy Commissioner, father of the 3rd respondent filed

W.P No.1075/2007 before the Hon'ble High Court, the Hon'ble Court allowed the said writ petition, hence they have filed W.A.No.8592/2012 before the High Court of Karnataka, thereafter, the said appeal came to be withdrawn, and the appellants have filed Revision Petition in R.P No.1263/2014 praying to re-verify the order dated 25.3.2015 passed in Writ Appeal No.8592/12, the said revision petition is still pending, in the meantime, the 1st respondent has passed an order directing to transfer the Katha in favour of the 3rd Respondent, being aggrieved by the said order they have filed this Revision Petition.

Further, informed that the Assistant Commissioner has not passed the order in proper perspective, not perused the records and has passed the order in question, without understanding the order passed in Writ Petition and in Writ Appeal.

In return, the 3rd respondent has filed his objections, contending that the order in question is lawful and as per the order of the Land Tribunal, the land was granted them, the Hon'ble High Court of Karnataka, after perusing all the aspects mentioned by the revision petitioners in the Writ Petition, held that granting of landd as per the tenancy application filed under Land Reforms Act is proper and the land was purchased through Auction under Co-operative Societies Act as per the Land Reforms Act, the lands were vested with the Government as at 1.3.1974 hence bank loans does not stand, hence granting occupancy rights under the Land Reforms Act is valid and the revision petitioners have filed the Writ Appeal against the order

passed in the Writ Petition, have withdrawn the said Writ Appeal hence after perusing all these aspects, the 1st Respondent-Assistant Commissioner has passed an order directing to transfer the Katha in his favour, therefore prayed to dismiss the revision petition.

The Revision Petitioners have produced the copies of the Court Orders and RTC extracts and by reiterating the averments made in the revision petition and pray to set aside the order in question, by allowing the petition.

The averments made in the revision petition, written objections filed by the respondent and written arguments and copies of the documents produced by the revision petitioners have been perused in detail.

The Land Tribunal, granted the occupancy right in respect of the land in question in favour of the father of the 3rd respondent.

It appears that the same land has been purchased by the revision petitioners in the auction held under Co-operative Society Act hence they are claiming the rights.

It is clearly seen that, when the Legal Representatives of the 3rd respondent- Late Muniyappa @ Dommanna have filed W.P No.10750/2007 by making the revision petitioners as party respondents before the Hon'ble High Court of Karnataka, the Hon'ble Court, after hearing in detail passed an order on 2.11.2012 holding that the person who got tenancy right under the Land Reforms Act will have the right. As against the said order, the revision petitioners of this case, filed Writ Appeal in W.A No.8295/2012 before the Hon'ble High Court of

Karnataka, thereafter, they have withdrawn the said Appeal hence the Hon'ble Court vide its order dated 25.03.2014 passed an order as under:

"In the light of the statements made in the memo, as extracted supra, the instant appeal filed by the appellants is disposed of as withdrawn reserving liberty to the appellants to work out their remedy before the jurisdictional civil court and all contentions urged in writ appeal are left as per. It is needless to clarify the names of the contesting respondents entered in the record of right certifying the mutation shall be subject to the outcome of the judgement and decree to be passed in the suit to be filed by the appellants.

With these observations, the instant appeal stands disposed of."

Like this, the Writ Appeal of the Revision Petitioners has been disposed of, even though the said appellants have informed that they have filed the Revision Petition in R.P.No.1263/2014 before the Hon'ble Court, they have not obtained any stay order from the said Hon'ble Court.

While perusing the RTC extract pertaining to the land in question, it can be seen that the Katha has been transferred in the name M.Munegowda S/o Late Munivenkatappa, S.H.Dasegowda S/o Late Hemanna, S.H. Munivenkategowda S/o Late Hemanna, S.H.Gopalagowda S/o Late Hemanna vide M.R.3/2002-03 and Inheritance Katha and Partition vide MR.H/11/2012-13 and the same

has been entered in the RTC. But the First Respondent without issuing notice to the Kathedars as mentioned in the RTC, unilaterally passed an order directing to make entries in RTC and Mutation in the name of the 3rd Respondent. As per the provisions of the Karnataka Land Revenue Act, notices are to be issued to the interested parties and thereafter order has to be passed, in this case, order has been passed unilaterally, hence by coming to the conclusion to remand the case to the First Respondent, the following order has been passed.

-: ORDER :-

Revision Petition is allowed in part. The First Respondent is directed to issue notices to all the interested persons and to conduct the enquiry and after perusing the orders of the Hon'ble Court, pass an order.

This Order has been typed, mistakes corrected and pronounced in the Open Court in 26/6/18

Sd/-

(K.A. Dayanand)
Deputy Commissioner,
Bangalore Urban District

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ANNEXURE-P

BEFORE THE ASSISTANT COMMISSIONER BENGALURU NORTH
TALUK SUB - DIVISION, BENGALURU

R .A. (BNA) No. 171 / 2014-15

Sri. S.D. Avalappa

Vs

Appellant

The Special Tahsildar & Others

Respondents

**APPLICATION UNDER ORDER 1 RULE 10 read-with SECTION
151 OF THE CODE OF CIVIL PROCEDURE**

That for the reasons sworn to in the accompanying affidavit, the Appellant above named humbly prays that this Hon'ble Court may be pleased to Implead Proposed respondent No. 2 to 5 in the above case as they are proper and necessary party and for proper adjudication of the above case, in the interest of justice and equity.

Proposed respondent No. 2 to 5

2. Smt. Akkayamma
W/o Late Hemanna,
Aged 73 years,

3. Sri. Danegowda
S/o Late Hemanna,
Aged 57 years,

4. Sri. Munivenkategowda,
S/o Late Hemanna,
Aged 53 years,

5. Sri. Gopalagowda @ Prakash,
S/o Late Hemanna,
Aged 50 years,

Respondents 2 to 5 are residents
of Sathanur Village, Jala Hobli,
Bengaluru North (Addl.) Taluk.

Proposed Respondents

Place : Bengaluru

Dated : 14.12.2018

14-12-18

Advocate for Appellant

BEFORE THE ASSISTANT COMMISSIONER BENGALURU NORTH
TALUK SUB-DIVISION, BANGALORE

R.A. (BNA) No. 171/2014-15

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BETWEEN:

Sri. Avalappa

Appellant

And

The Special Tahsildar

Respondent

AFFIDAVIT

I, Sri.Avalappa, S/o Late. Muniyappa @ Dommanna, Aged about 52 Years, resident of Sathanur Village, Jala Hobli, Bengaluru North (Addl.) Taluk, do hereby solemnly affirm and state on oath as follows:-

1. I am the appellant and I know the facts of the case. Hence I have sworn to this affidavit.
2. I have filed the above appeal before this Hon'ble Court seeking to set aside the order passed by the respondent no.1 and the said appeal came to be allowed on 22.12.2014 on merits.

I further affirm that the proposed respondent no. 2 to 5 preferred R.P.No.99 of 2015-16 before the Hon'ble Special Deputy Commissioner, Bengaluru Urban, Bengaluru and by order dated 26.06.2018 passed in the said R.P, the matter came to be remanded before this Hon'ble Authority.

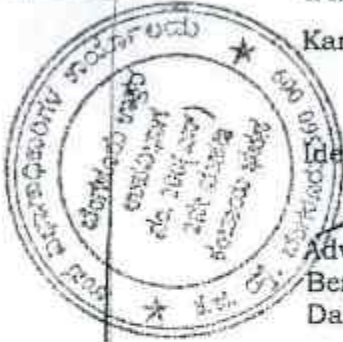
4. The Deputy Commissioner has further directed this Hon'ble Authority to issue notice to all the parties i.e., proposed respondent no.2 to 5 to the appeal and decide the above appeal on merits. The proposed respondent no. 2 to 5 are necessary parties to the above appeal. Hence, this application to implead as additional respondent no. 2 to 5.
5. Wherefore I most respectfully pray that this Hon'ble Court may be pleased to allow the accompanying application as prayed for in the interest of justice and equity.

SD & VC



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I the deponent do hereby declare that what is stated in paras 1 to 5 are true to the best of my knowledge, information and belief. The signature affixed hereunder is my true and genuine signature and the contents are read over in Kannada language.



Identified By Me

Advocate

Bengaluru

Date. 14/12/18

[Signature]

Deponent
Sworn before Me



SWORN TO BEFORE ME

G.N. VENKATARAVANAPPA
B.A. LL.B.

ADVOCATE & NOTARY
Govt. of Karnataka
No. 103F, Krishna Building
Avenue Road, Bangalore-560 002

14 DEC 2018

No. of Corrections...

- | | |
|----------------------------|-------------------|
| 1) ಕೆಳಕಂಡವರು | : ಮೊದಲ ವಲಯ |
| 2) ಕೆಳಕಂಡ ದಿನಾಂಕ | : 8/12/18 |
| 3) ಕೆಳಕಂಡ ಕಾರ್ಯದವರು | : ಸಿ.ಆರ್. ಸಿ.ಆರ್. |
| 4) ಕೆಳಕಂಡ ಮುಖಾಂತರ ಮಾಡಿದವರು | : 8/12/18 |
| 5) ಕೆಳಕಂಡ ದಿನಾಂಕ | : |
| 6) ಕೆಳಕಂಡ ದಿನಾಂಕ | : |
| 7) ಕೆಳಕಂಡ ಸಂಖ್ಯೆ | : |

ಭಾಷಾಂತರ ದೃಢೀಕರಿಸಿದೆ

[Signature]
ಶಾಂತವಿಠಲರಾಯ್ ಸುಬ್ಬರಾಜ್
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ
ಬೆಂಗಳೂರು.
8/12/18

33 ಸಂಖ್ಯೆ

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ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳವರ ನ್ಯಾಯಾಲಯ, ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ, ಕರೆದ್ವಾರ್ತಿ ಭವನ,

ಕೆ. ಜಿ. ರಸ್ತೆ, ಬೆಂಗಳೂರು

ಪ್ರಕರಣ ಸಂಖ್ಯೆ : ಆರ್‌ಎ [ಬಿ.ಎಸ್.ಎ] 171/2014-15

ANNEXURE-2

ಮೇಲ್ಕನವಿದಾರರು

1 ಶ್ರೀ ಆವಲವ್ವ ಬಿಸ್ ಲೇಟ್ ಮುನಿಯಪ್ಪ
@ ದೊಮ್ಮಣ್ಣ, ಸಾತನೂರು ಗ್ರಾಮ, ಜಾಲ
ಹೋಬಳಿ, ಬೆಂಗಳೂರು ಉತ್ತರ [ಅಪರ]
ತಾಲ್ಲೂಕು, ಬೆಂಗಳೂರು

ವಿರುದ್ಧ

ಪ್ರತಿಪಾದಿಗಳು

1 ವಿಶೇಷ ತಹಸೀಲ್ದಾರ್,
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ಬೆಂಗಳೂರು
ಜಿಲ್ಲಾಧಿಕಾರಿ ಕಛೇರಿ

2. ಅಧ್ಯಕ್ಷರು, ಎ/ಎಂ ಆರ್ ಹೋಮಿಮ್ಸ್

3. ವಿನೋದ್ 5/0 ಆರ್ ಹೋಮಿಮ್ಸ್

4. ಮುನೀಶ್ವರ 5/0 ಆರ್ ಹೋಮಿಮ್ಸ್

5. ಸಿಂಧು 5/0 ಆರ್ ಹೋಮಿಮ್ಸ್

ವಿಷಯ : ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ ಕಲಂ 136 [2]ರ ಪ್ರಕಾರ ಬೆಂಗಳೂರು ಉತ್ತರ
[ಅಪರ] ತಾಲ್ಲೂಕು, ಜಾಲ ಹೋಬಳಿ, ಸಾತನೂರು ಗ್ರಾಮದ ಸರ್ವೆ ಸಂ : 6ರಲ್ಲಿ
2-08 ಎಕರೆ / ಗುಂಟೆ, ಸರ್ವೆ ಸಂ : 4ರಲ್ಲಿ 1-00 ಎಕರೆ, ಜಮೀನಿನ ಬಗ್ಗೆ
ಸಂಖ್ಯೆ : ಆರ್‌ಆರ್‌ಟಿ ಜೆ ಸಿಆರ್ 70/2014-15 ರ ವಿರುದ್ಧ ಮೇಲ್ಕನವಿ.



1/8/2014	ನಡವಳಿಗಳು ಪಾದ ಅಲಿಸಿದೆ. ಅಮೇಲು ಅಂಗೀಕರಿಸಿದೆ. ಉಭಯತರಗೂ ನೋಟೀಸ್ ನೀಡಿದೆ. ವಿಚಾರಣೆಗೆ ದಿನಾಂಕ : 8/8/2014ಕ್ಕೆ ನಿಗದಿ ಪಡಿಸಿದೆ.
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ಉಪಸ್ಥಿತ ಅಧಿಕಾರಿಗಳ ಸಹಿ
ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು

8/8/14

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅನ್ಯ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವುದರಿಂದ
ಪ್ರಕರಣದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ...14/11/14...ಕ್ಕೆ
ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ
ಬೆಂಗಳೂರು ಉತ್ತರ ವಿಭಾಗ

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14/11/14



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ಕ್ರ. ಸಂ. / ಯಾರಿಗೆ ಗುರುತಿಸಿದೆ

ವಿಷಯ ವಿವರಣೆ : ಅಭಿಪ್ರಾಯ : ಆದೇಶ

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೨/12/18

ಪ್ರಕರಣವನ್ನು ಕರೆಸಲಾಯಿತು ಮೇಲ್ಮನವಿದಾರರು ಹಾಗೂ ಪ್ರತಿವಾದಿಗಳು ಗೈರು ಹಾಜರು ದಿನಾಂಕ: 19/12/18 ಕ್ಕೆ ಮುಂದೂಡಲಾಗಿದೆ.

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪ-ವಿಭಾಗ

14/12/18

ಎಡಿ. ಸಿ.ಎಂ. ಸುಪ್ರೀಡ್‌ಯಿಂಗ್ ಆಫ್
R. 2 to 5 ಸಿ.ಡಿ.ಎಸ್. 12th to
13th application process ಸಿ.ಡಿ.ಎಸ್.
ಬಿ. 11.1.19 ಮೊದಲನೆಯ



(Signature)

11/01/19

ಪ್ರಕರಣವನ್ನು ಕರೆಸಲಾಯಿತು ಮೇಲ್ಮನವಿದಾರರು ಹಾಗೂ ಪ್ರತಿವಾದಿಗಳು ಗೈರು ಹಾಜರು ದಿನಾಂಕ: 11/01/19 ಕ್ಕೆ ಮುಂದೂಡಲಾಗಿದೆ.

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪ-ವಿಭಾಗ

22/2/19

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅನ್ವ. ಕಾರ್ಯದ ನಿರ್ದೇಶಕರೊಡನೆ ಪ್ರತಿವಾದಿಗಳ ಮೊದಲನೆಯ ಅಭಿಪ್ರಾಯ: 22/3/19 ಕ್ಕೆ ಮುಂದೂಡಲಾಗಿದೆ.

ವ್ಯವಸ್ಥಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪ-ವಿಭಾಗ

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ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ, ಬೆಂಗಳೂರು

ಪುಟ ಸಂಖ್ಯೆ

(ಮುಂದುವರಿದ ಪುಟ)

ಖಂಡಿತ ಸಂಖ್ಯೆ	ಯಾರಿಗೆ ಗುರುತಿಸಿದೆ	ವಿಷಯ ವಿವರಣೆ : ಅಭಿಪ್ರಾಯ : ಆದೇಶ
		ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅಪ್ಪ ಕಾರ್ಯ ನಿರ್ವಹಿಸಿರುವುದರಿಂದ ಪ್ರಸಾರದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 31/05/19.ಕ್ಕೆ ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ ವ್ಯವಸ್ಥಾಪಕರು ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ
31/5/19		ಲಾಡಿ ವೆಚ್ಚದ ಕುರಿತು. ಹಾಕಿ ಅನುಮತಿ - R.ರಾಜ್ ಸಾರಾಂಜಿ. @ 28.6.19ಕ್ಕೆ ಮುಂದೂಡಿದೆ. 31/5/19
28.6.19		ಲಾಡಿ ವೆಚ್ಚದ ಕುರಿತು. ಸಿ.ರಾಜೇಶ್ ಸಾರಾಂಜಿ. @ 16.8.19ಕ್ಕೆ ಮುಂದೂಡಿದೆ 28/6/19
16/8/19		ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅಪ್ಪ ಕಾರ್ಯ ನಿರ್ವಹಿಸಿರುವುದರಿಂದ ಪ್ರಸಾರದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 4/10/19.ಕ್ಕೆ ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ ವ್ಯವಸ್ಥಾಪಕರು ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ

ಮುಂದುವರಿದಿದೆ...

ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ, ಬೆಂಗಳೂರು

(ತುಂಬುವುದಕ್ಕೆ ಸೀಳು)

ಸಂಖ್ಯೆ

ವಿಂಡಿಕೆ
ಸಂಖ್ಯೆ

ಯಾರಿಗೆ
ಗುರುತಿಸಿದೆ

ವಿಷಯ ವಿವರಣೆ : ಅಭಿಪ್ರಾಯ : ಆದೇಶ

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4 10/19

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅನ್ಯ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವುದರಿಂದ
ಪ್ರಕರಣದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 05/10/19 ಕ್ಕೆ
ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ವ್ಯವಸ್ಥಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪ-ವಿಭಾಗ

25-10-2019

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nomus have been sent.
22 Ar pur pur. call



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ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅನ್ಯ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವುದರಿಂದ
ಪ್ರಕರಣದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 16/11/19 ಕ್ಕೆ
ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ವ್ಯವಸ್ಥಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ವಿಭಾಗ

ಮುಂದುವರಿದಿದೆ...

ಪುಟ ಸಂಖ್ಯೆ

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(ಮುಂದುವರಿದ ಕಾ)

ಖಂಡಿಕೆ ಸಂಖ್ಯೆ

ಯಾರಿಗೆ ಗುರುತಿಸಿದೆ

ವಿಷಯ ವಿವರಣೆ : ಅಭಿಪ್ರಾಯ : ಆದೇಶ

16-11-20

Case call. A and B
part. R in part. Return
min to R Kugh RPA
Steps taken. Call on 13-12-20

ಶ್ರೀ
ಶ್ರೀ ಜಿ.ಎ.ಎ.ಎ.



ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅನ್ಯ ಕಾರ್ಯ ನಿರ್ವಹಿಸುವುದರಿಂದ
ಪ್ರಕರಣದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 31/12/20ಕ್ಕೆ
ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ವ್ಯವಸ್ಥಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ

03/01/20
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅನ್ಯ ಕಾರ್ಯ ನಿರ್ವಹಿಸುವುದರಿಂದ
ಪ್ರಕರಣದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 17/01/20ಕ್ಕೆ
ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ವ್ಯವಸ್ಥಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ

17/1/2020
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅನ್ಯ ಕಾರ್ಯ ನಿರ್ವಹಿಸುವುದರಿಂದ
ಪ್ರಕರಣದ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 06/3/2020ಕ್ಕೆ
ಮುಂದೂಡಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ವ್ಯವಸ್ಥಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ

ಮುಂದುವರಿದಿದೆ...

ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಬೆಂಗಳೂರು ಉತ್ತರ ಉಪವಿಭಾಗ, ಬೆಂಗಳೂರು.

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(ಮುಂದುವರಿಸಿದ ಪಾಳೆ)

ಸಂಖ್ಯೆ

ಖಂಡಿತ
ಸಂಖ್ಯೆ

ಯಾರಿಗೆ
ಗುರಿತಿದೆ

ವಿಷಯ ವಿವರಣೆ : ಅಭಿಪ್ರಾಯ : ಆದೇಶ

06/3/2020

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅಭಿ ಪ್ರಾಯ - ನಿರ್ದೇಶನಗೈರುವುದರಿಂದ
ಇದರಂತೆ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 09/5/2020
ಮುಂದುವರಿಸಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ಪ್ರವೃತ್ತಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ವಿಭಾಗ

ಪ್ರಕಟಣೆಯನ್ನು ಕರೆಸಲಾಯಿತು ಮೇಲ್ಪ್ರತಿವಿಚಾರಣೆ ಹಾಗೂ
09/05/2020 ಪ್ರತಿವಾದಿಗಳು ಗೈರು ಹಾಜರು 08/8/2020
ಮುಂದುವರಿಸಲಾಗಿದೆ.



ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉತ್ತರ ವಿಭಾಗ

One clw. Request and
filed vehicle. A not part.
A is directed to furnish 15
April copy. c/c all.

03-10-2020

- 1) ನಕಲು ಕೋರಿದವರು : ಪಾಪ ಕೊಂಡಿಲೆಲಿ
- 2) ನಕಲು ಕೋರಿದ ದಿನಾಂಕ : 8/8/2020
- 3) ನಕಲು ಕೊಡಲಾಯಿತಾದವರು :
- 4) ನಕಲು ಮುಂದುವರೆ ಪಡೆದವರು : ಸಿ.ಎ.ಎಸ್. ಸಂಖ್ಯೆ
- 5) ನಕಲು ತಯಾರಿಸಿದ ದಿನಾಂಕ : 8/8/2020
- 6) ನಕಲು ವಿತರಿಸಿದ ದಿನಾಂಕ : 8/8/2020
- 7) ಸಿ.ಎ.ಎಸ್. ಸಂಖ್ಯೆ :

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಅಭಿ ಪ್ರಾಯ - ನಿರ್ದೇಶನಗೈರುವುದರಿಂದ
ಇದರಂತೆ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ 09/10/2020
ಮುಂದುವರಿಸಲಾಗಿದೆ. ಆದೇಶದ ಮೇರೆಗೆ

ಪ್ರವೃತ್ತಾಪಕರು
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ವಿಭಾಗ

ಮುಂದುವರಿದಿದೆ..

"ಭಾಂಯಾಪ್ರತಿ ದೃಢೀಕರಿಸಿದೆ"

8/2/2021

TRANSLATED COPY OF ANNEXURE-Q

BEFORE THE ASSISTANT COMMISSIONER,
BANGALORE NORTH SUB DIVISION, KANDAYA
BHAVAN, K.G.ROAD, BANGALORE

Case No.RA(BNA).171/2014-15

<u>Appellants</u>	<u>V/s</u>	<u>Respondents</u>
1 Sri.Avalappa S/o Late Muniyappa @ Dommanna, Sathanur Village, Jala Hobli, Bangalore North (Addl) Taluk, Bangalore.		1. Special Tahsidar Bangalore North Taluk Bangalore. <u>Impleading Respondents</u> 2. Akkayamma W/o Late Hemanna 3. Dasegowda S/o Late Hemanna 4. Munivenkategowda S/o Late Hemanna 5. Gopalagowda @ Prakash S/o Late Hemanna

Sub: Appeal filed under Sec.136(2) of the
Karnataka Land Revenue Act, against
the Order No.RRT J CR.70/2014-15 in
respect of the land bearing Sy.No.6
measuring 2-08 acres/guntas, Sy.No.4
measuring 1-00 acres of Sathanur
Village, Jala Hobli, Bangalore North
(Addl) Taluk.

Date	Proceedings
1/8/2014	Heard the arguments. Appeal is accepted. Issue Notice to both the Parties. For hearing adjourned to 8/8/2014

Sd/-
Signature of the Presiding Officer
Assistant Commissioner

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-2-

8/8/2014 As the Assistant Commissioner is otherwise busy in some other work, the hearing of the case is adjourned to 14/11/14

By Order

Sd/-

Manager

Office of the Assistant Commissioner
Bangalore North Division

14/11/14 Adv for Appellant is Present.....

Sd/-

Adv for

Appellant

14/11/14

..... By the appellant. Hence

the matter

Posted for orders 22/12

22/12/14 Order passed

Sd/- 22/12/14

7/12/18 Case called. Appellant and Respondents absent. Adjourned to 14/12/18

Assistant Commissioner
Bangalore North Sub Division

14/12/18 Application under order 1 Rule 10 filed for impleading R2 to 5 Issue process case adjourned to 11.1.19. Sd/-

11/01/19 Case called. Appellant and Respondents absent. Adjourned to 22/2/19

Assistant Commissioner
Bangalore North Sub Division

22/2/19 As the Assistant Commissioner is otherwise busy in some other work, the hearing of the case is adjourned to 23/3/19

By Order

Sd/-

Manager

Office of the Assistant Commissioner
Bangalore North Sub Division

22/3/19 As the Assistant Commissioner is otherwise busy in some other work, the hearing of the case is adjourned to 31/05/19

By Order

Sd/-

Manager

Office of the Assistant Commissioner
Bangalore North Sub Division

31/5/19 Advocate for appellant present. Notice awaited. RPAD. Case adjourned to 28.6.19

Sd/-

28/6/19 Advocate for Appellate issued process. Case adjourned to 16.8.19

Sd/-

16/8/19 As the Assistant Commissioner is otherwise busy in some other work, the hearing of the case is adjourned to 4/10/19

By Order

Sd/-

Manager

Office of the Assistant Commissioner
Bangalore North Sub Division

4/10/19 As the Assistant Commissioner is otherwise busy in some other work, the hearing of the case is adjourned to 25/10/19

By Order

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Sd/-
Manager
Office of the Assistant Commissioner
Bangalore North Sub Division

25/10/2019 Case called. A ADV VS present Notices
have been sent. B.R. R No.2 present. Call on
08.11.2019

Sd/-

8/11/19 As the Assistant Commissioner is otherwise
busy in some other work, the hearing of the
case is adjourned to 16/11/19

By Order

Sd/-
Manager
Office of the Assistant Commissioner
Bangalore North Sub Division

16/11/2019 Case Called. A and BBM present. R No.2
present. Reissue notice to R through RPAD.
Steps Taken. Call on 13/12/2019.

Sd/-

13/12/19 As the Assistant Commissioner is otherwise
busy in some other work, the hearing of the
case is adjourned to 3/1/20

By Order

Sd/-
Manager
Office of the Assistant Commissioner
Bangalore North Sub Division

03/01/20 As the Assistant Commissioner is otherwise
busy in some other work, the hearing of the
case is adjourned to 17/01/20

By Order

Sd/-

Manager

Office of the Assistant Commissioner
Bangalore North Sub Division

17/1/2020 As the Assistant Commissioner is otherwise busy in some other work, the hearing of the case is adjourned to 06/3/2020

By Order

Sd/-

Manager

Office of the Assistant Commissioner
Bangalore North Sub Division

06/3/2020 As the Assistant Commissioner is otherwise busy in some other work, the hearing of the case is adjourned to 29/05/2020

By Order

Sd/-

Manager

Office of the Assistant Commissioner
Bangalore North Sub Division

29/05/2020 Case called. Appellant and Respondents absent. Adjourned to 28/8/2020

Assistant Commissioner
Bangalore North Sub Division

28/8/2020 Case called. R 2 to 5 Adv present. Filed Vakalath. A not present. A is directed to furnish the appeal copy. Call on 09/10/2020.

Sd/-

//TRUE COPY//

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WP NO.4339/2021 (KLR)

BETWEEN:

S D Avalappa

... Petitioner

And:

The Deputy Commissioner and others

... Respondents

**STATEMENT OF OBJECTIONS FILED BY THE
RESPONDENT NO.4 TO 7 TO THE MAIN PETITION**

1. The Respondents No.4 to 7 submits that the writ petition is not maintainable in law and facts of the case and Hence, liable to be dismissed in limine.
2. The Respondent No. 4 to 7 denies all the averments made by the Petitioner in the writ petition other than those which are specifically admitted herein.
3. The Respondent No.4 to 7 respectfully submits that the order under challenge in this petition is passed by the 1st Respondent on 26.06.2018 during which period the parties were litigating in respect of the same in WP No.56087/2016 before this Honble court. Therefore, it is submitted that the Petition suffers from delay and laches on the part of the Petitioner.
4. The Respondent No.4 to 7 submit that, on 17.01.1979, Doomanna @ Muniyappa filed Form No.7 claiming occupancy rights in respect of 2 Acre 8 Gunta of land in Sy No.6 and 1 Acre of land in Sy No.4 of Sathanuru Village, Jala Hobli, Devanahalli Taluk (Now Bengaluru North Taluk) against Late Hemanna and others in LRF No.1/1979-80 before the Land Tribunal, Devanahalli Taluk. The said Dhomanna died on 25.09.1991.



5. It is submitted that Muniswamappa, the father of Doomannna@ Muniyappa was the owner of the above said lands. The father of the original applicant borrowed loan from Primary Land Development Bank, Devanahalli by mortgaging the aforesaid land on 13.08.1965. In view of the default by the borrower, the above said lands came to be brought for sale in public auction and the Huband of the Appellant No.1 and father of the Appellant no. 2 to 4 purchased the said lands in the public auction and the sale certificate came to be issued on 30.06.1978. A Copy of the sale certificate is herewith produced and marked as **ANNEXURE-R1.**

6. It is submitted that original applicant who is the son of Muniswamappa filed Form No.7 on 17.01.1979 claiming occupancy rights over the said land claiming that the property belonged to Joint Family and in the partition dated 07.09.1965, the above said two lands came to be allotted to the share of Muniswamappa and after sometime the father had leased the lands to the original applicant. Before the proceedings in the Land Tribunal, Late Hemanna appeared and filed statement of objections.

7. It is submitted that during the pendency of the proceedings before the Land Tribunal, the Land Tribunal appointed the Revenue Inspector Jala Hobli, as receiver of the subject lands. This Honble Court by order dated 06.11.1979 in WP No.12045/1979 modified the order of the Land Tribunal by appointing Late Hemanna as receiver pending disposal of the Form No.7 proceedings with directions to deposit the value of the crops after deducting the expenses. The Land Tribunal after holding the enquiry by an order dated 13.07.1982 allowed Form No.7 by registering Doomanna @ Muniyappa as occupant of the land. The said order passed by the Land Tribunal dated 13.07.1982 is challenged before this Hon'ble court in WP No.28672/1982 by Late Hemanna. This Honble court by an order dated 17.09.1984 allowed the writ petition by quashing the order of the Land Tribunal and remitted the matter for fresh consideration as per law. A Copy of the order passed by this Honble Court in WP No.28672/1982 dated 17.09.1984 is herewith produced and marked as **ANNEXURE-R2.**





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8. The order of the Learned Single Judge in WP No.28672/1982 came to be challenged by the original tenant before the Division Bench of this Honble court in WA No.667/1985 and this Honble court by an order dated 16.09.1987 allowed the writ appeal and the order of the learned single judge came to be set aside and the writ petition came to be transferred to Appellate Authority under the Act. It is submitted that, thereafter, in view of the abolition of the Appellate Authority once again the Applications were filed to treat the Appeal as writ petition in WP No.25394/1992. This Honble court by an order dated 12.07.1993 dismissed the petition for non-prosecution. Late Hemanna filed an application for recalling the order dated 12.07.1993 which is numbered as CP No.1281/2001 which came to be rejected on 07.12.2001. The copy of the order passed in WA No.667/1985, the order passed by this Honble Court in WP No.25394/1992 dated 12.07.1983 and the order passed in CP No.1281/2001 dated 07.12.2001 are herewith produced and marked as **ANNEXURE- R3, R4 & R5** respectively.

9. In the meantime, the legal representatives of original tenant had applied for mutation in their name consequent to the death of original tenant. The said proceedings came to be registered as disputed case in RRT No.32/2001-02. The Tahasildar by an order dated 15.11.2003 ordered to mutate the names of the legal heirs of the original tenant which is made subject to the result of the review petition. The order passed by the Tahasildar is challenged by Late Hemanna before the Assistant Commissioner, Bangalore North Sub-division, in RA No.50/2004-05, which came to be allowed by setting aside the order passed by the Tahasildar by an order dated 07.09.2004.

10. In the interregnum, the order passed in CP No.1281/2001 is sought to be reviewed by filing a review petition by Late Hemanna in RP No.41/2002 which came to be rejected by this Honble court by an order dated 26.08.2004. A Copy of the order passed in RP No.41/2002 is herewith produced and marked as **ANNEXURE-R6**.

12. The Order passed by the Assistant Commissioner in RA No.50/2004-05 came to be challenged by the Legal Hiers of the original tenant by

filing Revision Petition in RP No.97/2004-05 and Late Hemanna filed Misc Appeal No.10/2005-06 seeking restoration of title to the auction purchaser as per the provisions of the Karnataka Co Operative Societies Act. The Deputy Commissioner by an order dated 22.06.2007 dismissed the revision petition and allowed misc petition. A Copy of the order dated 22.06.2007 is herewith produced and marked as **ANNEXURE-R7**.

13.The Order passed by the Assistant Commissioner and Deputy Commissioner, are challenged before the Learned Single Judge of this Honble Court by filing a writ petition in WP No.10750/2007 by the legal heirs of original tenant. The Learned Single Judge of this Honble court by an order dated 02.11.2012 allowed writ petition and the orders passed by the Assistant Commissioner and Deputy Commissioner are set aside. A Copy of the order dated 02.11.2012 is herewith produced and marked as **ANNEXURE-R8**.

14.The order passed in WP No.10750/2007 dated 02.11.2012 came to be challenged by these Respondents by filing writ appeal in WA No.8592/2012. It is submitted that in the course of hearing without instructions from these Respondents, the Advocate filed a memo seeking to withdraw the appeal with liberty to file a civil suit for declaration of title. These Respondents herein have filed a review petition seeking to review the order passed in WA No.8592/2012 which came to be rejected by this Honble court by an order dated 14.07.2016. A Copy of the order passed in Writ Appeal No.8592/2012 and the order passed in RP No.1263/2014 are herewith produced and marked as **ANNEXURE-R9 & R10** respectively.

15. It is submitted that at that point of time since the original order of the Land Tribunal having not been challenged directly in view of the abolition of the Appellate Authority, these Respondents filed writ petition in WP No.56087/2016 (LR) before this Honble court against the 4th Respondent herein challenging the original order passed by the Land Tribunal dated 13.07.1982 in LRF No.1/1979-80. A Certified Copy of the Writ Petition is herewith produced and marked as **ANNEXURE-R11**. In



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the said writ petition notices were ordered by this Honble court. The Respondents in the said writ petition including the Petitioner herein entered appearance in the said writ petition and filed statement of objections. The Learned Single Judge of this Honble court on 07.03.2017 has recorded an order in WP No.56087/2016 as under:

"Both Learned Counsels submits that the matter requires to be heard at length. The primary issue is one of delay. Hence, keeping open the question of delay, post the matter for hearing."

Thereafter the matter was being posted on various hearing dates and for one reason or the other the matter could not be taken up for consideration by this Honble court and the matter is pending for consideration. A Certified Copy of the entire order sheet in WP No.56087/2016 is herewith produced and marked as **ANNEXURE-R12**.

16. It is submitted that, fact being thus, the revenue entry in respect of the land stood in the name of these Respondents as on the date of the disposal of the Writ Appeal. Based on the orders passed by this Honble court in Writ Appeal 8592/2012, the Special Tahasildar, Bengaluru North Taluk passed an order on 25.06.2014 directing to retain the revenue entry as it was on 25.03.2014 till the outcome of the judgement and decree that would be passed by the court of law. The said order is produced as Annexure- L to the writ petition. The Petitioner herein has challenged the said order by filing an appeal in RA (BNA) No.171/2014-15 before the Assistant Commissioner, Bangalore North Sub-Division. The Assistant Commissioner Bangalore North Sub-Division, by an order dated 22.12.2014 allowed the appeal setting aside the impugned order dated 25.06.2014 and directed to restore the entries in the name of the Legal heirs of Doomanna @ Muniyappa in Records of rights. It is relevant to mention here that these Respondents are not made parties to the appeal proceedings even though they are the existing khathedars. The said order is produced in the writ petition as Annexure-M. The Respondents herein have challenged the order passed by the Assistant Commissioner in RA (BNA) No.171/2014-15 by filing a revision petition in RP No.99/2015-16. The Deputy

(*And*)

6

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Commissioner by an order dated 26.06.2018 allowed the revision petition and remitted the matter for fresh consideration to the Assistant Commissioner. The said order is produced in the writ petition as Annexure-N.

17. It is submitted that, pursuant to the remand the proceedings is taken up by the Assistant Commissioner, and by an order dated 23.04.2021 the appeal before the Assistant Commissioner in RA (BNA) No.171/2014-15 came to be dismissed. A Copy of the order dated 23.04.2021 is herewith produced and marked as **ANNEXURE-R13**. These Respondents now received a notice from the office of Assistant Commissioner, Bengaluru North Sub-Division, to the effect that the order dated 23.04.2021 dismissing the Appeal is recalled and the appeal is restored to file for fresh hearing pursuant to the order passed by the Learned Single Judge of this Honble court in WP No.4339/2021 and hearing is fixed on 31.01.2022. On receipt of the notice from the office of Assistant Commissioner, these Respondents secured the records and came to be know that, the order of the Deputy Commissioner in RP No.99/2015-16 dated 26.06.2018 is challenged by the Petitioner in the writ petition. These Respondents submits that the Petitioner has suppressed material fact about the pendency of the writ petition in WP No.56087/2016 under which the order of the Land Tribunal is directly in issue. This Honble court on 19.03.2021 has considered the writ petition for preliminary hearing and passed an interim order dispensing notice to these Respondents and ordered to restore revenue entry in the name of Petitioner.

18. It is submitted that these Respondents have challenged the interim order passed by this Honble dated 19.03.2021 in WP No.4339/2021 (KLR) by filing an appeal in WA No.106/2022 which came to be disposed of with a direction to approach the Learned Single Judge by an order dated 10.02.2022. A Copy of the order is herewith produced and marked as **ANNEXURE-R14**.

19. It is submitted that the Petition is liable to be dismissed for suppression of material fact. The Petition being a party to the proceedings in WP No.56087/2016 and the matter having been pending



for hearing, the Petitioner ought to have brought to the notice of this Honble Court about the same. Therefore, the said fact is material fact which has been suppressed from this Honble court and therefore the same is liable to be dismissed for suppression of fact.

20. It is submitted that, in view of the pendency of the writ petition in which the validity of the original order passed by the Land Tribunal is directly in question, the status quo with regard to revenue entry ought to have been maintained which is done by the Special Tahasildar. The said order has been interfered with by the Assistant Commissioner without notice to these Respondents. The Deputy Commissioner has set aside the said order and remitted the matter for fresh consideration. After remand the proceedings has taken place with the participation of each of the parties. Therefore, no prejudice is caused to the Petitioner by the impugned order. The Petition is liable to be dismissed. The Respondent No.4 to 7 in reply to the averments in the petition submits as under:

21. The averments made in paragraph No.1 of the writ petition is hereby denied as false. The order having been passed under Sec.136 (3) of the Karnataka Land Revenue Act, the scope of the interference by this Honble Court under Article 226 and 227 of the Constitution of India is very much limited.

22. The averments made in paragraph 2 of the writ petition is hereby denied to the extent the same is contrary to the facts narrated above.

23. The averments made in paragraph 3 to 13 of the writ petition are hereby denied to the extent the same is contrary to the facts narrated above.

Wherefore, the Respondents no.4 to 7 respectfully pray that this Hon'ble court may be pleased to dismiss the writ petition with exemplary cost in the interest of justice and equity.

Bengaluru

Date: 23/02/2022.

Advocate for Respondent No.4 to 7

(G.B. Shastri)

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WP No.4339/2021

Between:

Sri. S.D.Avalappa

..Petitioner

And:

The Deputy Commissioner,
Bangalore District & others

..Respondents

Verifying Affidavit

I, Danegowda S/o Late Hemanna aged about 60 years, R/at Sathanur Village, Jala Hobli, Bangalore North (Addl.) Taluk, now Yelahnika Taluk, Bengaluru District- 560 064 do hereby solemnly affirm and state on oath as follows:

1. I am the fifth respondent in the above writ petition. I am acquainted with the facts of the case. Hence, I am swearing this affidavit.
2. The contention of Para 1 to ⁵23 of the statement of objection, accompanying this affidavit, is true and correct to the best of my knowledge, belief and information.
3. The documents produced as Annexure -"R-1" to Annexure -"R-14"⁵ are the true copies of the originals.

I, the Deponent above named do hereby state verify and declare that, what is stated above are true and correct to the best of my knowledge information and belief and this is my name and signature

Identified by me,

Advocate

Bengaluru

Date: 23/02/2022

No. of correction



"Deponent"

SWORN TO BEFORE ME

LAKSHMINARAYANA, BA, LLB

Advocate & Notary Public
Government of India

15, 1st Main, 2nd Cross
Near Impact College, Amco Layout, Kodigehalli
Bengaluru Urban Karnataka - 560 092
Sl. No: Page No:

194

ANNEXURE R-1

This document consists of 194 sheets

Sheet of document No. 194

500Rs.



FORM No.10.

-R.C.S. 53

22

Certificate of sale issued under sub-rule(7) of Rule 39 of
the Rules framed under the Karnataka Co-operative Societies Act
of 1959.

-o o o-

Name: G.K.Narasimha Murthy, B.Sc., CDC.,
Assistant Registrar of Co-operative Societies,
Doddaballepur Sub-Division, Doddaballepur.

05218/81

Received on

10/8/81

V.



Execution Petition No.52/74-75

Primary Land Development
Bank Ltd.,
Devanahalli Taluk,
Devanahalli.

Verses

Minishamappa s/o Doomananavara
uniyappa, Sathanur,
Devanahalli Taluk.

This is to certify that HEVANNA son of Anivenkatappa,
Sathanur Village, Devanahalli Taluk, Castavakkalga religion Hindu,
Cultivator (profession) residing in the village of Sathanur of
Devanahalli Taluk in the Bangalore district has purchased at
Sathanur Village in a Public auction held by one of the Sale
Officers of L.V.O. Cum Sale Officer, P.L.D.Bank, Devanahalli,
Bangalore District the undersentioned immovable property

..... 2

195



16 DEC 1978

No 513-517 Re. 500/-
Name: Sri. S. S. Srinivasan
Date: 6-12-1978

B. R. Krishna Murli
B. R. Krishna Murli
Stamp Vendor,
BAGALUR.

Presented in the Office of the
Sub-Registrar of Devanahalli
Between the Hours of 12 PM and 1 PM
On 14-12-1922 By CC 107

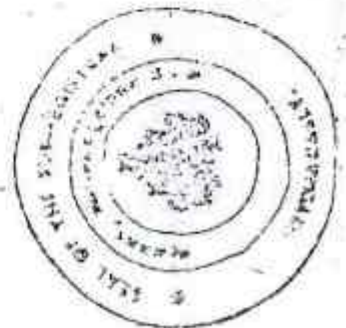
RECEIVED FEE FOR:
Registration
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R. B.

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I am satisfied as to the execution of this document by Sri G.K. Narasimha Murthy, Assistant Registrar Co-operative Societies - Bangalore Nagar Sub Division, Doddaballapur who is exempted from previous appearance before me under Section 28 of the Indian Registration Act, 1908, (vide his letter no ASD/5XN/388/23.25 dated 2.12.78)

NOT-REGISTERED
Devarakoddi

Recd at No. 1727, p. 78-79
From ¹²⁷ Volume 1221 of Box 7
Total 14.12.78

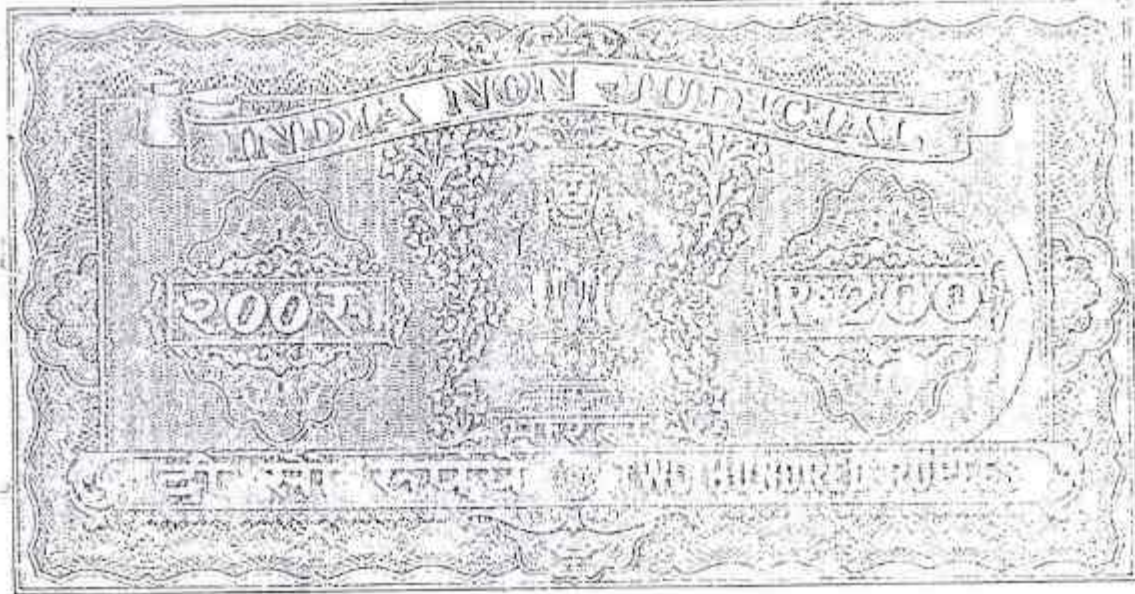


196

Sheet of Document No. _____

200Rs

Murthy
a Murthi
dor,
J.R.



- 2 -

29

sold for arrears due to Primary Land Development Bank Ltd.,
 Devanahalli by Sri Minishamma, son of Deomannanavara
 'Mandyappa Caste' religion Hindu Land holder (profession)
 in the village of Sathamur of Devanahalli Taluk in Bangalore
 District in execution of decree/award/decision/order No.77/73-74
 & C.E.P.No.52/74-75 dated 4-11-73 on the file of the Deputy
 Registrar of C.S., Bangalore(R) District and has paid the full
 amount of the purchase money, viz, Rs.11,000=00 and that the
 sale has been duly confirmed by me on 30th of June 1978.

(G.K.Narasimha Murthy)
 Assistant Registrar of Coop.Societies,
 Doddaballapur Sub-Dvn.,
 Doddaballapur.

REGISTRY
 devanahalli

197

Sheet of documents No. 197

200Rs.



- 3 -

30

Schedule of Properties.

Registration District	Bangalore District.
Registration sub-district	Devanahalli
Taluk	Devanahalli
Village	Sathanur

(Description of Properties & Boundaries)

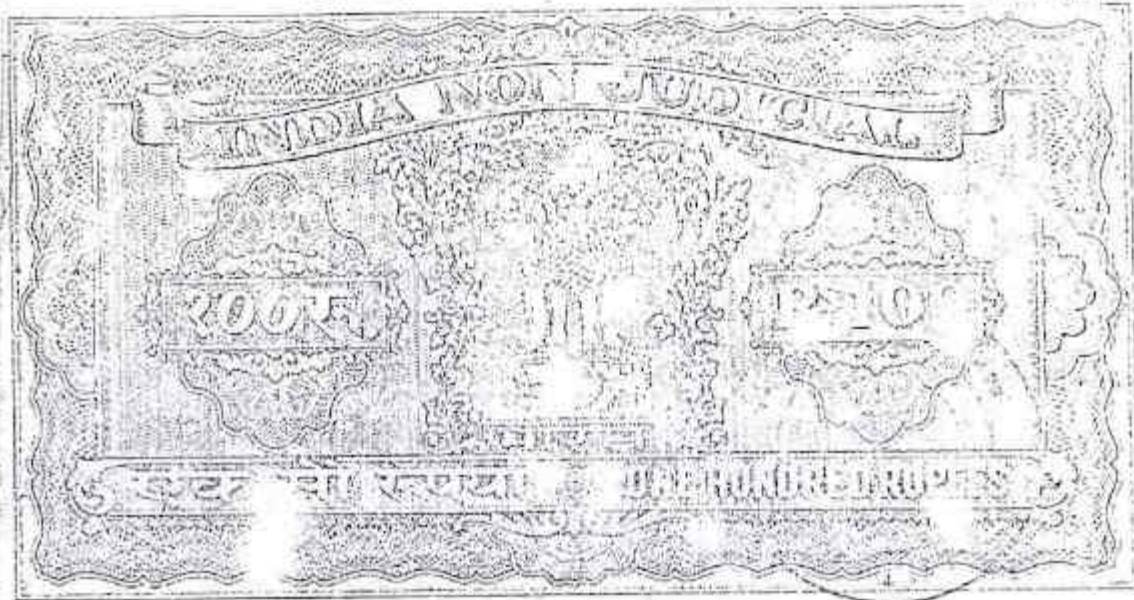


Taluk	Village/Town	S.No.	Kind	Extent	Boundaries
Devanahalli	Sathanur	4	Wet	13-00	East: Babyjan Land West: Kareekhan "
--do--	--do--	6	Wet	8-00	North: Hosahalli Gadi South: Habbeekhan Land

Contd.... 4

198

100Rs.



= 4 =

31

Survey No. 4 and 6

Letter No. LVO/PLDB/DRL/30/230/77-78 Dt. 30-6-78 from Land Valuation
Officer, P.L.D. Bank Ltd., Devanahalli.

Name : Munishamappa s/o Doornanavara Vinayappa, Sathamur Village,
Devanahalli Taluk.



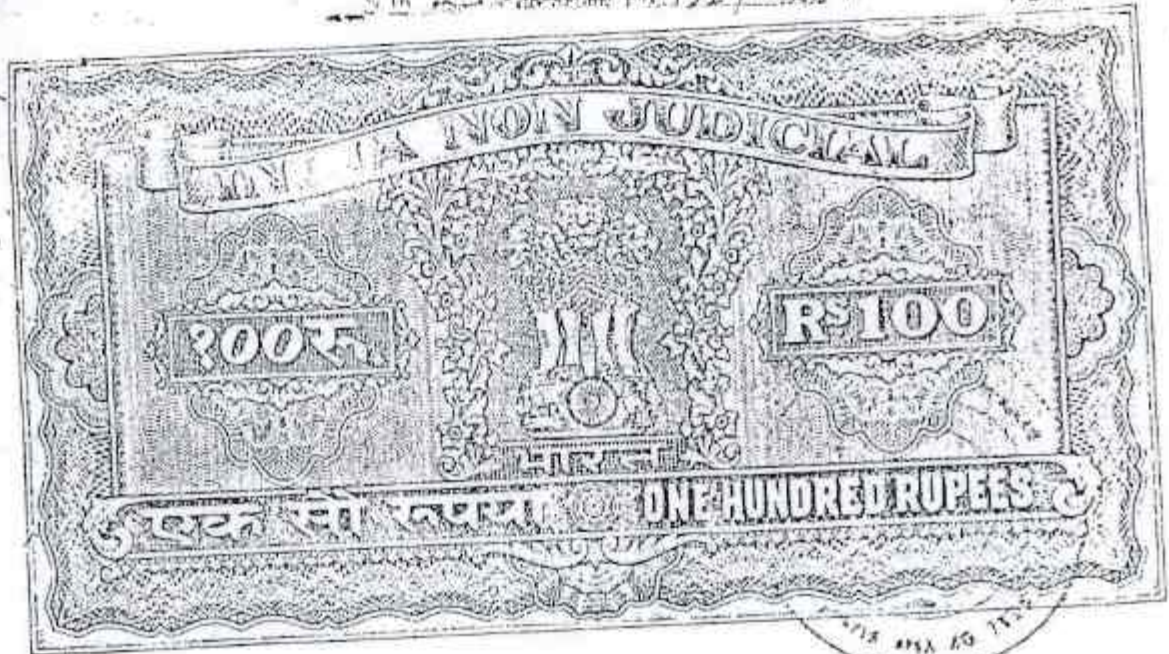
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Contd.... 5

199

5th of December 1978

100Rs.



- 5 -

Estimated extent. Acs. 5-29 Cents

Assessment Rs. 21-00P

Sale Price for each lot Rs. 11,000-00 (Rupees Eleven thousand) only.



Date of Sale: 17-4-1978.

Given under my hand and seal this Twelfth day of December 1978.

Station: Doddaballapura.

12-12-1978.

Assistant Regl. of C.E.,
Doddaballapur Sub-Dyn.,
Doddaballapur.

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200

ANNEXURE-

R-1

FORM No.10

Certificate of sale issued under sub-rule (7) of Rule 38 of the Rules framed under the Karnataka Co-operative Societies act of 1959.

Name: G.K.Nasrasimha Murthy, B.Sc., GDC.,
Assistant Registrar of Co-operative Societies
Doddaballapur Sub-Division, Doddaballapur.

Execution Petition No.52/74-75

Primary Land Development Bank Ltd., Devanahalli Taluk, Devanahalli	Versus	Munishamappa S/o Doomannanavara Muniyappa, Sathanur Devanahalli Taluk
--	--------	--

This is to certify that HEMANNA son of Munivenkatappa, Sathanur Village, Devanahalli Taluk, Caste, Vakkaliga religion Hindu, Cultivator (Profession) residing in the village of Sathanur of Devanahalli Taluk in the Bangalore district has purchased at Sathanur Village in a Public auction held by one of the Sale Officers of L.V.O. Cum Sale Officer, P.L.D.Bank, Devanahalli, Bangalore District the undermentioned immovable property old for arrears due to Primary Land Development Bank Ltd., Devanahalli by Sri Munishamappa, son of Doomannanavara Muniyappa Caste Vokkaliga religion Hindu, Land holder (profession) in the village of sathanur of Devanahalli Taluk in Bangalore District in execution of decree/award/decision/order No.77/73-74 C.E.P.No.52/74/75 dated 4-11-73 on the file of the Deputy Registrar of C.S. Bangalore (R) District and has paid the full amount of the purchase money, viz.

201

Rs.11,000-00 and that the sale has been duly confirmed
by me on 30th of June 1978.

Sd/-
(G.K.Narasimha Murthy)
Assistant Registrar of Co-op. Societies,
Doddaballapur Sub-Dvn.,
Doddaballapur.

Schedule of Properties

Registration District : Bangalore District
Registration Sub-District: Devanahalli
Taluk : Devanahalli
Village : Sathanur

Description of Properties (Boundaries)

Taluk	Village/ Town	S. No.	Kind	Extent	Boundaries
Devana Halli	Sathanur	4	Wet	3-21	East: Babyjan Land West: Karcemkhan
-do-	-do-	6	Wet	2.08	North: Hosahalli Gadi South: Habeebkhan Land

Survey No.4 and 6

Letter No.LVO/PLDB/DHL/SO/230/77-78 Dt. 30-6-78
From Land Valuation Officer, P.L.D.Bank Ltd.,
Devanahalli.

Name: Munishamappa S/o Doomannavara Muniyappa,
Sathanur Village, Devanahalli Taluk.

Estimated extent. Acs. 5-29 Cents

Assessment : Rs.21-00P

Sale Price for lot Rs.11,000-00 (Rupees Eleven thousand)
only.

Date of Sale : 17-4-1978

Given under my hand and seal this Twelfth day of
December 1978.

Station : Doddaballapura

Date: 12-12-1978

Sd/-
Assistant Registrar of C.S.
Doddaballapur Sub-Dvn.,
Doddaballapur.

17

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Amara - R-2

Amara

D B E 6511, 6512/84 n/1284



IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THE 17TH DAY OF SEPTEMBER 1984

BEFORE:

HON'BLE MR. JUSTICE P.P. BOPANKA

WRT PETITION NUMBER 28672 OF 1982

0/1

R-2

Hemanna son of Mani-
venkatappa, aged about
50 years, Sathanur village
Jala Hobli, Devanahalli Tq.,
Bangalore District.

.. Petitioner **DESPATCHED**

(By Sri M.S. Ramachanura for petr.)

Vs.

1. Kunisappa alias Dhoomanna,
major, s/o Muniswamappa
(2nd respondent) Sathanur
village, Jala Hobli,
Devanahalli Taluk.
2. Kuniswamappa s/o Dhoomanna,
major, Sathanur village,
Jala Hobli, Devanahalli Tq.
3. The Land Tribunal,
Devanahalli
4. The State of Karnataka,
Revenue Department.

.. respondents

(By Sri S.M. Rangundiah, SCGA for 1-3 & 4
Sri D.V. Padmanabhalah for 1-1)

Writ petition is filed under Articles 226
and 227 of the Constitution of India with an
affidavit praying that this Hon'ble Court may be
pleased to quash the order dated 13-7-1982
passed by the Land Tribunal, Devanahalli in
no.LR.1/79-80.

This petition coming on for hearing this
day, the Court made the following:

O R D E R

Heard the learned Counsel for the parties.



This certificate copy contains 3 pages
and a court fee stamps of Rs. 15 is affixed

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203

- 2 -

2. The petitioner has challenged the validity of the impugned order - annexure-C made by the Tribunal conferring occupancy rights on respondent-1. The certified copy of the said order issued by the Tribunal discloses that the same was made on the application filed by respondent-1 under Section 48A(c) of the KLA Act 1961. This order, on the face of it, is not a speaking order and therefore, is liable to be quashed. Further, the Land Tribunal could not have made an order on the merits of the case while considering the application of respondent-1 for an interlocutory order under Section 48A(c) of the said Act. However, the learned Counsel for respondent-1 has produced another order of the Tribunal bearing the date 13-7-1982 and according to him, the order produced by the petitioner is only an order sheet and the actual order is the detailed order made on the very date. I am not inclined to accept this contention of learned Counsel for respondent-1. The impugned order does not show that a detailed order was made on 13-7-1982 and the circumstances, under which the detailed order dated 13-7-1982 came into existence ^{are} ~~is~~ not satisfactorily explained by respondent-1. Hence, it is highly unsafe to rely on the said order. That apart, even that



204

- 3 -

order is not a speaking order. The Tribunal merely narrated the evidence of respondent-1 and without a consideration of the case of the petitioner and discussion of the evidence of respondent-1 had come to the conclusion that respondent-1 was the tenant of the land in question.

3. In the circumstances, this petition is allowed, the impugned order if any, made on 13-7-1982 in LAF.No.1/80 are quashed and the matter is remitted to the Land Tribunal for fresh disposal of the application of respondent-1 after holding a fresh enquiry in strict compliance with the requirement of rule 17 of the LLA Rules, 1974.

4. Since the petitioner had been appointed as a receiver of the land in terms of the interim order of this Court, he shall continue to act as such, till the parties obtain a fresh order from the Tribunal in due course.

5. No costs.

6. The Government advocate is permitted to file his memo of appearance for respondents-3 & 4 within four weeks from today.



'TRUE COPY'
Section Officer,
High Court of Karnataka
Bangalore - 560 001

Assistant Registrar,
High Court of Karnataka, Bangalore.
30/10/82

JUDGE

678

205

Typed.

ANNEXURE-

R-2

IN THE HIGH COURT OF KARNATAKA AT
BANGALORE

DATED THE 17TH DAY OF SEPTEMBER 1984

BEFORE:

THE HON'BLE MR. JUSTICE P.P.BOPANNA

WRIT PETITION NUMBER 28672 OF 1982

Hemanna Son of
Munivenkatappa,
Aged about 50 years,
Sathnur Village
Jala Hobli, Devanahalli Tq.
Bangalore District.

... PETITIONER

(By Sri M.G.Ramachandra for petr.)

-Vs-

1. Muniappa alias Dhoomanna
Major, S/o Muniswamappa
(2nd respondent) Sathanur
Village, Jala Hobli
Devanahalli Taluk.
2. Muniswamappa S/o Dhoomanna
Major, Sathanur Village
Jala Hobli, Devanahalli Taluk.
3. The Land Tribunal
Devanahalli.
4. The State of Karnataka
Revenue Department.

... RESPONDENTS

(By Sri B.R.Nanjundaiah, HCGA for R-3 & 4
Sri D.V.Padmanabhaiah for R-1)

Writ Petition is filed under Articles 226 and 227 of the Constitution of India with an affidavit praying that this Hon'ble Court may be pleased to quash the order dated 13-07-1982 passed by the Land Tribunal, Devanahalli in No.LRF.1/79-80.

906

This petition coming on for hearing this day, the Court made the following:

ORDER

Heard the learned Counsel for the parties.

2. The petitioner has challenged the validity of the impugned order – Annexure-C made by the Tribunal conferring occupancy rights on respondents. The certified copy of the said order issued by the Tribunal discloses that the same was made on the application filed by Respondent-1 under Section 48A(c) of the KLR Act 1961. This order on the face of it, is not a speaking order and therefore is liable to be quashed. Further, the Land Tribunal could not have made an order on the merits of the case while considering the application of respondent 1 for an interlocutory order under Section 48A(c) of the said Act. However, the learned counsel for respondent-1 has produced another order of the Tribunal bearing the date 13-7-1982 and according to him; the order produced by the petitioner is only an order sheet and the actual order is the detailed order made on the very date. I am not inclined to accept this contention of learned counsel for respondent-1. The impugned order does not show that a detailed order was made on 13-7-1982 and the circumstances, under which the detailed order dated 13-7-1982 came into existence are not satisfactorily explained by respondent-1. Hence, it is highly unsafe to rely on the said order. That apart, even that order is not a speaking order. The Tribunal merely narrated the evidence of respondent-1 and without a consideration of the case of the petitioner and discussion of the evidence

(17) (18) (19) 907

of respondent-1 had come to the conclusion that respondent-1 was the tenant of the land in question.

3. In the circumstances, this petition is allowed, the impugned order as also the order if any, made on 13-7-1982 in LRF No.1/80 are quashed and the matter is remitted to the Land Tribunal for fresh disposal of the application of respondent-1 after holding a fresh enquiry in strict compliance with the requirement of Rule 17 of the KLR Rules, 1974.

4. Since the petitioner had been appointed as a receiver of the land in terms of the interim order of this Court, he shall continue to act as such, till the parties obtain a fresh order from the Tribunal in due course.

5. No costs.

6. The Government Advocate is permitted to file his memo of appearance for Respondents-3 & 4 within four weeks from today.

Sd/- JUDGE



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Taluk

Amma R-3

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THE 16TH DAY OF APRIL 1987

P R E S E N T

THE HON'BLE MR.JUSTICE M.RAMA JOIS

A N D

THE HON'BLE MR.JUSTICE M.RAMAKRISHNA

WRIT APPEAL NUMBER 667 OF 1985

Between:

Muniappa @ Dhoomanna,
S/o.Munismappa,
R/o.Sathanur Village,
Jala Hobli,
Devanahalli Taluk.

.. APPELLANT.

(By Sri D.V.Padmanabhiiah)

And:

1. Hemanna.
2. Munismappa.
3. The Land Tribunal,
Devanahalli Taluk.
4. The State of Karnataka,
by its Revenue Secretary,
and Commissioner for Land
Reforms, Vidhana Soudha,
Bangalore.



.. RESPONDENTS.

(By Sri M.G.Ramachandra for R-1
Sri S.V.Jagannath, Govt.Advocate
for R-3 & 4)

This writ appeal is preferred by the appellant
against the order of the learned Single Judge in writ
petition No.28672/1982 dated 17.9.1984.

This appeal coming on for hearing this day,
RAMAKRISHNA, J. delivered the following:

This certificate copy contains pages
and a court fee stamps of Rs. is affixed.

42

209
J U D G M E N T

This appeal is directed against the order passed by the learned Single Judge made in Writ Petition No. 28672/1982 by which the learned Judge allowed the writ petition, quashed the ~~impugned~~ order impugned therein and remitted the matter to the Land Tribunal with a direction to dispose of the application afresh in accordance with law.

2. By a perusal of the order made by the Land Tribunal, it is seen that it confined its consideration only to the interim relief sought for under Section 48C of the Karnataka Land Reforms Act, 1961 (hereinafter referred to as the Act). The copy of the order of the Land Tribunal is produced in the appeal and it is a detailed order resulting in granting occupancy right in favour of the appellant as prayed for.

3. Having regard to the contentions urged before this Court and the order passed by the Land Tribunal, we are of the opinion that this is a fit case to be transferred to the Appellate Authority now constituted under Section 116A of the Act in as much as that authority has all the powers of an appellate court except the power of remand. The appellate authority can also permit the parties to adduce additional evidence if need be.



ORDER

1. In the result, the writ appeal is allowed. The order made in Writ Petition No. 28672/82 is set aside. The writ records stand transferred to the appellate authority constituted for Bangalore Rural District to treat it as an appeal presented against the orders of the Land Tribunal and to dispose of the same in accordance with law after affording an opportunity to both the parties to adduce additional evidence if need be, and of being heard.
2. The parties are directed to appear before the appellate authority on the 1st June 1987.
3. The receiver who is directed to continue in possession by virtue of the order made in writ petition shall continue to do so on the same terms and conditions.
4. Prepare a carbon copy of this order and send the same to the appellate authority along with the writ records, forthwith.

(Sd.) _____
JUDGE(Sd.) _____
JUDGEAssistant Registrar
Writ Court of Karnataka No. 4 - 1987

28/4/87

P.T.O.

R

MRJJ/MRKJ

211

August 14, 1987.

ORDER ON FOR BEING SPOKEN TO

No modification in the order already made is necessary except regarding the date of appearance of the parties before the appellate authority as the date fixed is already over.

The parties shall appear before the appellate authority on 14th September, 1987.



(Sd.) _____
JUDGE

(Sd.) _____
JUDGE

Copy
[Signature]

Assistant Registrar
High Court of Karnataka Bangalore



19/9/87

'TRUE COPY'

[Signature]
Section Officer,
High Court of Karnataka
Bangalore-560 001

- a) The date on which the application was made 19/2/14
b) The date on which the charges and addl charges, if any, were paid for
c) The date on which the fees and addl charges were paid
d) The date on which the copy is ready for delivery 19/2
e) The date on which the copy is ready for delivery 19/2

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Narayana
R-2

(68)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 12TH DAY OF JULY 1980

PRESENT

Annex-R-4

THE HON'BLE MR. JUSTICE S. RAJENDRA BABU

AND

THE HON'BLE MR. JUSTICE M.M. MISHRA

M.P. NO: 25399/82

BETWEEN

Homappa,

S/o Muni Venkatappa

aged about 59 years,

Sathanur village,

Jala Hobli,

Devanahalli taluk,

Bangalore District.

(By Sri. (N.C. Ramachandra) for Adv.,)

AND

1) Muniappa, alias Devanahalli,

S/o Muni Venkatappa, major,

Sathanur village,

Jala Hobli,

Devanahalli taluk.



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12:

2) Menicewannappa,
S/o Dhoomanna,
major,
Sathanur village,
Jala Hobli,
Devanahalli taluk.

3) The land Tribunal,
Devanahalli by its
Secretary,
Tahsildar,
Devanahalli.

4) The State of Karnataka,
by its Secretary,
commissioner for Land Records,
Vishala Boudha,
Bangalore.

Respectfully

(Sri.

G.P. filed for testing the application as writ

G.P. is filed under Sec. 151 of CPC under Sec.
the K.L.R Act r/w articles 226 & 227 of the consti
of India, that for the reasons stated in the annex
affidavit that this Hon'ble court be pleased to co



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1) Muntappa, alias
S/o Muntavampur, wife,
Sathann village,
Jain Hobli,
Devanahalli taluk,
Bangalore District.

AND

(By Spt. (P.O. Bangalore) for Adv.)

2) Muntappa, alias
S/o Muntavampur,
aged about 55 years,
Sathann village,
Jain Hobli,
Devanahalli taluk,
Bangalore District.

BETWEEN

W.P. No: 2639/82

THE HON'BLE MR. JUSTICE R.M. KIDDER

AND

THE HON'BLE MR. JUSTICE S. RADHAKRISHNAN

PRISON

DATED THIS THE 12TH DAY OF JULY 1982

IN THE HIGH COURT OF MADRAS AT MADRAS

214

Annex-R-4

3/7/82

156

215



12:

2) Muniyasappa,
S/o Dhoomanna,
major,
Sathanur village,
Jala Hobli,
Devanahalli taluk.

3) The Land Tribunal,
Devanahalli by its
Secretary,
Tahsildar,
Devanahalli.

4) The State of Karnataka,
by its Secretary,
commissioner for Land Records,
Vidhana Sabha,
Bengaluru.

Be approved

(Sri.



G.P. filed for testing the application as writ

G.P. is filed under Sec. 151 of CPC under Sec. 226 of the K.L.P. Act r/w articles 226 & 227 of the constitution of India, that for the reasons stated in the affidavit that this Hon'ble court be pleased to co

216

13:

this application and the appeal No. ISA 203/87
filed before the Land reforms appellate authority
as a
Bangalore/writ petition in view of amendment of
section 17 of the land reforms act, and etc.

This writ petition coming on for orders this
day the court made the following.

ORDER

SRBI & NMMJ

12-7-1983:

Dismissed for non-prosecution.



30/- Judge

30/- Judge

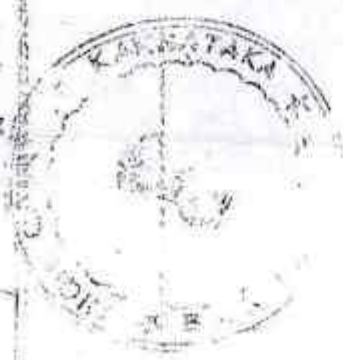
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Page 17 8 43

17/4/83
Section Officer
High Court of Karnataka
Bangalore-Bench



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ANNEXURE-

R-4

IN THE HIGH COURT OF KARNATAKA AT
BANGALORE

DATED THE 12TH DAY OF JULY 1993

PRESENT

THE HON'BLE MR. JUSTICE S. RAJENDRA BABU

AND

THE HON'BLE MR. JUSTICE M.M.MIBDHE

W.P.NO:25394/92

BETWEEN:

Hemanna,
S/o Munivenkatappa
aged about 59 years,
Sathanur Village,
Jala Hobli,
Devanahalli Taluk,
Bangalore District.

... PETITIONER

(By Sri D.V.Padmanabhaiah (M.C.Ramachandra) for
Adv.)

AND:

- 1) Muniappa, alias Dhoomanna
S/o Muniswamappa, Major,
Sathanur Village, Jala Hobli
Devanahalli Taluk.
- 2) Muniswamappa,
S/o Dhoomanna, Major
Sathanur Village
Jala Hobli
Devanahalli Taluk.
- 3) The Land Tribunal
Devanahalli by its
Secretary, Tahsildar,
Devanahalli.

4) The State of Karnataka
by its Secretary
Commissioner for Land Records
Vidhana Soudha,
Bangalore.

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... RESPONDENTS

(Sri.

C.P. Filed for treating the application as writ petition.

C.P. is filed under Sec:151 of CPC under Sec:17 of the K.L.R Act r/w articles 226 & 227 of the constitution of India, that for the reasons stated in the accompanying affidavit that this Hon'ble Court be pleased to consider this application and the appeal No.LRA 208/87 filed before the Land Reforms appellate authority, Bangalore as a Writ Petition in view of amendment of Section 17 of the land reforms act, and etc.,

This writ petition coming on for orders this day the court made the following.

ORDER

SRBJ & MMMJ

12-7-1993:

Dismissed for non-prosecution.

Sd/- Judge

Sd/- Judge

Annex R-5 3650/14
Rajendraiah

219

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 7TH DAY OF DECEMBER 2001

PRESENT

THE HON'BLE MR. N.K. JAIN, CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE N. KUMAR

C.P. NO. 1281/2001
In W.P. No. 25394/92

BETWEEN

HEMANNA S/O MUNIVENKATAPPA
MAJORR/O SATANUR
JALA HOBLI (FORMERLY DEVANAHALLI
TALUK) NOW BANGALORE NORTH TD.

...PETITIONER

(By Sri M S PURUSHOTHAMA RAO)

AND

1. MUNIYAPPA @ DOOMANNA
SINCE DECD BY LRS
 - i) MUNIYAMMA
W/O LATE MUNIYAPPA @ DOOMANNA
R/O SATANUR
JALA HOBLI
BANGALORE NORTH TALUK
 - ii) NARAYANASWAMY
S/O LATE MUNIYAPPA @ DOOMANNA
R/O SATANUR
JALA HOBLI
BANGALORE NORTH TALUK
 - iii) AVALAPPA
S/O LATE MUNIYAPPA @ DOOMANNA
R/O SATANUR
JALA HOBLI
BANGALORE NORTH TALUK



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- 2 -

1v) KEMPANNA
S/O MUNE GOWDA
MAJOR
R/O SATANUR JALA HOBLI
BANGALORE NORTH TALUK

- 2 LAND TRIBUNAL
DEVANAHALLI
- 3 STATE OF KARNATAKA
BY SECRETARY
TO GOVERNMENT
DEPT OF REVENUE
KARNATAKA GOVT SECRETARIAAT
VIDHANA SOUDHA
BANGALORE 1

...RESPONDENTS

(By Sri D P SHIVAPRASAD FOR R1A-D)

THIS CP FILED UNDER SECTION 151 CPC FOR
RECALLING THE ORDER DATED 12.7.93 IN W.P.NO.
25394/92.

THIS CP COMING ON FOR ORDERS THIS DAY, THE
CHIEF JUSTICE MADE THE FOLLOWING :

ORDER

This C.P. is filed for recalling the order
dated 12.7.93 passed by this court in Writ Petition
No. 25394/92 wherein the learned single Judge had
dismissed the petition for want of compliance and
for want of prosecution.

2. We have heard the learned counsel on
both sides and perused the material on record.

Nug



ಅರ್ಜಿದಾರರು
1) ಮುನಿರಾಬು
ಬನ್ ಸಿಕ್ರೆಗೌಡ
2) ಚನ್ನಪ್ಪ
ಬನ್ ಲೇ|| ಮುನ್
3) ಆವಲಪ್ಪ
ಬನ್ ಲೇ|| ಮುನ್
4) ನಾರಾಯಣ್
ಬನ್ ಲೇ|| ಮುನ್
ವಿಲ್ ರೂಪಾತನ
ಜಾಲಿ ಮೋಬಿಳಿ
ಬೆಂಗಳೂರು ಉ.

ವಿಷ

ಪ್ರಕರಣದ ಸಾರ

ಬೆಂಗಳೂರು

ಬನ್ ಲೇ|| ಮುನ್
ಸಾತನೂರು ಗ
ತಂದೆಯವರಿಗೆ
ನೀಡಿದ್ದು, ತದ
ಜಮೀನುಗಳ
ರಾಜಸ್ವ ನಿರೀಕ್ಷೆ
ನಿರೀಕ್ಷೆ ಕರು
ಜಮೀನುಗಳ
ಸದರಿ ಜಮೀನು
ಲೇಟ್ ಮುನ್
ಮೇಲ್ಕಂಡ

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- 3 -

3. Generally, this court is lenient in condoning the delay if reasonable and sufficient cause is made out. In the instant case, we are not satisfied with the explanation given by the petitioner for not appearing before court on 12.7.93 and for non-compliance. On consideration, we find no ground to recall the order. However, the parties are free to take action in accordance with law.

C.P. is dismissed.

Sd/-
Chief Justice

Sd/-JUDGE



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W. S. Srinivasulu 10/2/14
Section Officer,
High Court of Karnataka
Bangalore-560 001

- a) The date on which the application was made 10-2-14
- b) The date on which charges and additional charges if any are called for —
- c) The date on which charges and additional charges if any are deposited/ Paid —
- d) The date on which the copy is ready 10-2-14
- e) The date of notifying that the copy is ready for delivery 10-2-14
- f) The date on which the applicant is required to appear on or before 14-2-14
- g) The date on which the copy is delivered to the Applicant 11-2-14
- h) Examined by *[Signature]*

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Annexure

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P. Devathi

IN THE HIGH COURT OF KARNATAKA, BANGALORE

DATED THIS THE 26TH DAY OF AUGUST 2004

PRESENT

THE HON'BLE MR. N.K.JAIN, CHIEF JUSTICE
AND

THE HON'BLE MR. JUSTICE N.KUMAR

REVIEW PETITION No 41 OF 2002

IN

CIVIL PETITION NO.1281 OF 2001

IN

WRIT PETITION NO.25394 OF 1992

BETWEEN

1. HEMANNA S/O MUNI VENKATAPPA
MAJOR, R/A SATANUR, JALA HOBLI
BANGALORE NORTH TALUK

... PETITIONER

(By Sri : M S PURUSHOTHAMA RAO)

AND :

MUNIYAPPA @ DOOMANNA
SINCE DECD BY LRS

1. MUNIYAMMA
W/O MUNIYAPPA @ DOOMANNA
MAJOR, R/A SATANUR, JALA HOBLI
BANGALORE NORTH TALUK
2. NARAYANASWAMY S/O MUNIYAPPA @ DOOMANNA
MAJOR, R/A SATANUR JALA HOBLI
BANGALORE NORTH TALUK
3. AVALAPPA
S/O MUNIYAPPA DOOMANNA
R/A SATANUR, JALA HOBLI
BANGALORE NORTH TALUK



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and Court Fee Stamp of Rs 15/- is recd in
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- 4 KEMPANNA
S/O MUNE GOWDA
MAJOR, R/A SATANUR OBLI
BANGALORE NORTH TALUK
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DEVANAHALLI
BY ITS SECRETARY/TAHSILDAR
DEVANAHALLI
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BY SECRETARY TO GOVT
DEPT OF REVENUE
KARNATAKA GOVT SECRETARIAT
VIDHANA SOUDHA
BANGALORE 1

... RESPONDENTS

(Sri : SMT.D P PREVATHI FOR SRI.D.P SHIVAPRASAD FOR R1 to R-4. SRI.M.N.SESHADRI AGA FOR R-5 AND 6)

This Review Petition filed by counsel for the Petitioner under order 47 Rule 1 of CPC praying for review of order:7.12.2001 passed in C.P.No. 1281/2001 W.P.No.25394/92.

This petition coming on for admission this day, THE CHIEF JUSTICE, made the following:

ORDER

The petitioner had filed C.P.3393/1991 under amended provisions of the Karnataka Land Reforms Act. said petition was ordered to be registered as a writ petition and it was numbered as W.P.No.25394/1992. On 12-1-1993 the writ petition came to be dismissed for non prosecution. C.P.No.1281/2001 was filed to recall the said order. This Court by an order dated 7-12-2001 dismissed

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the Civil Petition. The review petition is filed for reviewing the order dated 7-12-2001 passed in C.P.1281/2001.

2. Learned counsel for the petitioner submits that while showing the name of the counsel in the order sheet it has been wrongly mentioned as Sri D.V. Padmanabaiah instead of Sri M.C. Ramachandraiah as appearing for petitioner. Hence the counsel could not be present on 12-7-1993 on which date the case came to be dismissed for non-prosecution. Hence he submits that ^{the} order passed in C.P.No.1281/2001 may be reviewed and the order passed in W.P.No.25394/92 may be recalled and the writ petition may be disposed of on merits.

INDENTS

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3. Learned counsel for respondents 1 to 4 and the learned Government Advocate submits that the order passed in C.P.No.1281/2001 needs no interference as the same has been passed after hearing both the parties.

4. Heard the learned counsel for the parties and perused the material on record.

5. This court considered the matter in detail while passing the order in C.P.No.1281/2001 and found that there was not good ground to recall the order dated 12-7-1993 passed in the writ petition. Under the circumstances, we

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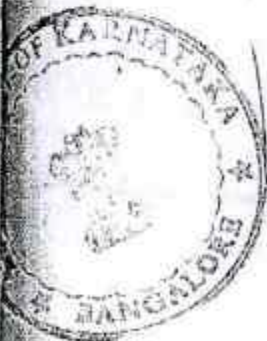
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find no reason to review the order passed
C.P.No.1281/2001. This review petition is dismissed.

Sd/-
Chief Justice

Sd/-
Judge

sbb/-



TRUE COPY
J. G. V. Rangaiah
Section Officer
High Court of Karnataka
Bangalore-560 001



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Annexure-

R-7.

IN THE COURT OF THE SPECIAL DEPUTY COMMISSIONER,
BANGALORE DISTRICT,
Bangalore-560 009, dated this the 22nd day of June 2007.

Present: Dr. Ramegowda, K.A.S.,
Special Deputy Commissioner,
Bangalore District.

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No. REVN PETN 97/2004-05

C/w

No. Misc. Appeal 10/2005-06

No. REVN PETN 97/2004-05

Petitioner: Shri Narayanaswamy s/o
Late Muniyappa @ Doomanna,
Sathanur Village, Jala Hobli,
Bangalore North (Addl.) Taluk.

Vs.

Respondents: 1. Shri Hemanna, s/o
Late Munivenkatappa,
Sathanur Village,
Jala Hobli,
Bangalore North (Addl.) Taluk.

2. Shri Muniraju s/o
Pillegowda,

3. Shri Channappa, s/o
Munishamaiah,

4. Shri Avalappa s/o
Munishamaiah,

Respondents-2, 3 and 4 are
Residing at:
Sathanur village,
Jala Hobli,
Bangalore North (Addl.) Taluk.

5. The Assistant Commissioner,
Bangalore North Sub Division,
Bangalore.



OPY

6/9/07

Officer
Bangalore
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[Signature]

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No. MISC. APPEAL 10/2005-06.

Appellant: Shri Hemanna, s/o
Late Munivenkatappa,
Sathanur village, Jala Hobli,
Bangalore North (Additional) Taluk.

-vs-

Respondents: 1. Late Muniyappa @ Doomanna,
(since deceased) by his L. Rs.

- a. Smt Muniyamma, w/o
Late Muniyappa @ Doomanna,
- b. Shri Narayanaswamy, s/o
Late Muniyappa @ Doomanna,
- c. Shri Avalappa, s/o
Late Muniyappa @ Doomanna,

2. Shri Kempanna, s/o
Munegowda,

3. Shri Muniraju, s/o
Pille Gowda,

4. Shri Channappa, s/o
Late Munishamaiah,

All are residents of:
Sathanur village,
Jala Hobli,
Bangalore North (Addl.) Taluk.

This is a Revision Petition preferred under Section 136(3) of the Karnataka Land Revenue Act, 1964 (hereinafter referred to as the 'Act' in brief) against the Order of the Assistant Commissioner, Bangalore North Sub Division, Bangalore, in No. RA 50/2004-05, dated 7.9.2004, allowing the Appeal filed by the 1st Respondent and setting aside the order in No. RRT(Vivaada) 32/2001-02 dated 15.11.2003 in respect of the land in S.No.4 measuring 1A.00 and in S.No. measuring 2A.08gs., as well as ordering to continue the entries in the revenue records as stood before.

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Tahsildar, 1
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Sathanur village
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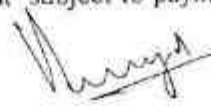
The Revision Petition was taken on file, an interim order of stay was granted and the case was posted for hearing with due notice to both the parties to appear before this Authority and to represent their case.

The counsel for the Petitioner and the 1st Respondent have filed their written arguments.

The case of the Petitioner is that he had made an Application before the Tahsildar, Bangalore North (Additional) Taluk for transfer of 'Khata' of the land in S.No.4 measuring 1A.00 and in S.No.6 measuring 2A.08gs., situated at Sathanur village, Jala Hobli, Bangalore North (Additional) Taluk, by virtue of the Order dated 13.7.1982 in case No.LRF.1/1979-80; that the Tahsildar in his order No.RRT(Dispute)32/2001-02, dated 15.11.2003, has ordered to transfer the 'Khata' of the said lands in his favour, which was subject to the decision of the Hon'ble High Court of Karnataka in Review Petition No.41/2001-02; that as against the said Order dated 15.11.2003 of the Tahsildar, the 1st Respondent had preferred an Appeal in No.RA.50/2004-05 before the Assistant Commissioner, Bangalore North Sub Division, Bangalore; that the Assistant Commissioner has in his Order dated 7.9.2004 allowed the Appeal while setting aside the order dated 15.11.2003 of the Tahsildar. Aggrieved by the said Order dated 7.9.2004 of the Assistant Commissioner, Bangalore North Sub Division, Bangalore, this Revision Petition has been preferred.

It is submitted that on 17.1.1979, the father of Narayanaswamy by name Doomanna @ Muniyappa filed Form No.7 for grant of 'occupancy right' in respect of 2A.08gs., of land in S.No.6 and 1A.00 in S.No.4 of Sathanur village, Jala Hobli, Bangalore North (Additional) Taluk, against Shri Hemanna and others; that Doomanna @ Muniyappa died on 25.9.1991;

that by the order dated 13.7.1982, the father of the Petitioner i.e., Shri Doomanna was registered as an 'occupant' subject to payment of premium;



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Sub Division,

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that during the pendency of the matter before the Land Tribunal, the Revenue Inspector was appointed as the Interim Receiver of these lands under Section 48C(1) of the Karnataka Land Reforms Act, 1961,

that being aggrieved by the same, Shri Hemanna had approached the Hon'ble High Court in W.P.No.12045/1979 and that the Hon'ble High Court of Karnataka modified the order of the Land Tribunal and appointed Shri Hemanna as the Interim Receiver pending disposal of the Application filed in Form No.7 with directions to deposit the value of crops after deducting all expenses incurred;

that Shri Hemanna claims to have purchased these lands in public auction sale on 17.4.1978 by the Primary Land Development Bank, Devanahalli, for the loan borrowed by Muniswamappa on 13.8.1965 and 29.11.1965 on the security of these lands and became defaulter;

that the sale was also confirmed by the Assistant Registrar of Co-operative Societies, Doddaballapura, on 12.12.1978 and it was also notified in the Gazette dated 28.12.1978 and claimed to be in possession of these lands ever since the date of alleged sale from 25.12.1978;

that under Section 89C-2B of the Karnataka Co-operative Societies Act, 1959, where the property sold is in occupancy of a tenant or other person entitled to occupy the same and a certificate in respect thereof has been granted by the Deputy Commissioner shall on the application of the purchaser and after notice to such tenants or other persons, order delivery to be made by affixing copy of the certificate of sale in a conspicuous place on the property and proclaiming to the occupant by a beat of drum or other customary mode at some convenient place on the property that the right title and interest of the mortgagor has been transferred to the purchaser.

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that this procedure has not been completed which fact clarifies that Shri Hemanna was in possession only as an Interim Receiver;

that even if the Bank Authorities have sold the lands in public auction to realize the loan amount due on these lands, the tenancy rights do exist on these lands and the purchaser is entitled to get only the compensation payable on the said lands if the sale is sustained;

that the Bank authorities have no right to sell away the tenancy right existing on these lands as it is absolutely vested with Government as on 1.3.1974 on which date the KLRF Ac, 1961 came into effect; and thus these lands are tenanted lands on the said date;

that further the auction sale was set aside by an order dated 11.7.1980 passed in Appeal No.544/1979 (Co-operative) before the KAT, Bangalore, the Award dated 4.11.1973 passed by the Arbitrator is set aside;

that being aggrieved by the Order dated 13.7.1982 passed by the Land Tribunal in No.LRF 1/79-80, the said Hemanna filed W.P.No.28672/1982;

that the Hon'ble High Court of Karnataka in its Order dated 17.9.1984 allowed the writ petition by quashing the order dated 13.7.1982 of the Land Tribunal and remitted the matter for fresh inquiry and disposal;

that Muniyappa @ Doomanna preferred W.A.No.667/85^{and} by an order dated 16.4.1987 the order made in W.P.No.28672/1982 was set aside;

that the said matter was transferred to the Land Reforms Appellate Authority and it was renumbered as No.LRA 208/1987 to treat it as an Appeal against the order of the Land Tribunal and dispose of the same in accordance with law;

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that subsequently the Land Reforms Authority was abolished in 1990 and C.P.No.3393/2001 was filed by Hemanna before the Hon'ble High Court of Karnataka;

that CP.No.3393/2001 was registered as W.P.No.25394/1992 (KLRA) before the Hon'ble High Court of Karnataka; and it was dismissed on 12.7.1993 for non-prosecution;

that Shri Hemanna filed C.P.No.1281/2001 in W.P.No.25394/1992 for recalling the order dated 12.7.1993 after lapse of eight years, that by an order, dated 7.12.2001 it was dismissed;

that Shri Hemanna preferred Review Petition No.41/2002 against the order dated 7.12.2001;

that the said Review Petition came to be dismissed on merits by an Order dated 26.8.2004 confirming the order dated 13.7.1982 in No.LRF.1/79-80;

that in these circumstances, the order of the Land Tribunal in No.LRF.1/79-80 dated 13.7.1982 stands confirmed;

that since no appeal or writ petition is pending, the said order dated 13.7.1982 stands confirmed and finally decided after dismissal of W.P.No.25394/1992 on 12.7.1993 which has been confirmed in CP.No.1281/2001 on 7.12.2001 and Revision Petition No.41/2002 on 26.8.2004 and reached finality;

It is submitted that on an Application of the Petitioner, the Tahsildar has passed the Order, dated 15.11.2003 directing the mutation entries to be changed in

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favour of the Petitioner as per the 'occupancy right' conferred in LRF.No.1/1979-80;

that the said order was subject to the decision that may be passed in the Review Petition No.41/2002 before the Hon'ble High Court of Karnataka;

that on passing of the said Order, the Khata has already been mutated in the name of the Petitioner and the Pahani entries have been effected in favour of the Petitioner as per the order dated 15.11.2003;

that the Petitioner has been put in possession of the said lands as 1st Respondent Hemanna was appointed only as an interim receive pending disposal of LRF.No.1/79-80;

It is submitted that the Appeal in No.RA.50/2004-05 was heard on merits on 6.8.2004 and reserved for orders by the Assistant Commissioner;

that in the meanwhile, the Review Petition No.41/2002 came to be dismissed by the Hon'ble High Court of Karnataka by the order dated 26.8.2004;

that therefore, the Petitioner filed a Memo dated 1.9.2004 before the Assistant Commissioner reporting the said dismissal of the Review Petition No.41/2002;

that in spite of the Memo dated 1.9.2004, the Assistant Commissioner allowed the Appeal by his order dated 7.9.2004;

that therefore, the Petitioner has approached this Authority in this Revision Petition praying to allow the same in view of the dismissal of R.P.No.41/2002 by the Hon'ble High Court of Karnataka on 26.8.2004;




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that it is further prayed for the discharge of the 1st Respondent appointed as the Interim Receiver in view of the dismissal of the R.P.No.41/2002;

that this Authority had directed the 1st Respondent to deposit the amounts due upto date as an interim receiver as per the Order of the Hon'ble High Court of Karnataka vide order dated 5.2.2007 of this Authority on I.A.,

that it has been complied with by the 1st Respondent.

It is submitted that the 1st Respondent has preferred the Misc.Petition No.10/2005-06 seeking restoration of title to the Public Auction Purchaser under Section 89C(2)(b) of the Karnataka Co-operative Societies Act, 1959;

that the said Petition is not maintainable either in law or on facts and the same is therefore liable to be dismissed in limine;

that the said Miscellaneous Appeal is wholly misconceived and belated and that therefore it is liable to be dismissed on this ground alone.

The points for consideration are:

- 1) The Application filed in Form No.7 in case No.LRF.1/79-80 by Muniyappa @ Doomanna against his father Muniswamappa is maintainable, since there has been a partition between Muniswamappa, Doomanna and his other sons under the Registered Partition Deed dated 7.9.1955 and the definition of 'Family' under the Land Reforms Act does not include a divided son;
- 2) that Shri Hemanna claims to have purchased these lands in Public Auction Sale on 17.4.1978 by the Primary Land Development Bank, Devanahalli, for the loan borrowed by Muniswamappa on 13.8.1965 and 29.11.1965 on the security of these lands and became defaulter, that Hemanna further contends that the sale was also confirmed by the Assistant



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Registrar of Co-operative Societies, Doddaballapura on 12.12.1978, notified in the Gazette dated 28.12.1978 and claimed to be in possession of these lands ever since the date of the alleged Sale i.e., from 25.12.1978;

- 3) that the provisions of Section 89 of the Karnataka Co-operative Societies Act, 1959 is mandatory;
- 4) that Section 89(2) provides that no power of sale shall be exercised unless and until:
 - (a) The Board has previously authorized the exercise of the power conferred by sub section (1), after hearing the objections, if any of the mortgagor;
 - (b) Notice in writing requiring payment of such mortgage money or part has been served upon:
 - (i) the mortgagor,
 - (ii) Any person who has any interest in or charges upon the property mortgaged or in or upon the right to deem the same;
 - (iii) Any surety for the payment of the mortgage debt or any part thereof;
 - (iv) Any creditor of the mortgagor who has in a suit for the administration of his estate obtained a decree for sale of the mortgaged property; and
 - (c) Default has been made in payment of such mortgage money or part thereof for three months after such service.

It is submitted that the Bank has not complied with the mandatory provisions of Section 89(2); that moreover the provisions of Section 87B(2) which provides:

"Where land mortgaged is in actual possession of a tenant, the mortgagor or the Bank shall give Notice to the Tenant to pay the Rent to the Bank during the currency of lease and the mortgage"

have not been complied with;




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that the Auction Sale was set aside by the Order dated 11.7.1980 in Appeal No.544/1979(Co-operative) before the Karnataka Appellate Tribunal, Bangalore; and the Award dated 4.11.1973 passed by the Arbitrator is set aside;

that Rule 38A of the Karnataka Co-operative Societies Rules, 1960; provides that Confirmation of Auction Sale is always subject to the result of Appeals and Revisions as against it; that confirmation ipso facto does not pass title; that if sale is ultimately set aside, auction purchaser is entitled for amounts paid together with solatium as held in the decision reported in 1989(10 KLJ 125;

that according to Rule 38(6)(b) of the Rules, whenever the sale of any immovable property is set aside, the deposit or the purchase money, as the case may be shall be returned to the purchaser;

that under the provisions of Section 89C(2)(b) of the Karnataka Co-operative Societies Act, 1959: "Where the property sold is in the occupancy of a tenant or other person entitled to occupy the same and a certificate in respect thereof has been granted under Section 89C(1), the Deputy Commissioner shall, on the application of the purchaser and after notice to such tenants or other persons, order delivery to be made by affixing copy of the certificate of sale in conspicuous place on the property and proclaiming to the occupant by beat of drum or other customary mode at some convenient place on the property that the right, title and interest of the mortgagor have been transferred to the purchaser." This procedure has not been completed which fact clarifies that Shri Hemanna was in possession of the said properties only as an Interim Receiver;

that Rule 38A(8) read with Rule 38(5) that are mandatory provisions have not been complied with;

that even if the Bank authorities sold the lands in public auction to realize the loan amount due on these lands, the tenancy rights do exist on these lands and

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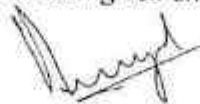
the purchaser is entitled to get only the compensation payable on the said lands if the sale is sustained; that the bank authorities have no right to sell away the tenancy right existing on these lands as it is absolutely vested with Government as on 1.3.1974, on which date the KLR Act, 1961, came into effect, thus these lands are tenanted lands as on the said date;

that subsequently on the application of Shri Narayanaswamy, Respondent (1)(b) herein, the Tahsildar has passed the order dated 15.11.2003 directing the mutation entries to be changed in favour of Shri Narayanaswamy as per the grant of 'occupancy rights' passed in LRF No.1/1979-80 in No.RRT Dis.32/2001-02; that since the Review Petition No.41/2002 was pending consideration as on the date of passing the order dated 15.11.2003, before the Hon'ble High Court of Karnataka, the said order was subject to the decision that may be passed in the Review Petition No.41/2002; that on passing of the said order dated 15.11.2003, the Khata has been mutated in the name of Shri Narayanaswamy and the Pahani entries have been effected in favour of Narayanaswamy as per the order, dated 15.11.2003; that further, the Respondent 1(b) Shri Narayanaswamy has been put in possession of the said property as Hemanna was appointed only as an Interim Receiver pending consideration and disposal of No.LRF.1/79-80 as ordered;

that the Tahsildar, Bangalore North Taluk has lawfully put the Respondent 1(b) in possession of the said properties;

that the Respondent 1(b) has been growing ragi and maize in the said properties after he was put in possession in accordance with law;

that these Respondents have lawfully come into possession after a lapse of 25 long years and the mutation entries have been given effect to as per the Order dated 15.11.2003;



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that the above Misc. Appeal seeking restoration of title to the Public Auction Purchaser under Section 89C(2)(b) is not maintainable in law, as the Auction Sale has been set aside by an order, dated 11.7.1980 passed in Appeal No. 544/1979 (Co-operative) before the Karnataka Appellate Tribunal, Bangalore, and the award dated 4.11.1973 passed by the Arbitrator is set aside,

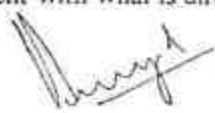
that it has been categorically observed in Appeal No. 544/1979 before the KAT that the conditions laid down in Rule 32(3) of the Rules are not fulfilled and notice served on one Avalappa is not sufficient; that moreover whenever a Debtor is no more, his L.Rs are to be brought on record and proceeded with, that these mandatory provisions have not been complied with and followed by the Bank;

that under these circumstances, the Miscellaneous Petition is liable to be dismissed and the Revision Petition be allowed as prayed for as held and decided in the decisions reported in 1989(1)KLJ 125, 1994(1)SCC 131, AIR 1989 SC 2113, 2003(3)KCCR, SN. 173, 2002(1)KCCR 75;

that it is well settled principle of law that the auction purchaser has the right to have the sale confirmed in his name and if for any reason the sale is set aside, then he is entitled only to the solatium that is required to be paid to him; that the mere fact that the Sale Officer under the provisions of the Act and the Rules has confirmed the sale does not pass absolute title to him, as the order of confirmation is subject to appeals and revisions;

that if as an outcome of the Appeal and Revision, the sale comes to be set aside, the auction purchaser acquires no title to the property auctioned;

that therefore, he has to be content with what is directed to be paid back to him,



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that further sale without notice is a nullity, that service of notice on judgment debtor is mandatory as held as *decided* in 1994(1) SCC 131;

that moreover, debtor can redeem mortgage by filing appeal even after confirmation of sale as the confirmation of sale had not become final due to pendency of Appeal nor the right of redemption of the debtor had been extinguished for there is no provision in the Act or any rule or order made thereunder stating that the effect of any action taken thereunder is to extinguish the right of redemption as held in AIR 1989 SC 2113;

that in these circumstances, it is prayed that this Revision Petition be allowed and the Miscellaneous Appeal be dismissed in the interest of justice.

On the contrary, it is contended on behalf of the 1st Respondent in R.P.No.97/2004-05 and Appellant in Misc.Appeal.10/2005-06 that he has filed Misc.Appeal.No.10/2005-06 for restoration of the title to the Public Auction Purchaser as per the provisions of Section 89C(2)(b) of the Karnataka Co-operative Societies Act;

that the Petitioner Shri Narayanaswamy in R.P.No.97/2004-05 has filed the Revision Petition for setting aside the Order in No.RA.No.50/2004-05, dated 7.9.2004 of the Assistant Commissioner, Bangalore North Sub Division, Bangalore;

that both the petitions filed by either of the parties pertain to the lands in S.No.4 measuring 1A.00 and S.No.6 measuring 2A.08gs., situated at Sathanur village, Devanahalli Taluk;

that one late Munishamappa son of Muniyappa of Sathanur village availed loan from the Primary Land Development Bank Ltd., Devanahalli, by mortgaging the lands in S.No.4 measuring 3A.21gs., and S.No.6 measuring 2A.08gs., that the



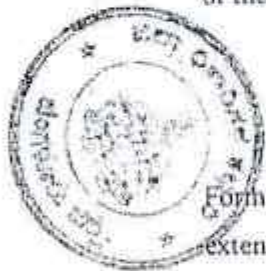
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said Munishamappa became defaulter to the Bank; thus, the said Bank auctioned the mortgaged properties in public auction under Ex.Pt.No.52/1974-75;

that the Petitioner-Hemanna became successful bidder and has paid the entire amount of bid auction and sale was duly confirmed on 30.6.1978 and duly registered before the Sub Registrar, Devanahalli, on 14.12.1978 and it was published in Gazette dated 28.12.1978, and thus the said auction purchaser became successful bidder as per the provisions of the Karnataka Co-operative Societies Act, 1959;

that the Petitioner in R.P.No.97/2004-05 is none other than the grandson of Late Munishamappa, who was a mortgagor, mortgaged the properties in favour of the PLD Bank;



that it is contended that his father Shri Muniyappa @ Doomanna filed Form No.7 under the KLRF Act, 1961 in respect of the lands in S.No.4 to an extent of 1A.00 and in S.No.6 to an extent of 2A.08gs., that the auction purchaser Hemanna was not party to the proceedings and that therefore the said auction purchaser challenged the order passed by the Land Tribunal conferring 'occupancy right' in favour of the said Muniyappa before the Hon'ble High Court of Karnataka in W.P.No.12045/1979; that there was an interim order appointing an Interim Receiver in the said Petition; that subsequently, the said Petition was allowed and the matter was remanded to the Land Tribunal for fresh disposal;

that the Respondent filed another W.P.No.28672/1982 challenging the order of the Land Tribunal; and that the said Writ Petition was allowed;

that as against the said order, Muniyappa @ Doomanna filed W.A.No.667/1985; that in the meanwhile, on account of the Amendment to the KLRF Act, 1961, the Land Reforms Appellate Authority was constituted and the

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said Writ Petition filed by the Auction Purchaser stands transferred to the Appellate Authority and numbered as No.LRA.208/1987;

that during the pendency of the Appeal before the Appellate Authority the Amendment made and abolished the Appellate Authorities;

that consequent upon the abolition of the Appellate Authority, the Auction Purchaser filed C.P.No.3393/1991 and it was allowed and registered as W.P.No.25394/1992; but, the said petition was dismissed for non-prosecution,

that to set aside the said order, another C.P.No.1281/2000 was filed, but it was also dismissed;

that though this Petition was dismissed, the rights were given to the parties to take action in accordance with law;

that therefore a Review Petition No.41/2002 was filed; but, the said Review Petition was dismissed on 26.8.2004;

that the dismissal of the Writ Petition and the Review Petition does not declare the auction sale held by the Primary Land Development Bank as null and void since the sale was held before the KLRF Act, 1961, came into force;

thus, the Revision Petition filed by the Respondent is liable to be dismissed.

It is further contended that the contention taken by the Respondent in Revision Petition that the auction sale held in favour of the auction purchaser is set aside by the Karnataka Appellate Tribunal in Appeal No.544/1979 is not binding on the auction purchaser since he is not a party to the said proceedings,

that the aggrieved person has not challenged the said order.

[Signature]

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that the said auction sale was challenged by one Smt.Chennamma and Smt.Hemakka, and the said matter was remanded back to the Deputy Registrar of Co-operative Societies for fresh disposal,

that even after lapse of more than 25 years no steps are taken to bind the said auction is not valid against the Auction Purchaser Hemanna;

that for the last more than 20 years no steps were taken either by the Petitioner in R.P.No.97/2004-05 or any aggrieved person to set aside the Sale Deed executed by the P.L.D.Bank in a public auction;

that by virtue of the sale deed, the auction purchaser Hemanna is in physical possession and enjoyment of the land in question;



that the dismissal of the Writ petition and Civil Petition does not take away the rights of the Auction Purchaser as per the provisions of Section 89C(3) of the Karnataka Co-operative Societies Act, 1959;

that as per the said provision, the Auction Purchaser Hemanna is entitled for the relief of confirmation of the sale and restoration of the title of the properties in question;

that as the said auction purchaser is in physical possession and enjoyment ever since the date of auction, which is more than 30 years and therefore, the auction purchaser, is entitled to get restoration of the title of the property auctioned to him;

that the Public Auction was held much prior to the commencement of the KLR Act, 1961; that when such being the case, the order passed by the 5th Respondent is just and proper, and it does not suffer from any legal infirmities;

that the Petitioner/Shri Narayanaswamy is not entitled for relief as claimed in the Revision Petition No.97/2004-05 and on the other hand, the Petitioner/Auction Purchaser Hemanna is entitled to get the relief as prayed for in Miscellaneous Appeal.No.10/2005-06.

that the Auction Purchaser – the Appellant in Misc.Appeal.No.10/2005-06 and Respondent in R.P.No.97/2004-05 has requested to allow the Misc.Appeal.No.10/2005-06 restoring the title of the Auction Purchaser in respect of the lands in question and to dismiss the Revision Petition No.97/2004-05.

It is contended on behalf of the Respondents-2, 3, 4 in Revision Petition No.97/2004-05 that the land in S.No.4 measuring 3A.21gs., and S.No.6 measuring 2A.08gs., situated at Sathanur village was the ancestral property of Shri Munishamaiah @ Munishamappa,

that Shri Munishamappa had four sons viz., (1) Late Muniyappa @ Domanna (his son Shri Narayanaswamy), (2) Late Pillegowada (his son Shri Muniraju), (3) Shri Channappa and (4) Shri Avalappa;

that Late Munishamappa had raised loan from the PLD Bank; that the said Bank has auctioned the lands on 17.4.1978 for recovery of loans without notice to Late Munishamappa or his sons and/or grandsons;

that Shri Hemanna is proclaiming that he has purchased the lands in question in 'public auction';

that Shri Hemanna was never in possession of the lands in question,

that Shri Muniyappa @ Domanna was the tenant in respect of the lands in question, in the Appeal No.544/1979 filed by him, the KAT by its order, has set aside the public auction dated 17.4.1978;



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that Shri Narayanaswamy s/o Munishamappa @ Domanna was granted 'tenancy right' in respect of the lands in question by the Land Tribunal as per order in No.LRF.1/1979-80;

that aggrieved by the order of the KAT, Shri Hemanna had preferred W.P.No.12045/1979 and in that writ petition Shri Hemanna was himself appointed as Receiver by the order dated 6.11.1979;

that since then, Shri Hemanna has not followed the orders of the Hon'ble High Court of Karnataka;

that there were many litigations between Shri Domanna @ Munishamappa and Shri Hemanna; however, Shri Domanna has expired during the year 1992;



thus the Writ Petitions and appeals filed by Shri Hemanna are dismissed by the Hon'ble High Court of Karnataka, Karnataka Appellate Tribunal etc., and it was ordered by the Hon'ble High Court appointing him as Receiver and it was directed that after deducting the expenditure incurred towards the cultivation of the land, the proceeds had to be deposited with the Government; but Shri Hemanna has not complied with the said directions of the Hon'ble High Court of Karnataka by depositing the amounts;

It is for consideration that having considered the fact that since public auction was not held according to law and rules, it is set aside;

that Shri Munishamappa @ Domanna was conferred with the occupancy right and it is still in operation;

that the Petitioner Shri Narayanaswamy has inherited the 'tenancy right' confirmed in favour of his father Shri Munishamappa @ Domanna; that on



considering this fact, the 'khata' of the land in question is made in his name as per the order of the Tahsildar dated 15.11.2003;

that the claim of Shri Narayanaswamy is in respect of S.No.4 measuring 3A.21gs., and in S.No.6 measuring 2A.08gs., totally measuring 5A.29gs., but, the issue is that Late Munishamappa had two wives;

that his first wife's son is Muniyappa @ Domanna; and his son Shri Narayanaswamy, the Petitioner herein;

that his second wife had 3 sons viz., Late Pillegowda (his son Shri Muiiraju); (2) Shri Channappa and (3) Shri Avalappa;

that there is no grievance with regard to transfer of khata in respect of the land measuring 1A.00 in S.No.4 and 2A.08s., in S.No.6 in favour of Muniyappa @ Domanna;

but, 1A.00 out of 3A.21gs., in S.No.4 may be allotted to Shri Narayanaswamy s/o Domanna; and the remaining 2A.21gs., in S.No.4 may be assigned equally to Shri Muiiraju s/o Pillegowda, Channappa and Avalappa, sons of Late Munishamaiah @ Munishamappa's 2nd wife;

that in these circumstances, they have requested to dismiss the claim of Shri Hemanna and to allow the case in their favour..

O r d e r

I have carefully examined the records and considered the contentions putforth on both the sides.

In the instant case, there is no denial of the fact that the land in S.No.4 measuring 1A.00 and in S.No.6 measuring 2A.08gs., situated at Sathanur Village,



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Jala Hobli, (previously in Devanahalli Taluk) now in Bangalore North (Additional) Taluk originally belonged to one Shri Muniswamappa s/o Doomanna (father of Shri Muniyappa @ Doomanna).

Shri Muniyappa @ Doomanna filed an Application for conferment of 'tenancy' right of the lands in question against his father Shri Muniswamappa s/o Doomanna before the Land Tribunal on 17.1.1979.

Shri Muniswamappa had mortgaged the lands in favour of the Primary Co-operative Land Development Bank, Devanahalli, as security for some loan raised by him on 13.8.1965 and 29.11.1965. Since there was default, the lands were auctioned in the month of April 1978. Shri Hemanna, the Respondent-1 in Revn.Petn.No.97/2004-05 and Appellant in Misc.Appeal.No.10/2005-06, had purchased the said lands and the sale was confirmed on 12.12.1978 and this was also published in the Karnataka Gazette. A registered sale deed was also executed in his favour. And accordingly, 'khata' of the lands were also made in the name of Shri Hemanna.



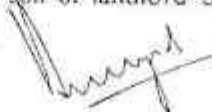
The Land Tribunal while dealing with the application of Shri Muniyappa @ Doomanna s/o Muniswamappa under Section 48A of the KLRF Act, 1961, appointed the Revenue Inspector as Interim Receiver under Section 48C(1) of the KLRF Act, 1961. As against the said interim order of the Land Tribunal, Shri Hemanna preferred W.P.No.12045/79 and the Hon'ble High Court of Karnataka in its Order dated 6.11.1979 has modified the order of the Land Tribunal and appointed Shri Hemanna himself as Interim Receiver of the lands in question till the disposal of Form 7 filed by Shri Muniyappa @ Doomanna with a direction to deposit the value of crops after deducting all expenses incurred by getting necessary instructions from the Tribunal from time to time in the management of these lands. And thus Shri Hemanna continued to be the interim receiver of the lands in question.

At this stage it would be relevant to mention that the Arbitrator of Co-operative Societies, Bangalore, in dispute No.77/73-74, dated 4.11.1973 had passed an Award relating to the dues of Shri Muniswamappa.

As against this Award dated 4.11.1973, Smt.Channamma w/o Late Chikkabhadrappa d/o Muniswamappa and Smt.Yamakka w/o Byrappa @ Kariyappa d/o Muniswamappa had filed an Appeal in No.544/1979(Co-op) before the Hon'ble Karnataka Appellate Tribunal, Bangalore, against the Primary Land Development Co-operative Bank Ltd., Devanahalli. In these proceedings, Shri Hemanna was not a party. The Hon'ble Karnataka Appellate Tribunal in its Order dated 11.7.1980 has set aside the Award and remanded the matter to the Deputy Registrar of Co-operative Societies, Bangalore District, to decide the matter himself or his nominee after following the procedure and in accordance with law. However, the 'public auction' of the lands held was not set aside. But, further course of action in the said matter by the Department of Co-operation nor the further prosecution of the matter by the said persons is not forthcoming. However, in nutshell, there is nothing on record to show that 'Auction Sale' was set aside.

The Land Tribunal in case No.LRF.1/79-80 having held the inquiry by its Order dated 13.7.1982 has conferred the 'Occupancy Right' in favour of Shri Muniyappa @ Doomanna s/o Muniswamappa, i.e., the son of the landlord. And the Tahsildar, Devanahalli Taluk, has also issued Form No.10 dated 12.10.1982 as required under Section 55 of the Karnataka Land Reforms Act, 1961 read with Rule 21 of the Karnataka Land Reforms Rules, 1974.

At this stage it would be relevant to mention that there is no denial of the fact that Shri Muniyappa @ Doomanna is the son of Shri Muniswamappa, who was the landlord. It is the well settled principle of law that son and daughters who have got blood relationship shall not be granted 'tenancy right'. This apart, Shri Muniyappa @ Doomanna being the son of landlord Shri Muniswamappa,



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according to the principles of natural justice acquires inherited right and title over the property. Muchless, it could also be pointed out that even 'tenancy right' is also heritable. In these circumstances, Shri Muniyappa @ Doomanna could acquire the right and title over the lands in question either by conferment of 'tenancy right' which is heritable from his father or by means of inheritance; and that therefore, he is liable to bound to the liabilities of his father Shri Muniswamappa.

In furtherance, it would be relevant to point out that the lands in question were mortgaged to the PLDB Bank during the year 1965 by Shri Muniswamappa; that the Award was passed as long back as in the year 1973 itself much before 13.1974, and subsequently, the 'public auction' of the land in favour of Shri Hemanna was confirmed during the year 1978. According to the settled principles of law and rules, the purchaser of such lands shall step into the shoes of the person who is entitled to get the 'tenancy right'. (Relied on the decision reported in (1975)Kar.L.Jr.60 Sh N 175.) In the instant case, on analyzing the facts and circumstances of the case it is to be held, that Shri Muniyappa @ Doomanna shall qualify both as landlord as well as having acquired the right and title over the land by virtue of 'tenancy right'.

Now, as regards the issue concerning transfer of 'khata' of the lands in question, the Tahsildar, Bangalore North (Additional) Taluk, in his Order in No.RRT(Dis)32/2001-02, dated 15.11.2003, had ordered in the name of Shri Narayanaswamy s/o Muniyappa @ Doomanna. As against the said Order Shri Hemanna had preferred an appeal under Section 136(2) of the Karnataka Land Revenue Act, 1964, before the Assistant Commissioner, Bangalore North Sub Division, Bangalore, in No.RA.50/2004-05. The Assistant Commissioner, Bangalore North Sub Division, Bangalore, in his Order, dated 7.9.2004 relying on the decision reported in ILR 1985 Kar.Page-3625(DB) Item Para-8 as well as on the provisions of Section 89C(3) of the Karnataka Co-operative Societies Act, 1969, has ordered setting aside the Order of the Tahsildar dated 15.11.2003 and to



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continue the revenue entries as stood before, holding that the right acquired by the Auction Purchaser could not be questioned and that the aggrieved could only sue the PLDB for damages.

According to the said provisions of Section 89C(3):

When any property is sold in the exercise or purported exercise of a power of sale under Section 89 the title of the purchaser shall not be questioned on the ground that the circumstances required for authorizing the sale had not arisen or due notice of the sale was not given, or the power of sale was otherwise improperly or irregularly exercised.

Provided that any person who suffers damage on account of unauthorized, improper or irregular exercise of such power shall have a remedy of damages against the Agriculture and Rural Development Bank.

Thus, if at all Shri Narayanaswamy, the Petitioner in Revn.Petn.No.97/2004-05 is aggrieved in the matter, he may have to claim damages against the PLDBank.

In furtherance, it would be relevant to mention that Shri Hemanna had assailed the order of the Land Tribunal in W.P.No.25394/1992, but it was dismissed for non-prosecution on 12.7.1993. Shri Hemanna had filed C.P.No.1281/2001 to recall the order dated 12.7.1993 in the said W.P.No.25394/1992, but it was also dismissed however with the direction that the parties are free to take action in accordance with law. Again a Review Petition No.41/2002 in C.P.No.1281/2001 in No.W.P.No.25394/1992 was filed, but it was also dismissed. However, it would be relevant to mention that the said orders of dismissals of Writ Petition, Review Petition do not in any way have any impact on the claims of Shri Hemanna in respect of the lands in question in having purchased the same in 'public auction' and as already said the order of the Land Tribunal does not in any way affect the same.



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In these circumstances, there is no any reason to interfere with the Order of the Assistant Commissioner, Bangalore North Sub Division, Bangalore, in No.RA.50/2004-05, dated 7.9.2004 and it is liable to be upheld. Accordingly, it is upheld.

Hence, the Revision Petition filed by Shri Narayanaswamy in No.Revn.Petn.97/2004-05 is liable to be dismissed. Accordingly, it is dismissed.

Secondly, in so far as the Misc.Appeal No.10/2005-06 filed by Shri Hemanna is concerned, as per the Order dated 5.2.2007 of this Authority, he has deposited the amount of Rs.55,029.00 in lieu of the proceeds of the lands in question.



In view of the dismissal of the Revision Petition as aforesaid, the Misc.Appeal No.10/2005-06 is liable to be allowed. Accordingly, the Miscellaneous Appeal is allowed.

Further, Shri Hemanna is at liberty to withdraw the amount deposited by him as per rules. Endorse the parties accordingly.

A copy of this Order shall be placed in both the files viz., No.Revn.Petn.97/2004-05 and Misc.Appeal No.10/2005-06.

Dictated to the Stenographer, the typescript edited by me, corrected and then pronounced in open court, on this the 22nd day of June 2007.

(Ramegowda)

Special Deputy Commissioner,
Bangalore District.

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V. F. Kumbhar.
Annex R-8

IN THE HIGH COURT OF KARNATAKA
AT BANGALORE

Dated this the 2nd day of November, 2012

BEFORE:

THE HON'BLE MR JUSTICE D V SHY LENDRA KUMAR

Writ Petition No. 10750 of 2007 [KLR-RES]

BETWEEN

1. SMT MUNIYAMMA
SINCE DECEASED REP. BY HER LR
 - a) MUNIYAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
2. SRI NARAYANASWAMY
S/O LATE MUNIYAPPA @ DOMMANNA
AGED ABOUT 49 YEARS
3. SRI AVALAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
AGED ABOUT 42 YEARS
4. SRI KEMPANNA
SINCE DECEASED REP. BY HIS LR
 - a) SMT ANASUYAMMA
W/O LATE KEMPANNA
AGED ABOUT 30 YEARS
 - b) KUM ASHWINI
D/O LATE KEMPANNA
AGED ABOUT 9 YEARS
 - c) MR ARUN
S/O LATE KEMPANNA
AGED ABOUT 6 YEARS



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ALL ARE RESIDENTS OF
SATHANUR VILLAGE
JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK PETITIONERS

[By Smt D P Revathi, Adv. for
Sri D P Shivaprasad, Adv.]

AND

1. SRI HEMANNA
SINCE DECEASED REP. BY HIS LRs
 - a) SMT AKKAYAMMA
W/O LATE HEMANNA
AGED ABOUT 70 YEARS
 - b) SRI DANEGOWDA
S/O LATE HEMANNA
AGED ABOUT 54 YEARS
 - c) SRI MUNIVENKATEGOWDA
S/O LATE HEMANNA
AGED ABOUT 50 YEARS
 - d) SRI GOPALAGOWDA @ PRAKASH
S/O LATE HEMANNA
AGED ABOUT 47 YEARS
- R1(a) TO R1(d) ARE
R/O SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK
2. SRI MUNIRAJU
S/O PILLE GOWDA
AGED ABOUT 50 YEARS
R/O SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK
3. SRI CHANNAPPA
SINCE DECEASED REP. BY HIS LRs



- a) SMT RUDRAMMA
W/O LATE CHANNAPPA
AGED ABOUT 70 YEARS
R/O SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK
- b) SMT CHIKKAMUNIYAMMA
W/O SHIVANNA
AGED ABOUT 54 YEARS
R/O KAMALUR, TUBEGERE HOBLI
ANTARAHALLI POST,
DODDABALLAPUR TALUK
- c) SRI SHAMANNA
S/O LATE CHANNAPPA
AGED ABOUT 54 YEARS
- d) SRI VENUGOPAL
S/O LATE CHANNAPPA
AGED ABOUT 50 YEARS
- e) SMT KEMPAMMA
W/O MU'NINANJAPPA
AGED ABOUT 38 YEARS
- f) SRI CHIKKAVALAPPA
S/O LATE CHANNAPPA
AGED ABOUT 36 YEARS

R3(c) TO R3(f) ARE R/O
SATHANUR VILLAGE, JALA HOBLI
BANGALORE NORTH (ADDL.) TALUK

4. THE SPECIAL DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE RESPONDENTS

[By Sri V F Kumbar, Adv. for C/R1(a-d);
Sri Balaraj A C, Adv. for R2, R3(a & b);
Sri R B Sathyanarayana Singh, HCGP for R4;
R3(c), R3(d) & R3(e) are served]

THIS PETITION IS FILED UNDER ARTICLES 226 AND 227 OF
THE CONSTITUTION OF INDIA, PRAYING TO QUASH THE ORDER



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DT. 22.6.2007 PASSED BY THE SPECIAL DEPUTY COMMISSIONER, BANGALORE URBAN DISTRICT, BANGALORE IN R.P.NO.97/04-05 CONNECTED WITH MIS.APPEAL NO.10/05-06 (ANNEXURE-A) AND BE FURTHER PLEASED TO ALLOW REVISION PETITION 97/05-06 FILED BY THE PETITIONER HEREIN AND DISMISS MISC.APPEAL NO.10/05-06 FILED BY THE R1 HEREIN AND FURTHER PERMIT THE PETITIONERS TO WITHDRAW THE DEPOSIT AMOUNT OF RS.55,029/- TO WHICH THEY ARE ENTITLED ON CONFIRMATION OF ORDER DT. 13.7.1982 IN L.R.F.NO.1/1979-80, ORDER DT.26.8.2004 IN REVIEW PETITION NO.41/2002 AND ETC.,

THIS PETITION COMING ON FOR FURTHER HEARING, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Writ petitioners are aggrieved by the order dated 7-9-2004 passed in RA No 50/2004-05 by the Assistant Commissioner, Bangalore North vide Annexure-I to the writ petition, whereby the Assistant Commissioner has allowed the appeal of the first respondent and has set aside the order dated 15-11-2003 passed by the Tahsildar, Bangalore north additional taluk in RRT(DIS) 32/01-02, mutating the entries in the revenue records in respect of an extent of 1 acre of land in Sy No 4 of Sathanur village, Jala hobli, Bangalore north taluk and also an extent of 2 acres 8 guntas of land in Sy No 6 of the very village, in favour of fourth petitioner and have sought for quashing of this order

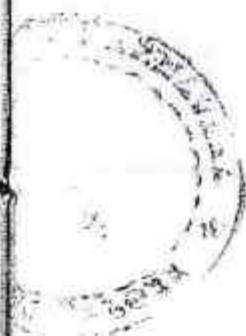
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and also further confirmation order dated 22-6-2007 [copy at Annexure-A to the writ petition] passed by the special Deputy Commissioner, Bangalore district in Revision Petition No 97/2004-05, dismissing the revision petition at the instance of second petitioner and also the order of the passed by the very Deputy Commissioner in the very same common order, allowing Misc Appeal No 10/2005-06, that had been filed by the first respondent under Section 89-C(2) of the Karnataka Cooperative Societies Act, 1959 [for short, the Societies Act].

2. Writ petitioners have sought for quashing of the order of the Assistant Commissioner and also the special Deputy Commissioner, which are said to be adverse to their interest, on the premise that the writ petitioners had been conferred with occupancy rights in respect of the subject lands and to the extent referred to above as per the order dated 13-7-1982 [copy at Annexure-B to the writ petition] passed by the land tribunal, Devanahalli, on an application



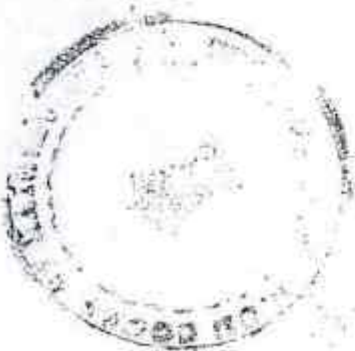
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filed before it by one Muniyappa @ Doomanna s/o Muniswamappa - husband of first petitioner, father of petitioners 2 and 3 and grandfather of fourth petitioner.

3. Writ petitioners have also placed reliance on the order of the Karnataka Appellate Tribunal dated 11-7-1980 passed in Appeal No 544/1979, an appeal filed by the daughters of one Muniswamappa, who, undoubtedly, owned the subject lands to an extent of 3 acres 21 guntas in Sy No 4 and 2 acres 8 guntas in Sy No 6, having inherited the same in a family partition. In the said appeal, the tribunal had set aside the award dated 4-11-1973 passed by in Dispute No 77/73-74 by the arbitrator of cooperative societies, Bangalore district, which was an award that had come to be passed at the instance of primary land development cooperative bank limited, Devanahalli on a dispute raised by this bank as against the said Muniswamappa, who had, without any dispute, mortgaged both parcels of these lands in the above



mentioned survey numbers in favour of the said cooperative bank and had defaulted in repayment of loan and for recovery of the said amount, the bank had obtained an award as against the borrower Muniswamappa.

4. There is multiplicity of proceedings both on the side of the efforts for recovery of amount by the cooperative bank from its borrower and also proceedings on the side of writ petitioners through their predecessor-in-title namely Muniyappa, who had filed an application in Form No 7 for grant of occupancy rights in respect of the two parcels of land to be the tenant under his very father, but to an extent of 1 acre in Sy No 4 and 2 acres 8 guntas in Sy No 6. It is this application which had resulted in the order of the land tribunal dated 13-7-1982.

5. The developments on the proceedings under the Societies Act are that subsequent to the award dated 4-11-1973, which the bank had obtained as against its borrower, it appears, the bank had in execution of the award sought



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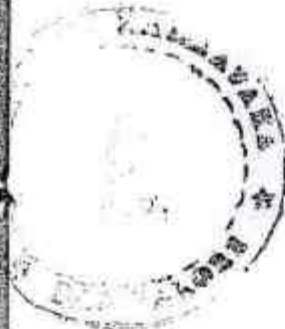
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to bring the two parcels of agricultural land to auction through auction sale conducted on 15-4-1978 and was sold on 17-4-1978 and it is the version of first respondent that he purchased the subject lands in the auction sale and the auction sale was further confirmed on 30-6-1978. Thereafter, the auction sale was confirmed by the assistant registrar of cooperative societies, Doddaballapura on 14-12-1978 and the same was notified in the gazette dated 28-12-1978. Under the sale deed, it appears, the entire extent of the land in the two survey numbers referred to above had been conveyed in favour of first respondent.

6. It appears, that the writ petitioners had petitioned to the Tahsildar in the year 2001 for mutating their names in the revenue records on the strength of the order passed by the land tribunal and after it became known that the order of the land tribunal had more or less attained finality and in the background of the very order having been challenged by the first respondent before this court by filing WP No



28672 of 1982 and this petition came to be allowed as per order dated 17-9-1984 [copy at Annexure-C to the writ petition] and the matter was remanded to the land tribunal. However, the applicant before the land tribunal namely Muniyappa preferred writ appeal in WA No 657 of 1985, which came to be allowed in terms of judgment dated 16-4-1987 [copy at Annexure-D to the writ petition], in the sense, the order of the learned Single Judge was set aside, but, as in the meanwhile an appellate authority had been constituted to hear appeals against orders passed by land tribunals, the matter was transferred, in the sense, the writ petition papers were transferred to the appellate tribunal. The matter went before the appellate tribunal, but remained pending there for a considerable length of time and by way of an amendment to the Karnataka Land Reforms Act, 1961 [for short, Reforms Act], the appellate tribunal itself was abolished. Whereupon, the matter returned to this court and was numbered as CP 3393 of 1991 and later renumbered as WP No 25394 of 1992. The



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said writ petition, was dismissed for non-prosecution in terms of order dated 17-7-1993 [copy at Annexure-E to the writ petition]. Thereafter, CP No 1281 of 2001 was filed for restoration of the petition, but which was also dismissed as per order dated 7-12-2001 [copy at Annexure-F to the writ petition] and a further review petition to review the order in the civil petition also came to be dismissed as per order dated 26-8-2004 [copy at Annexure-G to the writ petition].

7. It is in the wake of such developments, it appears, the writ petitioners had filed an application before the tahsildar for effecting entries in their favour in the revenue records and the tahsildar passed favourable orders in favour of writ petitioners as per his order dated 15-11-2003 [copy at Annexure-H to the writ petition]. But this order came to be set aside by the Assistant Commissioner at the instance of first respondent as per order dated 7-9-2004 [copy at Annexure-I to the writ petition] in an appeal and a further confirmation order passed by the Deputy Commissioner as



per order dated 5-2-2007 [copy at Annexure-K to the writ petition].

8. Such is the background leading to the filing the present petition and questioning these two orders of the Assistant Commissioner and the Deputy Commissioner with a further relief in favour of first respondent on his application under Section 89 of the Societies Act.

9. Notice had been issued to the respondents and the writ petition had been admitted by issue of rule. First respondent, later by his LRs, is represented by Sri V F Kumbar, Advocate and other private respondents are represented by counsel Sri A C Balaraj. The Deputy Commissioner is represented by Sri R B Sathynarayana Singh, learned government pleader.

10. The matter was heard at some length, over a period and during several hearings and was heard further today.



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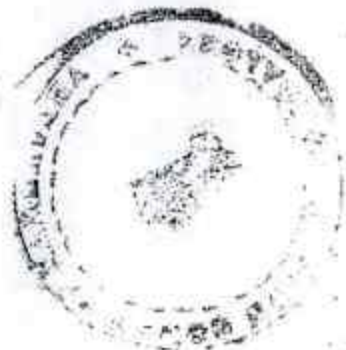
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11. Submission of Ms D P Revathi, learned counsel for the petitioners, placing reliance on the order of the land tribunal and the incidental order of the Karnataka appellate tribunal setting aside the award, is that the orders now passed by the Assistant Commissioner and the Deputy Commissioner virtually amounts to sitting in judgment over the order of the land tribunal, which order has attained finality in view of the proceedings before this court in writ proceedings at the instance of first respondent, which was not fruitful and therefore the Assistant Commissioner and the Deputy Commissioner could not have ventured to disturb the order passed by the tahsildar based on the order of the land tribunal.

12. It is submitted that in view of the provisions of Section 44 of the Reforms Act, reading as under:

44. Vesting of land in the State Government:-

(1) All lands held by or in the possession of tenants (including tenants against whom a decree or order for eviction or a certificate for



resumption is made or issued) immediately prior to the date of commencement of the Amendment Act, other than lands held by them under leases permitted under section 5, shall, with effect on and from the said date, stand transferred to and vest in the State Government.

(2) Notwithstanding anything in any decree or order of or certificate issued by any Court or authority directing or specifying the lands which may be resumed or in any contract, grant or other instrument or in any other law for the time being in force, with effect on and from the date of vesting and save as otherwise expressly provided in this Act, the following consequences shall ensue, namely:—

- (a) all rights, title and interest vesting in the owners of such lands and other persons interested in such lands shall cease and be vested absolutely in the State Government free from all encumbrances;
- (b) ~~[x x x]~~ amounts in respect of such lands which become due on or after the date of vesting shall be payable to the State Government and not to the landowner, landlord or any other person and any payment made in contravention of this clause shall not be valid;
- (c) all arrears of land revenue, cesses, water rate or other dues remaining lawfully due on the date of vesting in respect of such lands shall after such



date continue to be recoverable from the landowner, landlord or other person by whom they were payable and may, without prejudice to any other mode of recovery, be realised by the deduction of the amount of such arrears from the amount payable to any person under this Chapter;

- (d) no such lands shall be liable to attachment in execution of any decree or other process of any Court and any attachment existing on the date of vesting and any order for attachment passed before such date in respect of such lands shall cease to be in force;
- (e) the State Government may, after removing any obstruction which may be offered, forthwith take possession of such lands;

Provided that the State Government shall not dispossess any person of any land in respect of which it considers, after such enquiry as may be prescribed, that he is *prima facie* entitled to be registered as an occupant under this Chapter;

- (f) the landowners, landlord and every person interested in the land whose rights have vested in the State Government under clause (a), shall be entitled only to receive the amount from the State Government as provided in this Chapter;

- (g) *permanent tenants, protected tenants and other tenants holding such lands shall, as against the State Government, be entitled only to such rights or privileges and shall be subject to such conditions as are provided by or under this Act; and any other rights and privileges which may have accrued to them in such lands before the date of vesting against the landlord or other person shall cease and determine and shall not be enforceable against the State Government.*

a tenanted land and in the present case to the extent of 1 acre in Sy No 4 and 2 acres 8 guntas in Sy No 6 of Sathanur village, Jala hobli, Bangalore north taluk, came to be vested in the state government, free of all encumbrances; that this happened as on 1-3-1974, the appointed date under the Reforms Act; that thereafter, the charge on the lands by the bank by way of mortgage, assuming was initially valid, stood extinguished and further proceedings pursuant to the charge viz., mortgage in favour of the bank, shall all became null and void and therefore neither the auction sale of the year 1978 nor



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further proceedings pursuant to the same can not lend any semblance of legality to those proceedings and therefore are all of no consequence in law and in this background the order of the Assistant Commissioner, affirmed by the Deputy Commissioner, is not sustainable and for the very reason, it is submitted that the order of the Deputy Commissioner on an application filed by first respondent under Section 89-C(2) of the Societies Act cannot be sustained; that the proceeds which the first respondent had deposited before the Deputy Commissioner pursuant to the order passed by this court during the pendency of WP No 12045 of 1979, appointing first respondent as interim receiver and permitting that amount to be drawn by the first respondent cannot also be sustained and that amount has to necessarily ensure to the benefit of the writ petitioners, as the order of the land tribunal, having become final and proceedings in favour of first respondent being null and void, particularly for purchase of the subject land in the auction sale, which was also subject



matter of proceedings before the land tribunal, being *non est* in law, the amount should necessarily enure to the benefit of the petitioners and the order to the effect that it should be released in favour of the first respondent should also be set aside.

13. *Per contra*, Sri V F Kumbar, learned counsel for first respondent, now represented by LRs, has very vehemently urged that the first respondent is a *bona fide* purchaser in a public auction conducted by the bank, a cooperative bank in this case; that the relationship between a cooperative bank and its customer and member is all regulated by a special enactment viz., the Societies Act; that these provisions have an overriding effect in respect of all other provisions and statutes; that the original owner of the subject lands having mortgaged the lands in favour of the bank way back in the year 1965 as per two mortgage deeds dated 13-8-1965 and 29-11-1965, the bank has first charge over such lands; that the owner of the lands cannot



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create any interest, whether by way of tenancy or otherwise, in respect of the lands after their mortgage in favour of the bank and the tenancy is subject to the mortgage cannot be of any avail and in this regard has placed reliance on the provisions of Sections 83, 87-B and 95 of the Societies Act and therefore submits that creation of a tenancy lease in favour of the predecessor of petitioners, assuming that it was so, is voided in terms of sub-section (2) of Section 95 of the Societies Act, reading as under:

95. Mortgagor's powers to lease :-

(1) XXX

(2) Any lease granted in contravention of the provisions of sub-section (1) shall be void

and if the tenancy itself is void, proceedings under the provisions of Reforms Act falls to the ground and therefore there is no need for interference with the order passed by the Assistant Commissioner and affirmed by the Deputy Commissioner in a further revision petition.



14. Sri Kumbar has also submitted that the order passed by the Karnataka Appellate Tribunal at Annexure-M is of no impact on the first respondent for the reason that the appeal had been preferred by persons claiming to be legal heirs of the mortgager after the award had been passed by the arbitrator in favour of the bank and the bank in execution of the award had sold the properties and in view of the auction sale before filing of the appeal, the interest of the auction purchaser cannot be affected, even assuming for argument's sake that the award has been set aside subsequently. In support of the submission, Sri Kumbar has relied on the decision of the Supreme Court in the case of *JANAK RAJ vs GUREDIAL SINGH* [AIR 1967 SC 608].

15. Sri Kumbar also submits that the application filed by the first respondent under Section 89-C(2)(b) of the Societies Act, reading as under:

89-C Certificate to purchase, delivery of property and title of purchaser



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(1) xxx

(2)(a) xxx

(b) Where the property sold is in the occupancy of a tenant or other person entitled to occupy the same, and a certificate in respect thereof has been granted under the foregoing sub-section, the Deputy Commissioner shall, on the application of the purchaser and after notice to such tenants or other persons, order the delivery to be made by affixing copy of the certificate of the sale in a conspicuous place on the property and proclaiming to the occupant by beat of drum or other customary mode at some convenient place, that the right, title and interest of the mortgagor have been transferred to the purchaser.

is therefore justified in the above narration of facts and developments and the Deputy Commissioner is also right in passing the impugned order for resumption infavour of the auction purchaser-first respondent.

16. Sri R B Sathyanarayana Singh, learned Government Pleader, appearing for fourth respondent Deputy Commissioner strongly supports the orders passed by the authorities.



17. The Deputy Commissioner under the impugned order, which is quite elaborate, has indicated that there cannot be a tenancy between close relatives and that conferment of occupancy rights in favour of predecessor in title of writ petitioners is not valid. While, the order passed by the tahsildar is based on the order passed by the land tribunal conferring occupancy rights in favour of the predecessor of the writ petitioners namely Muniyappa, the Assistant Commissioner in the first instance accepted the contention urged on behalf of the auction purchaser that his interest should not be affected by the order of the land tribunal and therefore cannot enure to the benefit of the writ petitioners and set aside the order of the tahsildar. This is confirmed by the Deputy Commissioner. The order relating to resumption of the lands and direction for releasing the deposited amount is only consequential. Therefore, the crux of the matter in the present petition that is required to be examined is as to whether the Assistant Commissioner and the Deputy Commissioner could have in any way



interfere with the order passed by the tahsildar mutating the entries in the revenue records in favour of the writ petitioners?

18. It is by now well settled that the entries in the revenue records follow title to the land. Proceedings of the land tribunal under the provisions of the Reforms Act and conferment of occupancy rights in favour of the tenant is virtually in the nature of conferment of title on a tenant and the order passed by the land tribunal, which is a specialized tribunal under the provisions of the Reforms Act attained finality. In fact, even civil courts have no jurisdiction to interfere or set aside order passed by the land tribunal. When the order of the land tribunal regarding occupancy rights in favour of predecessor of writ petitioner had been questioned before this court by way of filing a writ petition by the first respondent, but did not result in any positive order in favour of first respondent nor the order of the land tribunal was set aside, the order of the



land tribunal stands affirm or independently and at any rate it is the bounden duty of the revenue authorities to take note of this order and to give effect to the order. That part of the requirement on the part of the revenue authorities was initially performed by the tahsildar as per the order at Annexure-H, but is set aside by the Assistant Commissioner and affirmed in revision by the Deputy Commissioner. The reasoning assigned by the Assistant Commissioner and Deputy Commissioner is clearly contrary to the legal position and at any rate the Assistant Commissioner or Deputy Commissioner has no powers to sit in judgment over the orders of the land tribunal. It is, therefore, the order relating to setting aside of the entries in the names of writ petitioners by these two authorities does not sustain.

19. In so far as the argument relating to the auction purchaser having obtained valid title and that title being unimpeachable though subsequently the right, which is



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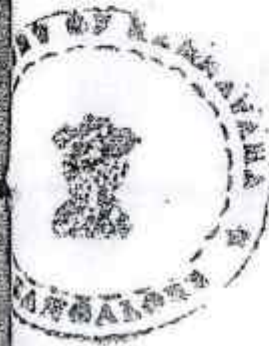
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akin to a decree passed civil court, is set aside and based on the judgment of the Supreme Court in the case of JANAK RAJ [supra] and as submitted by Sri Kumbar, learned counsel for first respondent is concerned, it is found in the present case that the judgment or award passed by the arbitrator had been set aside, though at the instance of daughters of the original owner, and though it is claimed that first respondent had not been made as a party to that proceedings, nevertheless, that is an order which stands as on date and having set aside the award of the arbitrator. While it is contended by Sri Kumbar that it was without notice and cannot bind first respondent, irrespective of these contentions, it is found in the present case that even the proceedings for auction sale etc., on and after 1-3-1974 are all of no consequence in law, in view of the provisions of Section 44(2)(a) of the Reforms Act. The land tribunal having recorded a finding of fact that as on 1-3-1974, predecessor of petitioners was a tenant and based on that fact having registered him as tenant in respect of



the land in question, it was not also open to the Assistant Commissioner or the Deputy Commissioner to characterize such order conferring occupancy rights is bad in law or void for the reason that there existed relationship between the parties i.e. landlord and tenant. Whether such reasoning is right or wrong or justified or otherwise, it is not within the domain of the revenue authorities to assign such reasons to get over the order passed by the land tribunal.

20. In so far as judgment of the Supreme Court cited supra is concerned, I find that when the original proceedings for bringing the auction sale itself is voided, I am of the view that the judgment is of no application, as the judgment will apply to a case where the sale proceedings are independently valid and sustain. The very sale proceedings are voided in the present case by operation of statute and not by any private act by parties. In fact, reliance placed by Sri Kumbar on the provisions of



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Section 95(2) of the Societies Act also is of no avail to the first respondent, as it is not by any volition of the parties rights are created in favour of a tenant under the statute and extinguishing of the right of the bank-mortgagee is by operation of Section 44 of the Reforms Act. In view of such statutory position, I am of the view that in the present set of facts in the present case, the judgment of the Supreme court cited supra is not applicable to enure to the benefit of first respondent.

21. It is also not possible nor necessary for this court to go into the question as to at what point of time tenancy had been created, particularly to go back the order of the land tribunal, as it is not based on any legal position, but on question of fact, which, though urged by Sri Kumbar, learned counsel for first respondent, should enure to the benefit of the first respondent, in the absence of any concluded pleadings and fact on this aspect, it is not open to this court to reexamine the validity of the order of the



land tribunal in this writ petition, more so at the instance of a person for whose benefit the order had been passed to invalidate the order when without any dispute an attempt on the part of the first respondent has failed before this court to get over the order of the land tribunal.

22. Though it is contended by Sri Kumbar that an auction sale once held unless is challenged by a person who is interested or who claims aggrieved by the auction sale, but the writ petitioners having not done so, cannot claim any benefit to the contrary, is an argument that cannot be accepted, in the wake of the reasoning assigned above and as in the instant case the consequence in law follow due to statutory provisions.

23. In the result, this writ petition is allowed, orders at Annexure-A and J are both quashed by issue of writ of certiorari and the order passed by the tahsildar at Annexure-H is restored. Annexure-K order being only of the nature of a consequential order, is also not sustainable



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and being an order passed on an application made by the first respondent, is also quashed and direction is issued to the Deputy Commissioner to refund the amount in deposit in favour of the writ petitioners.

24. Rule made absolute to the extent indicated above.

Sd/-
JUDGE



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S. L. 20/11
Section Officer
District Court, Bangalore.
Bangalore-560 001.

The date of filing of the application was 17.11.12
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Annexure - R-9

11984/11

Danegowda

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W.A.No.8592/2012

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 25TH DAY OF MARCH, 2014

PRESENT:

THE HON'BLE MR. JUSTICE N.K. PATIL

AND

THE HON'BLE MR. JUSTICE PRADEEP D. WAINGANKAR

W.A.NO.8592/2012 (KLR-RES) 3952 in memo

BETWEEN:

LATE HEMANNA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES

1. SMT.AKKAYAMMA W/O LATE HEMANNA
AGED ABOUT 75 YEARS
2. SRI DANEGOWDA S/O LATE HEMANNA
AGED ABOUT 59 YEARS
3. SRI MUNIVENKATEGOWDA S/O LATE HEMANNA
AGED ABOUT 55 YEARS
4. SRI GOPALAGOWDA @ PRAKASH
S/O LATE HEMANNA
AGED ABOUT 52 YEARS

ALL ARE RESIDING AT SATHANUR
VILLAGE, JALA HOBLI-560 015
BANGALORE NORTH (ADDL.) TALUK

... APPELLANTS

(BY SRI REUBEN JACOB, OF
M/S JACOB & CO., ADVS.)



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W.A.No.8592/2012

AND:

LATE MUNIYAMMA
SINCE DECEASED REPRESENTED
BY HER LEGAL REPRESENTATIVES

1. SRI MUNIYAPPA
S/O LATE MUNIYAPPA
@ DOMMANNA, MAJOR
2. SRI NARAYANASWAMY
S/O LATE MUNIYAPPA @
DOMANNA
AGED ABOUT 54 YEARS
3. SRI AVALAPPA
S/O LATE MUNIYAPPA @
DOMMANNA
AGED ABOUT 47 YEARS

SRI KEMPANNA SINCE DECEASED
REPRESENTED BY HIS LEGAL
REPRESENTATIVES
RESPONDENT NOS.4 TO 6 BELOW

4. SMT.ANASUYAMMA
W/O LATE KEMPANNA
AGED ABOUT 35 YEARS
5. KUM. ASHWINI
D/O LATE KEMPANNA
AGED ABOUT 14 YEARS
6. MR.ARUN
S/O LATE KEMPANNA
AGED ABOUT 11 YEARS

RESPONDENTS 1 TO 6 ARE
R/AT SATHNUR VILLAGE



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W.A.No.8592/2012

JALA HOBLI-560 015
BANGALORE NORTH (ADDL.) TALUK

7. SRI MUNIRAJU
S/O PILLEGOWDA
AGED ABOUT 55 YEARS
RESIDING AT SATHANUR
VILLAGE, JALA HOBLI-560 015
BANGALORE NORTH (ADDL.) TALUK

SRI CHANNAPPA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES
RESPONDENT NOS.8 TO 13 BELOW

8. SMT.RUDRAMMA
W/O LATE CHANNAPPA
AGED ABOUT 75 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560 015
BANGALORE NORTH (ADDL.) TALUK
9. SMT.CHIKKAMUNIYAMMA
W/O SHIVANNA
AGED ABOUT 59 YEARS
R/AT KAMALUR
TUBUGERE HOBLI
ANTARAHALLI POST-561 2013
DODDABALLAPUR TALUK
10. SRI SHAMANNA
S/O LATE CHANNAPPA
AGED ABOUT 59 YEARS
11. SRI VENUGOPAL
S/O LATE CHANNAPPA
AGED ABOUT 55 YEARS



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W.A.No.8592/2012

12. SMT.KEMPAMMA
W/O MUNINANJAPPA
AGED ABOUT 43 YEARS

13. SRI CHIKKAVALAPPA
S/O LATE CHANNAPPA
AGED ABOUT 41 YEARS

RESPONDENT NOS.10 TO 13
ARE R/AT SATHANUR VILLAGE
JALA HOBLI-560 015
BANGALORE NORTH (ADDL) TALUK

14. THE SPECIAL DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE-560 009

... RESPONDENTS

(BY SMT.D.P.REVATHI FOR
SRI D.P.SHIVAPRASAD, ADVOCATE
FOR C/R1 TO R4; SRI D.ASHWATHAPPA,
AGA FOR R14)

THIS WRIT APPEAL IS FILED UNDER SECTION 4
OF THE KARNATAKA HIGH COURT ACT, PRAYING TO
SET ASIDE THE ORDER PASSED IN THE WRIT PETITION
NO.10750/2007(KLR-RES) DATED 2.11.2012.

THIS WA COMING ON FOR PRELIMINARY HEARING
THIS DAY, **N.K. PATIL J.**, DELIVERED THE FOLLOWING:





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W.A.No.8592/2012

:J U D G M E N T:

We have heard the learned Counsel for the appellants and the learned Counsel for the respondents.

2. Shri Reuben Jacob, learned Counsel appearing for the appellants has filed a Memo dated 25.03.2014 which reads as follows:

"The undersigned counsel for the appellants submits on instructions that the appellants may be permitted to withdraw the above W.A.No.8952/2012 with liberty to file an original suit (O.S.) seeking for declaration of ownership in respect of the properties in dispute in this appeal (Sy.No.4 measuring 1 Acre and Sy.No.6 measuring 2 Acres 8 Guntas of Sathanur village, Bangalore North Additional Taluk) before the jurisdictional civil court. This appeal may kindly be disposed with the said liberty reserved to the appellants. It is also prayed that this Hon'ble Court may be pleased to observe that the revenue entries in respect of the



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*lands in question would be subject to the outcome of the said original suit. The present memo may kindly be taken on record in the interest of justice and equity.**

3. In the light of the statements made in the memo, as extracted supra, the instant appeal filed by the appellants is disposed of as withdrawn reserving liberty to the appellants to work out their remedy before the jurisdictional Civil Court and all contentions urged in the writ appeal are left open. It is needless to clarify that the names of the contesting respondents entered in the record of rights certifying the mutation shall be subject to the outcome of the judgment and decree to be passed in the suit to be filed by the appellants.

4. With these observations, the instant appeal stands disposed of.



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W.A.No.8592/2012

In view of disposal of the appeal, the relief sought in I.A.3/2013 does not survive for consideration. Hence, I.A.3/2013 stands disposed of as having become infructuous.

Sd/-
JUDGE

Sd/-
JUDGE



'TRUE COPY'

W. A. No. 8592/2012

Section Officer,
High Court of Karnataka
Bangalore-560 001

- a) The date on which the application was made *27.3.14*
- b) The date on which charges and additional charges if any are called for
- c) The date on which charges and additional charges if any are deposited/paid
- d) The date on which the copy is ready *5.4.14*
- e) The date of notifying that the copy is ready for delivery *5.4.14*
- f) The date on which the applicant is required to appear on or before *10.4.14*
- g) The date on which the copy is delivered to the Applicant *5.4.14*
- h) Examined by *[Signature]*

Answer R-10

10649/16

285 H.R. Vishwanatha

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 14TH DAY OF JULY, 2016

PRESENT

THE HON'BLE MR. SUBHRO KAMAL MUKHERJEE
CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE RAVI MALIMATH

REVIEW PETITION NO.1263 OF 2014

BETWEEN

LATE HEMANNA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES

1. SMT AKKAYAMMA
W/O LATE HEMANNA
AGED ABOUT 77 YEARS
RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
2. SRI DANEGOWDA
S/O LATE HEMANNA
AGED ABOUT 61 YEARS
RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
3. SRI MUNIVENKATEGOWDA
S/O LATE HEMANNA
AGED ABOUT 57 YEARS



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RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA

4. SRI GOPALAGOWDA @ PRAKASH
S/O LATE HEMANNA
AGED ABOUT 54 YEARS
RESIDING AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK -
KARNATAKA

... PETITIONERS

(BY SRI.H.R.VISHWANATH, ADVOCATE)

AND

LATE MUNIYAMMA
SINCE DECEASED REPRESENTED BY
HER LEGAL REPRESENTATIVES

1. SRI MUNIYAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
MAJOR
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
2. SRI NARAYANASWAMY
SINCE DECEASED REPRESENTED BY
HIS LEGAL REPRESENTATIVES
- 2(A) PAPAMMA
W/O LATE NARAYANASWAMY
AGED ABOUT 52 YEARS
- 2(B) B. MOUNA
D/O LATE NARAYANASWAMY
- BOTH ARE R/A SATHANUR VILLAGE



HIGH COURT

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JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA.

3. SRI AVALAPPA
S/O LATE MUNIYAPPA @ DOMANNA
SRI KEMPANNA
AGED ABOUT 49 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA

KEMPANNA
SINCE DECEASED REPRESENTED
BY HIS LEGAL REPRESENTATIVES

4. SMT. ANASUYAMMA
W/O KEMPANNA
AGED ABOUT 37 YEARS,
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA

5. KUM. ASHWINI
S/O LATE KEMPANNA
AGED ABOUT 16 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA

6. MR. ARUN
S/O LATE KEMPANNA
AGED ABOUT 13 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK.
KARNATAKA



ERS

288



-4-

SINCE THE RESPONDENTS NO.5 AND 6 ARE
MINORS, REPRESENTED BY THEIR MOTHER
NATURAL GUARDIAN RESPONDENT NO. 4

7. SRI MUNIRAJU
S/O PILLEGOWDA
AEGD ABOUT 57 YEARS
R/A SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA

CHANNAPPA
SINCE DECEASED BY REPRESENTED
HIS LEGAL REPRESENTATIVES
8. SMT. RUDRAMMA
W/O LATE CHANNAPPA
AGED ABOUT 77 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
9. SMT CHIKKAMUNTYAMMA
W/O SHIVANNA
AGED ABOUT 61 YEARS
R/AT KAMALUR
TUBUGER HOBLI
ANTARAHALLI POST-561203
DODDABALLAPUR TALUK, KARNATAKA
10. SRI SHAMANNA
S/O LATE CHANNAPPA
AGED ABOUT 61 YEARS
R/AT SATHNUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA



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11. SRI VENUGOPAL
S/O LATE CHANNAPPA
AGED ABOUT 57 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
12. SMT KEMPAMMA
W/O MUNINANJAPPA
AGED ABOUT 45 YEARS
R/AT SATHANUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
13. SRI CHIKKAVALAPPA
S/O LATE CHANNAPPA
AGED ABOUT 43 YEARS
R/AT SATHNUR VILLAGE
JALA HOBLI-560015
BANGALORE NORTH (ADDL) TALUK
KARNATAKA
14. THE SPECIAL DEPUTY COMMISSIONER
BANGALORE URBAN DISTRICT
BANGALORE-560 009,
KARNATAKA

... RESPONDENTS

(SMT.D.P.REVATHI, ADVOCATE FOR SRI.D.P.SHIVAPRASAD,
ADVOCATE FOR RESPONDENT NOS.1 TO 4
SRI.A.C.BALARAJ, ADVOCATE FOR RESPONDENT NOS.7 TO 13
MISS NILOUFER AKBAR, ADDITIONAL GOVERNMENT ADVOCATE
FOR RESPONDENT NO.14
RESPONDENT NOS.5 AND 6 ARE SERVED AND UNREPRESENTED)

THIS REVIEW PETITION IS FILED UNDER ORDER 47 RULE 1 OF
CPC, PRAYING TO REVIEW THE ORDER DATED 25.3.2014 PASSED IN
W.A. NO.8592/2012 (KLR-RES), ON THE FILE OF THE HON'BLE HIGH
COURT OF KARNATAKA, BANGALORE.



290 031
THIS PETITION COMING ON FOR HEARING THIS DAY, THE
CHIEF JUSTICE MADE THE FOLLOWING:

ORDER

The application for review is barred by limitation.

2. This is an application for review on the allegations against
the erstwhile advocate.

3. It appears from the order impugned that both the Hon'ble
Single Judges, who have now retired, recorded the statements
made in a memorandum moved by the learned advocate, in the
Court, and disposed of the writ appeal in terms of the said
memorandum. Liberty was granted to the appellants to work
out their remedy before the jurisdictional Civil Court and all
questions raised in the writ appeal were left open.

4. We do not find any error apparent on the face of the
record, requiring interference.



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5. The application for condonation of delay in filing the application for review is dismissed. Consequently, the application for review is, also, dismissed.

6. In view of dismissal of this application for review, pending interlocutory application does not survive for consideration and is, also, dismissed.

7. We make no order as to costs.

Sd/-
CHIEF JUSTICE

Sd/-
JUDGE



- a) The date on which the application was made 14/7/16
- b) The date on which charges and additional charges if any are called for 16/7/16
- c) The date on which charges and additional charges if any are deposited/Paid 18/7/16
- d) The date on which the copy is ready 19/7/16
- e) The date of notifying that the copy is ready for delivery 19/7/16
- f) The date on which the applicant is required to appear on or before 20/7/16
- g) The date on which the copy is delivered to the Applicant 20/7/16
- h) Examined by 20/7/16

'TRUE COPY'

[Signature]
Section Officer 19/7/16
High Court of Karnataka
Bangalore-560 001

KARNATAKA

FEB 2022

BENGALURU

05

1762/22
Dane Gowda
(7)

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ANNEXURE R-11

7

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

(ORIGINAL JURISDICTION)

WP NO. 56087 /2016 (LR)

BETWEEN:

Late Hemanna
Since deceased represented by
His legal representatives,

1. Smt.Akkayamma,
W/o. Late Hemanna,
Aged about 79 years,
Residing at Sathanur village,
Jala Hobli, Bangalore North Taluk,
Karnataka-560015.
2. Sri.Danegowda,
S/o. Late Hemanna,
Aged about 64 years,
Residing at Sathanur village,
Jala Hobli, Bangalore North Taluk,
Karnataka-560015.
3. Sri.Munivenkategowda,
S/o. Late Hemanna,
Aged about 59 years,
Residing at Sathanur village,
Jala Hobli, Bangalore North Taluk,
Karnataka-560015.
4. Sri.Gopalagowda @ Prakash,
S/o. Late Hemanna,
Aged about 57 years,
Residing at Sathanur village,

28 OCT 2016

KARNATAKA
BENGALURU

This Certified copy contains 13 Pages
And Copying charges of ₹ 13
Received

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Jala Hobli, Bangalore North Taluk,
Karnataka-560015.

(Senior citizens not claimed)

And

... Petitioners

1. State of Karnataka,
Department of Revenue,
Represented by its Secretary,
Vikasa Soudha, Bangalore-01.

2. The Land Tribunal,
Devanahalli Taluk,
Devanahalli
Represented by its Secretary.

Pin 562110

3. Sri. Muniyappa,
S/o. Late Muniyappa @ Dommanna,
Major, *about 49 years*.
R/a. Sathanur Village,
Jala Hobli, 560015
Bangalore North Taluk,
Karnataka.

4. Smt. Papamma,
W/o. Late Narayanaswamy,
Aged about 55 years,

5. Smt. Mouna,
D/o. Late Narayanaswamy,
Major *32 years*.
Respondent no. 4 & 5 are residing at
Sathanur village,
Jala Hobli, Bangalore North Taluk,
Karnataka-560015.

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6. Sri.Avalappa,
S/o. Late Muniyappa @ Domanna,
Aged about 52 years,
Resident of Sathanur Village,
Jala Hobli, Bangalore North Taluk,
Karnataka-560015.
7. Smt.Anasuyamma,
W/o. Kempanna,
Aged about 40 years,
8. Kum. Ashwini,
D/o. Late Kempanna,
Aged about 18 years,
9. Mr.Arun
S/o. Late Kempanna,
Aged about 15 years,
Represented by his mother Smt. Anasuyamma.
Respondent no.7 to 9 are residents of
Sathanur Village,
Jala Hobli, Bangalore North Taluk,
Karnataka-560015.

..... Respondents

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 AND 227 OF
CONSTITUTION OF INDIA

1. The Petitioners respectfully submit that on 17.01.1979, Doomanna @ Muniyappa filed Form No.7 claiming occupancy rights in respect of 2 acre 8 gunta of land in sy no.6 and 1 acre of land in sy no.4 of Sathanur Village, Jala Hobli, Devanahalli Taluk (Now Bangalore North Taluk), against the

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Late Hemanna and others in LRF No.1/1979-80 before the Land Tribunal, Devanahalli Taluk. The said Doomanna @ Muniyappa died on 25.09.1991.

2. It is submitted that Muniswamappa, the father of Doomanna @ Muniyappa was the owner of the above said lands. The father of the original applicant borrowed loan from Primary Land Development Bank, Devanahalli by mortgaging the aforesaid loan on 13.08.1965. In view of the default by the borrower, these lands came to be brought for sale in public auction and the husband of Petitioner no.1 and father of Petitioner no.2 to 4 purchased the said land in the auction. In that regard a sale certificate came to be issued on 30.06.1978. A copy of the sale certificate is herewith produced as ANNEXURE-A.
3. It is submitted the original applicant who is the son of Muniswamappa filed Form No.7 on 17.01.1979 claiming occupancy rights over the said lands claiming that the property belonged to Joint family and in the partition dated 07.09.1965, these two lands came to be allotted to the share of Muniswamappa and that after some time the father had leased the properties to the original applicant. Before the proceedings in the Land Tribunal, Late Hemanna appeared and filed statement of objections opposing the claim.
4. It is submitted that during the pendency of the proceedings before the Land Tribunal, the Land Tribunal has appointed the Revenue Inspector, Jala Hobli, was appointed as Receiver of the subject lands. This Honble court in

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WP No.12045/1979 by an order dated 06.11.1979 modified the order of the Land Tribunal by appointing Late Hemanna as Receiver pending disposal of Form No.7 with directions to deposit the value of crops after deducting the expenses.

5. It is submitted that the Land Tribunal after holding enquiry by an order dated 13.07.1982 allowed Form No.7 by registering Domanna @ Muniyappa as occupant of the land. A copy of the order passed by the Land Tribunal dated 13.07.1982 is herewith produced as ANNEXURE-B. The perusal of the order makes it clear that the Land Tribunal has not complied with Rule 17 of Land Reforms Rules and the order is not a speaking order.
6. It is submitted that the order passed by the Land Tribunal dated 13.07.1982, came to be challenged by the father of petitioner no.1 and father of Petitioner no.2 to 4, before this Honble court by filing writ petition in WP NO.28672/1982. This Honble court by an order dated 17.09.1984 allowed the writ petition and quashed the order of the Tribunal and remanded the matter for fresh consideration as per law. A copy of the order passed by this Honble court in WP No.28672/1982 dated 17.09.1984 is herewith produced as ANNEXURE-C.
7. The order in the writ petition in WP No.28672/1982 came to be challenged by the original tenant before the Division Bench of this Honble Court in WA No.667/1985 and this Honble court by an order dated 16.09.1987 allowed the writ appeal and the order of the learned Single Judge came to be set

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aside. The writ petition came to be transferred to Appellate Authority created under the Act. A copy of the order passed in WA NO.667/1985 is herewith produced as ANNEXURE-D.

8. It is submitted that in view of abolition of the appellate authority once again applications were filed to treat the Appeal as writ petition in WP No.25394/1992. This Honble court by an order dated 12.07.1993 dismissed the petition for non-prosecution. A copy of the said order is herewith produced as ANNEXURE-E. The Husband of the Petitioner no.1 and father of the Petitioner no.2 to 4, filed an application for recalling the order dated 12.07.1993 which is numbered as CP NO.1281/2001. This Honble court by an order dated 07.12.2001 rejected the said application. A copy of the order dated 07.12.2001 is herewith produced and marked as ANNEXURE-F.

9. It is submitted that in the meantime, the legal representatives of original tenant applied the Thasildar, Bangalore North Taluk for mutation in their name consequent to his death. The said proceedings came to be registered as disputed cases in RRT (Dis) No.32/2001-2002. After hearing the parties by an order dated 15.11.2003, the Thasildar passed an order to mutate the revenue entries in respect of the lands in the name of Legal Representatives subject to result of the review petition. A copy of the order dated 15.11.2003 is herewith produced and marked as ANNEXURE-G. The order passed by the Thasildar in RRT (dis) No.32/2001-02 came to be challenged by Late Hemanna by filing an appeal before the Assistant

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Commissioner, Bangalore North Sub-Division, Bangalore in RA No.50/2004-05. The Assistant Commissioner by an order dated 07.09.2004 allowed the appeal and the order passed by the Thasildar came to be set aside.

10. It is submitted that in the meantime, the order passed by this Honble court in CP No.1281/2001 is sought to be reviewed by Late Hemanna by filing a review petition in RP NO.41/2002. This Honble court by an order dated 26.08.2004 rejected the review petition. A copy of the order passed by this Honble court in RP No.41/2002 is herewith produced as ANNEXURE-H.

11. It is submitted that the order passed by the Assistant Commissioner in RA No.50//2004-05 came to be challenge by the Legal Representative of original tenant before the Deputy Commissioner in RP No.97/2004-05 and Late Hemanna filed Misc Appeal NO.10/2005-06 seeking restoration of title to the public auction purchaser as per the provisions of Karnataka Co-Operative Societies Act. The Deputy Commissioner after hearing by an order dated 22.06.2007 dismissed the revision petition and allowed misc appeal. A copy of the order is herewith produced as ANNEXURE-J.

12. It is submitted that the order passed by the Assistant Commissioner and Deputy Commissioner, came to be challenged by the legal representatives of the original tenant by filing writ petition before this Honble court in WP No.10750/2007. The said writ petition was opposed by the Petitioners herein by filing statement of objections. This Honble court after hearing

K. K. K.



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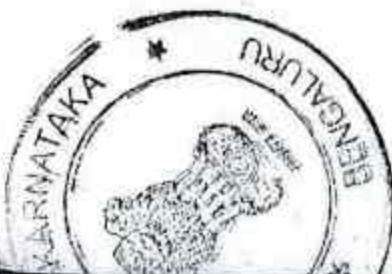
passed an order on 02.11.2012 allowing the writ petition and the orders of the Assistant Commissioner and Deputy Commissioner are set aside and order of the Thasildar came to be restored. A copy of the order dated 02.11.2012 is herewith produced as ANNEXURE-K.

13. It is submitted that the order passed in WP No.10750/2007 dated 02.11.2012 came to be challenged by the Petitioner by filing Appeal in WA No.8592/2012. It is submitted that in the course of hearing of the writ appeal, without the instructions from the advocate filed a memo seeking permission of the court to withdraw the writ appeal with liberty to file a civil suit for declaration of title. On the basis of the said memo, this Honble court was pleased to pass an order on 25.03.2014 permitting to withdraw the appeal with liberty to file suit. A copy of the order dated 25.03.2014 is herewith produced as ANNEXURE-L.

14. The Petitioners have filed a review petition seeking review of the order passed in WA No.8592/2012 on the ground that they have not instructed to withdraw the suit. The review petition in RP No.1263/2014 came to be rejected by this Honble court by an order dated 14.07.2016. A copy of the said order is herewith produced as ANNEXURE-M.

15. It is submitted that the proceedings filed challenging the order of the Land Tribunal dated 13.07.1982, in WP No.28672/1982 came to be entertained by this Honble court by allowing the writ petition. Subsequently, the petition came to be transferred by the division bench of this Honble court to the

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Appellate Authority created under the Act. In view of the abolition of the appellate authority the matter came to be transferred to this Honble court. In that regard applications were filed for transfer. Neither the Petitioners nor their father was aware about the dismissal of their petition on 12.07.1993. Immediately, when the same was brought to their notice they filed an application seeking to recall the order and the said proceedings ended in 26.08.2004. In the meantime, the revenue entry proceedings came to be started in which, the petitioners were advised to challenge the order of the Land Tribunal collaterally. Since from 2001-02 the proceedings were pending before one or the other authority. The Petitioners were bonafide prosecuting the proceedings till the decision of this Honble court in RP No.1263/2014 dated 14.07.2016. After the dismissal of the review petition, the advocate for Petitioner advised them to challenge the order passed by the Land Tribunal in this writ petition. In view of the above said facts and circumstances of the case, there is no delay or latches on the part of these petitioners in approaching this Honble court. It is submitted that since the writ petition filed challenging the order of the Land Tribunal came to be dismissed earlier for non-prosecution, the same will not be bar to file one more writ petition challenging the said order. Hence this writ petition.

16. The Petitioners declares that they have no other alternative efficacious remedy except to approach this Honble court by filing this writ petition. There is no pendency of any other petition or proceedings for the reliefs

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prayed in this writ petition. Hence this writ petition on the following among others: *The petitioners are the legal heirs of Late Hemanna. There is no individual interest, hence common writ petition.*

: GROUNDS:

17. The order of the Land Tribunal impugned in this writ petition is not sustainable in law and facts of the case and hence liable to be set aside.
18. It is submitted that admittedly mortgage in favour of the Bank was on 13.08.1965 and partition of the Joint family was on 07.09.1965 and the claim of tenancy is subsequent to partition after two years. In view of the said facts and circumstances, the Tribunal ought to have appreciated that the creation of tenancy, if any, is illegal and contrary to law. Hence there can be no tenancy in the eye of law.
19. It is submitted that the original tenant has claimed tenancy against his own father and in the proceedings before the Tribunal, the father remains absent and in addition to the same, there is no lease deed or rent paid receipts. All these facts and circumstances should have been appreciated by the Land Tribunal while deciding an application before it.
20. It is submitted that the standard of proof required to prove tenancy when the same is claimed against the father is higher than between any other parties. Hence it is submitted that there is no landlord and tenant relationship at all.

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21. It is submitted that the order impugned order is not a speaking order. Except extracting the statements made by the parties, the effect of the statement and the finding of the Tribunal on those statements and whether there is relationship of landlord and tenant and whether there is vesting of land, are all not at all appreciated by the Land Tribunal.
22. It is submitted that the revenue entries are also not at all appreciated by the Tribunal. All discussions made in the course of the order are in respect of the matter beyond the scope of the Tribunal.
23. The statements of the witnesses and its effect on the claim of the tenant are not at all appreciated by the Tribunal. Hence the order is bad in law and contrary to Rule 17 of Land Reforms Rules.
24. Even otherwise the order of the Land Tribunal is bad law and liable to be set aside.

PRAYER

Wherefore, the Petitioners respectfully prays that this Honble court may be pleased to:

- a). Issue a writ of certiorari quashing the order of the Land Tribunal, Respondent no.2 in LRF NO.1/1979/80 dated 13.07.1982 in granting occupancy rights in favour of Doomanna @ Muniswamappa in respect of land in sy no.4 measuring 1 acre and 2 acre 8 gunta in sy no.6 of Sathanur Village, Jala Hobli, vide Annexure-B and dismiss the Form No.7 filed by Late Doomanna @ Muniswamappa;

Place



And

b). Issue such other writ, direction or order as this Hon'ble court deems fit to be granted in the facts and circumstances of this case including the costs of this proceedings in the interest of justice and equity.

Bangalore

Date: 27/10/2016

Filed on 27/10/2016

Address for Service:

H.R. Vishwanath,

Advocate,

No.92/10, 12th C Main,

6th block, Rajajinagar,

Bengaluru-560010.

Ph: 9844127281.

H.R. Vishwanath

Advocate for Petitioners
(H.R. VISHWANATH)



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IN THE HIGH COURT OF KARNATAKA AT BENGALURU
WP NO. 56087 /2016 (LR)

BETWEEN:

Late Hemanna

By Legal representatives

... Petitioners

And

State and others

.... Respondents

VERIFYING AFFIDAVIT

I, Danegowda, S/o. Late Hemanna, aged about 64 years, resident of Sathanur village, Jala Hobli, Bangalore North Taluk, now at Bangalore, do hereby solemnly affirm and state on oath as under:

1. I am the 2nd petitioner in this writ petition and I am conversant with the facts of the case and hence I am swearing to this affidavit. I am swearing to this affidavit on behalf of other petitioners also.

2. I state that the averments made in paragraphs 1 to 16 of the accompanying writ petition are true and correct and averments made in paragraphs 17 to 24 of the accompanying writ petition are based on legal advice which I believe to be true.

3. I state that the documents produced as Annexure-A to M are true copies of their respective original.

Identified by me



Advocate

Bangalore

Date: 27-10-16

TRUE COPY

Commissioner No. of Correction.....

Bengaluru - 560 001

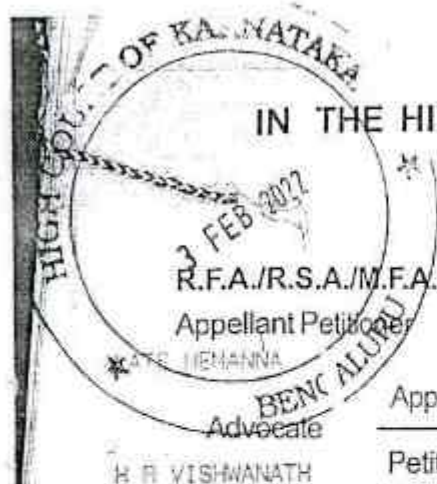


This Document is referred to as
Annexure R-11 in the
Affidavit of Danegowda

NOTARY PUBLIC
Deponent

SWORN TO BEFORE ME

G.B. TURAMARI
ADVOCATE & NOTARY
#45/1, Behind Binny Mill,
1st Main Road, Ganganagar Extn
BENGALURU - 560 032



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

ORDER SHEET PART - I

306

R.F.A./R.S.A./M.F.A./M.S.A./W.P./C.R.P./C.P.

WP 58087/2016 (LR RES)

20

Appellant Petitioner

Respondent

STATE OF KARNATAKA

Appellant

Date of Filing 28/10/2016

Vs

Advocate for Respondent

Advocate

H R VISHWANATH

Petitioner

Office Notes

Orders of Court

Receipt No: 70390/2016 Court Fee : 100

THIS W.P FILED PRAYING TO

QUASH THE ORDER OF THE LAND TRIBUNAL R-2

DATED 13.7.1982 IN GRANTING OCCUPANCY

RIGHTS IN FAVOUR OF DOOMANNA & MUNISWAMAPPA

IN RESPECT OF LAND IN SY NO.4 MEASURING 1 ACRE

AND 2 ACRE & GUNTAS IN SYNO.6 SATHANUR

VILLAGE, JALA HOBLI, VIDE ANNEXURE-B AND

DISMISS THE FORM NO.7 FILED BY LATE DOOMANNA

& MUNISWAMAPPA.

I.A.1/16 FOR DISPENSATION

THE ADVOCATE FOR THE PETITIONER HAS FILED AN

APPLICATION UNDER SECTION 151 OF CPC ALONG

WITH AN AFFIDAVIT PRAYING TO THAT THIS

HON-BLE COURT MAY KINDLY BE PLEASED TO

DISPENSE WITH THE PRODUCTION OF ORIGINAL /



This Certified copy contains 22 Pages

And Copying charges of ₹ 22

Received

Office Notes

Orders of Court

CERTIFIED COPY OF ANNEXURE-B.

(COPY PRODUCED)

POST I.A.1/16 BEFORE REGISTRAR (J) FOR
ORDERS [REG. 1.A.1/16 FOR DISPENSE WITH THE
PRODUCTION OF ORIGINAL / CERTIFIED COPY OF
ANNEXURE-B]

CH MEMO

28.10.2016

02.11.2016

ORDERS ON IA.1/2016

Perused.

Production of original/certified
copy of Annexure - B is dispensed
with for four weeks with a condition
that before the expiry of that period
the requisite document shall be
produced, subject to further orders
of the Hon'ble Court.

IA.1/2016 is disposed of
accordingly.

02/11/2016
REGISTRAR (JUDL)

In view of the Orders passed on
Case No. IA.1/16

The matter may be posted for
Preliminary hearing before SJ/D

29/11/16

SANT:

03-11-2016

Learned AGA is
directed to take notice
for R1 and R2

Issue notice to other
respondents.

Sd/-
JUDGE

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

ORDER SHEET PART - I (Contd.)

56082/2016 (LP)
 RFA/R.SA/M.FA/M.SA/W.P/G.R.P/C.P. of 20

Office Notes	Orders of Court
<u>IA 2/16 for Production</u> <u>Additional documents!</u> The Advocate for Petitioner has filed application a/w Affidavit under Sec 151 of C.C.P 1908 Read with Article 226 of Constitution of India Praying that this Honble Court be pleased to permit them to produce the additional documents by allowing this application in the interest of justice and equity.	



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CWP 56087/2016 (LP)

Page No.

(4)

2

Office Notes

Orders of Court

Acta to take notice for
R₁ & R₂ V/O/dH 3/11/16

R₃ & R₅ are served
and Read by Smt. D.P. Shiva
Present Advocate filed Vakalatnam
on 18/11/16

W.P. is ready in notice

Post IA 2/16 before Court
for Order Reg :

1) IA 2/16 for Production
of additional documents

[Plt show the name of
Smt. D.P. Shiva Present Adv
for R₃ & R₅]

attested Smt. 9/12

BSPJ:

13-12-2016

List along with
W.P. No. 33725/2014
after two weeks.

Sd/-
JUDGE

Sps



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

ORDER SHEET PART - I (Contd.)

R.F.A./R.S.A./M.F.A./M.S.A./W.P./C.R.P./C.P.

56087/16 (LR)

of 20

C/W WP 33725/14 (KLR)

Office Notes	Orders of Court
✓ v/o dt:- 3/11/16, AGA takes notice for R-1 and R-2. R-3 to R-9 are seared and represented by Sai D. P. Shiva Prasad, Smt. D. P. Revathi, Venkatesh and S. Chandrashekar, Adv. WP is ready in notice. Post I.A. 2/16 before Court for Orders also WP 33725/14 (KLR) as directed. [Reg:- I.A. 2/16 for Production of additional documents.] 29/11 20/10/17 DR Moved KLR	BSPJ: 10/1/17 Heard on I.A. 2/16. This is an application filed seeking permission to produce additional documents. Objections have been filed I.A. 2/16 will be heard along with the main matter. Post for preliminary hearing in B group. Sd/- JUDGE



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- 6 -

Page No.



WP 56087/16 (LRR)

C/W WP 33725/14 (KLR)

Office Notes

Orders of Court

10/1/17

Statement of objections
placed below
of
C.O. 11/17

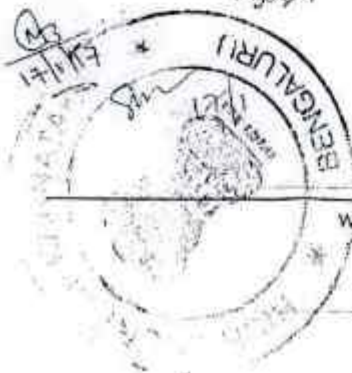
AGA takes notice for
R-1 and R-2.

R-3 to R-9 are served
and represented and filed
Statement of objections.

WP is ready in
notice

Post WP before
Court for Pal. hearing
in 'a' group (a/w I.A. 2/16
for Production of additional documents
C/W WP 33725/14 (KLR) as
directed.)

(CH moved)



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

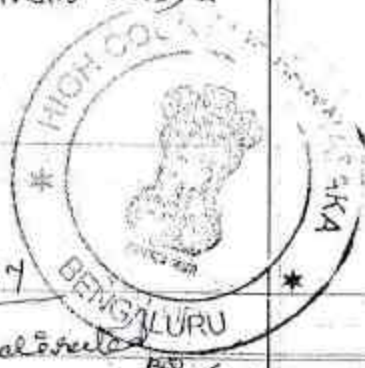
ORDER SHEET PART - I (Contd.)

56097/2016 (LH)

R.F.A./R.S.A./M.F.A./M.S.A./W.P./G.R.P./C.P. No. 33725/14... 14.1.20

Office Notes	Orders of Court
AGA take notice for R1 & R2 Voldtel 3/11/16. R3 to R9 are served and Resp and also filed Statement of Objections CWP is ready in notice Post W.P. before Court on 23-1-2017 for Prel hearing in 'B' Group also IA2/16 for Production of Additional documents. clw W.P. 33725/14 (Kte) as directed. (CH Hoval memo 1/13) 20/1/17 8-20/11 20/1/17 23.1.17 repeated as above	

sta
Lic
MS
3 to



COMPS

(18)

8 (26)

top 56087/16 LP

WD Page No.

2 clw WP 33725/14 KLR

Office Notes

Orders of Court

25.1.17

Re. L. M. 30.1.17 BL
@
Col. M.

30/1/17

List on 6/2/17.

B.O.
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Aco CHS

6-2-2017

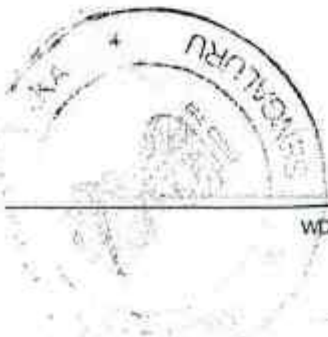
Call on 7-2-2017
at petitioners' request.

[Signature]
(RVMT)

7/2/2017:

Call after two weeks at
the request of the Learned
Counsel for the respondents

[Signature]
[RVMT]



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

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ORDER SHEET PART - I (Contd.)

R.F.A./R.S.A./M.F.A./M.S.A./W.P./C.R.P./C.P.

W.P. 56087/2016 (LA)
of 20
W.P. 33725/2014

Office Notes

Orders of Court

28/2/2017:

Call next week at the
request of respondent's
Counsel.

JUDGE

(RVMS)

Add statement of objection
& List of date of
Events filed by Adw
for R-3 to R-9 & same is
Place



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&
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201
008
W
Rec
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WP No. 56087/16

303 38725/14 (LR-RES)

Office Notes

Orders of Court

315

7/3/17:

Both learned Counsels
submits that the matter
requires to be heard at
length.

The primary issue is
one of delay. Hence,
keeping open the question
of delay, post this matter
for hearing.

Sd/-
JUDGE
(VMD)



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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

ORDER SHEET PART - I (Contd.)

WP 56087/16 LR

CLW 33725/14 LR

R.F.A./R.S.A./M.F.A./M.S.A./W.P./C.R.P./C.P.

of 20

Office Notes

Orders of Court

AGA for R-1 & R-2
vld dt 3/11/16R-3 to R-9 are sd
and represented by
Sri D.P. Shiva Prasad,
P.P. Revathi Advocate
& others also filed
statement of objectionRule not issuedPast wp before Hon'ble
court for hearing
also wp 33725/14 as
directed

5/4/17

Smt 05/4

AM
05/4/17

06/06/2017

W.P. 33725/14 is dismissed
today. W.P. 56087/16 is
pending & hence delinkedBo
Th
CO-11

317
130

Page No.

WP 56087/16 LR

Office Notes

Orders of Court

GA to take notice for
R-1 & R-2 vide order of
3/11/16

R-3 to R-9 sd and
represented by DP Shivaprasad
Advocate & also filed
statement of objection

Vlo dt 6/6/17 the Above
WP is delinked from
WP 33725/14

Rule not issued

Post WP before the Hon'ble
Court for hearing as
directed

16/6/17
Sm 16/6
16/6/17



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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

ORDER SHEET PART - I (Contd.)

R.F.A./R.S.A./M.F.A./M.S.A./W.P./C.R.P./C.P. of 56087/16 LEJ 20

Office Notes	Orders of Court
<u>IA 11/12 for Stay</u> The advocate for Petitioner has filed application also Offender under Sec 151 of Cr.P. with Article 226 and 227 of Constitution of India praying that the Honble Court be pleased to pass an interim order staying the revenue action as on 1-12-19 in respect of land Sy no 4 measuring 3 Acres 22 Cents and Sy no 6 measuring 2 Acres 08 Cents Situated Suttan village July 2-1956. Blom mark taking by app advocate this application in the interest of Justice and Equity	

319

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14

WP 56087 / 16 LK

Ps

Page No.

Office Notes

Orders of Court

R. C.A to take motion for
Ri and R. vide order
dt 3/11/16

R. Sn. D.P. Shrinivas
Ad. Advocate appearing for R3 to 9
Gt. and also filed statement
of objection.

JP. vldt 6/6/17 the above
WP is delinked from
WP 33725/14

Pos. C.A.P is ready in motion

CC. Pos. I.A-117 before
Court for Orders Reg!

D. 16/6/1

1) I.A-117 for stay

(DIR memo 1-15)

BSPJ:

13/7/17

Learned counsel for
respondents 3 to 9 seeks time
to file objections.

Ten days time is finally
granted.

Sd/-
JUDGE

11/7/17
11/7

v/o dt 13/7/17,
objections not filed

13/7/17



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

ORDER SHEET PART - I (Contd.)

56087/16 (LM)

R.F.A./R.S.A./M.F.A./M.S.A./W.P./G.R.P./C.P. of 20

Office Notes	Orders of Court
As per order dated 13/7/12 Counsel for the respondent no 3 to 9 has filed statement of objections on I.A.117 on 25/7/12 the same is kept below.	

25/7/12

28.7.2012

List Next week as
directed at the
request of the Counsel
for petitioner.

RESPT:

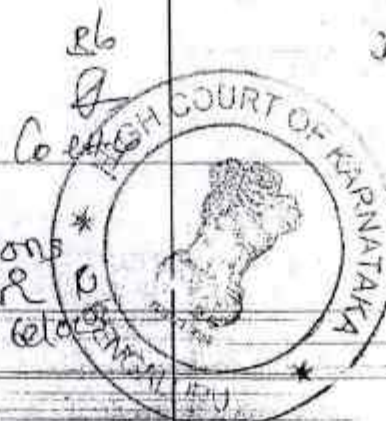
11/8/12

Re-listed on 29/8/12.

JUDGE

statement of objections
filed by petitioner
same is place below

20/8/12



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321

Page No. (16)

WP 56087/2016 (LW)
2

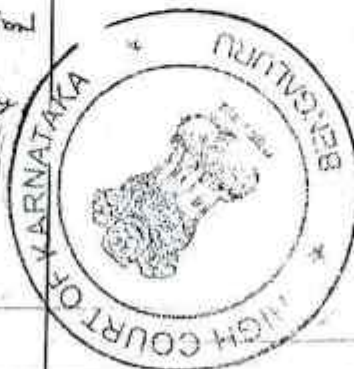
Office Notes

Orders of Court

IA2/17 for Temporary Injunction!

The advocate for respondent-319
has filed application also Affidavit
under Sec 39 Rule 15 RW 151

Praying that for the reasons
Stated in the accompanying affidavit
this Honble Court be pleased
to grant an Order of Temporary
Injunction in favour of
Respondent no 319 and
against the Petition, restraining
them and their partners,
agents, servants, workmen or
anybody claiming through or
under them from cutting and
removing the Eucalyptus
trees in the Property mentioned
in the Schedule hereinafter
described of the above
Petition in the interest of
Justice.



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322

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

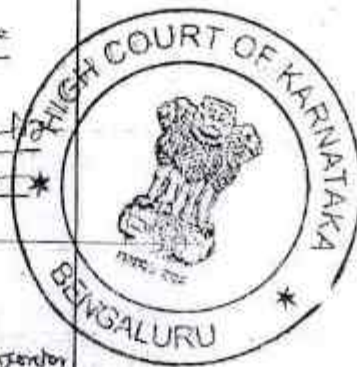
ORDER SHEET PART - I (Contd.)

56087/16 (Ld)

R.F.A./R.S.A./M.E.A./M.S.A./W.P./C.R.P./C.P.

of 20

Office Notes	Orders of Court
G.A. to take notice for R.S.P. Vide order 3/11/16 Sri D.P. Sharma produced Advocate appearing for R3 & R4 and also filed Statement of objection. As per order dtl 13/7/17 the Counsel for R3 & R4 has filed Statement of objection on IA 1/17 on 25/7/17 Vide dtl 6/6/17 the above case is deleted from WP 33725/14. WP is ready for notice Post IA 1/17 and IA 2/17 before Court on 29/8/17 * for order. Day 1) IA 1/17 for Stay 2) IA 2/17 for Temporary Injunction	BSPJ: 29/8/2017 List on 13/9/2017. Sd/- JUDGE



23/6/17
23/8

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WP. 56087/2016 (LR)

Page No.

Office Notes

Orders of Court

13-09-2017

Adjourned.

Bo

J.

Acc. CH-4

CH moved kept below

28/9/17

CH moved kept below pt

21/11/18

21/11/18

21/11/18

31-7-18

Adjourned

Bo
J.
CH-8

BSPJ

03-10-2017

Let next week at
the request of counsel
for petitioner.

JUDGE



37

324

WP NO. 56087/2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
[LATE HEMANNA AND OTHERS VS. STATE OF
KARNATAKA AND OTHERS]

BMSPJ

24.06.2021

(through video conferencing)

ORDER

Adjourned at the request of the learned counsel for the
petitioners to be called on 22.07.2021.

Sd/-
JUDGE



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WP NO. 56087/2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
[LATE HEMANNA AND OTHERS VS. STATE OF
KARNATAKA AND OTHERS]

BMSPJ

22.07.2021

(through video conferencing)

ORDER

Adjourned at the request of the learned counsel for the
petitioners to be called on 26.08.2021.

Sd/-
JUDGE



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

ORDER SHEET PART - I (Contd.)

Wf 56087/15 LR

R.F.A./R.S.A./M.F.A./M.S.A./W.P./C.R.P./C.P. of 15 20

Office Notes

Orders of Court

IA 1/21 for production of
Add documents

The Advocate for Petitioner
has filed application
under section 151 of CrP
1908 R/o section 226 of
constitution of the
Praying to permit the
petitioner to produce the
documents mentioned in
the accompanying list as
additional documents
by allowing this
application is stated
there in

Appearance is as before

last Wf before the Hon'ble
court for orders on IAs
on 26/8/21 as directed

- Reg ① IA 1/17 for stay
② IA 2/17 for temporary
injunctions
③ IA 1/21 for production
of Add documents

23/8/21
ch 23/8
23/8/21



6

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(1410)

Page No. W.P. 56087/2016 2 (LR)

Office Notes

Orders of Court

26/08/2021

not next week finally
at request of counsel for
Pet.

Bo

R

Co-CH/14.



This Document is submitted to as
Annexure R-12 In The
Affidavit of Service of Process
NOTARY PUBLIC

The date on which the application was
made 1/2/22

b) The date on which charges and addl.
charges, if any, are called for 3/2/22

c) The date on which the charges and addl.
charges, if any, are deposits 4/2/22

d) The date on which the copy is ready 4/2/22

e) The date of notifying that the copy is ready
for delivery 4/2/22

f) The date on which copy is delivered to the
application 4/2/22

TRUE COPY

Section Officer
Hq. Karnataka
Bangalore - 560 001



IN THE COURT OF THE ASSISTANT COMMISSIONER:
BENGALURU NORTH SUB-DIVISION AT BENGALURU

R.A (BNA) :171/2014-2015

Dated: On this 27th day of April 2021

PRESENT: Sri.K.Ranganath, KAS.,
Assistant Commissioner,
Bengaluru North Sub-Division,
Bengaluru.

APPELLANT/S:

Sri.Avalappa,
S/o late Muniyappa @ Dommanna,
Aged about 50 years,
R/at Sathanuru village,
Jala Hobli,
Bengaluru North (Addl) Taluk.

V/s

RESPONDENT/S:

1.The Special Tahsildar,
Bengaluru North (Addl) Taluk,
Yelahanka, Bengaluru.

2.Smt.Akkayamma,
W/o late Hemanna,
Aged about 73 years,

3.Sri.Danegowda,
S/o late Hemanna,
Aged about 57 years,

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4. Sri. Muni Venkategowda,
S/o late Hemanna,
Aged about 53 years,

5. Sri. Gopalagowda @ Prakash,
S/o late Hemanna,
Aged about 50 years,

R2 to 5 are residing at
Sathanuru village,
Jala Hobli,
Bengaluru North (Addl) Taluk.

This is an appeal preferred by the appellant/s under section 136(2) of the Karnataka Land Revenue Act 1964 (hereinafter referred to as the 'Act') challenging the order dated 25-06-2014 in RRT/J/CR.70/2014-15 passed by the 1st respondent, in respect of the property in survey No.6 measuring 2 acres 08 guntas and in survey No.4, measuring 1-00 acre, situated at Sathanuru village, Jala Hobli, then Devanahalli Taluk, now Yelahanka Taluk, (hereinafter referred to as the 'said properties').

1. The appellant submits that the father of the appellant namely Muniyappa @ Dommanna had filed Form No.7 before the Land Tribunal, Devanahalli, in respect of the property in survey No.6 measuring 2 acres 08 guntas and in survey No.4, measuring 1-00 acre, situated at Sathanuru village, Jala Hobli, then Devanahalli Taluk, now in Yelahanka Taluk against Hemanna and others in LRF.1/79-80 and the said Muniyappa @ Dommanna died on 25-09-1991 and the said application was allowed by an order dated 13-07-1982 and Muniyappa @ Dommanna was registered as occupant of the said lands subject to payment of premium and the said Muniyappa @ Dommanna had paid the premium.
2. Further submits that the said Hemanna had challenged the said order of the Land Tribunal in W.P.No.28672/82 before the Hon'ble High Court and the same was allowed and quashed the

02



order dated 13-07-1982 passed by the Land Tribunal and remitted the matter to the Land Tribunal for fresh disposal and the said Muniyappa @ Dommanna had preferred W.A.No.667/1985 and by order dated 16-04-1987, the order in W.P.No.28672/82 was set-aside and the writ records stood transferred to the Appellate Authority constituted and renumbered as LRA.208/1987 to treat it as an appeal presented against the orders of the Land Tribunal and to dispose of the same and the Land Reforms Appellate Authority was abolished in 1990 and C.P.No.3393/01 was filed by Hemanna before the Hon'ble High Court and the same was registered as W.P.No.25392/92 (KLRA) before the Hon'ble High Court and the same was dismissed for non prosecution and the said Hemanna filed C.P.No.1281/2001 in W.P.No.25392/92 for recalling the order dated 12-07-1993 and the same came to be dismissed and the said Hemanna had preferred Review Petition No.41/2002 against the order dated 07-12-2001 and the same was dismissed on merits by the Hon'ble High Court of Karnataka by an order dated 26-08-2004, confirming the order dated 13-07-1982 in LRF.1/1979-80 and the same has been attained finality.

3. Further submits that on the application of the appellant, the Tahsildar has passed an order dated 15-11-2003 directing the mutation entries to be changed in favour of the appellant and on the basis of the said order, the khata was mutated in the name of Narayanaswamy - the brother of the appellant.
4. Further submits that the said Hemanna had preferred an appeal in R.A 50/2004-05 against the order dated 15-11-2003 before this court and the same was allowed by an order dated 07-09-2004 and the appellant and other legal heirs of Muniyappa @ Dommanna have preferred revision before the Special Deputy Commissioner, Bengaluru in R.P.No.97/2004-05 and the same had been connected with Misc.Appeal No.10/2005-06 and the R.P.No.97/2004-05 was dismissed and the said Misc.Appeal No.10/2005-06 was allowed. And against the said order, the appellant and others have filed W.P.No.10750/2007 and the same was allowed by an order dated 02-11-2012 and the brother of the appellant filed an application before the Special Tahsildar for

DL

331

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restoration of the entries in the name of Muniyappa @ Dommanna in the RTC but the 1st respondent did not brother to obey the orders of this court.

5. Further submits that the legal heirs of Hemanna have preferred W.A.No.8592/2012 challenging the order in W.P.No.10750/2007 and later the same came to be withdrawn stating that they would file declaration suit before the jurisdictional civil court and the said writ appeal was dismissed as withdrawn with directions to restore the name of the appellant in the Records of Rights that shall be subject to the outcome of the suit filed by the legal heirs of Hemanna.
6. Further submits that thereafter the appellant has filed an application before the Special Tahsildar for restoration of the revenue entries in the name of legal heirs of Dommanna @ Muniyappa according to the directions of the Division Bench of the Hon'ble High Court but the 1st respondent authority has rejected the said application vide order dated 25-06-2014 in RRT/J/CR.70/2014-15. Hence, the above appeal.
7. On the other side, the respondents 2 to 5 have appeared before this court and have filed their statement of objections and produced documents.
8. These respondents admits the contentions of the appellant till the dismissal of the W.P.No.25394/1982 for non-prosecution and further submits that the legal heirs of the said Hemanna have filed another writ petition in W.P.No.56087/2016 (LR), challenging the order dated 13-07-1982 passed by the Land Tribunal in granting the occupancy rights in respect of the said lands and the same has been admitted by the Hon'ble High Court of Karnataka and the same is still pending for consideration and therefore, the 1st respondent has rightly passed the impugned order. Therefore prayed for dismissal of the above appeal.
9. Heard the arguments of the appellant and the respondents 2 to 5 in the above apepal and posted the above appeal for orders.

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10. I have perused the pleadings in the memorandum of appeal and the documents produced by the appellant and the statement of objections and the documents produced by the respondents 2 to 5.

11. The appellant seeking revenue entries in the names of the legal heirs of Muniyappa @ Dommanna on the basis of the orders in W.A.No.8592/2012. But, on perusal of the said order, nowhere the Hon'ble High Court has ordered to restore the revenue entries in the Records of Rights either in the name of the said Muniyappa @ Doddanna or in the names of any of the legal heirs of the said Muniyappa @ Doddanna.

12. Further, the appellant is claiming his rights over the said land on the basis of an order dated 13-07-1982 in LRF.1/79-80 passed by the Land Tribunal, Devanahalli Taluk. But, on perusal of the order sheet and the copy of the Memorandum of writ petition in W.P.No.56087/2016 (LR-RES), it shows that the legal heirs of the said Hemanna i.e., the respondents 2 to 5 herein have filed the said writ petition challenging the said order dated 13-07-1982 in LRF.1/79-80 passed by the Land Tribunal, Devanahalli Taluk and the said writ petition has been admitted and the same is still pending for consideration. Thus, the legality of the order dated 13-07-1982 in LRF.1/79-80 passed by the Land Tribunal, Devanahalli Taluk, in respect of the lands in question has already been seized before the Hon'ble High Court of Karnataka and therefore, the 1st respondent has rightly passed the impugned order and hence the same does not require any interference by this court. The above appeal is liable to be dismissed.

13. In view of the above mentioned facts and the observations made, I proceed to pass the following;

ORDER

The above appeal of the appellants is hereby dismissed.

Dr

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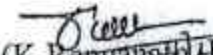
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The order dated 25-06-2014 in RRT/J/CR.70/2014-15 passed by the 1st respondent is hereby confirmed.

The interim order of stay granted in the above appeal is hereby vacated.

Dictated to the stenographer, the typescript edited by me, corrected and then pronounced in open court on 23rd day April of 2021.


(K. Ranganathaiah, IAS.)

Assistant Commissioner
Bengaluru North Sub-Division
Bengaluru

"ಛಾಯಾಚಿತ್ರ"

ಕಾಶ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ನಾರ್ಥ ಸಬ-ಡಿವಿಷನ್
16/7/21

(147)

Annexure - R-14" 334

1950/22

W.B. Shastri

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 10TH DAY OF FEBRUARY, 2022

PRESENT

THE HON'BLE MR. RITU RAJ AWASTHI, CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE SURAJ GOVINDARAJ

WRIT APPEAL NO. 106 OF 2022 (KLR-RES)

BETWEEN:

1. SMT. AKKAYYA'IMA
W/O LATE HEMANNA
AGED ABOUT 76 YEARS,
2. SRI. DANEGOWDA
S/O LATE HEMANNA
AGED ABOUT 60 YEARS,
3. SRI. MUNIVENKATEGOWDA
S/O LATE HEMANNA
AGED ABOUT 49 YEARS,
4. SRI. GOPALAGOWDA @ PRAKASH
S/O LATE HEMANNA
AGED ABOUT 46 YEARS,

APPELLANTS 1 TO 4 ARE RESIDENTS OF
SATHANUR VILLAGE, JALA HQBLI,
BANGALORE NORTH (ADDL.) TALUK,
BANGALORE DISTRICT - 560 064.

... APPELLANTS

(BY SRI G. BALAKRISHNA SHASTRY, ADVOCATE)

AND:

THE DEPUTY COMMISSIONER
BENGALURU DISTRICT,
KANDAYA BHAVAN,
BENGALURU - 560 009.



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- 2 -

2. THE ASSISTANT COMMISSIONER
BENGALURU NORTH SUB-DIVISION,
KANDAYA BHAVANA,
BENGALURU - 560 009.
3. THE SPECIAL TAHSILDAR
BENGALURU NORTH TALUK
YALAHANKA NEW TOWN
BENGALURU - 560 064.
4. SRI. S.D. AVALAPPA
S/O LATE MUNIYAPPA @ DOMMANNA
AGED ABOUT 55 YEARS,
R/O SATHANURU VILLAGE,
JALA HOBLI,
BENGALURU NORTH TALUK
BENGALURU DISTRICT - 560 064.

... RESPONDENTS

(BY SRI S. RAJASHEKAR, AGA FOR R1 TO R3)

THIS WRIT APPEAL IS FILED UNDER SECTION 4 OF THE KARNATAKA HIGH COURT ACT, 1961, PRAYING TO SET ASIDE THE ORDER DATED 19/03/2021 PASSED BY THE LEARNED SINGLE JUDGE IN WP NO.4339/2021 BY ALLOWING THIS WRIT APPEAL AND ETC.

THIS APPEAL COMING ON FOR PRELIMINARY HEARING THIS DAY, **CHIEF JUSTICE** DELIVERED THE FOLLOWING:

JUDGMENT

Heard.

2. In view of the office report, the delay in filing of the appeal stands condoned.

3. This intra-Court appeal has been filed against the interlocutory order dated 19.03.2021 passed in W.P.No.4339/2021.



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- 3 -

4. Learned counsel for the appellants tries to submit that the nature of the order is a final order deciding the rights of the parties and as such the impugned order is not sustainable in the eyes of law. It is submitted that an opportunity of hearing should have been provided to the appellants before passing of the impugned order.

5. 'We have considered the submissions and gone through the record.

6. Admittedly, learned counsel for the appellants has put in appearance before the writ Court and filed his vakalath. He is yet to file his statement of objections.

7. Once he has put in appearance before the writ Court, he shall have the opportunity to contest the matter before the writ Court. He shall also be at liberty to move an appropriate application for vacation of the impugned order as well as clarification/modification of the order.

8. In this view, we do not find it necessary to grant indulgence.

9. The writ appeal is accordingly disposed of with the observation that in case the appellants file statement of objections within a period of two weeks before the writ



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- 4 -

Court, the learned Single Judge is requested to make all possible endeavour to consider and decide the writ petition in accordance with law expeditiously.

10. The pending interlocutory application stands disposed of.



VM

Sd/-
CHIEF JUSTICE

Sd/-
JUDGE

True copy

TRUE COPY
16/2/22
Section Officer
High Court of Karnataka
Bangalore - 560 001

- a) The date on which the application was made *11/2/22*
- b) The date on which charges and additional charges were made *11/2/22*
- c) The date on which charges and additional charges were made *16/2/22*
- d) The date on which the copy is ready *16/2/22*
- e) The date on which the copy is ready *19/2/22*
- f) The date to which the applicant is required to appear in court *23/2/22*
- g) The name of the copy is delivered to the applicant *23/2/22*
- h) Examined by *23/2/22*

This Document is referred to as
Annexure *R-1A* in This
Affidavit of *Ramesh Gaud*
NOTARY PUBLIC

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.A

No.

of 2024

Petitioner/s, Appellant/s,

Sri S.D. Andappa

Vs.

Respondent/s

The Deputy Commissioner
Roha

INDEX

Sl.No.	Description	Pages	C.F. Paid
①	I.A for Stay		
②	Affidavit		

Place : Bengaluru

Date : 28/07/2024

Advocate for..........

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Appeal No. _____ /2024

Between:

Sri S.D. Avalappa

>>>Appellant

And:

The Deputy Commissioner
and others

>>>Respondents

**APPLICATION UNDER ORDER 41 RULE 5 R/W SECTION
151 OF CPC**

That for the reasons stated in the accompanying affidavit the appellant most humbly prays that this Hon'ble Court may be pleased to stay all further proceeding in pursuance to the order passed by the learned Single Judge dated 28/06/2024 in W.P. No: 4339/2021 pending disposal of this Writ Petition, in the ends of justice and equity.

Place: Bengaluru


Advocate for Appellant

Date: 27-07-2024

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Appeal No. _____/2024

Between:

Sri S.D. Avalappa

>>>Appellant

And:The Deputy Commissioner
and others

>>>Respondents

AFFIDAVIT

I, S.D. Avalappa, S/o Late Muniyappa @ Dommanna, Aged about 54 years, R/o Sathanuru Village, Jala Hobli, Bengaluru North Taluk, Bengaluru District, today at Bengaluru, do hereby solemnly affirm and state on oath as follows:-

1. I state that I am the appellant in the above case and well acquainted with the facts of the case. The contents of the memorandum of appeal both pleaded as facts and law is also be construed is a part of and parcel of this affidavit.
2. I state that my forefathers declared as a tenant under the Karnataka Land Reforms Act, on 13.07.1982 the registration certificate was issued on 12.10.1982. The landlord under whom the tenancy was claimed was never litigated because he created charge over the properties contrary to the Land Reforms Act and ultimately the beneficiary i.e., one Hemanna of the purchasing the mortgaged property in a public auction was held to be holding a void right and it is nullity in the eye of law. This conclusion have arrived during 2012 and said order attained finality because of failure on the part of Hemanna or his LR's getting reversal of that order before the Appellate Court or any other proceedings. Therefore, declaring that right of auction purchaser was void have attained finality and it is binding on not only the Hemanna, but also his LR's who are claiming right under the Hemanna. While attempt was rendered to get an entry in the revenue records based on the final adjudication of rights rendered by the competent judicial proceedings, entries are sought to be restored, at the instance of the tenant which had given room

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for a second round of litigations between the parties. However, by virtue of the order of this Hon'ble Court in W.P.No.10750/2007 dated 02.11.2023, there is a direction to cause an entry in the name of the tenant. While there was a bargain implementing the said order, the Tahsildar totally mislead and misconstrued the disposal of Writ Appeal based on the memo filed by the respondents herein, it of course reversed by the Asst. Commissioner in the appeal. It is the fact that the party respondents are not made as parties before the Asst. Commissioner as it is unnecessary and they are not necessary or proper parties because of their final adjudication of the right finally against them.

3. I state that the party respondent herein made a complaint before the 1st respondent Deputy Commissioner through a revision petition about the order of the Asst. Commissioner by contending that they were not notified and on they are not made as parties. The Deputy Commissioner without reviewing the past records of the litigation between the parties and ignoring the right finally adjudicated in favour of the tenant, in a mechanical manner related the parties to the Asst. Commissioner with a direction to afresh consideration.
4. I state that the order of the Deputy Commissioner was assailed before the learned Single Judge at the instance of the appellant on the ground that such a decision of the Deputy Commissioner is unnecessary and futile and at the end of the day nothing could be achieved despite they are given occasion to have the say in the matter. An opportunity would not be provided in law to such persons when such an opportunity found to be futile or it is an empty formality. It is settled position in law that the purpose of providing of an opportunity should achieve its object and its sub serve the purpose also providing such an opportunity when found to be unnecessary or nothing more would be extended to such persons in such an occasion demanding to providing an opportunity an empty formality that could be declined and this would be the position in law. On this principle while a legal battle brought before the learned Single Judge who infact in par with the error committed with the revenue authority, sustained the order of relegation passed by the Deputy Commissioner in exercising of this revisional

jurisdiction. The order of the learned Single Judge is infact wholly an erroneous and unwarranted and ultimately a legal right finally adjudicated in favour of tenant under the provisions of Karnataka Land Reforms Act as early as in 2012, still he could not able to get his entry in the revenue records based on such concluded order of the Land Tribunal. A serious consequence and it is nothing but an abuse of law depriving a genuine tenant in availing his entry in the revenue records despite his right finally decided by the Land Tribunal.

5. I state that however the appellant herein would not able persuaded the learned Single Judge on this legal parameters and infact the Single Judge took the manner in a causal and mechanical way construing it is only a remand order not to be interfered in a discretionary area under Article 226 of the Constitution. His view is appears to be erroneous, therefore the appellant is before this Hon'ble Court in the intra court appeal.

6. I state that the effect of the order of the learned Single Judge was is order of remand passed by the Deputy Commissioner is now justified and it was confirmed by virtue of this order now nothing would prevent the Asst. Commissioner to reopen the proceedings. The appellant having a benefit of interim order during pendency of the writ petition till which is disposed off. If the interim order is not granted the appellant will be put to great loss and injustices.

Wherefore, the appellant prays that this Hon'ble Court may be pleased to stay all further proceeding in pursuance to the order passed by the learned Single Judge dated 28/06/2024 in W.P.No.4339/2021, in the ends of justice and equity.

Identified by me


Advocate

DEPONENT

Place: Bengaluru

Date: 27/07/2024

No. of Corrections.